# Civil Law Review (CivRev)

**CivRev - Aug 14, 2025**

# INTRODUCTION + HOUSE RULES

**HOUSE RULES:**

1. No recording.
2. **OUTLINE:** There will be minimal changes in the outline.
    a. After the law of persons and family relations, we discuss succession and not property. In other jurisdictions, after PFR, succession is not property. Persons and succession is very much intertwined. If you do not have a good foundation in PFR, good luck sa succession. You will not know the shares of the compulsory heirs if you do not know the filiation of the child.
    b. **BAR EXAM**: It is a combination of PFR and Succession. First questions under persons and the last 2 under succession. So succession answers will depend on your answers sa PFR.
    c. **LEB:** Pre-requisite for succession is PFR. But property is not pre-req 'yong PFR.
    d. All these fields in Civil Law, Persons ang favorite sa bar exams. In other years it reached 62.5% which is unfair because SC would usually promise equal distribution of questions in different fields.
    e. If you will compare the cases decided by SC, there are more cases under oblicon and special contracts rather than in persons. IN fact, persons are more on Art. 36. Special contracts is not a consistent favorite but minsan number 1 sa special contracts and usually napapabayaan ng mga estudyante.
        - Last year, lahat ng special contracts tinanong (agency, credit transactions etc.).
        - In persons, ang tinatanong ay marriage (usually mga 2-3 cases lang ang cover).
        - Property relations → paternity and filiation.
    f. The rest of the topics in the subject in PFR is asked once in 5 years unless there is new law like Adoption

This is the entire civil law. For the first time, starting this sem, a few law schools already implementing the new curriculum with CivRev as 1 subject, unlike last sem, others has civ1 and civ2.

- We cannot cover the same topics as the same as the other law schools.

3. **GRADE:**
    - ⅓ → **MIDTERM**
        - **COVERAGE**:
            - Persons,
            - Succession,
            - Property;
    - ⅓ → **FINAL**
        - **COVERAGE:**
            - ObliCon,
            - Special Contracts,
            - Torts and damages;
    - ⅓ **QUIZZES** and **RECITATION** for the entire sem.

4. **CLASS CALENDAR.** Schedule of the final exam for 4th year students. The final exams more or less at the end of November. We will make the appropriate adjustments. **Sir will try to maintain the schedule as far as midterm exam is concerned.**
    a. **MORE OR LESS**: The Final exam will be on November 28. This is the schedule of UP Diliman for civrev.
    b. **MIDTERM EXAM**: F2F
    c. **FINAL:** Online although you may entertain the possibility of going to UPD for the final exam.
        i. **COVERAGE:** Although it can be Civ2 but it can have 1 or 2 which requires knowledge of Civ1 principles.
            1. EX: Persons. There is a rule in person in relation to property relations which will require you to know the kind of sale entered into by the future spouse. Know when the ownership was transferred.
    d. Same set of exams for both sections.
    e. **QUIZZES AND RECITS**: Expect to have quizzes every meeting. Di naman 2 quizzes in 1 meeting. Since this is a 2.5 class, all quizzes, regardless if f2f or online, it will be online. Every meeting we will use zoom because the google forms quiz is in zoom.
        i. **WHEN: START OF CLASS as early as 6:30 PM**. The class can decide if it is okay to start at 6:30 PM, kasi may class si sir sa UST.
        ii. It will just be for 8 minutes. 10 minutes to check the answers. This will be the break time (10 minutes). You can do anything during breaktime.

iii. After the break, discussion of the quiz. We will discuss the question and answers which will be part of the recitation.
iv. **TWO TYPES OF QUIZZES:**
    1. **DIAGNOSTIC.** This will cover the entire field, but this is ordinarily objective. Basic principles.
        a. **EX: Succession.** **Covers the whole succession**.
        b. But PFR is unique because Art. 1-51 were not modified or repealed. Family Code started in Marriage. Ang narepeal starts at Art. 52 of the CC.
    2. We will discuss Art. 1-51. (**BAR EXAM:** There will questions under provisions, esp. Under juridical personality).
    3. After the 2nd quiz, covers the specific topics. will be the specific topics which will include cases like marriage, property relations, adoption, and other fields. The same goes with Succession.
v. Grades will reflect your score on the quizzes. Usually 20 items ang quiz (meaning: 7/20 = 35% without any permutation. If 18 = 90%. 15% = 3)
vi. No minimum grades because this is unfair and misleading.
    1. ***Is there a way to cancel 0?*** Compliance with the digest.
vii. 2 possible ways of cancelling 0 or the lowest grade:
    1. Before the midterms, the last quiz can be used to cancel the lowest grade.
    2. Before the finals, the last quiz can be used to cancel the lowest grade if it is not the lowest grade. Meaning even if you get 4 zeros, you can still top the class.
viii. **CAMERA:** 2 cameras. 1 is muted the other is not. Both for quizzes and exams.

5. **CLASS NUMBER:** Each member of the class will have a class number. You will use this in quizzes, exams, and submissions as another measure to ensure Sir will not make a mistake on the grades.
    a. Class number will be confirmed before the quizzes.
6. **SECTION. Iloilo**
7. **Attendance and performance.** Weird na nakapag-aral siya kahit absent siya.
    a. If the student is present, the minimum grade given is 65. Because if you are present, you will learn a lot even just by listening to the discussion.
    b. Attendance is important for the study of the law. Sir will continue to give incentives in relation to attendance so if you have **perfect attendance**, you will be entitled to **additional 5%** to quizzes and recitation so that is 33% practically. So 2% of overall standing.
        i. **1 ABSENCE** = + 4.
        ii. **2 ABSENCES** = + 3.
        iii. **3 ABSENCES** = 0.
8. **RECITATION:** Immediately after the quiz and break.
    a. Sir does not give a grade of zero (0). This is just a practical policy kasi if 0 na sa quiz. tapos 0 pa sa recitation baka Mount Apo na aakyatin na.
    b. Minimum grade:
        i. ABSENT = 60
        ii. PRESENT = 65
    c. PUMASOK KA KAHIT MAY SAKIT 😭
    d. Class is not a reading class. So prepare.
9. **OVERALL:** Aim for 80%. Sir announces the persons who got the grade of 80 sa quizzes.
    a. If their grade is below 80, 13-15 lang ang pumapasa.
    b. If they got a grade of 80 or above, pumapasa.

**Bruce Larson:** Psychologist says it is impossible to distinguish intense listening from love.

- If you are not interested in this field, wala ka dapat sa batch na ito.

**PROPOSED PROJECT:** Baka meron to help the community.

- The best way to learn law is to know about your surroundings.

## MEMASAURS

Some educators or LEB: They classified these skills necessary to acquire by the students and the professionals: LOWEST ORDER THINKING SKILL → knowledge of the law. Skills are useless without knowledge.

- Just knowing the law is not sufficient.

1. Memorizing
2. Understanding
3. Analytical skill

***How to acquire knowledge?*** Studying and reading. Most of our knowledge of what we know is from our sense of sight.

- At least 3 hours for every 1 hour class.
- Measured through quizzes.

**QUIZZES** SOMETIMES HAVE UNDERSTANDING ESP. MCQs that are problem-based.

**GAUGE NI SIR IF YOU UNDERSTOOD THE PRINCIPLE:** EXAMPLE and application to the cases.

**RECITATION and Manner of Answering Questions: ALAC** [Answer, Legal Basis, Application, and Conclusion]

- **APPLICATION:** It requires you to analyze and use analytical skills.

***How to improve analytical skills?*** Read the law and compare cases.

- **DO NOT READ MINDLESSLY.** When reading cases, habang nagbabasa ng facts, think if what would be the issue/s, Tignan mo if ano ang mas magandang argument and usually nasa lower courts. Sa SC andyan ang reasoning and ano ang issue and eto ang mga principles na gagamitin ng SC.
- Learning is not a spectator sport.
- Socratic method and just like the ALAC, sir will not be asking to define or even distinguish (ordinarily) unless he feels that you do not know it.
    - **PROBLEM-BASED QUESTIONS.** For every major topic, Sir will be sending guide questions. They are bar exam questions. Sometimes most of them. You are not required to submit anything but read and try to answer the questions kasi he might ask them during recitation or included in the quizzes or exams.

**OUTLIERS by Malcolm Gladwell:** *Chapter Name: Ten thousand hours*

- He studied the background of the best of the best in this world.
    - By the time they were the best of the best, they have already devoted at least 10,000 hours of their lives.

**Next meeting: Art. 1-51 quiz on Saturday.**

- **READ THE OUTLINE!!!**

**DO NOT WRITE ANYTHING BELOW THIS.**

# INTRODUCTION + HOUSE RULES

TAKE NOTE OF YOUR CLASS NUMBER
**SCHOOL:** UP
**SECTION:** ILOILO

**SETUP:**
1. Take note that sir should be able to see your surroundings. As in all.

**RECIT:** RAISE YOUR HAND WHILE YOU ARE ON DECK.
If you do not want to recite, lower your hand.

Take note of the time during quizzes and exam.
- **REASON:** To avoid hacking. AND ALSO FAIRNESS. Kasi yung iba nagpass na on time.
- **In the Bar Exam and even his exams:** Budget your time and divide your time based on the numbers of answers.
- DO NOT USE HIM as an example. Do not use the word "**YOU**".
- Always answer the last question.
- Always wear "polo."

# Quiz 1: QUIZ ANSWERS

1. Laws shall take effect after 15 days following the completion of their publication in the Official Gazette and in a newspaper of general circulation, unless otherwise provided.
2. 
   - **ANS:** FALSE. Article 2. Laws shall take effect after fifteen days following the completion of their publication either in the Official Gazette **or in a newspaper of general circulation in the Philippines,** unless it is otherwise provided. This Code shall take effect one year after such publication.
   - **COMMENT:** She just told us what is the law and she repeated the statement.
   - **EXPL:** The law does not require publication in BOTH. Pwede isa lang.
3. A law may be given retroactive effect even if it does not expressly so provide.
   - **ANS:** TRUE There are exceptions to the rule.
   - **COMMENT:** If you do not agree, tell us why you disagree.
     - While I agree that the answer is __, I do not agree that…***What is wrong to the initial answer?***
     - ***What is the first one to be considered by the examinee?*** The use of "**may**" generally means you are entertaining the possibility that there are exceptions.
   - **EXPL:** "**May**" connotes that there are exemptions to the rule.
4. Laws relating to legal capacity of persons are binding upon citizens of the Philippines, even though living abroad.
   a. **ANS: TRUE.** Article 15. Laws relating to family rights and duties, or to the **status, condition** and legal capacity of persons are binding upon citizens of the Philippines, even though living abroad.
   b. **EXPL:** There is no term ONLY. Grabe. ***Are there any exceptions to this rule?*** WALA.
5. Real property as well as personal property is subject to the law of the country where it is situated.
   a. **ANS: FALSE**. Article 16. Real property as well as personal property is subject to the law of the country where it is **situated.**
   b. **COMMENT: If you answer true, you do not need to explain or cite legal basis kasi codal provision nga eh.**
      i. While I agree that the answer if **False**…[reason]
   c. **EXPL:** BASIS IS 2nd PARAGRAPH OF ART. 16. There is an exception. However, intestate and testamentary, testamentary succession wth respect to intrinsic validity is subject to the law of the law of the person whose succession is under consideration.
6. Every person who, through an act of performance by another, or any other means, acquires or comes into possession of something at the expense of the latter, shall return the same to him.
   a. **ANS:** FALSE. Article 22. Every person who through an act of performance by another, or any other means, acquires or comes into possession of something at the expense of the latter without just or legal ground, shall return the same to him.
   b. **EXPL: There should be a qualification which is without "just or legal reason."**
7. Under the Civil Code, when the laws speak of years, months, days or nights, it shall be understood that years are of 365 days each; months of 31 days; days of 24 hours; and nights from sunset to sunrise.

a. **ANS:** False. Article 13. When the laws speak of years, months, days or nights, it shall be understood that years are of three hundred sixty-five days each; **months, of thirty days**; days, of twenty-four hours; and nights from sunset to sunrise.

8. Penal laws and those of public security and safety shall be obligatory not only **upon all citizens of the Philippines,** but also upon all who live or sojourn in the Philippine territory subject to the principles of public international law and to treaty stipulations
   a. **FALSE.** Article 14. Penal laws and those of public security and safety shall be obligatory **upon all who live** or sojourn in the Philippine territory, subject to the principles of public international law and to treaty stipulations.
   b. **EXPL:** This is the territoriality principle.
9. Juridical capacity, which is the fitness to be the subject of legal relations, is inherent in every natural person and is lost only through death
   a. **TRUE**
   b. **EXPL:** ***Any person who does not have juridical capacity?*** Corpse or dead person. Another is a corporation who is not registered in the SEC.
      i. Under the present law, corporations has no death. So it is not an example.
      ii. A corporation who was not registered with the SEC.
10. Under the **Abuse of Rights** Principle, every person must, in the performance of his duties, act with justice, give everyone his due, and observe honesty and good faith.
    a. **FALSE.** Article 19. Every person must, in the exercise of his rights and in the performance of his duties, act with justice, give everyone his due, and observe honesty and good faith.
    b. **EXPL:** **Abuse of rights is not at the performance of duties but the exercise of rights**. Pwede ang tao magkarapatan pero pwede siyang maging liable pero at the exercise of his rights naging abusado siya. Kaya dalawa yun depende sa nature of problem.
11. For civil purposes, the foetus is considered born if it is alive at the time it is completely delivered from the mother's womb.
    a. **FALSE.** Article 41. For civil purposes, the foetus is considered born if it is alive at the time it is completely delivered from the mother's womb. However, if the foetus had an intra-uterine life of less than seven months, it is not deemed born if it dies within twenty-four hours after its complete delivery from the maternal womb.
    b. **EXPL:** Consider the intrauterine.

| Intrauterine Life | When Considered Born |
|---|---|
| 7 months or more | If alive (e.g. can breathe independently, etc. upon delivery) |
| Less than 7 months | If alive after completion of 24 hours from delivery |

- Kapag sinabing less than 24 → edi kapag 24 hrs na, okay na
  - AFTER v. WITHIN
- The 2nd paragraph is just a qualification.

**MCQ:**

12. If a law is silent as to the date of its effectivity and it was published in the Official Gazette on January 20, 2020, it is effective on:
    a. February 4, 2020
    **b. February 5, 2020**
    c. February 6, 2020
    d. February 20, 2020
    e. February 21, 2020

    **EXPL:** After 15 days v. 15 days after
    - 15 days after which is on the 15th day.
    - February 5, 2020, unless otherwise provided, because the law is silent, this makes no sense anymore.
    - **DO NOT** use him as an example.
    - Other rules applied [Art. 13]
      - 16th day
        - The first day included and the last day excluded.
        - Exclude January 20 and last day is Feb 4.
      - If the month was designated by name
13. This law may not be given retroactive effect even if it expressly so provides:
    **a. A law creating new rights**
    b. Curative law
    c. Interpretative law
    d. Procedural law

e. None of the above
   - **EXPL:** If it is prejudicial to the person. If it would impair vested rights. Uson v. Del Rosario.

14. One month from February 1, 2021 is:
    a. March 1, 2021
    b. February 29, 2021
    c. March 2, 2021
    d. March 3, 2021
    e. None of the above
       - **EXPL:** Considering that par. 1, Art. 13 it is of 30 days and the first day shall be excluded and the last day is included. Months is 30 days
       - ***Is it fair for the examiner to ask if a year is a leap year or not?*** If I am a lawyer, I need to be precise with the time. This is a common knowledge. The Court can ask another question.
       -

15. The following shall be governed by the nationality principle, except:
    a. Family rights and duties
    **b. Validity of wills**
    c. Legal capacity of persons
    d. All of the above
    **e.** None of the above
       - **EXPL:** Art. 16 the extrinsic is not needed to govern the validity of wills by the testator.

16. Capacity to act:
    a. Is the fitness to be the subject of legal relations
    b. is inherent in every natural person
    c. **is acquired and may be lost**
    d. all of the above
    e. none of the above

17. The following circumstances modify or limity capacity to act, except.
    a. Alienage
    b. Insanity
    **c. <u>Civil Interdiction</u>**
    d. All of the above
    e. None of the above
       - **EXPL:** ***When does a person suffer civil interdiction?*** Accessory penalty + 12 yrs minimum;
       - ***What family rights are you talking about?*** Family rights but be specific such as parental authority, guardianship and of marital authority.
         - Cannot dispose his property.
           1. For the validity of marriage settlements, the participation of the guardian shall be indispensable Article 123, Civil Code] Sentence of one's spouse to a penalty that carries with it civil interdiction is sufficient to cause for judicial separation of property. [Article 135(1), Family Code]
           2. The administration of the exclusive property of either spouse may be transferred by the court to the other spouse when one of them is sentenced to civil interdiction. [Article 142(3), Family Code]
           3. Does not have the right to manage his property and the right to dispose of such by any act inter vivos. [Article 34, Revised Penal Code]
           4. ***How can he dispose?*** Through conveyance of will.

***What is the effect of alienage?*** Citizenship may affect the right of persons in matters where the State may validly discriminate between aliens and its citizens for reasons of public policy, without doing violence to the equal protection of the laws.

***Do you agree that aliens cannot own real properties?*** NO. Lands cannot be owned by aliens but other real property can be owned by aliens.

- Own and acquire are different. How can an alien own a private land? Through inheritancehe and sometimes if Filipinos lose citizenship, he still retain his lands that he owns.

18. For civil purposes, the fetus is considered born if it is alive at the time it is completely delivered from the mother's womb. However, it is not deemed born if it dies within twenty-four hours after its complete delivery from the maternal womb, if:
    a. The child is born less than 7 months from the death of the child's father

b. The child is born less than 6 months from the death of the child's father
c. The child is born less than 5 months from the death of the child's father
d. All of the above
**e. None of the above**
   i. **EXP: We consider the intrauterine life of the child and not the death of the father.**

19. If there is doubt, as between two or more persons who are called to succeed each other, as to who of them died first:
a. The older is presumed to have survived
b. The younger is presumed to have survived
c. The male is presumed to have survived if the other is a female
d. They are deemed to have died at the same time
e. **None of the above**
   - **Reason:** A, B, and C are all rules on survivorship, they do not apply to succession. D could have been correct if not for the word "conclusive" because as discussed in no. 10 presumption as provided under Art. 43 is a disputable one.

20. A minor may not have the right to institute an action for annulment if he actively misrepresented as to his age under the principle of:
a. Ignorantia legis non excusat
b. Prescription
c. In pare delicto
d. **Estoppel**
e. None of the above

**REASON:** (Provided by jurisprudence) As held in Mercado vs. Espiritu, the sale of real estate, made by minors who pretend to be of legal age, when in fact they are not, is valid, and they will not be permitted to excuse themselves from the fulfillment of the obligations contracted by them, or to have them annulled. Also, these minors cannot be permitted afterwards to excuse themselves from compliance with the obligation assumed by them or seek their annulment. This is in accordance with the provisions of the law on estoppels.

21. This rule is based on a presumption established because of the obligatory force of law. It is dictated not only by expediency but also by necessity.
a. Stare decisis
b. In pari de licto
c. Estoppel
**d. Ignorantia legis non excusat**
e. Dura lex sed lex
   - **EXPL:** (provided by jurisprudence) As held in Zulueta vs Zulueta, the legal precept that "ignorance of the law excuses no one from compliance therewith" is founded not only on expediency and policy but also on necessity.

**Next meeting: same topics of assignments. But there may be a quiz at the end of the session.**

**DO NOT WRITE ANYTHING BELOW THIS.**

# ARTICLES 1 – 51, CIVIL CODE

**GUIDE QUESTIONS**

5. After a devastating storm causing widespread destruction in four Central Luzon provinces, the executive and legislative branches of the government agreed to enact a special law appropriating P1 billion for purposes of relief and rehabilitation for the provinces. In view of the urgent nature of the legislative enactment, it is provided in i**ts effectivity clause that it shall take effect upon approval and after completion of publication in the Official Gazette and a newspaper of general circulation in the Philippines.** The law was passed by the Congress on July 1, 1990, signed into law by the President on July 3, 1990, and published in such newspaper of general circulation on July 7, 1990 and in the **Official Gazette on July 10, 1990.**

a) As to the publication of said legislative enactment, is there sufficient observance or compliance with the requirements for a valid publication? Explain your answer.
   - **ANS:** *There is a no sufficient compliance. In this case, the special law itself provides for its publication not only in the Official Gazette but also in a newspaper of general circulation.*

b) When did the law take effect? Explain your answer.
   - **ANS:** *The law requires the publication in both the official gazette and newspaper if general circulation. The law took effect on July 10, 1990 after the publication in the OFFICIAL GAZETTE and newspaper of general circulation.*

c) Can the executive branch start releasing and disbursing funds appropriated by the said law the day following its approval? Explain your answer.

## CASE 1: PESIGAN v. ANGELES

- **ADMIN MATTER:** Sir will not be asking if we read the case → diretso issue na
- W/N EO 626-A dated October 25, 1980, is enforceable even before its publication in the OG of June 14, 1982.
- *This EO was published on June 14, 1982. Alipio claimed that the EO was published on June 14, 1982.*
  - It was not stated "of" June 14 and not "ON" June 14, 1982. → This was published on OG June 14 date by the OG. Therefore it was published on such date.
    - There is difficulty in ascertaining the date of publication. A law is considered published in the Official Gazette.
- Before the publication in the OG **of (dated)** June 14, 1982. (THIS DATE IS ONLY THE ISSUE DATE)
  - If the date of official publication is June 14, 1982. ***Therefore, it was published on that date?*** Not necessarily. It was possible that on that date the law was not published on the same date.
    - ***Is the date in the OG also the date of publication of the law?*** NO, *not necessarily ang tamang answer.*
  - ***A law is considered published when?*** Publishing not only the printing but also when it was made accessible to the public. Would you maintain that the date of the printing of the OG is the publication period? NO because it would not be possible kasi printing date yon eh and it might not be made easily to the public.
  - We must think not only of the publishing but when it was made known to the public. ***Therefore, the printed date of the OG may actually be the date of publication?*** NO.
- ***So when was the law considered published?*** When it is printed in the Official Gazette.
  - ***In the case, therefore of Pesigan, when was this EO published?*** There is difficulty in ascertaining the date of publication.
  - ***Do you agree with the SC?*** I agree because the publication date was not published**.** At the time of the confiscation, the Pesigan did not commit the crime yet. Because it was in the facts that the EO was printed on June 14, 1982, therefore, when the act was committed, the EO was not yet published, considering that printing necessarily comes first before publication.

## CASE 2: People v. Veridiano

- Batas Pambansa Bilang 22 was published in the Official Gazette issue of April 9, 1979. Nevertheless, the same was released only on June 14, 1979.
- It was printed on April 9 but was published on June 14.

- The claim of the prosecution was that this law took effect when? The law was BP22 and according to the prosecution the law took effect on April 9, 1979 which is the date of publication
- But SC ruled that it was published on June 14, 1979.
    - ***What is the basis of this ruling?*** The copy editor of the OG provided a certification on the dates. The copyeditor certified that the date on the Official Gazette and not the publication, it was released much later to the public. A law is deemed published when such had been released to the public
- ***What was the issue?*** *Whether the BP 22 was already in effect when the act of issuing the bouncing check, which was an element of the crime?*
- ***What was wrong here?*** It is lacking to the fact as to the effectivity of BP 22.
- Ultimately you are correct, Ms. Napolis is better because the issue of Yorong relies on the date of effectivity of this BP 22.
- If you formulate the issue as MR. Yorong, you are saying that the act punished is the issuance of the check. ***Is this correct?*** Is this also an issue on what act is punished by BP 22?
- **NOTE: YOU DO NOT CONSIDER A FACT IF IT IS AN ISSUE.**
- ***What is the offense?*** Issuance of the dishonor. ***Did the court ruled on this?*** YES. It was the date that the check was issued and not on the date of dishonor. ***If the court ruled that it is the fact of dishonor which is punished, will the decision of the court be the same?*** NO. The date of dishonor of the check falls after the effectivity of BP 22.
- ***Do you agree with the decision of the Court that it is the issuance of the check that is punished?*** If intentional dapat makulong but as the premise at the time of issuance of the check, million2 ang pera n'ya and kaya nya macover but would it not be possible na before maging due, namatayan si nag-issue → di nya sinasadya.
    - There is a five (5) day if the acts of issuance is the one being punished. The issue here is that you have no funds for the check. So many for advocating for the repeal of this law because it is unfair.

**NEXT ISSUE:** This law was published again on June 14, 1979 therefore, it took effect **15 days after** its publication, then it should be June 30, 1979. ***Is this correct?***

- NO, it is on June 29. The law took effect on June 29, 1979. It specifically stated that it will take effect 15 days after. The law does not follow the general rule that laws take effect after 15 days. This law takes effect 15 days after.
    - In other words, this law has its own provision and falls under the phrase "unless otherwise provided."
    - This law has its own provision as to its date of effectivity. This falls on the phrase "otherwise provided"

**CASE 3: Tañada v. Tuvera**

- Don't suffer on Secret PDs. hindi napublish. During the years of martial law, people would be arrested or tortured based on laws which were not published but printed in the OG. So METROCOM lang ang may alam sa batas.

**CASE 3: Nagkakaisang Maralita v. Military Shrine Services**

- ***What started this case?*** **Proclamation No. 423** by President Carlos P. Garcia
    - This is for military reservation. This is known as Fort Bonifacio. → BGC.
    - The proclamation of then president Marcos made certain exclusions in the reservation as **Libingan ng mga Bayani**
    - ***How do you describe then PBBMSr.?*** He is a hero kasi nakalibing siya don. → SIR: FORTUNETELLER SIYA KASI SIYA GUMAWA NON.
    - Do you remember the vices of consent in contracts?
        - Mistake → fact. ***Why not mistake of law?*** Because of Art. 3. Ignorance of the law excuses no one from excuses therewith.
        - Fraud
        - Undue Influence
        - Violence
        - Intimidation

**Formal requisites in marriage:**

***If the solemnizing officer has no authority to solemnize the marriage, what is the status of the marriage?*** VOID but exception that if the parties are in good faith believing that the solemnizing officer has the authority.

- ***If you think there is something wrong with the answer, let the classmate know what is wrong.***
    - Should have qualified that there was an exception.
- Walang well-founded belief!
- There is this view that for one to invoke good faith, meaning that he believed in good faith that the SO has the authority to solemnize marriage, this officer should the the authority to solemnize under the law.
    - The question as to the authority of the solemnizing or authorizing officer, is it a question of fact or law?
        - LAW → because the law said so. Because this is a question of law, can they claim good faith?
            - **ANS:** *It is a no.* **DISCUSSION OF THE ESSENTIAL AND FORMAL REQUISITES with a BASIS.**

We already discuss during the quiz example Mr. Alipio. IF the law does not expressly provides for its retroactive effect, then it cannot be given a retroactive effect.

- If the law does not expressly provide retroactive effect, then it cannot be given retroactive effect. → **There are exceptions. So no.**
- ***If the law expressly provides for retroactive effect, then it will be given retroactive effect?*** → NO. ex post facto law.

**CASE 1: Uson v. Del Rosario**

- **ISSUE: W/N** *the new Civil Code may retroactively apply to the illegitimate children?*
    - EX: *In relation as to when the law is published?* **Date of publication is not the same of effectiivity. If you follow the general rule, it is after the effectivity date.**
    - WON BP 22 was published on the date of the official gazette? Why? Because it was the prosecution who claimed that the law was published on that date.
        - YOU FORMULATE ISSUE BASED ON THE PETITIONER's CLAIM.
    - Why was it formulated WON? To consider the arguments of both sides.
        - It is the easiest. [If ganyan ang parameter mo if ano ang madaling paraan para yumaman? Corruption.]
        - ***Is there sense to this formulation?*** W/N considers the arguments of both parties. It is about fairness. With this formulation, it can be in the side of the petitioner/respondent/plaintiff/defendant.
    - Why is formulation important in Civil Law? Are we required to formulate the issue? There is a controversy to be determined in the pretrial which you will have to formulate the issue that will be considered by the court. The determination of the court will be limited to what was formulated by the court.

**ISSUE: W/N the illegitimate children of defendant Nebrada are entitled to successional rights under the New Civil Code when he died in 1945**

- ***What is the defect?*** It is insufficient. ***In what sense?*** The legitimate children is not only entitled but they are also asserting for status.
    - The illegitimate children had successional rights.
    - He mentioned that decedent died before the effectivity of the Civil Code.
        - This is an important fact in this case. Under NCC, compulsory heirs na ang illegitimate child.
        - ***What was missing then?*** It should be: **the wife survived the husband kasi survival of the legal spouse**

**SC RULED:** Illegitimate heirs cannot be granted successional rights due to the vested right of the surviving wife vested at the moment of death.

- To give retroactive effect, it will impair vested rights. → the death of the husband occurred at the effectivity of the Old Civil Code. The successional rights of the spouse was vested at the moment of death of deceased. The successional rights are transmitted upon death. It cannot be impaired therefore.

**SITUATION:** X died a month ago. Survived by several heirs among them A. Before the probate of the will of X, A entered into a compromise agreement with the other heirs where he basically waived his **successional rights** in exchange with 10M. Later on,

realizing that her share is 25M, he claimed that this compromise agreement or waiver is void. ***Is a correct?***

- ***A is appraised of his share and is fully aware of his rights and he is fully aware of his rights and he is then completely waiving or a portion to the estate. He was in his full faculties when A entered.***
- **Before the declaration is a compulsory heir, then he is not a compulsory heir? NO, if anak s'ya hindi kailangan na compulsory heir ka na ideclare.**
    - It is just a declaration.
    - Incomplete that this constituted in the waiver of his rights. There was nothing in the facts that stated that there were any vices in the consent that would render the waiver void.

**ANSWER:** You can waive because it is already a vested right, even if you probate it, as you already have it, you can waive.

- ***What is the fact in the problem which resulted in the issue?*** The will as not yet probated when it was compromised.
    - In order for it to be waived, there should be a vested right.
- It is still an inchoate rights which can be waived.
    - This is not true because no vested right yet to be received.
    - If your grandparents are still alive, can you waive your hereditary rights? No, because inchoate. → this is incorrect kasi if inchoate what if mauna pa tayo sa heir.

The ruling of the court → because the heir who executed the waiver was a compulsory heir. Asawa siya eh. *Who cares is if the will is probated or not?*

***Is it possible that during the probate, he does not have a right?*** He could be an instituted heir → voluntary heir. If voluntary and it is denied probate, ther is nothing that he can waive.

- Even in the bar exam, as you read as the problem and you think that it is similar to the case of De Borja v. De Borja the examiner might change a fact that the answer is not the same with the ruling of the SC.
- If he was a compulsory heir, then the decision will be different.

**BAR EXAM PROBLEM:** A was about to open his car repair shop so he leased an equipment of B. **They agreed that the lease is for 1 month**. The agreement was entered into on February 15, 2021. On that day, B delivered the equipment to A. The next month on March 15, B through a phone call, demanded for the return of the equipment. But due to the mechanical failure of the truck of A, A failed to deliver. The equipment however was burned due to a fire that started in another establishment. ***Is A liable?***

- GR: The problem pertains to legal periods.
- **PROBLEM:** Effect of the lost of the deliver the thing due to a fortuitous event

***Article 1174.*** *Except in cases expressly specified by the law, or when it is otherwise declared by stipulation, or when the nature of the obligation requires the assumption of risk, no person shall be responsible for those events which could not be foreseen, or which, though foreseen, were inevitable. (1105a)*

(1) stipulated by parties that he will be liable
(2) Law so provides
(3) Nature that requires the assumption of risks

***If at all, there is applicable, what is it?*** → the law so provides.

- ***What is the exemption?*** Delay. But this is not the only law. (Art. 1165) → If the obligor delays, or has promised to deliver the same thing to two or more persons who do not have the same interest, he shall be responsible for any fortuitous event until he has effected the delivery. (1096)

**ANS:** NO, A is not liable. Delay is the controlling issue. But to conclude if he is in delay is in the computation of period. → but since they agreed that it is 1 month which in the law, 30 days. Include the last day exclude the first day. February 2021 is not a leap year thus 28 days only. Therefore it is not due and demandable yet because it is due on March 17. First day is February 15 should be excluded therefore the first date therefore is February 15. It is not a leap year therefore
If specific month, consider the dates and since February of 2021 is just 28 years. There was no delay because it was not yet due at the time of the loss.

- Ang due may point pero ang determining point here is the DATE OF THE LOSS. ***Was he already in delay at the time of the loss?*** NO, he cannot be

considered delay because at the time of the loss, there was no valid demand. For delay to set in, there should be a valid demand. The demand was premature therefore not demandable. ***Is it possible that it can be due but not demandable?*** Di nasagot.

- There was no valid demand, because when the demand was made, the obligation was not due and demandable. A demand made before the obligation becomes due is the same as though there was no demand.
- The answer is in the GR: No person shall be responsible for those events which cannot be foreseen.

**LESSON:** With a problem, hindi lang isa ang issue baka 3, 4, or pito and it is a combination of other fields. Do not expect that the bar exam questions can be answered within 1 field.

**Next meeting: Start with binding effect of laws up to the essential and formal requisites.**

- **QUIZ: Whole PFR except Art. 1-51**

**DO NOT WRITE ANYTHING BELOW THIS.**

## Binding Effect

***A divorce decree obtained abroad may only be recognized if it is obtained by a Filipino?***
Incorrect because the court has held in a jurisprudence the word "obtained" does not necessarily mean that it was the foreigner spouse has initiated so even if it was the Filipino spouse who initiated the divorce decree abroad is binding.

You cited your basis in a jurisprudence, what is the jurisprudence? In the case of Republic v. Manalo.
What is the difference between a case and jurisprudence?

- Case → decision made by the court;
- Jurisprudence → represents the

**NOTE:** The science is that you do not call jurisprudence a case. It is just a case.

- If you are pertaining to the study of all the cases, then jurisprudence or doctrines.
- Thus, before Republic v. Manalo, was that the rulings of the Court?
    - **ANS:** The court had already ruled that this provision not necessarily entails that it is the foreign spouse that initiate the proceedings. EX: Van Dorn ***You mean in van dorn, the spouse that obtained the decree is a Filipino?*** NO. it was a foreign spouse.
- ***IN Van dorn, who obtained the divorce decree?*** It was the foreign spouse which is the husband.
- ***Is it the foreigner who obtained the divorce decree?*** In Van Dorn, it was not clear who filed for the divorce decree. **3 reasons** mentioned in the decision that it is clear to you that it was the Filipina who filed for the divorce. Even before Manalo, SC already given recognition of the divorce decree obtained by the Filipino spouse:
    - In the SPA, there were statements that showed that it was the Filipina who initiated the divorce decree.
    - Summons was served upon the foreigner spouse.
    - ***Who filed the answer?*** The foreigner spouse. Kasi siya nga yung finile-lan ng summons.
- If you read cases where the court states that divorce decrees before Manalo recognized obtained by the foreign spouse is NOT TRUE.

***Pilapil Case***
Who obtained the divorce decree? German spouse. The divorce decree is given effect in this jurisdiction.
***If the problem is the capacity of the heir to succeed, will Art. 15 be a good legal basis to the answer?*** NO. it is more directly addressed in Art. 16 par. 2 → this is wrong. This has nothing to do with the capacity of the heir to succeed.

- Art. 15 will be applicable in terms of the succession.
- **SIR: NO**, Art. 15 does not have anything to do with succession. It is about persons. Tungkol to legal capacity to contract marriage, status of the child…

**THE CORRECT LEGAL BASIS IS ART. 1039**. Capacity to succeed is governed by the law of the nation of the decedent.

### PREJUDICIAL QUESTION

A married B. A few years after, during the subsistence of this marriage, A married C. A few months after the 2nd marriage, a criminal complaint of bigamy is filed against A. A filed a motion for suspension of the proceeding, claiming that there is a prejudicial question to be solved first, because of the a pending case of another court for annulment of marriage. ***How will you rule on such motion?***
**ANS:** It depends, which marriage is the subject of annulment. If the subject is the first marriage then it would not be a prejudicial question. If the subject is the second marriage, we look into who initiated the annulment proceeding. If it was the 2nd spouse C who initiated the annulment, then it would not be a prejudicial question (Donato v. Luna and Landicho v. Relova) Annulment case is not a prejudicial question to bigamy. BUT if it is the accused who initiated the complaint and he invoked that his consent was vitiated, then it would be a prejudicial question.

- Nong Cris: He did not cite People v. Pulido
- Ced: Disagree to Cris. The facts mentioned in pulido does not apply to facts in this case.
- SIR: Masyado kang nagcoconclude.
- CED: in Pulido case, it was the case for declaration of nullity of marriage.
- SIR: The problem is about annulment of marriage but not declaration of nullity. The claim of A is voidable ang marriage. Pulido is void.
- SIR: you did not rule on the motion. If the action is in relation to the first marriage, then ***How would you rule?*** The action for annulment pertains to

the marriage, there is no prejudicial question. You will deny the motion kasi wala ngang prejudicial question.

- **SIR:** You mentioned that if it was the first marriage, there is no prejudicial question, but you did not discuss why. ***Why no prejudicial question if action of annulment pertains to the first marriage?*** One of the requisites of bigamy is there is a prior subsisting valid marriage. ICAB, if it is the 1st marriage then this requisite would still be present and the 2nd marriage would still be bigamous.
- **SIR:** If the action of the annulment of the marriage was about the 1st, at the time the 2nd marriage was solemnized the marriage is still subsisiting because it was not yet annulled which is a requisite for bigamy to be committed.
- In relation to the 2nd marriage, you mentioned the 1st part that if it was the wife and not the accused, you should have considered the ground. But for the husband, correct.
- ***May marriage be voidable if there is no vitiation of consent?*** YES. between 18 and 21, unsound mind, etc.

## CIVIL PERSONALITY

Mr. Luna died, leaving an estate of Ten Million (P10, 000,000.00) Pesos. His widow gave birth to a child four months after Mr. Luna's death, but the child died five hours after birth. Two days after the child's death, the widow of Mr. Luna also died because she had suffered from difficult childbirth. **The estate of Mr. Luna is now being claimed by his parents, and the parents of his widow.** ***Who is entitled to Mr. Luna's estate and why?***

**ANS:** Consider the intrauterine life of the child, if it is born less than 7 months and died before 24 hours, then we assume that first that if the child has been born was born less than the intrauterine life then 7 months then no juridical capacity but if 24 hours and died 5 hours after birth – juridical capacity. The wife and the child are entitled to the share and the estate would go to the mother.

- Correct provisions of the law and that who should be entitled to the estate.
    - He did.
    - ***Do you agree to this answer?*** The estate is now being claimed by the parents of Mr. Luna. More important than that, patay na ang mga tao na yan. Wala na silang juridical personality. Ang nag-aagawan ay yung parents ni Mr. Luna and parents ni Mrs. Luna. Somebody else might have acquired their rights by succession.
    - **NOTE:** Be specific with your words. He mentioned that "he received juridical personality" a person does not receives juridical personality.

1. At age 18, Marian found out that she was pregnant. She insured her own life and named her unborn child as her sole beneficiary. When she was already due to give birth, she and her boyfriend Pietro, the father of her unborn child, were kidnapped in a resort in Bataan where they were vacationing. The military gave chase and after one week, they were found in an abandoned hut in Cavite. Marian and Pietro were hacked with bolos. Marian and the baby she delivered were both found dead, with the baby's umbilical cord already cut. Pietro survived.
    a. Can Marian's baby be the beneficiary of the insurance taken on the life of the mother? (2%))
    **ANS:** YES. the unborn child may be a beneficiary of the insurance for purposes that are favorable to it.
    **CORRECT PROVISION:** Article 40. Birth determines personality; but the conceived child shall be considered born for all purposes that are favorable to it, provided it be born later with the conditions specified in the following article.

    b. Between Marian and the baby, who is presumed to have died ahead? (1%)
    The father is still alive he can prove who is survived or died first.
    **COMMENT:** He did not answer the question. The question is presumption. Do not go with proof. The presumption is disputable in relation to Rule on Survivorship, RULE 113.
        - The RulesROC provides if the other person is less than 15 years old and the other is between 15 and 60, it is deemed that the latter survives. The mother survives.
        - **COMMENT:** There is nothing in the facts that we can infer who died first. The presumption that they died in the same time and no transmission of rights shall be transferred.
        - **APPLICABLE PROVISION:** Article 43. If there is a doubt, as between two or more persons who are called to succeed each other, as to which of them died first, whoever alleges the death of one prior to the other, shall prove the same; in the absence of proof, it is presumed that they died at the

same time and there shall be no transmission of rights from one to the other.

- **SIR:** The answers are different because the perspective is different. Both Dilla and Bedonia are on survivorship but they differ on the applied provisions. In other words, there are survivorship presumption in ROC and CC.
- They did not discuss why, Dilla if you realize, you are invoking the Rules of Court. But you did not say why the Rules of Court.
- Article 43 was not cited because it applies to matters to succession but the issue here is whether the insurance proceeds is the question here.
- **NOTE:** When you give the answer, complete it. Before you discuss the ROC, discuss why will you use it.
- ***Although in letter B, is it not possible that the question here will also involve succession?*** YES. But Sir agrees that the question is all about insurance.
- Unless qualified by the examiner, the question is related to the 1st one. Under the law of insurance, what are the requirements for a beneficiary.
- Sir does not mind if we qualify re: if succession or if survivorship only not for succession purposes.
    - He should survive the insured. But qualify that it depends on the issue that will require the presumption if it is about succession or any other matter other than succession.

- **IF ABOUT SUCCESSION**
    - The answer will be the that both of died at the same time because Art. 43 states that if there Article 43. If there is a doubt, as between two or more persons who are called to succeed each other, as to which of them died first, whoever alleges the death of one prior to the other, shall prove the same; in the absence of proof, it is presumed that they died at the same time and there shall be no transmission of rights from one to the other. ICAB, it cannot be gleaned who between them died first.
- ***Is it clear from the facts as to the child acquiring juridical personality?*** NO. ***Then do you apply ROC or Art. 43?*** No kasi survivorship yung dalawang provision. If di siya nag acquire ng juridical personality, di siya mamatay.

***Is there no basis on the juridical personality?*** Marian and the baby she delivered were both found dead, **with the baby's umbilical cord already cut.**

- **SIR:** Agree. Kasi kung patay na yan, bat ica-cut pa yan? Kaya kinacut para mabuhay ang bata. BUT, the ultimate question here is as presented to you, ***Is there a need to invoke a presumption? Is the facts sufficient to conclude as to who survived whom?*** NO. Both have been found dead at the same time.
- **SIR:** Marian was hacked therefore she died first, others claimed. BUT it does not mean that she will die immediately ahead of the child. If the issue is not about succession, the answer that Marian will be presumed to have survived is correct despite the claim of the other classmate that no basis ang presumption. Marian is presumed to be alive is that if one of them is below 15 or over 60, the one who is between 15 or 60 is deemed to have survived.
- **DO NOT SAY OLDER.**

a. **If both were under the age of fifteen years**, the **older** is deemed to have survived

c. **If both were above the age of sixty**, the **younger** is deemed to have survived;

d. **If one is under fifteen and the other above sixty**, the **former** is deemed to have survived;

e. **If both be over fifteen and under sixty**, and the sex be different, the **male** is deemed to have survived; if the sex be the same, the **older**;

   i. Tingnan ang gender bago ang edad.

f. **If one be under fifteen or over sixty**, and **the other between those ages,** the **latter** is deemed to have survived.

g. Will Pietro, as surviving biological father of the baby, be entitled to claim the proceeds of the life insurance on the life of Marian? (2%)

## QUIZ 2 [Answers]

1. Under the conjugal partnership of gains, a property acquired during the marriage registered in the name of both spouses is a conjugal property.
    - **FALSE.** It is only PRESUMED TO BE A CONJUGAL PROPERTY. This is a disputable presumption. ***What is the basis of the claim that it is***

***presumed?*** Art. 116.
    - You claimed that it is only presumed because it is registered in the name of both spouses. You agree Ms. Llorente?
- **ARTICLE 116.** All property acquired during the marriage, whether the acquisition appears to have been made, contracted or registered in the name of one or both spouses, is presumed to be conjugal unless the contrary is proved.
    - ***Is there a presumption? If yes, why?*** Acquired during the marriage. Not about the registration. There is presumption because it is acquired during the marriage.
    - If this is ACP, may there be a presumption also that it is a community property? YES. ***When will there be such presumption?*** ARTICLE 93. Property acquired during the marriage is presumed to belong to the community, unless it is proved that it is one of those excluded therefrom. There will be such presumption if the property is acquired DURING THE MARRIAGE.

2. The absence of any of the formal requisites shall render the marriage void ab initio
    - **FALSE.** There is an exception is Art. 35. Belief in good faith of the authority of the solemnizing officer. The absence will cure the defect.
    - Incomplete because aside the good faith presumption so far as mentioned by Bedonia, you are just saying there are other exceptions. It is a mistake of fact and not a mistake of law. The exception is with regard to a mistake RTC Judge of Makati but solemnize in another jurisdiction.
    - It will not affect the marriage because it is just an irregularity.
    - He was talking about the authority of the solemnizing authority in fairness to Bedonia.
    - It is not the absence but it is the belief that will cure the defect.
    - By believing in good faith
    - The problem in the answer is “They” the exception states is EITHER OF THE CONTRACTING PARTY.
    - **SIR:** The correct statement is either or both believed in good faith.
    - Aside from the absence of authority, there is still an exception such as:

3. Any contracting party between the age of twenty-one and twenty-five shall be obliged to ask their parents or guardian for consent upon the intended marriage.
    - FALSE. Parental advice is required not CONSENT. The requirement of the law, ***When will parental consent be required?*** Either or both are 18 or between 21. ***Is consent that their child is marrying a specific person?*** **YES.** Dapat pumayag sila na ang anak nila ay papakasal kay Juan.
    - I do not agree because the Family Code did not mention that there should be indication and that there should just be married.
    - Aside from the fact that there is nothing in the law as to consent to a specific person, ***if one of the contracting party is 19 years old previously married and mag-aasawa ulit, need pa ba ng parental consent?*** NO. ***Will you maintain that it is for specific person for the consent or it is for the FACT that their child is getting married?*** If unemancipated, then parental consent is needed therefore, a 19 years old previously married, does not need consent as for the specific person but as to the FACT that the child is getting married.
        i. Why in that scenario, consent is not needed anymore? Because the child had already got married. This is a better view.

4. The licence shall be valid in any part of the Philippines for a period of one hundred twenty days from the date of issue
    - TRUE

5. **Brothers and sister not legitimately related**, whether of the full or half-blood, are likewise bound to support each other
    - **FALSE.** There are EXCs.
    - **NOTE:** ***Huwag gagawin yang “Brothers and sisters not legitimately related” this is the subject of the sentence. “Whether full or half blood” was there wrong in the subject matter?*** WALA. baka ang mali is ang conclusion na “likewise bound to support each other” kaya huwag niyo palitan ang premise or rule UNLESS it is misleading.
    - This FALSE because they are not required to support each other. Pero mali din. ***What is the answer?*** FALSE. Art. 196. Brothers and sisters not legitimately related, whether of the full or half-blood, are likewise bound to support each other to the full extent set forth in

Article 194, except only when the need for support of the brother or sister, being of age, is due to a cause imputable to the claimant's fault or negligence.
    - **NOTE:** Do not say "should." unless it should be tomorrow.
    - ***Is this Art. 196 applicable to ascendants and descendants?*** NO.

6. In case of death, the absence or unsuitability of the parents, **special** parental authority shall be exercised by the surviving grandparent.
    - **FALSE.** See Art. 216.
    - ***Who may have special parental authority?*** Teachers, administrators, the school.
        - **Art. 218.** The school, its administrators and teachers, or the individual, entity or institution engaged in child are shall have special parental authority and responsibility over the minor child while under their supervision, instruction or custody.

7. Husband and wife must jointly adopt if one seeks to adopt his own illegitimate child.
    - **FALSE.** The law provides that consent is only needed and not adopty jointly. Consent =/= Joint Adoption
    - Sec. 21 of the Domestic Adoption Act: Spouses shall jointly adopt, except in the following cases:
      (a) If one spouse seeks to adopt the legitimate child of the other; or
      **(b) If one spouse seeks to adopt own illegitimate child: Provided, That the other spouse has signified consent thereto; or**
      (c) If the spouses are legally separated from each other.

8. A donation made before the celebration of the marriage in favor of the child of the bride may be a valid donation propter nuptias.
    - **FALSE. ARTICLE 82.** Donations by reason of marriage are those which are made before its celebration, in consideration of the same, and in favor of **one or both of the future spouses.** (126)
    - YES it is a valid donation. This is just an ordinary donation under the Civil code. ***Why is it not a donation propter nuptias.***

9. Children born after the dissolution of the parents may be legitimate
    - **TRUE. ARTICLE 164. Children conceived or** born during the marriage of the parents are legitimate.
        - She was talking about void marriage. There is nothing to dissolve if it is void so do not cite void marriages. Annulment can be used as a basis but not for void.
        - The child was conceived before the dissolution, what could've happened? Death of the husband. Hindi pwede wife kasi pano manganganak if patay na?

10. The filiation of the illegitimate children may be established by open and continuous possession of status of a child **after the death of the alleged parent**
    - **TRUE**. ARTICLE 175. **Illegitimate children may establish their illegitimate filiation in the same way and on the same evidence as legitimate children.**
      The action must be brought within the same period specified in Article 173, except when the action is based on the second paragraph of Article 172, **in which case the action may be brought during the lifetime of the alleged parent.**
    - Before the alleged parent has died, the child is already enjoying continuous and open possession of the status of the
    - Must be alleged within the lifetime of the alleged parent. Art. 175.
    - ***Bakit di pwede after the death?*** The claim here is "the unclaimed status of the child before the death of the parent." Nung buhay pa ang parent, the child is enjoying the open and continuous possession of the status like siya nagpapa-aral, siya nag-aalaga NUNG BUHAY PA SIYA.
    - Di naman mandatory siguro na during the lifetime dahil "may". Aside from continuous and open possession, may other exception pa ba? Art. 172 par. 2. (2) Any other means allowed by the Rules of Court and special laws.
        i. Ano kayang proof diyan? DNA testing. Even patay na ang alleged parent, pwede pa maprove ang filiation by 2nd paragraph of Art. 172.
        ii. See **Aquino v. Aquino** and **Yap v. Yap** → remanded to trial court to prove filiation kahit na patay na ang parent.

**Next meeting: Continue with the quiz (no. 11), continue with marriage up to voidable marriages**

**DO NOT WRITE ANYTHING BELOW THIS.**

# QUIZ 2 [Answers] (*Continuation*)

Whenever two or more persons are obliged to give support, the liability shall devolve upon the following persons in the order herein provided: (1) The descendants in the nearest degree; (2) The spouse; (3) The ascendants in the nearest degree; and(4) The brothers and sisters.

a. 1,2,3,4
b. 2,1,3,4
c. 3,2,1,4
d. 1,3,2,4
e. 2,3,1,4

If the spouse has no capacity to support or may be dead already, the children are required to give support **equally**, correct?

ANS:

- If the spouse cannot provide support, it is automatic that it is the brothers and sisters
- Art. 200. When the obligation to give support falls upon two or more persons, the payment of the same shall be divided between them in proportion to the resources of each.

The conjugal partnership shall be liable for all debts and obligations contracted during the marriage by the designated administrator-spouse for the benefit of the cpg. In case of insufficiency of said assets, the spouses shall be liable: a. Solidarily b. Jointly c. Alternatively d. Cumulatively

**ANS:** solidary

- Under Article 129 of the Family Code, the debts and obligations of the conjugal partnership shall be paid out of the conjugal assets. In case of insufficiency of said assets, the spouses shall be solidarily liable for the unpaid balance with their separate properties, in accordance with the provisions of paragraph (2) of Article 121.

This shall be excluded from the community property:

a. Property acquired during the marriage by onerous title by either spouse
b. Property acquired before the marriage by either spouse who has an illegitimate child
c. Property acquired before the marriage by gratuitous title by either spouse
d. Jewelry.
e. None of the above

**ANS: E. WHY?** Art. 95 (1) Property acquired during the marriage by gratuitous title by either spouse, and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;

- ***Do you agree?*** No. it cannot be letter B kasi illegitimate child. What is in the provision is legitimate child.
- Art. 95. (2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;
- **Ting: Jewelry is the answer**
- **It is none of the above!**
- *Why not A:* if the property is acquired during the marriage due to onerous title, it will not be part of the community property.

- **ACP: kahit before marriage included sa community property**
- ***Why not C?*** Cite the general rule that regardless how one spouse acquires the property, as long as it is owned by him or her before the marriage, it will form part of the ACP.
- ***Is it possible for a property acquired during marriage through onerous title be excluded from the community property?*** NO. if pinangbili niya ng property, included pa rin sa ACP.
- **ANS: E.**

This is required for a child by artificial insemination to be a legitimate child of A and B, husband and wife, respectively:

a. the child was conceived as a result of artificial insemination of C.
b. the child was conceived with the sperm of A.
c. both A and B authorize the artificial insemination in a public instrument.
d. the authority or ratification of such artificial insemination may be signed after the birth of the child.
e. none of the above

**ANS:** Article 164 of the Family Code provides that children conceived as a result of artificial insemination of the wife with the sperm of the husband or that of a donor or both are likewise legitimate children of the husband and his wife, provided, that both of them authorized or ratified such insemination in a written instrument executed and signed by them before the birth of the child. The instrument shall be recorded in the civil registry together with the birth certificate of the child.

- ***Written lang di naman kailangan published di ba?*** The correct answer is E.
- ***Why not A?*** It will be surrogacy if it is letter A. it will no longer be AI.
    - IT IS STILL AI! Ang insemination ay nasa asawa hindi sa kapitbahay.
- ***Why not B?*** The law does not require that it shall be the sperm of the husband for the child to be a legitimate child.

Natividad is the widow of Mariano. Melitona is her mother. Rupert is her grandchild. Generoso is her brother. Crescente is her nephew. Who will first be compelled to give support to Melitona?

a. Melitona
b. Rupert
c. Generoso
d. Crescente
e. Mariano

**ANS: Generoso.** Generoso is the brother of Natividad. Who is the son of Melitona.

A marriage between 1st cousins is:

a. valid because they are more than 4 degrees removed from each other.
b. valid because they do not belong to the direct line
c. void because it is incestuous
d. voidable because of defect in consent
e. none of the above

**ANS:**
**ARTICLE 38.** The following marriages **shall be void** from the beginning for reasons of **public policy**:
(1) Between collateral blood relatives whether legitimate or illegitimate, up to the fourth civil degree;
(2) Between step-parents and step-children;
(3) Between parents-in-law and children-in-law;
(4) Between the adopting parent and the adopted child;
(5) Between the surviving spouse of the adopting parent and the adopted child;
(6) Between the surviving spouse of the adopted child and the adopter;
(7) Between an adopted child and a legitimate child of the adopter;
(8) Between adopted children of the same adopter; and
(9) Between parties where one, with the intention to marry the other, killed that other person's spouse, or his or her own spouse

Art. 38. The following marriages shall be void from the beginning for reasons of public policy:
(1) Between collateral blood relatives whether legitimate or illegitimate, up to the fourth civil degree;

- Say how many removed from each other. NOT SAY WITHIN 4th BUT THEY ARE 4th
- They belong to the collateral line.
- Just because they do not belong to the direct line, does not mean they are valid.

A and B were married in September 2, 1988 when both were only 17 years old. The marriage is:

a. Valid if with the consent of their parents.
b. Voidable if without parental consent
c. voidable if without parental advice
d. Void even if with parental consent
e. Valid if both misrepresented as to their age

**ANS:** D. Void even if with parental consent

An irregularity in the formal requisites shall:

a. render the marriage void
b. render the marriage voidable
c. not affect the validity of the marriage
d. give rise to its correction.

**ANS: C. not affect the validity of the marriage**

The following are grounds for legal separation, except:

a. adultery
b. conviction of a crime involving a penalty of at least 2 years and 1 day.
c. attempt by the respondent against the life of the petitioner
d. drug addiction, whether or not existing at the time of marriage
e. none of the above

**ANS:** B.
Under **Article 55 of the Family Code,** a petition for legal separation may be filed on any of the following grounds:
(4) Final judgment sentencing the respondent to imprisonment of **more than 6 years**, even if pardoned;

The effects of legal separation are the following, except:

a. the spouses shall be entitled to live separately from each other
b. the absolute community or the conjugal partnership shall be dissolved and liquidated
c. the offending spouse shall be disqualified from inheriting from the innocent spouse by intestate and testamentary succession.
d. the custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code
e. none of the above

**Ans: C**

ARTICLE 64. After the finality of the decree of legal separation, the innocent spouse may revoke the donations made by him or by her in favor of the offending spouse, as well as the designation of the latter as beneficiary in any insurance policy, even if such designation be stipulated as irrevocable

Art. 63. The decree of legal separation shall have the following effects
(4) The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession. Moreover, **provisions in favor of the offending spouse made in the will of the innocent spouse shall be revoked by operation of law**

**DO NOT WRITE ANYTHING BELOW THIS.**

# Quiz 3

1. The nullity of a second marriage is not per se an argument for the avoidance of a criminal liability for bigamy.

**ANS:** True, why?
False because the nullity is not per se but annulment. Is there anything wrong with nullity? No, ang tinatanong ko is it or is not per se an argument?
It is an argument for the avoidance kasi dito not eh baka yan ang ibig sabihin ng False. Wag mo papalitan because subject matter lang kung may pinag uusapan kayo and iniiba mo ang usapan di nakakatuwa.
Ang mangga ay maasim
True because in tenebro the nullity of the second marriage is not per se an argument for the avoidance for the crime of bigamy.
Sir: the 4th requisite to be valid is that the second marriage should have been valid had it not been bigamous. Not because nandiyan yung mga requisites are valid sila. Ang ibig sabihin ng court nito, so kung void ang marriage, walang bigamy.
**There is only one reason why the second marriage is void but does not excuse the bigamy - Bigamous**
**FINAL ANSWER: TRUE**

2. The action for annulment of marriage may be filed by the parent or guardian who did not give his or her consent within two years after the child attained the age of majority.

**ANS:** FALSE, Article 47, par. 1,
Ang tanong tungkol sa parent but hindi sa kinasal. The statement might be true, because the statement states may be filed, ano ang age of majority? 18 and therefore kung before the age
**FINAL ANSWER: TRUE**, kasi oag 18 siya after 2 years, 20 pa lang siya, so the parents can do so because hindi pa naka reach age of majority which is 21.

3. Even if there is lack of parental advise, despite the fact that one of the contracting parties is between 18 & 21, there will be no irregularity in the issuance of the marriage license.

**ANS:** TRUE, even if there is an existence of legal impediment such as parental advise. Requirement lang ang parental advise.

FALSE, according article 14, if either or both of the parties are between 18-21 a parental consent is needed, and in here this is false because of the statement despite the fact that one of the contracting parties is between 18 and 21. What is wrong with that? Walang mali dito

TRUE, there will be no irregularity in the issuance of the marriage licence

**Why is true?** Kasi parental advise yan wala talaga regularity sa issuance, and advise para sa 21-25.

**FINAL ANSWER: TRUE**

4. Under Article 26, paragraph 2 of the Family Code, the reckoning point is not the citizenship of the parties at the time of the celebration of the marriage, but their citizenship at the time a valid divorce is obtained abroad capacitating the alien to remarry.

**ANS: TRUE,** In the case of Orbecido, the reckoning point is not the citizenship but their citizenship at the time a valid divorce is obtianed abroad capacitating the alien to remarry.
Before citing the case, cite muna the provision that the SC is interpreting. By the letter of the law is mixed marriage between a foreigner and a Filipino. Sempio-Dy mali ang decision. It is a marriage between Filipino and a foreigner.
But it is in the interpretation of the SC… cite orbecido
For Filipinos who married into mix-marriages, ng kinasal sila both sila Filipino. Why apply Art. 26 par. 2. It would create an absurd situation if it will only to the Filipino spouse. The alien spouse would not be married anymore but the Filipino would still be married.

5. The absence of any of the essential and formal requisites shall render the marriage void ab initio.

**ANS: FALSE.** General rule, it is void. The marriage will not necessarily be void if one of the formal requisites is lacking.

1. Articulo mortis marriage (at the point of death)
2. The marriage was held in a remote place
3.

6. No license shall be necessary for the marriage of a man and a woman who have lived together as husband and wife for at least five years and without any legal impediment to marry each other.

**ANS:** TRUE.

7. A marriage may be annulled on the ground of sexually transmissible disease, regardless of its nature, existing at the time of the marriage

ANS: FALSE. Although sexually transmissible disease is a ground Art. 45 (6) 6) That either party was afflicted with a sexually-transmissible disease **found to be serious and appears to be incurable**

- **If the STD is not serious, if it is curable and existing at the time of the marriage.** *May the marriage be voidable?*

8. Abandonment of petitioner by respondent for more than one year is a ground for legal separation.

**ANS: FALSE.** Art. 55. (10) Abandonment of petitioner by respondent without justifiable cause for more than one year.

- It is not abandonment per se is ground. It is the abandonment WITHOUT JUSTIFIABLE CAUSE. That is the ground. Abandonment IS NOT the ground.

9. The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession if he gave cause for legal separation.

**ANS: FALSE**. There must be a decree
Decree is needed.

10. In case of any impediment known to the local civil registrar or brought to his attention, he shall not issue the marriage license, unless ordered otherwise by a competent court at his own instance or that of any interest party.

**ANS: FALSE** Art. 18. In case of any impediment known to the local civil registrar or brought to his attention, he shall note down the particulars thereof and his findings thereon in the application for marriage license, but **shall nonetheless issue said license after the completion of the period of publication, unless ordered otherwise by a competent court at his own instance or that of any interest party**. No filing fee shall be charged for the petition nor a corresponding bond required for the issuances of the order.

- Issuance of license is a ministerial duty. Kahit alam niya na may asawa, wala pa rin siyang karapatan to issue a lisensya. e

## MCQ

11. This may involve a prejudicial question in the case for bigamy:
    a. legal separation
    b. annulment of the first marriage
    c. annulment of the second marriage
    d. nullity of the second marriage due to psychological incapacity
    e. none of the above

**ANS: C**. Annulment of the second marriage.

- Second marriage is valid then, it may constitute bigamy. → element of bigamy.
- Second marriage is always void kasi bigamous nga eh. Is it void not only it is bigamous, may iba pang rason which may be raised as defense of the accused.
- ***If the marriage is bigamous can it be valid?*** Yes. Falling under 41, can he be liable for bigamy who contracted the subsequent marriage? No.
- If actions for annulment is an action for annulment is for second marriage, then it is a prejudicial question for bigamy.
- **REASON:** When the consent of the accused is claimed to be vitiated by force, threat or intimidation.

12. There may not be an irregularity in the issuance of a marriage license even if:
    a. there is lack of parental advice
    b. none of the contracting parties habitually resides in the city where the license was issued.
    c. there is no certificate of legal capacity to contract marriage of an alien who is one of the contracting parties.
    d. there is lack of publication of the application for a marriage license.
    e. none of the above.

**ANS: A.**

- Suspension only of marriage license. If the age lack of parental advice, will not make the issuance irregular. If the age of one or both 21-25, there is an irregularity.
    - The issuance will just be suspended, there will be no irregularity if the local civil registrar suspended the issuance by 90 days.

13. That the petitioner freely cohabited with the other spouse is a defense in an action for annulment on the following grounds, EXCEPT:
    a. lack of parental consent
    b. that the respondent was of unsound mind
    c. that the consent of petitioner was obtained by fraud
    d. all of the above
    e. none of the above

**ANS: A**. ***So if the spouse who is the petitioner here freely cohabited for 2 years from solemnization of marriage, then there is ratification for free cohabitation?*** In the codal provision, di mo pwede icount ang free cohabitation until umabot siya ng 21. Mag iistart lang ang cohabitation upon she reaches 21.

14. Under the Civil Code, the following marriages are void from the beginning, EXCEPT:
    a. between step-parents and step-children
    b. between parents-in-law and children-in-law
    c. between uncle and niece
    d. between the adopting parent and the adopted child;
    e. none of the above

**ANS:** B

15. There is fraud which will make the marriage voidable if:
    a. Non-disclosure of a previous conviction by final judgment of the other party of a crime.
    b. Concealment by the wife of the fact that at the time of the marriage, she was pregnant.
    c. Concealment of sexually transmissible disease, if found to be serious, existing at the time of the marriage.
    d. All of the above.
    e. None of the above.

**ANS: C**. STD regardless of its nature. → annulment. [no definite answer]

16. As of August 2, 1988, the following have the authority to solemnize marriage except:
    a. priest
    b. incumbent member of the judiciary
    c. imam
    d. city mayor
    e. none of the above

ANS: E. before the effectivity of family code. August 2, 1988. Family Code was effective at August 3, 1988.

17. The following have the right to institute an action for annulment, EXCEPT:
    a. the parents of the party who was only 18 years old without parental consent, within 5 years from the solemnization of the marriage.
    b. the injured party, within five years from the time the force, intimidation or undue influence disappeared or ceased
    c. the spouse, who had no knowledge of the other's insanity, at any time before the death of either party.
    d. the injured party, within five years after the discovery of the fraud
    e. none of the above

ANS: A, article 47, have the right to institute before the age of 21. Ano ang mali sa statement? Yung within 5 years. Pwede pa if within 2 years.

18. A petition for legal separation may be filed on any of the following grounds, except:
    a. Final judgment sentencing the respondent to imprisonment of more than six years;
    b. Contracting by the respondent of a subsequent bigamous marriage, whether in the Philippines or abroad;
    c. Attempt by the respondent against the life of the petitioner;
    d. Abandonment of petitioner by respondent without justifiable cause for more than one year.
    e. None of the above

**ANS:** E.

19. The obligation of mutual support between spouses ceases after the following, except:
    a. dissolution of the marriage by the death of a spouse
    b. declaration of nullity
    c. annulment of marriage
    d. legal separation
    e. none of the above

**ANS:** E. none of the above. Kasi the question says mutual support. The one who are obliged to do support is the offending spouse.

20. The decree of legal separation shall have the following effects:
    a. The spouses shall be entitled to live separately from each other
    b. The offending spouse shall have no right to any share of the net profits earned by the absolute community or the conjugal partnership
    c. The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession
    d. all of the above
    e. none of the above

**ANS: D. All of the above**

## DISCUSSION

**FACTS:** July 30, 1988, Alex and Ben who are both residence of Marikina eloped and went to the City hall of manila to apply for a marriage license. Alex was then 17.

On December 5, 1988, with a marriage licence issued by the civil registrar. Alex and Ben was married in Taguig by the city mayor of makati.

The only persons present were C and D both 16 years old. No marriage certificate was signed by Alex and Ben.

**ANS: WHAT IS THE STATUS OF THE MARRIAGE:** It depends. It would be valid if Alex was 18 at the time of marriage, voidable if 18 with no parental consent was obtained, void if not 18 at the time of solemnization. Thus, marriage is void.

- He did not give a definite answer. There was an issue.
- It would be valid if Alex was 18 at the time of marriage → Marriage would have been valid if Alex was already 18.

- ***Aside from the claim of sayno*, what is the defect?** Voidable if no parental consent was obtained.
- **SIR:** In the problem, is it not that clear that there was no parental consent. It is clear in the facts that they ELOPED. **So voidable!**
- **NOTE:** Do not qualify because it is already a fact wag mag "if".

***Assuming that Alex was 18 in the first place, the requirement that the contracting party is 18 years old is required when?*** Solemnization of marriage.

- In the problem, yung 17 years old, di ba yun sa solemnization of marriage? NO. it is an **application** of the issuance of marriage license.

***Assuming that Alex was already 18, what is the status of the marriage?***

**AUTHORIZING OFFICER**

- Their marriage was solemnized by the City Mayor, the effectivty of the FC Aug. 3, 1988. The effectivity of LGC from Nov. 22, 1991 because of he does not have authority.
- **HS:** It depends. If either or both of the parties believed in good faith. **There is a qualification.** Just because the solemnizing officer does not have authority does not mean it is VOID.

***Assuming further that either or both believed in good faith, what is the status of the marriage?***

- **HS:** Status would still be voidable. We have to look at the witnesses.
    - Why is it wrong? He said that it has to be void because the witnesses are both minors.
- Why? Just because the witnesses are minors it is voidable.
- Witnesses → formal requisites. There is no voidable in formal requisites because if may problem then irregularity lang 'yan and under Art. 4 then it will be still valid.
- If you said voidable → essential. Why voidable? There is a defect n
- IF FORMAL, baka may irregularity lang but walang absence, then if irregularity lang then valid
- The witnesses should be 18 is not a formal requisite, yung marriage ceremony lang. There are only three (3) formal requisite: auhtority of the solemnizing officer, marriage license, and marriage ceremony.
- If they apply for a marriage license, it should be in the place where either or both of the parties reside. So if hindi void na? NO, it is just a requirement for the issuance of the marriage license
- He dared to claim na even if no witnesses → VALID pa rin just like any other contract.
- There is no authority. On the date of the December 8, 1988, mayors have no authority but unless either or both believed in good faith.
    - Pwede palang maging valid if either or both believed in good faith.
- In order for a party to claim that he believed in good faith, the solemnizing authority must have the authority under the law because ignorance of the law excuses no one. Meron ba syang authority? NO under the law, that's the premise wala syang authority but pwede s'yang maging valid. It is absurd na there should be authority but ultimately it does not apply to this scenario

because the law itself gives the parties a scenario that they are in good faith that the solemnizing officer have the authority even if under the law they do not have an authority.

***Is it possible that in general, in a marriage there is a ground for annulment but also for a declaration of nullity?*** YES, baka walang license but at the same time lack of parental consent.

- ***In that scenario, when there is a ground for annulment but also a ground for nullity? What is the status?*** Void ab initio. Walang saysay ang voidable voidable na 'yan if void ang marriage. In contemplation of the law, there is no valid marriage so ang ground and other defects – walang saysay ang mga 'yan.
- In ordinary contracts ganyan din, may grounds bakit rescssible, unenforceable, and void so anong status? VOID

Is there any other ground, why the marriage can be considered a void marriage?

- Based on the problem, there is a lack of city mayor.

If August 4, 1988, tapos kinasal ng City mayor ang mga kamag-anak niya. August 3, 1988 - December 1991, → marami. Half a million marriages according to PSA. di naman dedeclare ng SC na void ang marriages na yun. Baka kasal ng nanay at tatay mo void na din.

**EXPIRATION OF THE MARRIAGE LICENSE**

No mention of when the marriage license was issued and because it is only valid for 120 days from the date of issuance. If the local civil registrar complied with the law regarding the issuance of the law, would the license be expired already? NO. it will be posted for 10 days, If that would be complied, there is an extra and would be around December 9.

**VENUE OF SOLEMNIZATION**

If you remember the facts, the marriage was solemnized in Taguig City and the solemnizing officer is from Makati. The marriage is void? It is not one of the requisites that the marriage that the marriage be celebrated in the same city as that of the solemnizing officer.

**NOW WHAT IS THE STATUS OF THE MARRIAGE (WITH REGARDS TO THE MAYOR):**

- VALID. City Mayor have no limitation in his jurisdictional authority of his marriage so he can solemnize it anywhere.
- Are you saying that even if a Taguig city mayor solemnizes in Makati, there is no irregularity? It provided that city mayors have authority to solemnize marriage but it did not qualify where unlike judges who are required to solemnize in their jurisdiction. The LGC did not qualify where a City Mayor could solemnize a marriage.

Both are residence of Marikina, but it was issued by the City Hall of Manila. ***What is the status?*** It will not make the marriage void, this is only an irregularity in the issuance of the marriage license which is a formal requisite of a marriage. The family code provides that the parties intending to get married must get a marriage license in a place where either or both of the parties are resident.
The fact that it was issued by LCR of San Mateo, Rizal but was solemnized in Taguig, what is the effect in the marriage? VALID still. Marriage license is valid anywhere in the PH even if solemnized in another city, the marriage license is still valid.

***Assuming that this will constitute an irregularity, is it correct to claim that it will be an irregularity in the issuance of the license?*** NO. naissue na ang license eh. It is now on the issue of marriage ceremony. It is valid anywhere in the country.

**SITUATION:** ***If A would marry B and A and B are first cousins, this is a void marriage because they have no legal capacity to contract marriage?*** FALSE.

- Agree to the answer that marriage is void due to lack of legal capacity.
- Legal impediment as provided in Art. 38. Legal Capacity is in every person. However, if you get married with your sibling then – LEGAL IMPEDIMENTS such as 36, 37, 38.
- It is not about the essential requisites. If you have legal capacity, you can get married to anyone except for your sibling, cousins, and other legal impediments.

**SCENARIO:** A and B were married. Now, during the subsistence of this marriage. A left the conjugal abode and lived with C. Six years, B died. 2 years A and C got married without a marriage license. If A died yesterday, and the heirs of B assailed the validity of the marriage of A and C. Will the claim of the heirs be valid that this is void for lack of marriage license?
**ANS:** YES, the claim of the heirs are valid. Art. 34 what is required in this case is to

be exempted for a marriage license a man and a woman must be living together for 5 years with no legal impediment. ICAB, even if there is cohabitation there is an impediment from the husband and this is not one of the contemplated as one of the exemption of the marriage license.

- Assuming that FC is applicable → tama ang kanyang conclusion? NO, they did not mention when A and C got married. It is possible na di pa effective and FC. it is possible na 3 months ago lang, 3 days ago. For all you know before 1988 pa sila kinasal then Civil Code will apply.
- Niñal v. Bayadog: If CC is applicable, the marriage will have been void. CC requires that the entire 5 year period preceding the marriage be entirely free from legal impediment because of Art. 76 because it states "not being married"
- If **FC is applicable**, then Art. 34 as interpreted in Borja Manzano, the 5 year cohabitation immediately preceding the marriage is not required to be entirely free from legal impediment. What is required that **AT THE TIME OF THE SOLEMNIZATION OF THE MARRIAGE**, wala nang legal impediment. HENCE VALID kasi patay na si B kahit walang valid marriage license.
- **SIR:** Support Borja-Manzano. The law is not clear. Nakalagay sa FC is no legal impediment to marry. Kaso walang sinabi kelan. SC however interpreted that for the purpose to encourage those who lived in illegal marriage, to legalize their marriage.

Do not confuse the authority of the solemnizing to the jurisdicton and venue

- AUTHORITY: Nasa tao, kahit maghubad pa siya taiwan, may authority pa rin siya

**Again, do not confuse authority of solemnizing officer vs. jurisdiction vs. venue**. Authority under Art. 37 nasa tao. Pero kung judge sya required sya mag solemnize within court's jurisdiction. Kaya kung outside jurisdiction (Aranes v. Occiano), irregularity lang yan, kasi may authority naman sya as a person di nya lang sinunod ang batas na dapat magsoelmnize sya within jurisdiction.

- But jurisdiction is also different from the venue, because even if the marriage is within court's jurisdiction, if judge sya dapat chamber or open court. Pero kung doon sa Manila HOtel ang kasal, may irregularity? Not necessarily. Art. 8 says pwede magrequest in writing ang mga parties na outside chamber or open court. Or malay natin in articulo mortis to oh edi hindi na need ng marriage license.

**Next meeting: start with void marriage but tapusin hanggang legal sep or rights or obligations. then have the quiz on property relations**

**PROJECT:** Present a paper on a specific issue basta evidence based.

- Basis in fact
- You know the problem
- Provide for a solution
- Three (3) to five (5) pero if mag-isa ka lang edi wow
- If may civil law concept, edi wow.
- Present in class for classmates to review OR present this on a panel of experts.
- 2-3 paragraph proposal.

**DO NOT WRITE ANYTHING BELOW THIS.**

## VOID

If all the essential and formal requisites → marriage valid?
ANS: No. there are some exceptions such as if there is absence of marriage license then the marriage will be valid like in articulo mortis, etc.
***Is that correct?*** The correct answer is "is not correct".
More importantly, what was the defect in the answer?
ANS: If the general rule, all the essential and formal requisites are present, the marriage is valid.
**ANS:** she did not say whether the presence of all the essential and formal requisites is valid.
ANS: She said…
Sir: Let's presume lahat nakikinig. Go direct to the point
ANS: She mentioned defects…
**SIR:** The answer is not responsive. The question was not "will the marriage be valid even if not all the requisites were valid." The question was "if all the essential and formal requisites are present, is the marriage valid?

- Raise your physical hand kasi nakaraise hand na kayo kasi on deck kayo.
- Dont answer if you are not acknowledged.

**ANS:** No, it does not mean that if all the essential and formal requisites are present, the marriage is valid.
Art. 37, 36, 38 Even if the essential and formal requisites are present, the marriage can still void.
**SIR:** Aside from those marami pang ibang articles which will show to all of us that even if the essential and formal requisites are present, the marriage may be void. Essential and formal, minimal requirements lang yun. Without one of the essential, edi void. Although sa formal, may exemptions. Papunta palang tayo sa ibang grounds why the marriage will be void.

**SITUATION:** If one of the spouses, A died and the surviving spouse remarried without liquidation of the conjugal partnership, the status of the subsequent marriage is what?
**ANS**: VALID. The spouse already died therefore there will be no impediments
SIR: the marriage was solemnized in 1988, then what will be the effect of the fact that there is no liquidation?
**ANS:** If there is no liquidation and it was solemnized in 1988, separation of property because the partnership is not liquidated.

**SITUATION:** A died. Then the surviving spouse remarried. Upon the dissolution of the 2nd marriage, the heirs of the surviving spouse who also died, claimed that the subsequent marriage is void because there is failure to deliver the presumptive legitime, is the heir correct?
**ANS:** the heirs are not correct because by the death of the surviving
ANS: the heirs are not correct. The defense of not delivering the presumptive legitime, it is only for declaration of absolute nullity and annulment of marriages and not considering the death of one of the spouses.
**SIR:** presumptive nga kasi walang namatay. Is this true if the spouses were not legally separated?
**ANS:** NO. for legal separation, there is a decree of legal separation: liquidation and delivery to presumptive legitimes…

**SIR:** if you follow the argument of A, the subsequent marriage will be?
**ANS:** void because of the failure to deliver the presumptive legitimes.
SIR: that is the effect of your statement. Your argument is YES ultimately. The marriage will be void kaya magulo. What is the correct answer? This
This time, the spouse is legally separated. Tapos nmamatay yung isa?
**ANS:** In legal separation there is no duty to deliver the presumptive legtimes.
**SIR:** Why not?
**ANS:** Art. 53, it talks only the nullity and annulment of marriage. And those cases, nullity and annulment will bring the effect, that the marriage is no longer there. Then delivery of legitimes will follow. But in legal separation, there is no severance of marriage bond therefore delivery of legitimes is not required
**SIR:** With declaration of nullity, there is severance of the marriage. There is no longer a marriage. Is that correct?
SIR: there is nothing to sever if the marriage is void. Baka ng point here is NO ONE DIED IN LEGAL SEPARATION. The marital bond is not severed therefore di pa siya pwedeng mag-asawa kaya bigamous not because there is failure of delivery of legitimes. It will be a bigamous marriage, Art. 52 will apply will apply

**SIR:** if a marriage is a bigamous marriage therefore it is a void marriage?
**ANS:** Exemption: absentee spouse.
**SIR:** It is wrong! Just because di lang nabigyan ng notice, pwede na mag-asawa? Di ganun kadali! Read Art. 41.
**SIR:** when will a bigamous marriage be a valid marriage.
**ANS:** Art. 41 when the present spouse entered into a bigamous marriage provided that the prior spouse is absent for 4 years and has a well-founding belief that the

spouse is dead.
**SIR:** BUT THIS IS INCORRECT. THIS IS AN ANSWER THAT DESERVES A 2! Why?
**ANS:**

1. Some instances pwede 2 years (danger)
2. Absent spouse is absent after effectivity of FC
3. The present spouse needs a declaration of presumptive death from the court before he can remarry.

**SIR:** TAPOS NA SO DONT SAY AFTER EFFECTIVITY. Baka dapat DURING the effectivity. Yung 2 years, Family Code ba yan? YES! Judicial declaration must be for purposes of remarriage. Kaya di ka igagrant if iba ang purpose.

SITUATION: A and B spouses, because of the belief of the wife that there children should study in ateneo. So she went in Singapore, 4 year contract in SG. she has constant communication with her husband. On her 3rd year in Singapore, A filed a declaration for presumptive death and it became final and executory.
Months after, A married C, a batchmate from highschool of A and B. upon having knowledge of marriage, B went back to the PH. she arrived in the PH January 1, 2024. C gave birth to a child on September 15, 2024.
Assuming that you are the counsel of B, and B would like to protect her children (reason why she went to SG), what will be your advice regarding:

1. Status of the marriage between A and C
2. Status of the child of A and C.

**MARRIAGE:** void. A is constant communication with B for the past years.

**SIR:** kung magkeklaim ka na void, let the examiner know why it is void.
**ANS:** the status of the marriage for being bigamous. If both of the spouses are in bad faith in contracting marriage, it will be void. ICAB, A is in bad faith,.
**SIR:** you categorically claimed that the marriage is void. But the latter part, you still have to prove that C acted in bad faith. PAASA KA SA CLIENT! Say “the marriage between A and C MAY be a void marriage.” Di ka pa sigurado eh. What if di mo maprove na she acted in bad faith? Huwag mo paasahin na void agad.
In other words, the basis is Art. 44 of the Family Code.

**SIR:** Assuming that there is no proof that C acted in bad faith, therefore, what will be your advice?
**ANS:** Marriage is valid because the declaration of presumption of bad faith. What B can do is file an affidavit of reappearance.

**COMMENT:** The answer is correct.
**SIR:** there is no defect in that answer? Do you agree?
SA: Yes I agree.
**SIR:** Baka if there is such a judgment, baka pwede mo pang i-motion for recon or petition for review. If your premise is the decision of the court it is final and executory, then baka wala ka nang magagawa kahit na mali ang decision. However, more important, na di procedural… you said you will have affidavit of reappearance to automatically terminate the marriage. WHICH IS WRONG.
It is not the filing but the **RECORDING** of the affidavit of reappearance.

**SITUATION:** Erase the facts, under Art. 41, if there is a recording of the affidavit of reappearance then the marriage will be terminated in the premise that the marriage is valid. Do you agree?
**ANS:** there is a qualification unless there is a judgment annulling the previous marriage or declaring it void ab initio.
**SIR**: but there is a premise that the marriage is valid.
**ANS:** you need to give notice to the spouses and determine the facts because of the
**SIR:** again.
**ANS:** therefore, the subsequent marriage, will not be automatically be terminated upon the recording of the affidavit. There needs to have a due notice to the spouses to judicially determine in case such fact is disputed.
**SIR:** the premise of your answer, it is not that it will be automatically but it will not necessarily result to the termination of the marriage, the premise is that the affidavit is executed by the 3rd person and not by the absent spouse himself. Because if he is the one who executes, alangan naman madispute pa yan ng mag-asawa. If 3rd person, pwede pa idispute ng spouses ang affidavit. If nag-sinungaling lang, then doon need ng judicial.
**SIR:** the answer to the 2nd question.
**ANS:** the status of the child of A and C, the child is is legitimate if he is conceived before the termination of the valid marriage.
SIR: is it possible that the child be a legitimate child? Di mo inisip yung application ng law.
**ANS:** The child would be considered legitimate if conceived prior to the termination of the valid marriage.
**SIR:** AS long as the child is conceived or born or unborn before the termination, then the child is legitimate? Does the law require that the child be conceived and born before the termination in order for the child to be considered as legitimate

child?
**ANS:** Di lang pareho ang sagot. The law does not require that the law does not require that the child be born before the termination. As long as he was CONCEIVED before the termination.
SIR: Application of the law to the problem.

**SITUATION:** A married B, right after A married C. A married C in the belief that first marriage is void. A criminal complaint of bigamy was filed. Will A be find guilty of bigamy?
**ANS:** A will not be found guilty of bigamy …
**SIR:** do you agree?
**ANS:** No. in the case of Pullido,
**ANS:** while it is true that in the FC, there is a requirement of declaration of nullity of previous marriage in order for the spouse to remarry. In this case, the spouse may still raise the defense of null or void previous marriage in the proceedings…
**SIR:** you did not listen to Ms. Villamil. She said, "if there is a prejudicial question, then A will not be found guilty of bigamy.
**ANS:** Ms. Villamil failed to point out that
SIR: the answer is as simple as: just because there is a prejudicial question, will not necessarily result to the acquittal of the accused. Kaya prejudicial question kasi idedetermine pa kung tama ang kanyang claims. Walang assurance na acquitted siya. Several times already, if there is a prejudicial question, suspension lang of the criminal proceeding para pagbigyan siya to prove that the 2nd marriage is voidable or maybe whatever.
**ANS:**
**SIR:** In the problem, Sir did not mention that there is a judicial declaration of the first marriage. In fact, I only mentioned that he believed that his first marriage is a void marriage, he contracted a 2nd marriage. ***If a second marriage is entered into without declaration of nullity of first marriage even if it is void marriage, is it incorrect to say that bigamy is committed because of Art. 40?***
**ANS:** Bigamy may be committed under Art. 40.
**ANS:** I agree with his answer that there is a need for a judicial declaration of nullity. However, if there is none, then the he is guilty of bigamy.
**ANS:** NO. A will not be ound guilty of bigamy despite declaration of nullity prior to the 2nd marriage. Because in Pulido case, the court abandoned the rulings that a judicial declaration of absolute nullity of the first and/or second marriages cannot be raised as a defense by the accused in a criminal prosecution for bigamy.
**SIR:** baka ang argument here is "Art. 40 of the Family Code was never intended to modify the criminal laws of the country. Art. 40 provides this declaration is necessary for purposes of remarriage. For the 2nd marriage to be valid, there should be judicial declaration of nullity of the first.
PULIDO: Bigamy is committed if there is no judicial declaration prior to the 2nd marriage is because of the claim that a void marriage is valid until it is declared void. ***Is this correct?***
**ANS:** No. A void marriage is no marriage at all. What is valid until annulled is a voidable marriage.
Do you agree?
**ANS:** Yes.
SIR: Di naman voidable ang pinag-uusapan eh. So di relevant yan. In the ruling of many cases, a void marriage is valid until declared void. If that is correct, then since there is no declaration of nullity, then there is valid prior marriage for purposes of bigamy. So if you disagree of this statement, what is wrong with this?
**ANS:** it would be better to say that when the marriage is void, there is nothing to dissolve.
**SIR:** In the first place, will he be acquitted of this charge if the first marriage is NOT ultimately declared void?
**ANS:** A will not be acquitted if eventually if there will be no declaration of absolute nullity.
**SIR:** so there will be ULTIMATELY a declaration of nullity for him to be acquitted. But the declaration may happen after the filing of the criminal complaint. So if true that valid until declared void, then liable siya. MALI YON.
The declaration of nullity **retroacts** to the celebration of marriage. SO NO VALID PRIOR MARRIAGE.
A marriage is presumed valid until it is declared void → baka mas maganda pa ito. Bakit mali ito? Because of retroactivity principle.

SITUATION: What if at the time of the filing of the complaint, there is a pending action for declaration of nullity of the first marriage. A motion for suspension was filed by the accused.

1. ***How will you rule on this?***
2. ***Instead of the action pertaining to the nullity of the first, the action is for declaration of nullity of the second?***

**ANS:** First marriage: grant for suspension for the filing if there is a pending.
Second marriage: grant other than it is bigamous.
**SIR:** There was no reason why he will grant or not grant.
**SIR:** if the accused can prove that the first marriage is void then he cannot be

found to be guilty of bigamy because there is a valid prior marriage.
Second marriage: if the second marriage is void other than to be bigamous then there is no bigamy because the 4th requisite will not be sustained  there is a subsequent valid marriage had it not been bigamous.

**SITUATION:** Instead of that the ground is other than bigamous. If the declaration of nullity is due to Art. 36. Will you grant the motion?
**ANS:** If bigamous ang marriage, di mo dapat igrant kasi walang prejudicial question. So ngayon ang lumalabas, Art. 36, ganun din gagawin mo.
**SIR:** As long as the ground is not bigamous, then you will grant the motion?
**ANS:** YES.
**SIR:** Tenebro: Anong marriage ang void because of Art. 36?
**ANS:** 2nd marriage.
**SIR:** was the accused found guilty or acquitted?
**ANS:** Guilty.
**SIR:** Therefore in Tenebro, the ruling of the court was, the 2nd marriage is void under art. 36, it cannot be invoked as a ground for bigamy. If there is motion to suspend on that ground, the motion will not be granted because there is no prejudicial question.
**SIR:** I will maintain Pulido, the only ground for the declaration of nullity which is not a defense of bigamy is that the 2nd marriage is a bigamous marriage. No qualification for any other ground including psych incapacity. If the court will maintain such view, wala nang Tenebro. If similar facts of Tenebro, baka sumunod sa majority decision.

**SITUATION:** If one of the spouses is psychologically incapacitated, then the petition for declaration of nullity under Art. 36, will prosper?
**ANS:** YES.
SIR: Just because one of the spouses is PI, it will not necessarily make the marriage a void marriage. ***Why?***
**ANS:** The psych incapacity is existing at the time of the marriage, is this enough? the petition will not prosper, it should have been proven that the spouses was not able to fulfill the spouses marital obligation
**SIR:** Correct, who cares if incapacitated sya if he was able to perform his essential marital obligations WILL NEVER PROSPER.The premise is that the spouse failed to comply with his/her marital obligations.
One of the requisites under Art. 36 is – **GRAVITY.**

- The components of psychological incapacity include:
- (a) gravity — the incapacity must be serious enough to prevent the spouse from fulfilling essential marital obligations;
    - Inability to comply is the effect ONLY.
    - ***What does this mean?*** Is that grave or serious such that the spouse cannot perform his essential marital obligations even if he wanted to. Hindi niya sinasadya.
- (b) juridical antecedence — the incapacity must have existed at the time of marriage; and
- (c) incurability — the incapacity is enduring and persistent relative to the specific spouse, rendering it legally incurable.

**CONT:** if you are the counsel of the respondent, your client does not want this marriage to be declared void, what is the first defense (if there is such defense)?
**ANS:**
No, I do not agree because the questions that not pertains to the opposing parties.
**SIR:** The answer is wrong for a terrible reason.
**#2:** In a petition for under Art. 36, it is the defendant will be the one to prove that he is able to perform marital obligation.
**SIR:** THis is wrong because there is no presumption.
**SIR:** The opposing party is the one who is incapacitated, wag na ulit ulitin ang.
**#2:** In the question, the respondent does not want the marriage to be declared void. In the answer of Ms. Bernal, the other spouse is the other one incapacitated – it would result to the declaration of nullity of marriage.
Even if the other person is capacitated, the other person
Yes, it will prosper. If the respondent is not capacitated and the plaintiff is capacitated, the nullity will prosper. This is the reason why.

- The voiding of the marriage would have legal effects.
- It is possible that the marriage will be declared void kahit na psychological capacitated ka pa so the **best defense?**
    - Spouse has complied with the essential marital obligations. If nacocomply mo naman edi malinaw na di ka psychologically incapacitated.

**CONT:** If the spouses failed to comply, the petition will prosper?

- Not necessarily.
- Maybe the incapacity is not yet existing at the time of the celebration or it is not grave enough.
- Do you agree? I do not agree totally the noncompliance of its spousal

marital obligation, it should also qualify the characteristics that it is incurable. .

- #9:: We have to look at whether or not, the psychological incapacity. The premise is psychologically incapacitated ang client nila.
- The better argument would be that the respondent failed to comply with marital obligations but it would not be due to psychological incapacity. If you listen to the question, not only failed but did not comply. Iba kasi sila failed to comply probable because na aksidente, etc. but did not comply is intentional. OUT OF SPITE.
- IOW, the failure to comply is rooted in incapacity which is the difficult job of the petitioner's lawyer.

WHAT IF the petitioner presented a psychologist with a report/evaluation that indeed the respondent is psychologically incapacitated, what is your defense?
**26:** The root cause must be psychological in nature and connected to noncompliance
Prof: This is the report and that is your argument.
**2:** The report is self-serving given that the report is based on the petitioner's had said.
**P**: Did I mention ganyan ang nangyari? Look at the basis for his conclusion, he concluded without a basis baka nga interview lang ng petitioner edi self-serving. If may mga other witnesses pa edi depende.

- If mga anak ng petitioner and respondent, will the court grant the petition? NO, one of the juridical antecedence so they will not be credible enough.
- P: Hindi ba possible na kinasal sila mga malalaki na ang anak nila?
- Ang premise mo is pinanganak sila during marriage. Maybe you can qualify your answer – if they are born during the marriage then they cannot testify otherwise baka naman 21 na sila and pwede na silang maging witness na may manifestations na sila.

Regardless, I would advise you to discuss the three (3) requisites:

- ***IOW if the incapacity is curable then the petition will not prosper?*** NO the incurability must be beyond the means of the party and not in its medical sense. Incurability alone is . . .
- ***Must be beyond the means for it to prosper?*** The cure is beyond the means, it can be that it curable but beyond the means.
- If you know, why did you not write in your answer kaya complete it.

**If both spouses were PI, will the petition prosper?**
Yes, there is no in pari delicto here. Even if only one the petition may prosper lalo na if dalawa sila.

The Court declared it as a void marriage, the spouses can remarry? The subsequent marriage of the spouse who was declared PI would likewise be a void marriage?
**ANS:** NO, the SC said that psychological incapacity will pertain to the other spouse so it is possible that when he remarry, he will not be psychologically incapacitated for that spouse.

If the contracting parties are three (3) degrees removed from each other?
**ANS:** VOID under Art. 38.
**2:** I do not agree with the answer totally. There is still need to determine whether the marriage happened prior or during the effectivity of the Family Code in order to determine if it is void based on incestuous grounds or public policy. Therefore, the marriage is before the effectivity – VOID being incestuous whereas if during the FC, void because of public policy.

- There is no three (3) degrees removed in adoption.
- On the premise na related sila by blood, they did not mention if nasa direct line or collateral line. He just said na three (3) degrees removed. Who cares if ilang degrees basta direct → VOID pa rin.

SITUATION: If ang parents ni X ay si A and B, and ni Y ay si C and D. Nag asawa si B and C. Pag Nag-asawa si X and Y in 1988.
**ANS:** Stepsiblings are not included in Arts. 37 or 38. Therefore, the marriage is valid for having no legal impediment.
2: I do not agree. You still need to determine whether the marriage happened before or during the FC. August 3, 1988 the FC is effective. If before FC, the marriage would be void but if during FC, valid.

NOTE: Be conscious sa date ng kasal etc.

SITUATION: X and Y. (X killed A)?. In 1988, A married Y after killing X. The status of the marriage of A and Y.
**BEFORE FC:** Need a conviction of the crime of the killing
**DURING FC:** Conviction no longer required.

It is not sufficient that walang conviction required. What is important was the intention to kill for X to marry Y.

- BASIS: Art. 38 (9) Between parties where one, with the intention to marry the other, killed that other person's spouse, or his or her own spouse.

| | FC 38 (9) | NCC 80 (6) |
|---|---|---|
| | (9) Between parties where one, *with the intention to marry the other*, killed that other person's spouse, or his or her own spouse. (82) | (6) Those where one or both contracting parties have been **found guilty** of the killing of the spouse of either of them; |
| **Intention to kill** | Must be to marry the other | No mention; as long as someone has killed a spouse of either of them |
| **Conviction** | Does not need conviction | **"found guilty"**<br>● Suggests that there should be conviction |

SITUATION: If X filed an action for declaration of nullity of the marriage against spouses A and B, will the action prosper?
**ANS:** Prosper if X is the spouse of A. The marriage of A and B will be bigamous, X being the original husband of either A and B.
**SIR:** If X is not the spouse in a prior marriage of either marriage of A and B, the action will not prosper?
I do not agree with the answer, that petition will prosper. The general rule is that only parties can directly attack for the declaration of nullity.
The fact that you started as a general rule maybe there are exceptions. Maybe the exception is the answer of Dalapo.

The correct reason is a good answer without any basis because it is clear that A and B are alive. In an administrative matter for declaration of nullity, if both of the spouses are living only one of them can assail the validity.

- The Court itself ruled in Fujiki that there is an exception to the rule pwede pala na hindi isa sa kanila ang mag assail if the plaintiff is the legal spouse of any of them.
- Are there any grounds for 3rd parties to file when both of them are still living? NONE, bigamous only but obviously if patay ang isa sa kanila edi wala na.

**CONT:** ***Otherwise, if A is already dead. X can assail the validity of this marriage, who is X?*** Compulsory heirs because his share in successional rights.

- Ang asawa ng tatay nya ay hindi nya nanay. Ganito dapat kalinaw ang sagot so kung totoo na void ang marriage, edi masaya sya wala syang kahati sa estate.

**Next meeting: VOIDABLE and you will have a quiz on PR.**
**Recit: until donations *propter nuptias***

**DO NOT WRITE ANYTHING BELOW THIS.**

# VOIDABLE and LEGAL SEPARATION

**SITUATION:** X was married to Y Jan 1, 2019. Now, on the 3rd month after the solemnization of the marriage, X admitted to Y of having an STD. 2021, Y had a child. February 14, 2024 Y filed for an action for annulment. Will the action prosper?
ANS: It is a ground for annulment but it prescribed 5 years after the celebration of marriage. X and Y got married in Jan. 1 and Y only filed on Feb. 2024 which is more than 5 years of the marriage. If the STD does not appear to be incurable or serious it could be a ground for annulment via fraud. However, in this case, after knowing that X has STD, Y still cohabited with X so there is ratification.
SIR: What is your answer?
ANS: No, the action will not prosper.
SIR: Because of:

1. Prescription
2. Ratification

***Do you agree?***
ANS: No sir, the answer said that the annulment would not prosper. But explanation was there are qualifications to his answer that made it so that there is a possibility that the action will still prosper.
ANS: He did not mention that it was the child of X. So there may be no ratification there. In cases of STDs it is not ratifiable.
ANS: Fundamentally wrong: w/n the STD is existing at the time of the marriage.
SIR: What is wrong with that?
ANS: if the STD is not existing at
SIR: what was wrong is that he already presumed that the marriage is VOIDABLE. There can be no ratification if it is a valid marriage. There can be no prescription if he does not have a right of action. Although, Mr. Gaurana, it is not the ground which prescribed, what prescribes is the right of action.
SIR: Is it possible that Y has no cause of action?
ANS: If the STD is existing at the time of solemnization of the marriage. NOT during the marriage, it may exist only at the time of the solemnization. IT IS ABOUT THE SOLEMNIZATION OR CELEBRATION.
Sir: Is it not clear from the facts that it is already existing?
ANS: No. He only said that he admitted to Y after 3 months.
SIR: Di ba 3 months or 5 months before, dapat alam na ng tao na may STD na siya?
ANS: The person having STD could only know having the disease he/she got tested and there is a period that the infection could not manifest.
Sir: Do you agree?
ANS: Yes. It may not have manifested before the solemnization.
SIR: because the law would include or would consider STD in relation to a voidable marriage, alam niyo ang STD. Di kailangan magka STD ka para malaman mo yun. Read the annotations. It is not true that it has to be tested para malaman. Manifestation depends on the STD. Pero macoconfirm mo yun through a test. Manifestations can be visible weeks palang or days palang from infection. May STD na more than 6 months or 1 year before manifesting.
Having said that, you mention that, the ground for this action for annulment may be fraud if the STD is not serious?
ANS: Yes sir. But I want to correct. According to Art. 46. (3) Concealment of sexually transmissible disease, regardless of its nature, existing at the time of the marriage. It does not mean that what was contemplated in this situation is serious.
SIR: in relation to fraud, as a ground for annulment, your conclusion was there was ratification. In other words, there was fraud?
ANS: Yes.
SIR: you maintain that answer. ***Do you agree?***
ANS: Disagree.
SIR: What was the basis of your claim that there was fraud?
ANS: X professed that he has STD 3 months after the marriage. I concluded on that sir.
SIR: because he admitted on the 3rd month, therefore there was fraud?
ANS: Yes sir because going back, Y should know that X has STD, Y should not have entered into marriage.
SIR: Di yan totoo. Student B do you agree?
ANS: Disagree. Just because it was admitted at 3rd month, there was concealment. There could be a possibility that X also found out during the marriage.
SIR: Concealment happened when?
ANS: during celebration of the marriage
SIR: at the time of the celebration baka di pa niya alam. Buti nga inadmit niya eh. Pero baka di pa niya alam.
Assuming therefore, that it is existing at the time of the solemnization, there was concealment, therefore now, based on your answer, the action will not prosper because there was ratification.
ANS: The facts only stated that Y had a child and no mention i whose child was conceived. It is possible.

SIR: Don't assume. Huwag mag-imbento.
ANS: because having a child does not necessarily indicate that there was ratification through free cohabitation. There could be instances wherein if they had a child. Angry sex sabi ni tatoy.
Sir: dont assume that nagkaanak, may free cohabitation.
SIR: therefore, assuming that there was no ratification by free cohabitation, the answer?
ANS: The action will not prosper.
ANS: The action will prosper. The reckoning point in Art. 47 is within 5 years upon discovery of the fraud. Marriage is Jan. 1, 2019. Umamin 2014.Prescription not yer prescribed.
SIR: If the STD is serious and appears to be incurable, will the action prosper?
ANS: No. Art. 47, For causes mentioned in number 3 of Articles 45, by the injured party, within five years after the discovery of the fraud; within the 5 year period.
SIR: the premise that Y has COA, it must be existing at the time of solemnization. Start there, all grounds for annulment should be existing at the celebration of marriage in order for the action to prosper.

SIR: in the last scenario, if indeed Y freely cohabited with X after having knowledge of the STD, after the admission of X, would ratification by free cohabitation be a defense?
ANS: No. It should be serious and appears to be incurable. Because science develops.

| Curable | Incurable |
|---|---|
| Syphilis | HIV/AIDS |
| Gonorrhea | HPV |
| Chlamydial infection | Hepatitis B |
| Trichomoniasis | Genital herpes |

Example of STD na incurable: Syphilis and HIV.

- NOT TRUE: curable na ang Syphilis. Ang cure ay penicillin
- ***Is syphilis serious?*** Yes. if left untreated, serious.
- Is aids a disease or condition? Disease. All the disease defining infection are already present. So it is the end stage. However, HIV, they may not have specific infection

SIR: Whether under fraud or last paragraph, the disease must be sexually transmitted?

ANS: YES.
***Do you agree?***
ANS: Sexually transmissible **sexually-transmissible disease** found to be serious and appears to be incurable.
SIR: when is it sexually transmitted but not sexually transmissible?
ANS: If it is obtained through other means like injections.
SIR: Correct. Kaya it is not sexually transmitted but sexually-transmissible. Di need na naacquire niya via sex. Pero may percentage kung ano yung sexually transmitted

- 90% - 99%→ male to male
- 1% →

SIR: if one of the contracting parties was 19 years old at the time of the application for a marriage license, if he did not present parental consent, the local civil registrar can refuse to issue the license correct?
ANS: No. It did not mentioned if it is the party's 1st or 2nd marriage. Consent not needed if she is previously married. It is also incorrect to say that the civil registrar can refuse because the duty is ministerial even if the parental consent was not obtained, he should still issue the marriage license.
SIR: Do you think that applicant will present or be required to present this parental consent if he had already been previously married, and therefore, when you say refuse, it must have been reasked. Kaya ka nagrerefuse kaya hiningan ka. Merong premise yung refusal. Walang irerefuse kung di naman hiningi kung di naman nirequire. Ang premise ng tanong ay walang prior marriage na nadissolve. If that was the scenario, was there sense to discuss the 1st scenario if the 2nd part of the answer is not within the discretion of the CR, so it does not matter categorically. Huwag niyo na pahabain ang sagot.

SIR: I did not hear the reason why, the CR cannot validly refuse?
ANS: The duty of the CR to issue a marriage license is ministerial.
SIR: May ci-nite ka ba na basis?
ANS: Art. 18 FC. **Article 18.** In case of any impediment known to the local civil registrar or brought to his attention, he shall note down the particulars thereof and his findings thereon in the application for marriage license, but shall nonetheless issue said license after the completion of the period of publication,

**EXC:** ***unless*** ordered otherwise by a competent court at his own instance or that of any interest party. No filing fee shall be charged for the petition nor a

corresponding bond required for the issuances of the order.

SIR: dapat may kaso na finile in order for him NOT to issue. Otherwise he should ISSUE. So it does not matter kung may previous marriage siya o wala. Ministerial ang duty na ito.

SIR: If either party is physically incapable in consumating the marriage?
ANS: Yes. Jimenes case.
***Do you agree?***
ANS: YES.
SIR: so kasalanan pa ng babae? There are certain conditions ng babae which will make the wife physically incapable?
ANS: Vaginismus
SIR: Assuming that it was the husband who filed and the lawyer asked the defendant to undergo PE, on the basis on this refusal, the court annulled the marriage and issued the judgment of annulment. Was it proper?
ANS: No. The proper remedy is to order the wife to under a PE.
SIR: The court has no remedy. Siya ang tinatakbuhan ng may remedy.
ANS: to file a motion to order the PE of the wife.
SIR: If the wife would refuse on the ground that it will violate self-incrimination
ANS: YES.
SIR: If there are 2-3 reasons, ubusin mo ang reasons in an exam. Criminal cases.
ANS: kung ayaw pa din niya, the remedy is to have the wife be cited in contempt.

SIR: If the wife is the one who filed for annulment and cited that the doctrine of triennial cohabitation. The action will prosper?
ANS: Yes. it is a presumption and it is still the burden of the wife to prove the impotence. This doctrine is presumption, it does not necessarily mean that the husband is impotent if the wife remain a virgin.
***Do you agree?***
SIR: He categorically said that the action will prosper. PERO relied to a presumption. May disputable presumption so bakit ka magrerely? Kung totoo ang doctrine na yan, diniscuss ba niya kung ano yung doctrine?
ANS: No.
SIR: So what is the doctrine?
ANS: The doctrine if the wife remains a virgin for 3 years from the solemnization of the marriage, the husband is impotent, and it is the burden of the husband to prove otherwise.

SIR: Dapat may reckoning point ka.
ANS: Student A said that the burden of proof is the wife
SIR: Correct. It should be the husband and ot the wife kasi may presumption na on her favor. For that doctrine to apply, dapat pakita niya sa korte to apply. But the burden will not be shifted to the husband.

SITUATION: With a decree of annulment, is the wife **required** to revert back to her maiden name? If the child was born after this decree was promulgated?
ANS: She is not required if she is the innocent party. But if she is guilty party, she has to revert to her maiden name.
SIR: If she is the innocent spouse, she has the right to retain.
***Do you agree?***
ANS: No. the wife cannot be compelled to revert back.
SIR: NO! Kasi di na sila kasal eh. Kaya nga required na siya kasi di na sila mag-asawa.
**ANS:** Article 371. In case of annulment of marriage, and the wife is the guilty party, she shall resume her maiden name and surname. If she is the innocent spouse, she may resume her maiden name and surname. However, she may choose to continue employing her former husband's surname, unless:
(1) The court decrees otherwise, or
(2) She or the former husband is married again to another person.

**2nd Q:**
ANS: The child will only be legitimate if he is conceived before the finality of the judgment of annulment.
**SIR:** May pagkaka-iba ba yun?
**ANS:** May period pa from the time of notice and wala siyang appeal or recon , maging final na after many days
The basis is that as long as the child is born before the finality of the judgment is LEGITIMATE. ***WHat is the basis?*** Art. 54.

**ARTICLE 54 FC.** **Children conceived or born before the judgment of annulment** or absolute nullity of the marriage under Article 36 **has become final and executory shall be considered legitimate**. Children conceived or born of the subsequent marriage under Article 53 shall likewise be legitimate.

SIR: if the child was born after finality of judgment, di na sila kasal. Dapat illegitimate ang bata. Pero huwag mong gamitin yung for the best interest of the

child if talagang illegitimate child siya kasi unfair yun sa ibang mga anak nung tao. Kasi iba yung share niya. Mabawasan yung share nung iba.
AS LONG AS THE CHILD WAS CONCEIVED BEFORE.
Ang tanong last Wed.,

SIR: In order for the legal sep to prosper, the ground must exist only during the marriage. Do you agree?
ANS: Some grounds can exist also at the time of the solemnization.

- Drug addiction or habitual alcoholism.

SIR: Is it possible that there is a ground for leg sep and at the same time a ground for annulment?
SIR: YES. Kaya if you are the counsel, what would you advise your client?
ANS:
Annulment → if gusto niya magpakasal ulit.
**SIR:** Annulment → if your client does not want to remarry, if ang client mo ayaw magremarry hindi ka mag advice ng annulment?
**SIR:** Assuming your client, does not want to remarry, when would you still recommend to still file for an annulment?

- He wants to rekindle, he can file to set aside the decree of legal separation

**S:** IF annulment, di na sila pwedeng mag-asawa?
10: YES, they need to satisfy the essential and formal (pakasal ulit)

**SIR:** Ayaw mo magmana, or sumaya s'ya sa kabit n'ya. Annulment kasi hindi na kayo kasal. Hindi ka na talaga obliged to give support.

SIR: after the decree of legal sep, is the spouse compelled to give support?
**ANS:** It depends, Support presupposes may capacity so the court will look, correct that there needs to be an order to the guilty spouse to give support.

**ANNULMENT:** Can the Court order any parties to give support?
**A:** NO, kasi hindi na sila mag asawa

**SITUATION**: If one of the spouses remarries, in order for the fact of remarriage to be a ground in a petition for legal separation, the subsequent marriage must be a void marriage?
10: No, it does not need to be a void marriage because the subsequent marriage needs
SIR: When will a subsequent marriage be valid?
ANS: Art. 41 and if Muslim, under PH law he can have four (4) wives. This is the always question convert to Muslim faith. Will this be a ground?
**A:** YES, the law does not qualify that the marriage is void. So long as bigamous marriage it is a ground for legal separation.
**SIR:** I failed to mention that in relation example to STD under the last paragraph. Par. 6) of Art. 45. If the other spouse knew of the STD before the marriage, will the action prosper?

- She will be not injured spouse.
- **S:** The law provides that under this ground injured party so if she knew and still got married, will not prosper.

SIR: For Legal Sep, 3 weeks after the filling of the petition, the Court scheduled the case for hearing. Was it the proper for the Court to schedule it for hearing?
**8: NO**, there should be a cooling off period for
9: It depends, what the court wants to achieve for the hearing. Maybe absent any agreement by the spouses, the Court can decide on the support or custody of the children.
**S:** The law provides that none should be tried "merits" but if provisional remedies only – they country this case.

**SIR:** If you remember this case where the spouses had an agreement which they put into writing that they could have adulterous relationship with other people. And if tinotoo ng wife na may relationship siya with their driver. Then the husband filed for legal sep, would it prosper?
A: No, consented. Would it not be condonation? No because consent is before the commission of the ground.
**RECRIMINATION** →counter-charge in a suit for legal separation that the complainant is also guilty of an offense constituting a ground for legal separation.

- Is it required that they are similar acts? NO.

SITUATION: A and B are spouses again. 2019 si B went to baguio with her bf and alam mo na ginawa nila sa baguio. ANd they repeated this the next year, jan 1. And then repeated again jan 1, 2021. Meaning may annual retreat sila. The husband have knowledge of these acts, 2023 but he filed the action or petition of legal sep, only today or kahapon, sept 12, 2025. Will the petition prosper?
ANS: It will not prosper, because the 5 year period in the provision would be triggered

Sir: Why did you consider the 2021 meet up and hindi yung 2019?
Ans: Because every sexual act is one count of adultery???

SIR: If the respondent in this petition admitted to have committed the act that is alleged in the ground and the Court rendered judgment granting the petition. Was it proper for the Court to grant the petition?
9: The Court is not correct
It depends if the admission is the only basis or ground for the court to grant the legal separation but if there are other grounds, there is no problem.

SIR: With a decree of legsep, is the wife required to rever to her maiden name or can she revert back to her maiden name?
ANS: NO, because in legsep the marriage is still valid. The marital ties are not severed.
SIR: would your answer be the same if she is the innocent spouse?
AND: It does not matter if she is the innocent spouse or not.

SIR: After this decree of legsep has become final and executory, spouses A and B, A died. B and the other heirs discovered a will of A in which A gave to B a condominium, will B inherit the condo unit?
ANS: Depends wether A willingly made that will eventhough the legsep is already pending so in that case..
SIR: mukhang wala namang issue kung may undue influence or violenec. Ang issue diyan is because my decree of legal sep
ANS: If B is the guilty spouse then he cannot inherit because according to Fam code, any disposition is revoked with regards to the guilty spouse.
SIR: ***You agree?***
19: We must consider when the will was made. If the will was made before the finality of the legal sep, then the will favored to the guilty would be revoked. But if the will is made after the decree of the legalsep then the disposition in favor of the guilty spouse is valid.
SIR: so your answer was as long as the will was executed before the decree of legal sep, then there would be a revocation?
SIR: before the finality of judgment, is that possible before the filing of petition of legal sep? Yes, it can be early as the filing of petition
SIR: If the will was executed even before the filing of the petition or before the finality of judgment, but the innocent spouse have knowledge of the act. Would there still be revocation?
Ans: No because there is condonation.

Ang malinaw if it is after the decree become final. YUN MALINAW NA MAY CONDONATION. Meron din condonation even before the decree. Ayaw na niya magka CPG kaya magfafile siya ng petition for legal sep.

SITUATION (rights and obligations):If the Y left the conjugal abode and the husband filed a petition for the wife to be compelled by the court to return to the conjugal abode to perform her marital obligations. ***Will the petition prosper?***
ANS: No sir.
SIR: Even if he left without just cause
ANS: It will be unreasonable to her liberty.
SIR: Correct. Walang mapipilit kung ayaw niya. (Arroyo v. Vasquez)
***If ikaw asawa, ano ang magiging remedies mo?***
ANS: Legal separation, or be a sole parental authority, or separation of property…

**Next meeting: first discuss the quiz. Recit hanggang Family Home (try lang hahaha) After next meeting matatapos na tayo sa persons**

**DISCUSSION from PR to Family Home.**

**DO NOT WRITE ANYTHING BELOW THIS.**

# QUIZ 4

1. In order that the donation by reason of marriage involving a movable may be valid, it must be made in writing.

**ANS: FALSE**

**BASIS:** Art. 83, FC. These **donations are governed by the rules on ordinary donations** established in Title III of Book III of the Civil Code, insofar as they are not modified by the following articles

Article 748. The donation of a movable may be made orally or in writing.
An oral donation requires the simultaneous delivery of the thing or of the document representing the right donated.
If the value of the personal property donated exceeds five thousand pesos, the donation and the acceptance shall be made in writing. Otherwise, the donation shall be void

**APPLICATION:** The question gives an ultimate stating that it must be made in writing. Art. 748 says a donation of a movable property **MAY** be made orally or in writing.

**Discussion**
False states that the donation by reason of marriage under ordinary donations under the Civil Code, donation
***So FC expressly provides as to the formalities for donations propter nuptias, it should be governed by ordinary donations?*** NO. if not modified by the following articles.
***Are there modifications as far as formalities of DPN in relation to Ordinary Donations?*** YES. In CC, it must be accepted but in DPN, the FC does not prescribe such rule
P: No. the same rules unless modified. Dont expect on such rules unless minodify. If CC so provides and no modification sa FC, then same rules will apply sa DPN. "Unless modified in this code". Wala talagang modification if ayaw niya i-modify.
P: ***Are there modifications as far as formalities of DPN in relation to Ordinary Donations?***
D: No modifications. As far as formalities, exactly the same. Walang binago ang FC in relation to the formalities of DPN. It is the same rules. Therefore, #1.
G: FALSE. The donation of a movable may be made orally or in writing.
**P:** ***What is wrong with that answer?***
A: Article 748. The donation of a movable may be made orally or in writing. It depends on value of the property donated. IOW, false because if the value of Php5k or less no required and there should be simultaneously delivery.

2. The property relationship between husband and wife shall be governed primarily by the Family Code.

**ANS: FALSE.**
**BASIS: Art. 74. The property relationship between husband and wife shall be governed in the following order:**
**(1) By marriage settlements executed before the marriage;**
(2) By the provisions of this Code; and
(3) By the local custom. (118)

**APPLICATION:** Art. 74 says marriage settlements come first. This means that IF the spouses executed a valid marriage settlement before the marriage then, that will govern. BUT if no marriage settlement was executed, FC automatically applies.
**BONUS:** ***What are the requirements for a valid marriage settlement?***
It must be in writing, signed by the parties and executed before the celebration of the marriage (Article 77, Family Code). When a party to the marriage settlement is suffering from disability, his legal guardian must also sign the marriage settlement (Article 78, Family Code). Once these requisites are satisfied, the marriage settlement shall bind the spouses during their marriage.

**Discussion**
***If the marriage was solemnized in 1985 without marriage settlement, what will be the property regime?*** CPG.
***Which rules regarding cpg will apply? Civil Code or the Family Code?*** Civil Code. But if the marriage is still existing **after [during]** the effectivity of the FC, their property relations will also be governed by FC insofar as it does not impair vested rights.

**S:** IOW, despite the fact that the marriage was solemnized in 1985, it will be assuming the case will be like the property relations will be determined today, it

will FC on CPG will be applied as long as they do not impair vested rights. (Art. 256 FC)

3. In the absence of a marriage settlement, or when the regime agreed upon is void, the system of absolute community of property shall govern.

**ANS: FALSE.**

This is not totally true. Before the effectivity of the Family Code, the property regime that will govern absent a MS is CPG. But if it during the effectivity of the Family Code starting August 3, 1988 onwards, ACP will govern the property regime between the spouses should there be no marriage settlement or when the regime agreed upon is void.

**Discussion**
It will depend whether the marriage is solemnized before or after effectivity.
If before, if the pr is void – CPG will apply but if solemnized after the FC – ACP
**S:** If your answer is False, discuss why it is false and not why is it true. IOW, it is not the system of acp or it will not be if the marriage is solemnized before the effectivity of the FC.

4. If the future spouses agree upon a regime of conjugal partnership of gains, they cannot donate to each other in their marriage settlements more than one-fifth of their future property.

**ANS: FALSE.**

**BASIS: Art. 84.** If the future spouses agree upon a regime other than the absolute community of property, they cannot donate to each other in their marriage settlements more than one-fifth of their present property. Any excess shall be considered void.
Art. 84 (par. 2) Donations of future property shall be governed by the provisions on testamentary succession and the formalities of wills. (130a)

**APPLICATION:** The ⅕ donation limit is only applicable to present property. Donations of future property are governed by testamentary succession and will formalities and not the ⅕ rule. If the spouses want to donate future property in their marriage settlement, such disposition will be treated like a will (takes upon the death of any of the spouses depending on their settlement)

**Discussion**
11: TRUE, Under the FC, they can donate to each other so long as it does not exist ⅕ of their present property but that rule does not apply if the regime is ACP. But icab, the pr is cpg so it is true that they cannot donate to each other more than ⅕ of their property.
***Do you agree?* NO.**
G: I do not agree with the answer of Mr. Dilla that it is true because the question...
**P:** Do you agree to the answer that this is true? If you do not agree, that means you agree and do not agree with the explanation? Kasi pwedeng tama ang explanation pero mali sagot nya.
**G: NOT** agree because his explanation only applies to present property of the future spouses. In the statement, it states that more than ⅕ of the future property.
Future property
P: Mali ang future property. If the regime is CPG, they cannot donate more than ⅕ of their present property. In the 1st place, what would you consider as future property.
***What are future property?***
P: Acquired after the solemnization of the marriage which is compared to present property which is during the marriage.

5. The marriage settlements and any modification thereof shall be in writing, signed by the parties and may be made before the celebration of the marriage.

**ANS: FALSE.**
**BASIS: ARTICLE 77. The marriage settlements and any modification thereof shall be in writing, signed by the parties and executed before the celebration of the marriage.** They shall not prejudice third persons unless they are registered in the local civil registry where the marriage contract is recorded as well as in the proper registries of properties. (122a)

Art. 76. In order that any modification in the marriage settlements may be valid, it **must be made before the celebration of the marriage**, *subject to the provisions of*

*Articles 66, 67, 128, 135 and 136*. (121)

- **Is this relevant to the question?**

**APPLICATION:** The marriage settlement and any modification of such MUST be made before the celebration of the marriage. If it is made after the marriage, the stipulation is considered void since by then the property regime has already attached. Should the spouses wish to modify such arrangement it will require a different set of rules (judicial etc.)

**Discussion**
False because there are certain exemptions that they can be modified during and after such as **judicial separation**.
***Do you agree with that answer?*** Agree to False but do not agree to the explanation.
***What is wrong with the explanation?*** His answer focused more on the modification during the marriage. The question here states
P: His answer is consistent with the explanation because there can be modifications during marriage.San siya nagkamali? Ang mali ay marriage settlement. Hindi tungkol sa ibang paraan ng dissolution of property relations. Ang pinaguusapan ay marriage settlement
A: False. The wrong here "may be made". It is mandatory requirement ng batas. Hindi pwedeng "may be made"

6. Donations between the prospective spouses made in the marriage settlement, in consideration of a future marriage, shall be revocable if the marriage does not take place.

**ANS: FALSE.**
**BASIS:** ARTICLE 81. Everything stipulated in the settlements or contracts referred to in the preceding articles in consideration of a future marriage, including donations between the prospective spouses made therein, **shall be rendered void [not revocable] if the marriage does not take place**. However, stipulations that do not depend upon the celebration of the marriages shall be valid.

**APPLICATION:** The donation by reason of marriage may be revoked if the marriage was not celebrated. BUT the donations made in the marriage settlement will be rendered void as per Art. 81. There is nothing to revoke kasi VOID nga eh! Revocation presupposes a valid act or contract. If the donation is void, it is not a ground for revocation.

**Discussion**
False because accdg to FC shall be rendered void if the marriage is not made place and not merely revocable.
Are you saying that all donation propter nuptias are void if the marriage does not take place? NO there is an exception if the stipulation does not depends on the marriage settlement.
We already provided that this is DNS.
He was saying in consideration of the marriage – it is a DPN.
The answer is FALSE because its by operation of law and not by the revocable.
***Who is correct?***
Ms. Dumalag the explanation is wrong because it is not revoked by operation of law and not void.
What is the difference? If it is void, from the very beginning and revoked by operation of law, it is valid but revoked.
P: If it is revoked it presupposes that there is a valid act, there is nothing to revoke if it is void.
**ANSWER:** In general if the marriage does not take place, it does not happen revocable. Exception is void if nasa marriage settlement.

7. Donations of future property shall be governed by the provisions on testamentary succession and the formalities of wills.

**ANS: TRUE.**
**BASIS:** Art. 84 (2). Donations of future property shall be governed by the provisions on testamentary succession and the formalities of wills.

**Discussion**

8. The community property shall consist of all the property owned by the spouses at the time of the celebration of the marriage or acquired thereafter.

**ANS: FALSE.**
**BASIS:** ARTICLE 92. The following shall be excluded from the community property: (1) Property acquired during the marriage by gratuitous title by either spouse, and

the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;
(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;
(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

**APPLICATION:** **It is not ALL of the property owned by the spouses**. There are exemptions as per Art. 92. This is only a general rule.

**Discussion**
False, there are certain exceptions that when the property is acquired during marriage, it cannot form part of the ACP.
SIR: If you listen carefully, he mentioned the exceptions to the rules acquired during the marriage. He did not said what about the properties acquired at the time of the celebration of the marriage. Yes this is the general rule, both of the properties and those acquired after the solemnization of the marriage.
By way of exception Mr. Dilla at the time of the celebration of the marriage?
(3) Property acquired before the marriage **by either spouse** who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.
P: Only those properties owned by that spouse who has legitimate descendants so pagdating ng application is iba because ang formulation is iba.
EX: Acquired thereafter, ex? Properties acquired by gratuitous title? Do you agree?
NO, because he did not mention that the fruits and titles are not included. So when would a property acquired by gratuitous title, will form part of the ACP?
If the donor unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property
Just because it is by gratuitous title, does not mean na CP na sya.
If the law would consider that it is separate spouse, it will mention either of the spouse so sya lang ang donee and not for the absolute community.

9. Donations by reason of marriage are those which are made before its celebration, in consideration of the same, and made by one or both of the future spouses.

**ANS: FALSE:**
**BASIS:** ARTICLE 82. Donations by reason of marriage are those which are made before its celebration, in consideration of the same, and **in favor of one or both of the future spouses. (126)**
**APPLICATION:** The law does not require the donor should be one or both of the future spouses. Anyone is allowed to donate unless otherwise prohibited under the law on donations.
**Therefore, the donor can be the parents. (See ma'am beth notes during PFR) or by third persons.**

**Discussion**
It should be made in favor of one or both spouses but in this problem, made by one or both of the spouses.
Why only 3.5? Because he did not say why the phrase is it a problem, he only said that it is a problem.
He discussed because it should be in favor of one or both spouses.
He did not further explained who are allowed to donate. The problem is not the donee; ang statement is who may be the donor. So made by one or both spouses,t ama ba yon? Ang sagot ay hindi because? It states that anyone is allowed to donate unless otherwise prohibited under the law on donations.

***Who are cannot validly donate?***
Ang problem is about DNS it is a donation BEFORE the celebration of the marriage if DURING iba na eto. [Art. 739]
When the provision of the law cites a provision of the law, basahin nyo rin yon or at least magbasa ng annotations.

10. X died yesterday survived by Y, his widow. If X and Y did not execute a marriage settlement, the regime that shall govern their property relations shall be absolute community of property regime.

**ANS: TRUE. ?? NOT SURE**

ARTICLE 91. Unless otherwise provided in this Chapter or in the marriage settlements, the community property shall **consist of all the property** owned by the spouses at the time of the celebration of the marriage or acquired thereafter. Therefore ACP will apply.

**TIN: FALSE.** It depends when they got married? If they got married before FC – CPG but if during FC – ACP
**HANTOTS:** But then again, sir said, if the facts or lacking, presume Family Code applies

**Discussion**
FALSE, because it would be complete separation of property.
***Bakit?***
The answer here is FALSE. Consider the statement true if it is absolutely true. Date of the marriage is not provided in this case so it cannot be determined what property regime will govern.
It will not ACP just because they did not execute MS and X died yesterday because it will depend when the marriage was solemnized. If the marriage was solemnized before effectivity of FC, then CPG.

11. The fruits from the exclusive property of a spouse shall form part of the:
    a. exclusive properties of a spouse in a conjugal partnership of gains
    b. conjugal partnership properties only if the property was acquired by gratuitous title
    c. community properties if property was acquired by gratuitous title
    d. community properties if property was acquired by onerous title
    e. none of the above

**ANS: E. none of the above.**
***Why not?***
C and D → separate property therefore cannot be considered community property. Fruits of the exclusive property of a spouse is different from ACP and CPG.
- CPG → fruits are conjugal
- ACP → separate but it does not matter whether onerous or gratuitous title.

A → refer to CPG which includes the exclusive property in the conjugal
B → fruits will still be conjugal.

**Discussion**
Not A because it will form part of the conjugal partnership of gains.
P: No. It will form part conjugal partnership properties. Discuss the regime and the nature of the property and the one entitled to the property. In other words…

Not B form part of conjugal unless acquired by onerous title.
P: Ang mali lang dito ay only because it does not matter when the property is acquired as long as it is the exclusive property of the spouse in the CPG, such fruits will form part of the conjugal partnership.

***Why not C?*** It **will not form [is the exclusive property of the spouse]** part if it was acquired during marriage pursuant to Art. 92.
P: Di pwedeng it will not form part. Kasi ano siya? Will it be owned by the neighbor.
A: It will form part of the separate property. This is ACP if community property = ACP, if conjugal partnership = CPG.
P: Ang mali dito ay hindi s'ya community property regardless of the manner of acquisition.

12. This shall be excluded from the community property:
    a. Property acquired during the marriage by onerous title by either spouse
    b. Property acquired before the marriage by gratuitous title by either spouse
    c. Jewelry for the personal and exclusive use of a spouse
    d. All of the above
    e. None of the above

**ANS: E. None of the above**
***Why not A to C?***
A → Art. 93. Property **acquired during the marriage is presumed to belong to the community, unless it is proved that it is one of those excluded** therefrom. (160)
Onerous title are not one of the excluded properties found in Art. 92.

B to C → ARTICLE 92. The following shall be excluded from the community property:
(1) Property acquired during the marriage by gratuitous title by either spouse, and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;
(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;
(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

ARTICLE 109. The following shall be the exclusive property of each spouse:
(1) That which is brought to the marriage as his or her own;
(2) That which each acquires during the marriage by gratuitous title;
(3) That which is acquired by right of redemption, by barter or by exchange with property belonging to only one of the spouses; and
(4) That which is purchased with exclusive money of the wife or of the husband

**Discussion**
**A:** All encompassing reason why A is not a good answer is because if the property acquired FC, it is presumed to be a community property. ***Does it matter of onerous or gratuitous?*** No. it is always presumed to community property although the presumption is a disputable presumption.
**B:** Only as a rule. There are exemption. It does not matter how it was acquired, as long as it is acquired during marriage then it is ACP.
**C:** ACP

13. The property regime of the spouses married in 1999 will be complete separation of property if:
    a. no marriage settlement was executed
    b. the marriage settlement is void
    c. one of the contracting parties is a surviving spouse who contracted a subsequent marriage without liquidating the community property
    d. all of the above
    e. none of the above

**ANS:** C.
**BASIS: Art. 103.**
Art. 103. Upon the termination of the marriage by death, the community property **shall be liquidated** in the same proceeding for the settlement of the estate of the deceased.

If no judicial settlement proceeding is instituted, the surviving spouse shall liquidate the community property either judicially or extra-judicially within one year from the death of the deceased spouse. If upon the lapse of the said period, no liquidation is made, any disposition or encumbrance involving the community property of the terminated marriage shall be void.

**Should the surviving spouse contract a subsequent marriage without complying with the foregoing requirements**, a **mandatory regime of complete separation of property shall govern** the property relations of the subsequent marriage. (n)

**APPLICATION:** Liquidation is necessary in order to deliver the proper legitimes to the heirs and or pay the debts left by the deceased. Should the surviving spouse fail to do this, a mandatory regime of complete separation of property shall govern the property relations of the subsequent marriage in order to protect the rights of the heirs left by the deceased.

**Discussion**

14. In a conjugal partnership of gains, without a marriage settlement, the rentals from the exclusive property of a spouse shall form part of the:
    a. exclusive properties of a spouse
    b. conjugal partnership properties only if the property was acquired by gratuitous title
    c. conjugal partnership properties only if the property was acquired by onerous title
    d. community properties if property was acquired by gratuitous title
    e. community properties if property was acquired by onerous title
    f. none of the above

**ANS: F. None of the above.**
ARTICLE 117. The following are conjugal partnership properties:
(1) Those acquired by onerous title during the marriage at the expense of the common fund, whether the acquisition be for the partnership, or for only one of the spouses;
(2) Those obtained from the labor, industry, work or profession of either or both of the spouses;
(3) The fruits, natural, industrial, or civil, due or received during the marriage from the common property, **as well as the net fruits from the exclusive property of each spouse; (which includes the rentals)**
(4) The share of either spouse in the hidden treasure which the law awards to the finder or owner of the property where the treasure is found;
(5) Those acquired through occupation such as fishing or hunting;
(6) Livestock existing upon the dissolution of the partnership in excess of the

number of each kind brought to the marriage by either spouse; and
(7) Those which are acquired by chance, such as winnings from gambling or betting. However, losses therefrom shall be borne exclusively by the loser-spouse.

**APPLICATION:** In the absence of a marriage settlements, the rentals from the exclusive property will be considered conjugal. Therefore it does not matter whether the property is acquired by gratuitous or onerous title because the rentals which is the fruits of the exclusive property is part of the conjugal property.

**Discussion**
A: It is one of the enumerated to belong to the conjugal property.
B: the use of the word only. The manner of the acquisition is not relevant.
SIR: the worse option D or E. Kasi ang topic ay conjugal property of gains tapos ang sagot ay community property.

15. A parcel of land is not presumed to belong to the conjugal partnership if:
    a. it was acquired by gratuitous title
    b. it was acquired by onerous title
    c. it was acquired during the marriage
    d. it was registered during the marriage
    e. none of the above

**ANS: E. none of the above.**
**BASIS: Art. 109.** The following shall be the exclusive property of each spouse:
(1) That which is brought to the marriage as his or her own;
(2) That which **each acquires during the marriage by gratuitous title**;
(3) That which is acquired by right of redemption, by barter or by exchange with property belonging to only one of the spouses; and
(4) That which is purchased with exclusive money of the wife or of the husband. (148a)
→ still cannot be A because it must be acquired DURING THE MARRIAGE to not be presumed or excluded in the conjugal partnership.
**ARTICLE 116.** All property acquired during the marriage, whether the acquisition appears to **have been made, contracted or registered** in the name of one or both spouses, is presumed to be conjugal unless the contrary is proved. → Cannot be C and D

**Discussion:**

**I**f this land is acquired during the marriage, it is not in the conjugal partnership? The statement is not?
A and B: It is immaterial because it will form part.

**Worst answer:** C. It will be presumed to be part of conjugal partnership
**D:** Just because it was registered during the marriage does not necessarily mean that it was acquired during the marriage. Malay mo it was registered during the marriage because it was acquired during the marriage.

16. Which among the following is NOT a ground to revoke a donation by reason of marriage:
    a. When the marriage takes place without the advice of the parents or guardians as required by law.
    b. If it is with a suspensive condition and the condition is complied with.
    c. Upon legal separation, the donor being the guilty spouse.
    d. All of the above
    e. None of the above

**ANS: D. All of the above.**
ARTICLE 86. A donation by reason of marriage **may be revoked** by the donor in the following cases:
(1) If the marriage is not celebrated or judicially declared void ab initio except donations made in the marriage settlements, which shall be governed by Article 81;
(2) When the marriage takes place **without the consent** of the parents or guardian, as required by law; **(A is not a ground to revoke because without ADVICE)**
(3) When the marriage is annulled, and the donee acted in bad faith;
(4) Upon legal separation, the **donee** being the guilty spouse; **(C is not a ground to revoke because it should be donee NOT DONOR)**
(5) If it is with a **resolutory condition** and the condition is complied with; **(B is not a ground to revoke because it should be resolutory NOT SUSPENSIVE)**

A **suspensive** condition delays an obligation until a future event occurs, making the contract effective only upon the condition's fulfillment.
In contrast, a **resolutory** condition creates an already existing, binding contract that is terminated if the future event happens.

For example, a land sale contract contingent on the buyer securing a loan is a suspensive condition, while a lease that ends if the tenant moves out of town is a resolutory condition.

(6) When the donee has committed an act of ingratitude as specified by the provisions of

the Civil Code on donations in general.

17. The property regime of the spouses married in 1987 will be absolute community of property if:
    a. no marriage settlement was executed
    b. the marriage settlement is void
    c. a marriage settlement was executed
    d. all of the above
    e. none of the above

**ANS: E. or C.**
1987 CPG is the default property regime. As per the civil code at that time, **Article 145.** The conjugal partnership shall commence precisely on the date of the celebration of the marriage. Any stipulation to the contrary shall be void.
A→ no marriage settlement was executed, the default property regime is CPG
B → if the marriage settlement is void the default property regime at that time will still be CPG
C → a marriage settlement was executed. → Can be if the spouses elected for ACP to govern their property regime.
D → cannot be all of the above
E → none of the above → can be because the spouses in C may have elected for exclusive property and not ACP. The facts did not say that they elected for ACP in their marriage settlement.

**TIN: C. A marriage settlement was executed. If there is a marriage settlement,** the property relations in that marriage settlement shall govern. CPG is the default property regime before the effectivity of the Family Code only in the absence of a marriage settlement. Hence, if the spouses who got married in 1987 chose ACP in their marriage settlement then that is the governing property relations between them.

**Discussion**
C → the regime was not clear on what regime was chosen.
P: A while ago is saying that you are considering C. C could be a good answer?
H: If the regime was clearly chosen.
P: Do you agree that C could be a good answer?
S: What word in the problem that would not support the answer of hans?
F: There is one word "will" ofcourse it is not ACP if the marriage settlement is executed malay mo separate property ang gusto nila. Because of the phrase "it will be"

18. This shall be excluded from the community property:
    a. Property acquired during the marriage by onerous title by either spouse
    b. Property acquired during the marriage by gratuitous title
    c. Property acquired before the marriage by gratuitous title by either spouse
    d. Jewelry for personal and exclusive use
    e. None of the above

**ANS: E. None of the above**
ARTICLE 92. The following shall be excluded from the community property:
**(1) Property acquired during the marriage by gratuitous title by either spouse,** and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;
(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;
(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

- **This cannot be B** because the donor or testator may still specify that the property shall belong to the exclusive property. This is not absolute.

**Discussion:**
**H:** None of the above.
S: Why not A?
A: Because the it does not matter if it is acquired by onerous title under the ACP so it be part of the CP.
S: Sabihin mo ang rule that will cite your answer. IOW, the better answer is not A is because when a property is acquired during marriage, regardless of how it is acquired – it forms part of the ACP.
S: Why not B?
H: It cannot because it can be said that the donor or testator may provide for an exemption
S: Why not C?
H: It is not necessarily it can be one of the spouses,
S: But yon ang statement by either spouse and hindi naman only by either spouse. A better reason?

R: Properties under c form part of the ACP as a rule. It does not matter how the property was acquired whether by onerous or gratuitous as a rule, it will form part of the ACP.

19. A donation by reason of marriage involving a painting will be valid only if:
    a. it is in writing
    b. it is in a public instrument
    c. it is a verbal donation
    d. any of the above
    e. none of the above

**ANS: E. None of the above.**

ARTICLE 83. These donations are governed by the rules on **ordinary donations** established in Title III of Book III of the Civil Code, insofar as they are not modified by the following articles. (127a)

Article 748. The donation of a movable **may be made orally or in writing.**
An oral donation requires the simultaneous delivery of the thing or of the document representing the right donated.
**If the value of the personal property donated exceeds five thousand pesos, the donation and the acceptance shall be made in writing**. Otherwise, the donation shall be void.
**APPLICATION:** Assuming regularity that it is but a normal painting (the question did not say that it is more than 5k), what the law requires for the painting to be valid is

1. Oral donation and simultaneous delivery of the thing

CAVEAT: CAn be A tho if this is above 5,000.

**Discussion**
H: None of the above. We refer to rules on ordination donations and under 748.
H: Not A is because most paintings will not cause Php5,000, if it is movable.
S: Paintings are very expensive. But a while ago you are talking about paintings being expensive pero maraming paintings sa tabi2 na 150 pesos lang.

- If the value of the painting is Php 5,000 or less – law on donation states that it need not to be in writing.

20. A parcel of land is presumed to belong to the community property if:
    a. it was acquired by gratuitous title
    b. it was acquired by onerous title
    c. it was acquired before the marriage
    d. it was registered during the marriage
    e. none of the above

**ANS: E. None of the above.**
ARTICLE 93. Property **acquired during the marriage** is presumed to belong to the community, unless it is proved that it is one of those excluded therefrom. (160)

**TIN:** Not B? Art. 91. Unless otherwise provided in this Chapter or in the marriage settlements, **the community property shall consist of all the property owned by the spouses at the time of the celebration of the marriage** or acquired thereafter. (197a)

An onerous title is not within the exclusion cited in Art. 92.

**HAN: It is not A** regardless naman if onerous siya or gratuitous It doesn't matter because what matters is when you acquired it. Either BEFORE or DURING.
**Maybe the answer is C?** Anything you bring into your marriage will be presumed to belong to the community property.

**Discussion:**
S: E. It does not matter how the property is acquired if gratuitous or onerous. It does not matter when it is registers as long as the property is acquired during the marriage then it is presumed to be part of the CP.

# PROPERTY RELATIONS

**SITUATION:** X died survived by his wife and other heirs. Now, a few days after the death of X, the heirs discovered a TCT involving a parcel of land which is registered in the name of X. Now, if you are the council of the surviving spouse and she wanted you to protect her interest, ***what will be your argument in relation to this parcel of land?***
**H:** If I am the council, the land does not belong the X and the register is in the client's name because there could be simulated name or registered in the name.
**S:** ***If you do not have proof to the simulated sale?***

**H:** I can argue that the said land, it formed part of the conjugal property.
**S:** You agree to that ropero?
**F:** I agree that the best argument would be
S: If you agree, you do not need to explain. Ms. Relao do you agree?
R: I do not agree because he already qualified that there is ACP but he failed to follow that there is an order that needs to be followed so there needs to check of there is a marriage settlement.
**S:** If I do not have proof as to the simulated sale, then he will argue that it is part of the conjugal property. So you do not agree to that?
P: I do not agree because he said that if he had no proof, the land will form part of the conjugal. What is wrong with this?
P: There is a presumption of communality.
S: Not true. As we discussed that the presumption is that is a community property, that requirement is not clear in the facts.

- It is as simple as Mr. Sayno the first part is the best that if his client's want money is that this land is not owned by the deceased by his client [his surviving spouse] kasi nakapangalan kay husband ang lupa eh. Maganda ang kanyang scenario baka may simulated sale, the buyer maybe able to register the title in his name kasi di naman malalaman ng register of deeds 'yan unless kwentohan n'yo.
- BUT, there are other ways that it is owned by your client not because of simulated sale. Huwag ka agad magsurrender. What is one scenario that the land is owned by the client but it is registered under the name of X?
- X is just the trustee of Y. He is just an administrator? [no kasi no need to register in your name but somehow related to implied trust]. Common scenario is there is fraud, it was registered na hindi alam ng asawa na register na sa name ng asawa nya. Baka gustong mangutang ng husband kaya pinangalan muna sa kanya.

S:Assuming that it is not owned by the surviving spouse, the next best argument is conjugal property sya. What is the scenario here? Just give us a scenario where this property is owned by the surviving spouse although registered in the name of the deceased husband. The proof and reason is owned by the surviving spouse is how?
F: When in the instance that the property itself although registered to X was purchased by Y through exclusive property of Y.
R: X already acquired before
P: When there is consent by the wife,

S: The best answer here is?
C: When it was owned by the surviving spouse, ang unang article ang seryosohin nyo.
R: If it is provided in the Marriage Settlement.
P: If walang marriage settlement, ang susunod ay?
R: It depends when the marriage was celebrated because the regime that will govern their marriage.
S: Assuming that there is no marriage settlement and in 1985, what is the good scenario that this pertains to the surviving spouse?
R: If there is no marriage settlement and before the FC, CPG so the…
S: It is acquired before the marriage because she will be bringing the property to the marriage as her own exclusive property. (like gin inherit)
S: If it is not owned by the surviving spouse, at least it would be a good argument that this is a community property like if there is no marriage settlement, he will be provided 50% as her share which is different from her share as the heir of the deceased edi more than 50% pa rin sya ng lupa.

**SITUATION2:** If the spouses were married or are to be married, maybe next week, and they agreed verbally already to have ACP. May it be advisable for them to execute a marriage settlement?
R: I would still advise them even if it is the default because they might still have things to clarify to what to be excluded. The Code itself provides for some exclusions
S: It is not about what the law provides, it is what the parties would want to exclude in the properties. But if they want a property to exclude, maybe there is a sense in executing. If wala naman, why is there a need for MS if default naman is ACP.

**SITUATION 3**: If the marriage was solemnized in 1988 and days before the solemnization of marriage they **verbally agreed** that it is Separate Property Regime.
R: Void if that is to be interpreted as their MS. MS as a rule should be in writing and signed by parties.
H: I do not agree because it is unenforceable prior to the FC, CC covers it and unenforceable.
P: Neither is correct, the facts do not provide for the exact date so it did not provide whether FC or CC.

**SITUATION 4:** A and B were married in December 1989. Days before that they

executed a MS where they agreed that the regime would be CPG. At that time, si B was only 19 years old and the marriage settlement was executed without the knowledge of B. The status of the marriage settlement?
R: VALID, because the marriage is solemnized on Dec. 1989. The law, RA 6809 which lowers the age of majority is already in effect so the parents consent is not already required. The participation is not anymore needed.
S: How will they participate?
R: They will have to
P: I do not agree. The law pertains that parents must be made parties even if the minor is below 21 years old. Therefore, the status of the MS is VOID.
Who is correct?
H:
**S:** None, is correct.
**R:** Art. 78 FC requires that the parents of B must be also made parties to the settlement because [this is the answer of Mr. Pareja]
**H:** The date of the solemnization is unknown.
**S:** Sinabi lang 1989 but it does not say when 6809 took effect. If it is before, Dec. 13, 1989 baka void ang marriage settlement but after the effectivity, do you agree to the answer of Ms. Relao?
**H:** Yes,
**S**: Why?

**S**:The requirement that there should be parental consent is one or both of the future spouses is between 18-21, was it affected by RA 6809?
**R:** No, because under Art. 78 FC it says minor and not between 18-21.
**S:** IOW, the law expressly would state that this future spouse is between 18-21 and the law does not care regarding the age of majority. The parental consent is needed between 18-21. What is used in the provision is not that the parties between 18-21 and if under the law it says na "minor" so maybe tama si Ms. Relao na it is not already applicable.

S: We discussed DNS as to who should be the donee, though I have not heard those who are prohibited from donating as the family code does not expressly does not prohibit specific persons from either or both spouses but CC are applicable.

**SITUATION 5:** If the parties were married in 1995 without a MS. BUT A donated 90 of his present properties (before the solemnization of the marriage, in consideration of the marriage), would that be a valid donation?
R: This donation is VALID because in ACP there is no ⅛ limit as to how much of the property can the spouses donate on their present property.
P: 3 Why? It does not correctly answer the question.
S: The answer is very much responsive but the only argument is that the law does not limit the future spouse or the extent as to what they may donate to their present property.
R: I forgot to mention that ACP is the property regime. They are married in 1995 so FC is effective, and because there is no MS then the regime would be ACP.
S: You cannot think were the donation is not a valid donation? You are correct that the law provides for a cap only if it is other than ACP, but does it follow that if it is ACP there is no limit.
R: NO.
S: What is clear is regimes other than ACP, but ang batas di n'ya sinasabi na unlimited. One scenario even 50% of his present property despite the regime being ACP?
R: If the spouse donated during the marriage…
S: Would it be DNS if already during
S: If the spouse has legitimate descendants by a prior marriage, ***do you think he can donate without limit?*** NO, under the law, they are separate properties of the spouse kasi para sa legitimate descendants n'ya yon eh.

S:If it is a regime other than ACP, ang prohibition is more than ⅛ of the present property which means valid pa rin hanggang ⅛ but ang excess ang declared VOID.

SITUATION 6: This time in the 1st place, like a donation is made before the marriage. How would you know if this is before or during the marriage?
R: It must be in consideration of the marriage.
S: If no "consideration of the marriage" what would it be?
R: If before, dapat future spouses kapag spouses (during the marriage na 'yan). Tingnan mo ang phisology ng batas.

**SITUATION 7:** Now after the solemnization of their marriage, A gave to B ng Rolls Royce. If that is the case, the husband donated to his wife a Rolls Royce (30M) na may lalagyan ng payong and thereafter the husband died and his heirs questions the validity of the donation. ***What is the status of the donation?***
R: The donation are during marriage then the spouses are prohibited considering that the Rolls Royce is worth more than Php 30M so it can be moderate.But in this

case, considering the value Php 30M is not moderate.
S: Operative word is “moderate gifts” baka kanila Zobel-de Ayala moderate naman yan or Manny Pangilinan what is 30M.

**SITUATION 8:** Last bar exam a few weeks ago, the husband while the wife is abroad gave to his mistress the rentals to a property which he inherited before his marriage. This property were leased and given to his paramour, the status of this donation?
R: VOID according to Art. 739.
P: VOID as it is against public policy because one cannot do directly, he cannot do indirectly. Since donations between spouses are void it follows that the donations are void.
SIR: The basis of your answer is to the spouses prohibiting to donating to each other.
***Score?***
P: 3. Because it is somewhat correct.
SIR: it is by analogy.
I: 3. Classify the nature of the property involved.
S: How is it relevant? Why is it relevant?
I: since the property involved is a rental which is a fruit of the exclusive property and shall be part of either ACP or CPG.
S: What is the basis of your claim that the rentals are fruits of the exclusive property?
I: owned by the husband prior to the marriage.
S: Why would it be an exclusive property?
I: if it was explicitly not included in the ACP or part of the exclusive property prior to the celebration of the marriage.
S: if you remember the facts, the husband inherited the property before the marriage.
Obviously, may isa pang feature ang problem because ang wife is abroad. The husband and his paramour lived in the conjugal abode.
S: Your answer Ms. Pareja regarding the prohibition of donation to spouses are applicable to common law spouses under the FC before the FC, it is just the ruling of the court in a case. Now it is a part of the FC.

**SITUATION 9:** A and B were married like January 1 at 5 o’clock in the afternoon. At 10am, X died. In the will of X, a parcel of land was given by X to A. In the marriage settlement of A and B, they agreed for a CPG. So, with the marriage of A and B, what is the nature of the parcel of land?
P: It will be conjugal property of the spouses.
Sir: I did not ask you to whom the properties should belong. I ask you to the nature of the property. Di kita tinatanong kung kanino yun. Tinatanong kita kung ano ang nature of the property?
H: exclusive property.
SIR: pwede ang regime is CPG then the one who is entitled is the conjugal partnership. The nature of the property is conjugal property. Depende kung ano ang tanong. Thus, the answer is:
H: Exclusive property of A. it does not form part of conjugal properties. Because it was acquired before the celebration of the marriage.
SIR: So what?
H: she brought it to the marriage as her own property.
I: Even if A died earlier at date. The succession must have happened at the later date in a testamentary proceeding.
SIR: What is the basis of this answer?
**S:** The scenario is clear na 10am siya namatay. Why would A acquire the property during the solemnization of the marriage?

**S:** In other words, ang sagot ay tama siguro si H. If the discussion is not complete, how did you arrive at that conclusion? In order words, the answer is correct that it is an exclusive property of A. but start with under Art. 777 succession, transmitted upon death. FC provides that the property relations commenced at the solemnization of the marriage. So if the property relations commenced at 5pm. Then he died at 10am. Then A will bring this parcel of land to the marriage as his own. Then it will be exclusive property of A.

S: If merong kulang sa principle, gamitin mo lahat sa discussion mo basta relevant.

**SITUATION 10**: A and B were married. Before the solemnization of their marriage, A inherited a building from his father. After the solemnization, A and B spent Php 5M for the retrofitting of the building. Will this expense be chargeable to the ACP or the CPG of the spouses?
I: Consider the nature of the property if exclusive or conjugal. Then check if there is a marriage settlement. If no marriage settlement, then before FC CPG. then after ACP.

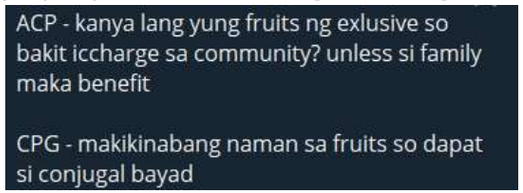
- CPG: exclusive property. If this is an exclusive property of A, conjugal

property. ***In other words, gumastos ng 5M, ang tanong san chargeable saan? Si A lang ba o conjugal partnership?*** Conjugal partnership whether or not used by the family.

- If this is a separate property of A and the regime is ACP, will the expense be charged to ACP? YES if it was used or being used by the family or the family benefitted from it.

***Why is there a difference as to the rules if it is in the CPG or ACP in the sense that if this an exclusive property of a spouse in CPG, even if the property is not used by the family, it will be charged by CP. while ACP has to be used by the family.***

S: ACP excludes exclusive property of the spouse. For the preservation of the property. In the ACP, chargeable lang to ACP if it was being used by the family.




CPG → fruits of the exclusive property of a conjugal partnership are conjugal.

***In a CPG, what properties are considered excluded from the CPG?***

ARTICLE 109. The following shall be the exclusive property of each spouse:
(1)That which is brought to the marriage as his or her own;
(2) That which each acquires during the marriage by gratuitous title;
(2)That which is acquired by right of redemption, by barter or by exchange with property belonging to only one of the spouses; and (by using the property of A SPOUSE)
(4) That which is purchased with exclusive money of the wife or of the husband.

***S: If property is acquired by onerous title during the marriage, will it form part of the conjugal property of the spouses?***

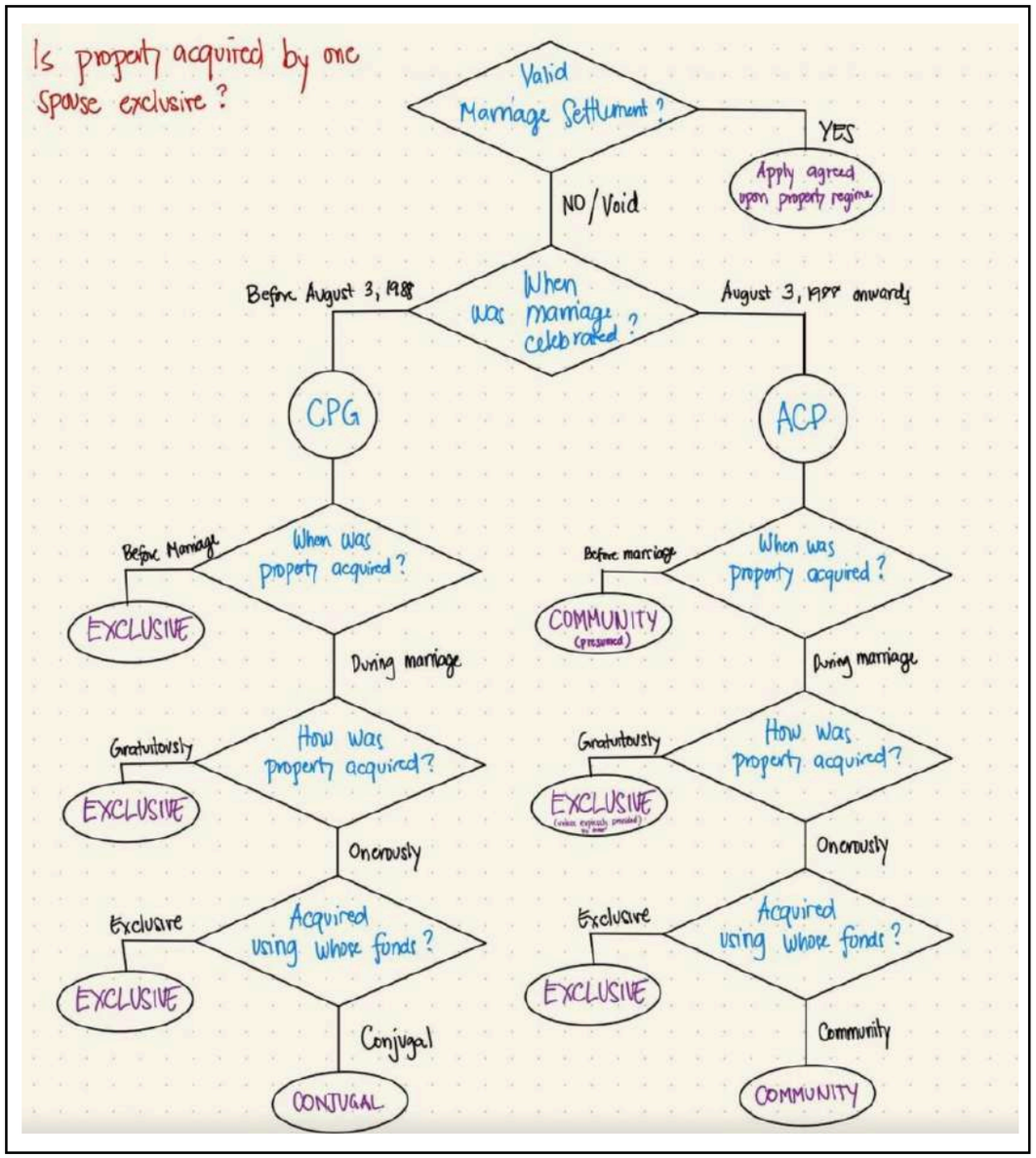
P: No. Kapag pinangbili naman is conjugal fund, edi conjugal din. But if this is an exclusive money of the spouse, then it will also be exclusive property.

***In ACP, what will be excluded in the ACP?***

SIR: the law requires legitimate descendants. Similar to CPG, if the property is acquired by gratuitous title during the marriage, it will be separate property of the spouse.

**SITUATION 11 :** 5 years before the solemnization of the marriage between A and B, A bought a house and lot with a price payable in equal monthly installments for a period of 10 years. Before the marriage, A was using his salaries to pay the monthly amortizations. After the solemnization of the marriage, the spouses would now use both of their salaries to pay their monthly amortizations. They were able to faithfully pay the monthly amortizations and other conditions. Six years after solemnization of the marriage, A died. Will this house and lot form part of the estate of A?
SIR: Check if may marriage settlement. Tapos may nakalagay na kay A lang.
If no marriage settlement, check kelan kinasal.
Kung ang regime ay CPG ano ang sagot?
I: exclusive property of A then form part of the estate.
SIR: Why?
I: consider when the ownership was transferred.
SIR: Di ka nakikinig sa facts. The price is payable by installments in 10 years. And nabayaran naman ang monthly amortizations. Kelan nafully paid ang price?
I: within 5 years of the marriage
SIR: thus knowing such ano ang sagot?
I: during their marriage the property shall belong to the conjugal property.
SIR: Ano ang basis mo? May presumption ka kasi. Di naman necessarily true na even if the price is paid by installments, it may still be ABSOLUTE SALE. the ownership may be passed upon prior to the marriage of A and B.
Conditional sale: will be passed only during the marriage. Kasi installment.
A's estate will be liable for those amounts paid by the partnership during the marriage. If the ownership is passed during the marriage, then it will form part of the property of A. reimburse A used by A during the marriage if she used her own money.

**ACP:** Community Property if walang MS regardless when na transfer ang ownership.




**Next meeting: Continue property relations from regime of separation of property focus really on property regimes on unions without marriage**

- **Last year tinanong to sa bar.**
  - **This year, wala.**

**15-20 mins property relations. Have a quiz on all the other topics starting on paternity and filiation (focus here and adoption) the rest are almost codal. The quiz will cover the rest of the topics.**

**DO NOT WRITE ANYTHING BELOW THIS.**

**CivRev - Sep 27, 2025**

# QUIZ 5

1. To be a legitime child, he/she must be conceived or born during the marriage of the parents.

**BASIS: FALSE. Art. 177.** *Children conceived and born outside of wedlock of parents who,*

1. *at the time of the conception of the former,*
2. *were not disqualified by any impediment to marry each other, or*
3. *were so disqualified only because either or both of them were below eighteen (18) years of age,*

**may be legitimated**.

**ARTICLE 164.** Children conceived or born during the marriage of the parents are legitimate.
Children conceived as a result of artificial insemination of the wife with the sperm of the husband or that of a donor or both are likewise legitimate children of the husband and his wife, provided, that both of them authorized or ratified such insemination in a written instrument executed and signed by them before the birth of the child. The instrument shall be recorded in the civil registry together with the birth certificate of the child.

**APPLICATION**: Children conceived and born outside the wedlock of his or her parents may be legitimated.

Pasalo. Ihabol ko application.
**DISCUSSION:**

L:False, since in here it is
S: Is it still false?
L: Still false. An exception of the legitimated children, children who are born
M: I agree with the statement since there are other ways for a child to be a legitimate.
N: I do not agree.
S: Status ito, legitimation happens AFTER hindi upon birth ang legitimation. It presupposes na illegitimate ang bata. Kapag tinanong ka if legitimate or illegitimate, wag sabihin legitimated. It is clear that it must be
S: 164. Children conceived **OR** born during the marriage of the parents are legitimate.

Yong sa artificial insemination would not be during the marriage?
B: The child is conceived during the marriage.
S: So bakit ka magfafalse?

2. Children conceived as a result of artificial insemination of the wife with the sperm of the husband are legitimate children of the husband and his wife.

**BASIS: FALSE. Art. 164 (par. 2)**

Article 164. Children conceived or born during the marriage of the parents are legitimate.

Children conceived as a result of artificial insemination of the wife with the sperm of the husband or that of a donor or both are likewise legitimate children of the husband and his wife, provided, that both of them authorized or ratified such insemination in a written instrument executed and signed by them before the birth of the child. The instrument shall be recorded in the civil registry together with the birth certificate of the child.

**APPLICATION:** There is a requirement for the child conceived as a result of artificial insemination to be legitimate.

1. Both husband and wife authorized or ratified the insemination
2. In a written instrument
3. Executed and signed by them before the birth of the child
4. Instrument shall be recorded in the civil registry.

**DISCUSSION:** True. the insemination follows during the marriage so it will kick in even if the written authorization is absent, the child is still legitimate.

Because of the presumption of legitimacy.
S: So even if there is no authorization or ratified still legitimate, what is the basis?
B: I only operated in the question that absent of the authorization.
S: But your answer was true kaya ano basis mo?
B: I have to correct myself.

3. Children conceived and born outside of wedlock may be legitimated.

**BASIS: TRUE.**

**ARTICLE 177. Children conceived and born outside of wedlock of parents who, at the time of conception of the former, were not disqualified by any impediment to marry each other, or were so disqualified only because either or both of them were below eighteen (18) years of age, may be legitimated. (269a) (as amended by RA No 9858)**

**APPLICATION:** There are requisites for a child conceived out of wedlock to be legitimated.

1. Parents must not have impediment to marry at the time of the conception
2. Marriage must be a valid marriage.

True because it is provided in the FC so long as the couple has no legal impediment and the child is born out of wedlock the legitimation retroacts to the time of the birth.
**S:** The statement has nothing to do with the effect of legitimation as to when it will take effect. Tinatanong ka lang na if born outside of wedlock – legitimated ba? Based on your answer, if this child was born when the biological parents have no impediment to marry the child will be legitimated.
S: Will be legitimated and not may be legitimated.
B: The question is phrased as may.
S: Last question ang sagutin.
B: Legitimation it does not automatically apply when the ~~parents~~ child is born out of wedlock there are instances were
S: The follow up question because of the answer of Bedonia the question was if the child was born when there was an impediment to marry of the child's biological parent then the child cannot be legitimated. If at the time of the birth of the child, there was already an impediment to marry then the child cannot be legitimated.
X: I do not agree because children born and conceived they are legitimate.
**B:** If the child is born and if there is already an impediment, if at the time of the conception there was no impediment yet. It is not about the birth it is about the CONCEPTION. Who cares but may another requirement pa as long as subsequent marriage that is valid. The law is very clear that it is a valid marriage. Just because the child is born and conceived he is legitimated but they may be legitimated.

4. The effects of legitimation shall retroact to the time of the child's birth.

**BASIS:TRUE.**

**ARTICLE 180. The effects of legitimation shall retroact to the time of the child's birth.**

**DISCUSSIOn:**

5. The legitime of the illegitimate children shall consist of one-half of the legitime of the legitimate children.

**BASIS: False.** The legitime of each illegitimate child shall consist of **one-half of the legitime of a legitimate child**.
Except for this modification, all other provisions in the Civil Code governing successional rights shall remain in force.

**Art. 176 last sentence:The legitime of each illegitimate child shall consist of one-half of the legitime of a legitimate child.**

**APPLICATION:** There are instances where there are multiple legitimate children. The share of the IC should be ½ of the legitime of one legitimate child. It will be unfair for the illegitimate child if children as a collective.

**DISCUSSION:**
**B:** FALSE,the FC is phrased in a way that the legitime of the illegitimate child is ½ of the illegitimate child and not children.
**S:** What if there are 2 or more legitimate and illegitimate children?
**B:** Share of legitimate child is divided into half and that is the share of ½.
**S:** IOW, legitime of each illegitimate child is half of the legitimate child.

6. The adopter must be at least sixteen years older than the person to be adopted.

**BASIS: FALSE.**

**Section 21. Who May Adopt. – The following may adopt:**
**(a) Any Filipino citizen at least twenty-five (25) years of age, who is in possession of full civil capacity and legal rights; has not been convicted of any crime involving moral turpitude; is of good moral character and can model the same; is emotionally and psychologically capable of caring for children; at least sixteen (16) years older than the adoptee; and who is in a position to support and care for adopted children in keeping with the means of the family: Provided, That the requirement of sixteen (16)-years difference between the age of the adopter and the adoptee may be waived when the adopter is the biological parent of the adoptee, or is the spouse of the adoptee's parent;**

**APPLICATION.** This is just the general rule. There are exceptions such as when the adopter is the biological parent of the adoptee then the age limit is not applicable.

**DISCUSSION:**
B: FALSE. Under the new law, this can be waived if the adopter is the biological parents.
S: IOW, prior to the domestic adoption the rule was different?
**X:** I think same with the previous laws, the domestic adoption has the same rules with the 11642.
**S:** Are you saying all the rules are the same?
**X:** If the adopter and the adoptee it should be waived when the adopter is the biological parent of the adoptee.

**SIR:** Do we have to study the domestic adoption act?
**X:** Yes there are rules in the domestic adoption that are carried over to the new adoption law.
**SIR:** then why need to study kasi nacarry over naman?
B: There is no need to read the previous law. Under the repealing clause of RA 11642, RA 8552 are hereby repealed and listed other old laws.
**SIR:** If the petition was filed during the effectivity of those laws, those laws will apply whether or not that petition should be granted. Fair lang naman kasi kung qualified ka at that time of the filing, pag nabago na ang batas edi di na pwede di na igrant ang petition? Parang di naman tama yun.
Kung ang kasal ay solemnized nung 1985, di naman pwede na ACP ang regime kung walang marriage settlement. Baka yung default at that time which is CC ay dapat sundin kasi the marriage was solemnized kaya di lang batas ngayon ang kailangan pag-aralan. The cases that you will be handling are ordinarily the petitions are filed at 1922 bago umabot sa appellate courts.

S:IOW, if the petitioner is not the biological parent of the adoptee then there should be at least 16 years difference in their age?
B:Yes
S: You agree?
B: No, there is another situation not just the biological; if the spouse is the adoptee's parent does not apply.
i. the spouse of the adoptee's parent;
iii. the sibling of the adopted.

7. When the surviving spouse or the illegitimate children of the adopted concur with the adopters, they shall divide the entire estate in equal shares, one-half to be inherited by the spouse or the illegitimate children of the adopted and the other half, by the adopters.

**BASIS: TRUE.**
**ARTICLE 190. Legal or intestate succession to the estate of the adopted shall be governed by the following rules:**
**(1) Legitimate and illegitimate children and descendants and the surviving spouse of the adopted shall inherit from the adopted, in accordance with the ordinary rules of legal or intestate succession;**
**(2) When the parents, legitimate or illegitimate, or the legitimate ascendants of the adopted concur with the adopter, they shall divide the entire estate, one-half to be inherited by the parents or ascendants and the other half, by the adopters;**
**(3) When the surviving spouse or the illegitimate children of the adopted concur with the adopters, they shall divide the entire estate in equal shares, one-half to be inherited by the spouse or the illegitimate children of the adopted and the other half, by the adopters.**
**(4) When the adopters concur with the illegitimate children and the surviving spouse of the adopted, they shall divide the entire estate in equal shares, one-third to be inherited by the illegitimate children, one-third by the surviving spouse, and one-third by the adopters;**
**(5) When only the adopters survive, they shall inherit the entire estate; and**
**(6) When only collateral blood relatives of the adopted survive, then the ordinary rules of legal or intestate succession shall apply.**

**DISCUSSION: This is a verbatim provision.**

8. Payment of support shall be made within the first five days of each corresponding month.

**BASIS: TRUE.**

**Art. 203 last paragraph. Payment shall be made within the first five days of each corresponding month or when the recipient dies, his heirs shall not be obliged to return what he has received in advance.**
**DISCUSSION: Verbatim copy of the provision**

9. The person obliged to give support shall fulfill the obligation by receiving and maintaining in the family dwelling the person who has a right to receive support.

**BASIS: FALSE.**

**ARTICLE 204. The person obliged to give support shall have the option to fulfill the obligation either by paying the allowance fixed, or by receiving and maintaining in the family dwelling the person who has a right to receive support. The latter alternative cannot be availed of in case there is a moral or legal obstacle thereto. (299a)**

**APPLICATION. The person obliged to give support has an option whether to pay the allowance fixed or receiving and maintaining in the family dwelling the person who has the right to receive the support.**

**DISCUSSION:**

False in the FC the exception is that if there is moral obstacle.
X: There is an option to fulfill. The person to fulfill has the option to fulfill. [see provision above Art. 204.]
S: IOW, kasi false eto the person obliged is not required to received… he may instead give an allowance.

10. To be qualified to adopt, the petitioner must at least be of legal age.

**BASIS: FALSE.**

**APPLICATION: Under RA 11642, the required age is already 25 years old. And in the inter-country adoption act, it is 27 years old. Thus False because this question contemplates the age of majority which is 18 years old.**

**DISCUSSION:**
**X:** False, if you listen to the answer do you agree?
**X:** This is false to be qualified to adopt.
**B**: I do not agree because he said that the 25 is already sufficient and is considered legal age. But under the new law, it specifically provides 25 and the adopter is 18 that is a legal age but it is not 25.
B: While it satisfies the law that the adopter should be of legal age, the specific number of that age should be considered.

SIR: kung sinabi mong at least of legal age, pwede na 19 or 18. But when the law requires 25, kung 24 palang siya, di pa siya pwedeng mag-adopt. Yun ang ibig sabihin ng 25 years old.

11. The status of the child in relation to the father or the mother, and may be used to indicate paternity or maternity is known as:
    a. Legitimacy
    b. Paternity
    c. Maternity
    d. Natural
    e. None of the above

**BASIS: E. None of the above. Filiation**

**APPLICATION.**
**Legitimacy** → legitimacy refers to the status of a child conceived or born during a valid marriage of their parents
**Paternity** → the legal recognition of a father's relationship to a child (filiation), primarily through the Family Code,
Maternity → pertains to the mother's relationship with the child through filiation.
**Filiation** → filiation is the legal bond or relationship of being a person's offspring, establishing their biological and legal connection to their parents

**DISCUSSION:**

12. A child conceived before the death of the husband [A] of B but born one month after the marriage between B and C is :
    a. legitimate child of A and B
    b. illegitimate child of A and B
    c. legitimated child of B and C
    d. illegitimate child of B and C
    e. legitimate child of B and C

**BASIS: A.**

**Art. 168.** If the marriage is terminated and the mother contracted another marriage within three hundred days after such termination of the former marriage, these rules shall govern in the absence of proof to the contrary:

(1) A child born before one hundred eighty days after the solemnization of the subsequent marriage is considered to have been conceived during the former marriage, provided it be born within three hundred days after the termination of the former marriage;

(2) A child born after one hundred eighty days following the celebration of the subsequent marriage is considered to have been conceived during such marriage, even though it be born within the three hundred days after the termination of the former marriage. (259a)

**APPLICATION:** **The child was conceived during the marriage of A and B**. A was alive at that time. It does not matter now that he was born during the marriage of B and C.

**DISCUSSION:**
**FC is conceived or born before the marriage. But he was born on the 2nd marriage.**
**He was born during the marriage of B and C so why?**
**B:** The child is legitimate child of A and B.

Apparently 164 is cited where the law only requires the child to conceived OR born. The child was conceived during the marriage of A and B but born during the marriage of B and C. SO why not B and C?
B: The child was already conceived during the marriage of A and B, before the death of the husband
S: Ang question lang, kanino siya anak, sa unang asawa or sa pangalawa?

SIR: ang nakalagay ay conceived or born. And yes he was conceived during the first marriage but he was born during the 2nd marriage.
F: It is true that Art. 164 applies to both cases because the child was conceived during the subsisting marriage of A and B but born on marriage with C. with regard with filiation of the child, that has already set in with the previous marriage because the child was conceived during the previous marriage. When the child already acquires the status of legitimate child of A and B, it will not automatically convert to legitimate child of B and C because the status has already set it.
**SIR:** The status is upon birth not upon conception. Although binibigyan na siya ng status. Although ang point nga ay di automatically. Pag naconceive na siya sa unang asawa, alangan naman na sa loob ng sinapupunan naging anak na siya ng pangalawang asawa.

13. "A" died on January 1, 2024. His widow, "B", married C on August 1, 2024. D was born on November 15, 2024. In the absence of proof to the contrary, D will be considered as the:
    a. legitimate child of A and B
    b. illegitimate child of A and B
    c. legitimate child of B and C
    d. illegitimate child of B and C
    e. none of the above

**BASIS: C. Art. 168.** If the marriage is terminated and the mother contracted another marriage within three hundred days after such termination of the former marriage, these rules shall govern in the absence of proof to the contrary:

(1) A child born before one hundred eighty days after the solemnization of the subsequent marriage is considered to have been conceived during the former marriage, provided it be born within three hundred days after the termination of the former marriage;

**(2) A child born after one hundred eighty days following the celebration of the subsequent marriage is considered to have been conceived during such marriage, even though it be born within the three hundred days after the termination of the former marriage. (259a)**

**ARTICLE 169. The legitimacy or illegitimacy of a child born after three hundred days following the termination of the marriage shall be proved by whoever alleges such legitimacy or illegitimacy. (261a)**

**APPLICATION:** Apply Art. 168 in the absence of proof when the child was conceived. #2 is applicable given that

**DISCUSSION:**
Legitimate child of the 2nd marriage because under the Art. 168 if the widow/spouse whose prior marriage was terminated entered into a subsequent marriage within 300 days from the termination and in the absence of proof there are rules to be followed.
If the child is born before 180 days after the solemnization of the 2nd marriage it will be deemed conceived as the child of the 1st marriage;
If the child is born after 180 days following the solemnization of the 2nd marriage, the child would be conceived of the subsequent marriage provided that even if the child is born after 300 days after marriage.

B: Letter C citing the same legal basis as Ms. Blanco as stated in Art. 168 if the marriage is terminated and the mother contracted another marriage within 300 days after that marriage, the child born before 180 days after the solemnization is considered to be conceived during the marriage. It is still within 300 days. HOWEVER, in here the child was born on Nov. 15, 2024 so that would be approximately 10 months already from January 1 when A died so in here A would be considered as the legitimate child of A and C.
C: ~~Both erroneously cited 168, the marriage contracted within 300 days. ICAB, the termination is January 1 and the birth of the child is on Nov. 15, 2024~~. I disagree that they cited Art. 168 because what should have been cited is Art. 169 and look at 164 and since the child B is born during the marriage of B and C. The child is born of B and C.
SIR:: 169 is not applicable. Wala namang subsequent marriage dito eh. ARTICLE

169. The legitimacy or illegitimacy of a child born after three hundred days following the termination of the marriage shall be proved by whoever alleges such legitimacy or illegitimacy.
In other words, malay natin, more than 300 days anak pa rin siya ng unang husband. BUT, the answer of 180 180 walang point. Wala namang relevance sa problem. The relevance is it is more 300 days after termination of the marriage. More than 10 months na yan. Therefore, A cannot be the father of the child. Alangan naman makabuntis pa ang patay.
He was born before 180 days provided it be born within 300 days upon termination of prior marriage which is not present here. Kaya di siya anak ng unang asawa. This will fall under the 2nd marriage because he was born in the 2nd marriage. Less than 6 months yan kaya di na sa prior marriage kasi more than 3 months na nung namatay si A.

14. Legitimacy of a child may be impugned on the ground that it was physically impossible for the husband to have sexual intercourse with the wife:
a. right after the solemnization of the marriage
b. within the first 30 days of the 300 days which immediately preceded the birth of the child
c. within the first 180 which immediately preceded the birth of the child
d. within the first 180 days of the 300 days which immediately preceded the birth of the child
e. none of the above

**BASIS: E. None of the above.** Art. 161 (1) That it was physically impossible for the husband to have sexual intercourse with his wife within the first 120 days of the 300 days which immediately preceded the birth of the child.

**APPLICATION:** The period being asked is the period for which the husband is physically impossible to have sexual intercourse. The impossibility must be within the first 120 days of the 300 days immediately preceding the birth. So from birth, count 300 days. The first 120 days, if it is impossible for the spouses to have sexual intercourse, then the child is not that of the husband's.

**DISCUSSION:**
**B:** 120 days which immediately preceded the birth of the child.
**SIR:** In other provisions, instead of legitimacy the law would use filiation. Alin ang tama dyan? If

If the legitimacy of the child was impugned successfully, what would be the status of the child?
**B:** the child will be illegitimate child.
**SIR:** di ba illegitimate child of the spouses?
**B:** Yes, an illegitimate child of the spouses. Do you agree to that A?
**A:** I agree that it would be considered an illegitimate child of the spouses.
**C:** I disagree. The question in impugning is not about the legitimacy but about the paternity of the father so in that sense, it should not be a question of legitimacy but rather of filiation.
**SIR:** Kapag successfully nainpugn ang legitimacy ng bata, will he be an illegitimate child of the spouses?
**C:** Yes Sir.
**SIR:** In at least 1 provision, the law uses the word legitimacy. The law means to impugn the legitimacy, di na siya legitimacy child of the spouses. Pero di naman ibig sabihin na illegitimate child siya. Non sequitur. May presumption ang batas if the child was conceived at the marriage, legitimate child siya. Kaya kung di siya legitimate child, baka di siya child ng husband. Hindi na hindi siya illegitimate child of the husband. Di siya anak ng husband but legitimate child of the wife.
Para di lang mawala ang confusion, use the filiation of the child to impugn pero tama pa rin naman na legitimacy ang iniimpugn.

**SIR:**The question here is as mentioned by Ms. Blanco dapat within the impossibility within the 1st 120 days, ***bakit 120 and not 150 or 100?***
**AB:** That is already the 4 months. It should be the first 120 days because if it goes beyond that, it is already impossible that the father of the child would be that person because it will go beyond the 9 months of when the mother was carrying the child.
SIR: You are using IT. Ano yung it?
AB: The child.
S: What is the 120 again?
AB:The period of conception.
SIRS: Physically impossible within the first 120 (see application explanation). What is the 120 days?
C: It is not the 120 days but 180 days after that which is 6 months gestation period for a child to be viable.
S: IOW, If impossible ang 120 days out of 300 preceding the birth, so 180 days nalang natitira which is 6 months. If impossible yun at 6 months nalang natitira at buhay naman ang bata, di siya anak ng husband. Otherwise, kung 6 months lang

siya napanganak di siya mabubuhay kahit iincubate siya. Kaya yung 180 180 lang sa 168, tungkol yan doon.

15. After the death of the alleged parent, the filiation of an illegitimate child may be established by any of the following, EXCEPT:
    a. The record of birth appearing in the civil register
    b. An admission of illegitimate filiation in a public document
    c. An admission of illegitimate filiation in a private handwritten instrument and signed by the parent concerned
    d. Any other means allowed by the Rules of Court and special laws.
    e. none of the above

**BASIS: D or E**
If Art. 172 (par. 2 which is other means allowed by the rules of Court and special laws. – during the lifetime of the alleged parent.

**APPLICATION:**

**DISCUSSION:**
**AB:** E. It is not A-C explicitly stated in the FC that the presentation of these evidence can be presented after the death of the husband.
D → any other means can include DNA testing which in Yap v Yap has ruled can be presented even after the death of the alleged father.

**SIR:** Have you considered the last paragraph of Art. 175: The action must be brought within the same period specified in Article 173, except when the action is based on the second paragraph of Article 172, in which case the action may be brought during the lifetime of the alleged parent?
**AB:** This should be read with Art. 172 par 2. n the absence of the foregoing evidence, the legitimate filiation shall be proved by:
(1) The open and continuous possession of the status of a legitimate child; or
(2) Any other means allowed by the Rules of Court and special laws.
However the ruling as interpreted in Yap v. Yap, DNA testing is allowed to be presented even after the death of the putative father.
SIR: IOW, is it not clear under last paragraph of 175, that proof of filiation in 2nd paragraph if Art. 172 can only be used during the lifetime of the putative father? If patay na si alleged father, di na pwede gamitin yung 2nd paragraph ng 172?
AB: Yes sir.

SIR: Even as early as Aquino v. Aquino, SC in a way changed the decisions for the better. In the earlier decisions, the court will claim that this would rule that this proof of filiation Art. 172(2) can be invoked by illegitimate children during the lifetime of the parents. I disagree because this Art. 175 uses the term “May”.
It is because of the technology. If before the FC, ang DNA test can be used to prove filiation even after the death, mas lalo na siyang gamitin ngayon. Yung recent decisions ng SC, assuming sumunod sa protocols, DNA testing is 99.99%.
With the recent decisions of SC, pwede na pala. Tama ang decision na yan.

16. If the husband resides in the country where the birth took place or was recorded, the action to impugn the legitimacy of the child shall be brought within:
    a. 1 year from knowledge of the birth or its recording in the civil register
    b. 2 years from knowledge of the birth or recording in the civil register
    c. 3 years from knowledge of the birth or recording in the civil register
    d. 4 years from knowledge of the birth or recording in the civil register
    e. none of the above

**BASIS: E.**

**ARTICLE 170.** The action to impugn the legitimacy of the child shall be brought within one year from the knowledge of the birth or its recording in the civil register, if the husband or, in a proper case, any of his heirs, should reside in the city or municipality where the birth took place or was recorded.
If the husband or, in his default, all of his heirs do not reside at the place of birth as defined in the first paragraph or where it was recorded, the period shall be two years if they should reside in the Philippines; and three years if abroad. If the birth of the child has been concealed from or was unknown to the husband or his heirs, the period shall be counted from the discovery or knowledge of the birth of the child or of the fact of registration of said birth, whichever is earlier.

**APPLICATION:**

**DISCUSSION:**
**AB:** B as provided in Art. 170 if the husband if the husband does not reside in the municipality but within then it should be within

C: Ms. Buergo's basis only applies if they do not reside and only then the period be 2 yrs but if it is within the place it is within 1 yr so the correct
4 years → if may fraud, concealment etc.

Correct answer: E.

17. The consent of the following is required, except:
    a. adoptee, if 10 years old or over
    b. biological parents of adoptee, if known
    c. spouse of adopter
    d. parents of adopter
    e. all of the above
    f. none of the above

**BASIS: D. Not provided in the law. Consent needed are only:**

1. The adoptee, if ten (10)-years of age or over
2. The biological parent(s) of the child, if known, or the legal guardian, or the proper government instrumentality which has legal custody of the child;
3. The legitimate and adopted sons/daughters, ten (10)-years of age or over, of the adopter(s) and adoptee, if any;
4. The illegitimate sons/daughters, ten (10)-years of age or over, of the adopter if living with said adopter and the latter's spouse, if any; and
5. The spouse, if any, of the person adopting or to be adopted.

**APPLICATION:** There is no such requirement under RA 11642 Sec. 23e.

**DISCUSSION:**
It is not A because consent of the adoptee if 10 years older is required.
**SIR:** in the first place, why would the law require the consent of the biological parents, spouse of the adopter?

**AB:** They would be the ones who will be affected by the adoption.
**SIR**: ordinarily, ang tao will adopt why?
**AB:** No kids
**SIR:** pag walang anak at namatay, at least intestate succession, sino ang magmamana?
**AB:** parents.
**SIR:** ***Bakit di kailangan ang consent ng parents?*** The consent of the parents are not required. But maybe as matter of policy, baka kailangan ng consent ng parents. BUT ang point is more important in Domestic Administrative Adoption. Sa letter of the law, magmamana na ang adoptee sa parents of adopter. Pero walang kailangan ng consent sa parents tapos magmamana na sa kanila?

18. The following are necessary for a Filipino to be able to adopt, EXCEPT:
    a. of legal age
    b. of good moral character
    c. has not been convicted of any crime involving moral turpitude
    d. emotionally and psychologically capable of caring for children
    e. none of the above

**BASIS: A**
**8552. Pwede any of legal age sa 11642 lang na dapat 25 and above**

1. who is in possession of full civil capacity and legal rights;
2. has not been convicted of **any crime involving moral turpitude**;
3. is of **good moral characte**r and can model the same;
4. is **emotionally and psychologically capable of caring for children**;
5. at least sixteen (16) years older than the adoptee; and
    - **MAY BE WAIVED:** if BIOLOGICAL PARENT or SPOUSE
6. who is in a position to support and care for adopted children in keeping with the means of the family

**DISCUSSION:**
In the recent law, the age is 25 yrs.

19. In case of adoption, husband and wife shall exercise joint parental authority in the following cases, except:
a. if husband and wife jointly adopt
b. one spouse adopts the illegitimate child of the other
c. one spouse seeks to adopt his own illegitimate child
d. all of the above
e. none of the above

**BASIS: C. Provision.** Article 185. Husband and wife must jointly adopt, except in the following cases:

(1) When one spouse seeks to adopt his own illegitimate child; or

(2) When one spouse seeks to adopt the legitimate child of the other. (29a, EO 91 and PD 603) – [***RA 8552 and 11642 added that the consent of the spouse is needed***]

Article 186. In case husband and wife jointly adopt or one spouse adopts the legitimate child of the other, joint parental authority shall be exercised by the spouses in accordance with this Code. (29a, EO and PD 603)

**DISCUSSION**
The law only requires the consent of other spouse his or her illegitimate child.
**SIR:** ***If only one of the spouses is the petitioner, is it possible that the spouses will have joint parental authority over the adoptee?***
AB: Yes. there could be a case that you are adopting the child of your spouse.
SIR: When will the spouses have joint authority when only 1 of them is the petitioner for adoption?
AB: If the spouse also adopts the legitimate child of the other spouse.
**SIR:** ***Aside from that scenario, any other scenario where a petition for adoption will prosper even if the spouses did not jointly filed a petition?***
AB: If the spouses are legally separated.
SIR: Any other? Alamin niyo ang exemptions.

20. The following are necessary for an alien to be able to adopt, EXCEPT:
a. in a position to support and care for his children
b. of good moral character
c. has not been convicted of any crime involving moral turpitude
d. emotionally and psychologically capable of caring for children
e. none of the above

**BASIS: E. None of the above.**
**FOREIGNERS MAY ADOPT:**
1. That he or she has the same qualifications for Filipino nationals as provided in par. (a), Sec. 7(a), of the RA 8552 **[see #18's enumeration]**;
2. That his or her country has diplomatic relations with the Republic of the Philippines;
3. That he or she has been living in the Philippines for at least three (3) continuoUS years prior to the filing of the application for adoption and maintains such residence until the adoption decree is entered;
4. That he or she has been certified by his or her diplomatic or consular office or any appropriate government agency that he or she has the legal capacity to adopt in his or her country; and
5. That his or her government allows the adopted child to enter his or her country as his or her adopted child. (Sec. 7 (b), Rep. Act 8552)

| SLIDE | EXPLANATION |
|---|---|
| In 2021, Jesse and Celeste got married. After a year, Jesse took all their savings and abandoned Celeste for his paramour Diana. Jesse asked Diana to quit her job. Diana hesitated because she has no money and is drowning in debts. Yet, Jesse promised to provide for all of Diana's needs. Jesse and Diana then lived together. The following day, Jesse and Diana bought a brand-new car. The vehicle was exclusively registered under Diana's name. Celeste learned of the purchase and filed an action to recover the vehicle from Diana. Celeste claimed that Jesse is still her lawful husband, and that the car is part of their community property. Diana countered that she and Jesse are co-owners of the vehicle. **Can Celeste recover the vehicle from Diana? Explain.** | **ANS:** Celeste can cover the vehicle from Diana.<br>L: Celeste can recover as provided for in Art. 148 governing two (2) people with legal impediment to marry each other. In the said article it says that any of the property acquired by the parties will be own by them if there is actual joint contribution. |

| | |
|---|---|
| | SIR: you claimed that this property, the car, is part of the community property. ***What is the basis?***<br><br>L: It is in the facts. It is a factual matter.<br>**S:** May basis in fact and in law. Pero ang basis mo ang pera yun ay galing lang sa lalaki na walang contribution to si Diana. When you discuss or argue your answer, you should support your claims like the money used was the salary only of the husband maybe because from the facts that Diana has no money and she is drowning in debts.<br><br>***S: Would it matter if Celeste (Diana, kasi sa sagot ni sir paramour daw) contributed in the maintaining the home?***<br>L: NO, Celeste's contribution would not matter.<br>S: Hindi pwedeng puro conclusion.<br>L: Since Celeste and Jess are both married under the FC it is presumed that their PR is ACP so everything brought during the marriage is deemed to be part of the ACP.<br>S: Question is not about the regime. The question is about the paramour. Baka sya ang taga-luto and tagalaba, would that entitle her to ½?<br>S: NO, Art. 148 contribution by way of maintenance of the household does not matter. It is only available if it would fall under 147.<br><br>**Q:** ***Thus, L if the marriage is void then would 147 or 148 or ACP or CPG will*** |

| | |
|---|---|
| | ***govern?***<br>N: If the marriage is void, it will depend if 147 or 148 is applicable. 147 applicable are cohabiting with each other if no legal impediment to marry. 148 if there is impediment both man and woman.<br>SIR: ***If the spouses are first cousins then it will be 147 or 148?***<br>L: 147 capacitated to each other but the marriage is void. In this case, the marriage is void due to public policy then 147 should apply.<br><br>**SIR:** The rule of thumb to guide you: if one of them or both of them is or are married to other persons, in other persons, 3rd person will be affected by cohabitation or marriage (bigamous marriage or adulterous in character) 148 will apply. All other grounds that will make a marriage void, as long as no 3rd person will be affected, 147 will apply.<br><br>**Q:** ***In 147, as far as salaries and wages are concerned, this will be shared proportionately?***<br>L: Equal shares under Art. 147.<br><br>**Q:** ***Regardless of actual monetary contribution?***<br>L: YES.<br><br>**Q:** ***kahit yung asawa nagsusugal lang araw araw at gabi-gabi?***<br>**SIR:** yes it does not matter. However as to the property that may be acquired during this cohabitation or marriage |

| | |
|---|---|
| | (void), while rules on co-ownership will apply, so if there is no proof then equal share if there is proof on contribution it will follow. EXC if the contribution is for the maintenance of the household or family, she or he can claim 50% of the property during cohabitation. THIS IS NOT APPLICABLE TO 148. |

## Paternity and Filiation

**SITUATION:** If the child was born AFTER the declaration of nullity of the marriage, the child is an illegitimate child
**P:** Not necessarily illegitimate.
If the question does not point to you a specific conclusion, baka it depends. IE: What is the status of the marriage? But "is the marriage void?" not necessarily.
**SIR:** When you said no, you mean it is possible that the child may be a legitimate child. When?
**AB:** Art. 36 (psychological incapacity) the child is legitimate.
C: The child may be considered a legitimate child even if the child born after the declaration of nullity of the marriage. IF the child was conceived before the said nullity of the marriage became final and executory. (Art. 54 FC)

- ARTICLE 54 FC. Children conceived or born before the judgment of annulment or absolute nullity of the marriage under Article 36 has become final and executory shall be considered legitimate. Children conceived or born of the subsequent marriage under Article 53 shall likewise be legitimate.

Another case would also be Art. 53 where in children conceived or born under Art. 53.
**SIR:** In other words, if the marriage was declared void on the ground that there was no valid marriage license and the child was conceived before the finality of this judgment although he was born before the finality of the judgment declaring the marriage void. What is the status?
C: Legitimate
T: Do not agree.
***SIR: Who is correct?***
**SIR:** Di ka consistent C. para lang sa Art. 36 and 52 ang sagot mo as provided by Art. 54. In all other grounds of nullity, dapat illegitimate child siya. In fact if void if marriage, dapat void lahat ang anak. Ngayon wala eh. Kahit void ang marriage pwede legitimate by way of exception on those 2 grounds lang. Sa other grounds, illegitimate kasi void ang marriage.

## Family and Family Home

**SITUATION: If A filed an action for a sum of money against X and Y, X being the father of A, and X and Y claimed that this action should be dismissed that there is no allegation in the complaint that honest earnest to compromise is asserted, is that contention amenable?**
**C:** It is tenable. The family relation here is X and A. No family relations with A and Y. Earnest to compromise.
**SIR:** Did I mention that Y is not a mother of A?
**C:** Hindi.
**SIR:** Wala akong sinabing relationship ni Y and A. assuming that Y is the mother of A. Is the contention tenable?
**C:** YEs. Art. 151.
**T:** I agree.
**D:** GEN. RULE: No suit between members of the same family shall prosper
EXC: unless it should appear from the verified complaint or petition that earnest efforts toward a compromise have been made, but that the same have failed.
If it is shown that no such efforts [compromise] were in fact made, the same case must be dismissed.
This rules shall not apply to cases which may not be the subject of compromise under the Civil Code.
C: For Action of support.

**SITUATION**: X and Y is the parents of A. A married to B. XY invited AB to construct their house in a parcel of land owned by XY which is near the house of XY. they did construct the house on that parcel of land. Later on, there was a judgment against AB. Thereafter, they were not able to pay, the house and lot were levied upon. AB claimed that levy was not valid because it is their family home. ***Is this claim tenable?***
C: Depends if the lot was owned by XY.
SIR: nasa facts naman na lot was owned by XY.
C: in order for it to be family owned, the land must be owned by AB who claims that

such is their family home.
SIR: It is is not possible that the family home may be constituted if the person constitutional such, is not the owner of the family home?
C: Conditional sale.
SIR: In order for the spouse to claim that this is family home, they must own both the house and the lot?
C: YES. Basis: Article 152. The family home, constituted jointly by the husband and the wife or by an unmarried head of the daily, is the dwelling house where they and their family reside, and the land on which it is situated.
SIR: So the house and the land. So di na family home and house? Walang logic di ba.
**Purpose of the family home:** Serve as the dwelling of the family.
**C:** Residence and where they will build their family life.
SIR: Where they can rest and sleep. ***Ilan sa tingin mo ang may lupa sa Pilipinas?***
C: Less than half of the population.
SIR: Ang optimistic mo naman. In cities like in Metro Manila, ang mga residence nila ay condo, tenant. They do not own the land where the condo is constructed. ***So they cannot own their family home?*** Kahit dwelling house can be constituted as family home by itself. Moreso for the purpose of the law.

**SITUATION:** XY who constitute this H and L as family home. Their children A, married to B but AB had to work in Metro Manila. The house is in the province. They left their 5 year old child with XY. What if XY died via accident, this family home may remain as such until when?
**C:** 10 years as long as there are minor beneficiaries.
**T:** Until the minor becomes an adult.
**SIR:** So ilang years?
**T:** 13 years due to the facts.
**SIR:** the premise of the answer is the child is a beneficiary. The 5 year old child is a beneficiary?
**C:** No. because it was not established.
**SIR:** There was no basis on the facts. Pero mukhang mali ka. Kasi parents niya ay nagtatrabaho sa metro manila. IRL, itong mag-asawa na to nagpapadala to kay XY para alagaan ang anak nila. This child is not a beneficiary because he is not relying for the grandparents for support. He is only living in the family home.

## FILIATION

BAR EXAM Q: Although na prove nya because of a DNA test na hindi nya child pero pina-annull nya lang ang kasal sa asawa nya. Ano ang status?
Legitimate. Kasi wala namang impugn and ginamit ang DNA test (scientific reasons).

**GROUNDS:**

**WHO CAN IMPUGN:** Eto ang nagging tanong last year
After the death of the putative father, heirs pwede kasi maapektuhan ang kanilang shares kasi dagdag if may makikidagdag pero during the lifetime of the putative father the cases before yap v. yap the SC consistently ruled that only the husband (putative father) can constitute the impugnation.
But if you read the case of Yap, the only reason why only the husband can impugn is because it would affect the reputation of the husband.
SIR: I do not agree just because reputation eh if totoo namang anak sya ni Lucio Tan edi pwedeng iprove na hindi talaga sya anak ng tatay nya. Masakit nga naman malaman ang katotohanan, truth should prevail (wow). Shala telenobela pala ang gusto ni Sir.
Nagbabago talaga ang mundo, in Yap v. Yap even the child himself can impugn the paternity of the husband of his mother. Which I think is a good rulimng. Tama lang yan kasi if di nya naman talaga tatay bakit di sya pwedeng mag impugn.

11642:
Most important is nature of proceeding – administrative cf 8552

- Di na siya judicial. Administrative na siya.
- SUBSTANCE:
    - Edad → 18 sa 8552? Eh di pa nga kumikita yung taong yun eh. So tama na 25.
    - Aliens → before, the requirement is 3 years residency requirement. BUT pareho pa rin ang instances where that requirement will be waived.
        - Former Filipino citizen adopting a relative within 4th civil degree.
    - Age difference is the same.

**JOINT PETITION** → may exemptions

- Biological parent who is adopting the illegitimate child.

## LEGITIMATION

What is important is at the time of the conception not conception and birth – no legal impediment to marry.
AGE is not legal impediment but capacity so if ang mga parents are 16 yrs old and thereafter when 18 nagpakasal, may the child be legitimated? Of course being less than 18 is not a legal impediment so long as the marriage is a valid marriage

## ADOPTION

1. You should realize na 6 times na nagtumbling ang batas even the CC nagkaroon ng PD 603 and FC and 8552, 8043, and 11642 → these are different they have different provisions and requirements and qualifications required.
2. As I mentioned a while ago, the tamang decisions – the law that shall govern is the law governing at the time the petition is filed kasi nga nag apply ka kasi qualified ka. Paano mo ma-encourage ang pagfile ng domestic adoption.
3. 8552 – 18 pwede na but under 11642 hindi na pwede kasi 25 na
4. NOTE: It is possible in a case, the adoption took place in 1982 kaso ngayon lang nagkaproblem kasi sa mamanahin. The law governing is the law at the time the adoption is filed so hindi totoo na aaralin lang ang batas ngayon.

**Next meeting: Quiz next meeting.**
**Recitation: up to Kinds of succession for recitation.**
**Midterms → might be moved. After October 9.**

**DO NOT WRITE ANYTHING BELOW THIS.**

# QUIZ 6

1. The right of representation is a right by virtue of which, when two or more persons are called to the same inheritance, devise or legacy, the part assigned to the one who renounces or cannot receive his share, or who died before the testator, is added or incorporated to that of his co-heirs, co-devisees, or co-legatees.

**ANS: FALSE**

**LEGAL BASIS: Article 970.** Representation is a right created by fiction of law, by virtue of which the representative is raised to the place and the degree of the person represented, and acquires the rights which the latter would have if he were living or if he could have inherited. (942a)

**APPLICATION: It is not the right of representation but the process of representation itself which was defined here.**

**DISCUSSION:**
Right of representation is subject matter only. Ang mali is a right by virtue of which kasi ito ang mali. Ang premise ng isang rule unless misleading, walang mali sa subject matter.
This sentence is about accretion.

2. The validity of a will depends upon the observance of the law in force at the time of its execution.

**ANS: FALSE**

**LEGAL BASIS: 795.** The validity of a will **as to its form** depends upon the observance of the law in force at the time it is made. (n)

Art. 16 (2). However, intestate and testamentary successions, both with respect to the order of succession and to the amount of successional rights and to the intrinsic validity of testamentary provisions, shall be regulated by the national law of the person whose succession is under consideration, whatever may be the nature of the property and regardless of the country wherein said property may be found. (10a)

ARTICLE 1039. Capacity to succeed is governed by the law of the nation of the decedent. (n)

**APPLICATION. This pertains to form of the will.**

**DISCUSSION:**
**T:** This is false because the validity of the will pertains to its form only.
SIR: this rule is not applicable to what?
V: It should be the extrinsic validity depends on the law in force at time of execution.
SIR: your explanation: the extrinsic validity does not depend on the observance of the law in force but rather
P: Extrinsic validity does not depend but rather it is extrinsic or formal validity depend on where will was executed.
C: Extrinsic validity but at the time it was made.
SIR: Rather it will depend on the force at the time of the death.

LAW APPLY: Article 2263. Rights to the inheritance of a person who died, with or without a will, before the effectivity of this Code, shall be governed by the Civil Code of 1889, by other previous laws, and by the Rules of Court. The inheritance of those who, with or without a will, die after the beginning of the effectivity of this Code, shall be adjudicated and distributed in accordance with this new body of laws and by the Rules of Court; but the testamentary provisions shall be carried out insofar as they may be permitted by this Code. Therefore, legitimes, betterments, legacies and bequests shall be respected; however, their amount shall be reduced if in no other manner can every compulsory heir be given his full share according to this Code. (Rule 12a)

3. Substitution of heir is an act by virtue of which a testator designates in his will the person or persons who are to succeed him in his property and transmissible rights and obligations.

**ANS:FALSE**

**LEGAL BASIS: Article 840. Institution of heir** is an act by virtue of which a testator designates in his will the person or persons who are to succeed him in his property and transmissible rights and obligations. (n)

**APPLICATION: This pertains to institution of an heir. Substitution is is the appointment of another heir so that he may enter into the inheritance in default of the heir originally instituted (Art. 857)**

**DISCUSSION:**
**T: False** because substitution is the appointment of another heir originally instituted.
SIR: this sentence pertains not ot substitution but institution.

4. Legatees and devisees are persons who inherit real and personal property, respectively, given by virtue of a will.

**ANS: FALSE.**

**LEGAL BASIS: 782. Devisees** and **legatees** are persons to whom gifts of **real** and **personal** property are respectively

**APPLICATION: Wrong because of the term "respectively"**
**Legatees → gift of personal property.**
**Devisees → gift of real property**

**DISCUSSION:**
- False because it only says that they are given by a virtue of a will but in the law they can be given through operation of law.
- "gifts " of real and personal property.
- The provisions states that they are persons whom gifts are personally given – not inherit.
- **GIFT** → requires positive act to give
- Inherit → automatic/by will.

**SIR:** Just because legatee or devisee does not necessarily mean that he will inherit. Basta binigyan siya, legatee/devisee siya. Di porket legatee or devisee siya, inherit na yun

***Why need to know if the disposition or legatee or devisee?*** What will the executor or assignor will gift to him whether personal or real property.
V: The rules governing personal or real property or legatee or devisees will be different.
**SIR:** Concretely, if the testator in the will stated that, "I hereby gift 1 hec of apprised riceland to A" ***is this a valid testamentary disposition?"***
V: Yes
SIR: You have to know if legacy or devise kasi magkaiba ang rule, if generic device – if may generic thing sa estate. legacy kasi kahit wala sa estate yung pera pwede pa rin ibigay.

5. If the attestation clause is in a language not known to the witnesses, the will is void.

**ANS: FALSE**

**LEGAL BASIS: 805. Last par.** If the **attestation clause** is **in a language not known to the witnesses**, it shall be interpreted to them. (n)

**APPLICATION: Attestation is not an act of the testator but of the witnesses. The will shall be valid and the attestation clause must be interpreted to the witness.**

**DISCUSSION:**
T: If the attestation clause is not known to the witnesses does not render the will void, the law requires that it should be read and explained to the witnesses.
P: I do not agree. Rather it should be interpreted.
**SIR:** Malayo ang interpreted sa read and explain e.g. if Chinese i-read nya in

Chinese, interpretation is just translation kung anong ibig nyang sabihin that is another matter.

- STICK to the LAW. Hindi kailangan explain.

6. Every will must be acknowledged before a notary public by the testator and the witnesses, in the presence of each other.

**ANS: FALSE.**

**LEGAL BASIS: 806.** Every will must be acknowledged before a notary public by the:

1. testator and the
2. witnesses.

The notary public shall not be required to:

1. retain a copy of the will, or
2. file another with the office of the Clerk of Court. (n)

805, par. 1. Every will, **other than a holographic will**, must be subscribed at the end thereof by the testator himself or by the testator's name written by some other person in his presence, and by his express direction, and attested and subscribed by three or more credible witnesses

1. **in the presence of the testator and of one another**.

**APPLICATION. The provision does not include the phrase "in the presence of each other" the notarial will may be acknowledged before the notary public by the testator and witnesses even if they are not all present or in the presence of each other.**

**DISCUSSION:**
T: Holographic will must not be acknowledged.
SIR: if you listen to their answer, ***if I modify the question to "every notarial will" then it will be true?***
R: even if the will is notarial will then it does not follow that the acknowledgement before the notary republic must be in the presence of each other.
SIR: It is not that it "does not follow" Dapat "the law does not require".

7. Full blood relationship is that existing between persons who have legitimate relations.

**ANS: FALSE**

**LEGAL BASIS: 967. Full blood** relationship is that existing between persons who have **the same father and the same mother**.

**APPLICATION:**

**DISCUSSION:**
**SIR:** The statement is not about full blood relationship. Di ba pwede na pag hindi full blood relationship, illegitimate ang relationship?
D: Being in legitimate relations they are full blood relations.
**SIR:** ang full blood ba is existing between legitimate realtions?
R: False. Full blood relationship does not mean that the persons who have legitimate relations.
***Full blood relationship ano tawag sa kanila?*** Siblings.
Full blood Magkapatid pero illegitimate ang relation → if in one is conceived during the marriage and the other was born after the nullity of the marriage.
**SIR:** dati valid ang marriage tapos naging void. ***Pwede ba to?***
H: Art. 36 then it was declared null and void and they had sex again, after the declaration of nullity then they had a son. One of them was conceived before the declaration of nullity and yung isa conceived **after the finality of judgment of declaration of nullity.**

8. Preterition is the omission of an heir in the will.

**ANS: FALSE**

**LEGAL BASIS: 854.** The preterition or omission of one, some, or all of the compulsory heirs in the direct line, whether living at the time of the execution of the will or born after the death of the testator, shall annul the institution of heir.

**Not sure of the basis but it is the INHERITANCE and not the WILL alone**

**APPLICATION: for preterition to be in effect, it must be a "compulsory heir" in the direct line. In here, the question only states heir so it can be voluntary, legal etc. it must be compulsory heir in the direct line.**

**DISCUSSION:**
P: Omission from the will but rather omission from the inheritance.
Sir: if the heir is omitted from the will, he may not be preterited. Kelan?
D: He may not be preterited if he is not named in the will or if he modified the will.
SIR: eh wala nga eh.
SIR: there will never be preterition if there is no will.

9. The child of the brother of the *praepositus* may inherit by right of representation.

**ANS: TRUE**

**LEGAL BASIS: Article 891. The ascendant who inherits from his descendant any property which the latter may have acquired by gratuitous title from another ascendant, or a brother or sister, is obliged to reserve such property as he may have acquired by operation of law for the benefit of relatives who are within the third degree and who belong to the line from which said property came. (871)**

**APPLICATION: In succession, the right of representation in the collateral line extends to the brothers and sisters.**

**DISCUSSION:**
**P: 975.** The children of the brother of the deceased, they can inherit under 975.
SIR: The question is about reserva troncal. ***What is this provision got to do on reserva troncal?***
D: Reserva troncal happens if the praepositus has no heir aside from the ascendant. That property will go the ascendant.
**SIR:** Di totoo yan. Ang mga reservarios pwede kahit saan: ascendant, descendant, collateral. It does not matter.
SIR: in other words, sino ang pwede ang maging reservatario?
H: the child of the brother is 3 degrees.

SIR: may right ba of representation in the collateral line. In Art. 972.
Article 972. The right of representation takes place in the direct descending line, but never in the ascending.
In the collateral line, it takes place only in favor of the children of brothers or sisters, whether they be of the full or half blood.

10. No one can validly dispose by will of all his estate.

**ANS: FALSE**

**LEGAL BASIS: 842** One who has no compulsory heirs may dispose **by will of ALL his estate or any part of it** in favor of any person having capacity to succeed.

**APPLICATION:**

**DISCUSSION:**
**FALSE.**
**Sir:** ***What if the testator, gave his entire estate to his neighbor?***
It depends if the testator has compulsory heirs, if the testator leaves no compulsory heirs, he can give ALL.
If the testator is
Just because there are compulsory heirs, the disposition will be void.
**SIR:** If may compulsory heirs pero disinheritance or incapacitated ang answer, then mas tama.

11. The following heirs can be preterited, except:
    a. a legatee
    b. a parent
    c. a legitimate daughter
    d. an illegitimate son
    e. a grandparent

**ANS: A. Legatee**

**LEGAL BASIS: Article 854.** The preterition or omission of one, some, or all of the compulsory heirs in the direct line, whether living at the time of the execution of the will or born after the death of the testator, shall annul the institution of heir; **but the devises and legacies shall be valid insofar as they are not inofficious.**

**APPLICATION:** A legatee was given an inheritance. A preterition is the omission of the compulsory heir from the direct line of the inheritance

The compulsory heir omitted must be of the direct line.

**DISCUSSION:**
The preterited person is a compulsory heir in the direct line. Legatee may not be from a direct line.
H: Preterition applies only to the compulsory heir. Legatee can be anyone.
**SIR:** are you saying that a compulsory heir in the direct line cannot be a legatee? So kung pwede siya baka di siya pwede mapreterited. ***What is a much better answer?***
SIR: You should know what is preterition. It is not about that he is not an heir at the direct line. It is about the nature of preterition. A legatee is not preterited.
***Omission by definition, kung binigyan ba s'ya, omitted ba sya?*** DIBA HINDI (see application that is the answer)

12. X, a citizen of France but a permanent resident of Canada, suffered a heart attack and died in Japan while attending a conference. He was survived by his wife, an American citizen, his parents, a sister and two children who are both Filipino citizens. He left properties in the Philippines and in France. He left a will which he executed in London. The capacity of his children to succeed shall be governed by the (a) British law (b) law of Japan (c) law of Canada (d) Philippine law (e) French law.

**ANS: E.**

**LEGAL BASIS: 1039.** Capacity to succeed is governed by the law of the nation of the decedent. (n)

13. The extrinsic validity of the will of X, a Filipino but a permanent resident of Canada, shall be governed by the
    (a) law of the country where the will was executed
    (b) law of the country where the decedent died
    (c) the law of the country where the decedent was a resident at the time of his death
    (d) national law of the heir
    (e) law of the country where the properties of the decedent are located.

**ANS: A. law of the country where the will was executed**

**LEGAL BASIS: Article 17.** The forms and solemnities of contracts, wills, and other public instruments shall be governed by the laws of the country in which they are executed.

Article 815. When a Filipino is in a foreign country, he is authorized to make a will in any of the forms established by the law of the country in which he may be. Such will may be probated in the Philippines. (n)

**APPLICATION: Art. 815. It is the law of the place where the decedent may be?**

**DISCUSSION:**
**Sir:** if the will is not in accordance with the country where it was executed as to extrinsic validity, ***what will be the status of the will?***
D: depends if he executed it in the laws of the PH. Basis will Art. 17.
**SIR:** Art. 15 is tungkol sa kasal, status, and capacity
**H:** It can still be valid provided that we still follow the nationality principle under Article 17. The forms and solemnities of contracts, wills, and other public instruments shall be governed by the laws of the country in which they are executed.
C: Article 816. The will of an alien who is abroad produces effect in the Philippines if made with the **formalities prescribed by the law of the place in which he resides,** or **according to the formalities observed in his country,** or **in conformity with those which this Code** prescribes. (n)
With that the last clause would mean that the PH law as a national law of the decedent may still be applicable.
SIR: on its face, 816 is not applicable. Kasi alien nakalagay sa 816. 815 is lex loci celebrationis. This is consistent with Art. 17. Di yan national law. Di yan PH law kasi Filipino siya.
**Y**: No provision on the CC to apply PH law on the Filipino law. Because we have Art. 816 which allow aliens to have their extrinsic validity to be proved here, we can apply same principle.
SIR: di nga probate ang issue. Ang issue is *in accordance with what law*? Whether maproprobate sa PH or hindi, nakadepende sa law na yan. Ang tanong lang, nasa validity. Sa probate, marami kang titingnan. Yung law importante para malaman mo kung ano ang requisites for the probate. In other words, if you read the annotations here, baka tama ang sagot ni Y. even without provision granting the Filipinos to execute their wills in PH law. Eh sa alien nga pwede nga sa national law nila so di naman mas nakakaangat ang aliens sa Pilipino.

14. X, a French national but a permanent resident of Canada, suffered a heart attack and died in Japan while attending a conference. He was survived by his wife, his parents, a sister and two children. He left properties in the Philippines and in Germany. He left a will which he executed in Tacloban City. The will of X may not be probated if it was executed in accordance with the
(a) Philippine law (b) law of France (c) law of Canada (d) None of the above.

**ANS: C. Law of canada**

**LEGAL BASIS: 16 (2).** Real property as well as personal property is subject to the law of the country where it is situated.

However, intestate and testamentary successions, both with respect to the order of succession and to the amount of successional rights and to the intrinsic validity of testamentary provisions, shall be regulated by the national law of the person whose succession is under consideration, whatever may be the nature of the property and regardless of the country wherein said property may be found. (10a)

**Article 17.** The forms and solemnities of contracts, wills, and other public instruments shall be governed by the laws of the country in which they are executed.

**Article 1039.** Capacity to succeed is governed by the law of the nation of the decedent. (n)

**APPLICATION. The will may be probated if it was executed in the Philippines and in accordance with PH law. Art. 17 also states that extrinsic validity of the will is governed on where it was executed. This may also be probated if it was in accordance with the law of France since it is in the national law of the decedent. It cannot be probated in Canada because residency is not part of the option? Huhu**

**DISCUSSION:**
D: None of the above. An alien can execute by the place of where he resides or in conformity of which the Civil Code provides. ICAB, the will executed in the PH and by virtue of Art. 17, it can be probated. Law of France – nationality, and Canadian law because it was his permanent residence.

**SIR:** Why would a foreigner have his will probated in the PH?
**D:** He has heirs or properties in the country.
**R:** The will may be probated in the PH precisely because he has heirs in the PH.
**S:** Different ex
**SIR:** A will of a foreigner will have to be probated in this country if he has relatives in the PH.
**H:** Not necessarily
**SIR:** dapat hindi. Who cares kung ilang relatives pero kung wala kang property. Wala kang maprobate if wala kang i-dispose here. The basis of a probate of a will is the distribution of properties.

**R:** I do not agree. Law of Canada because under the PH law, formalities prescribed by an alien's country of residence does not enable a will to become valid and produce effect in the PH.
**S:** 817. Law of the Philippines and the nationality of the decedent
816 would apply if ang will na-execute sa abroad.

15. The compulsory heirs of X, a Filipino, are, except
(a) his surviving spouse
(b) illegitimate child
(c) his grandchild by a legitimate son
(d) brother
(e) legitimate daughter

**ANS: D.**
**LEGAL BASIS:** ARTICLE 887. The following are compulsory heirs:
(1) Legitimate children and descendants, with respect to their legitimate parents and ascendants;
(2) In default of the foregoing, legitimate parents and ascendants, with respect to their legitimate children and descendants;
(3) The widow or widower;
(4) Acknowledged natural children, and natural children by legal fiction;
(5) Other illegitimate children referred to in article 287.

**D – 964. Par. 2.** A **COLLATERAL** line is that constituted by the series of degrees among persons who are not ascendants and descendants, but who come from a common ancestor. (916a)

**APPLICATION:**

**DISCUSSION:**
SIR: If a person is 6 degrees removed from the decedent, ***compulsory heir ba siya?***

D: No. compulsory heirs are enumerated in the NCC. (See. 887)
R: I disagree because the question if relatives who are 6 degrees removed are compulsory heirs, the applicability of the 5th degree limit is legal heirs. For compulsory heirs, they are enumerated in 887.
H: 887 is an exclusive list. And 6 degrees are not included in this list.
**SIR**: depende kung collateral line or direct line. Sa direct line, tama ang batas ni D. legitimate children and descendants. ***Kaya meron bang limit sa degrees pagdating sa direct line?*** **WALA** basta legitimate descendant or ascendant siya, compulsory heir siya. Whether or not magmamana sya, ibang usapin yun.
SIR: ***May there be a compulsory heir who is a relative of that person in the collateral line?***
D: No.
R: I agree. There are no relatives in the collateral line.
H: Spouses are to be considered.
SIR: The spouse is more than 4 degrees in the collateral line. Kung 3 or 4 degrees siya, di siya compulsory heir. ***Bakit hindi?***
**S: Void ang marriage** under Art. 38, FC within the 4th civil degree

16. A is the legal heir of X, a Filipino, if A is:
(a) the cousin of his grandmother
(b) the grandchild of a first cousin
(c) first cousin of the mother of X
(d) All of the above
(e) None of the above

**ANS: C. first cousin of the mother of X**

**LEGAL BASIS: Article 1010. The right to inherit ab intestato shall not extend beyond the fifth degree of relationship in the collateral line. (955a)**

**APPLICATION:** The legal heirs in the collateral line is up to 5 civil degrees.

Therefore, the first cousin of the mother of X is exactly in the 5th degree.

**DISCUSSION:**
H: failed to consider of relationship.
Sir: tama ang batas na within the 5th civil degree.
A → 6 degrees - First cousin is 4 degrees. Plus 2 edi 6.
B → 6 degrees - 4 degrees from your mother plus 2 edi 6.

17. This is a kind of substitution where the second heir may inherit even if the heir originally instituted is not in default.
    a. Simple
    b. Brief
    c. Reciprocal
    d. Fideicommissary
    e. None of the above

**ANS: D.**

**LEGAL BASIS: 863.** A **fideicommissary** substitution by virtue of which the fiduciary or first heir instituted is entrusted
1. with the obligation to preserve and
2. to transmit to a second heir the whole or part of the inheritance,

shall be valid and shall take effect.

**APPLICATION:**

**DISCUSSION:**
**SIR:** Fiduciary will inherit? Kasi not in default?
**SIR:** Ang first heir ay nagmamana pero he does not acquire ownership over the estate or the property in that estate. He only acquires the rights of the usufructuary.

18. A was one of the four witnesses to the execution of the will of X. In the will, X gave a car to A. Which of the following is correct?
    (a) The legacy is void
    (b) The will is void
    (c) A cannot be considered as a competent witness
    (d) All of the above
    (e) None of the above

**ANS: E. None of the above.**

**LEGAL BASIS: Article 823.** If a person attests the execution of a will, to whom or to whose spouse, or parent, or child, a devise or legacy is given by such will, such devise or legacy shall, so far only as concerns such person, or spouse, or parent, or child of such person, or any one claiming under such person or spouse, or parent, or child, be void, **unless there are three other competent witnesses to such will**. However, such person so attesting shall be admitted as a witness as if such devise or legacy had not been made or given. (n)

Article 1027. The following are incapable of succeeding:
(1) The priest who heard the confession of the testator during his last illness, or the minister of the gospel who extended spiritual aid to him during the same period;
(2) The relatives of such priest or minister of the gospel within the fourth degree, the church, order, chapter, community, organization, or institution to which such priest or minister may belong;
(3) A guardian with respect to testamentary dispositions given by a ward in his favor before the final accounts of the guardianship have been approved, even if the testator should die after the approval thereof; nevertheless, any provision made by the ward in favor of the guardian when the latter is his ascendant, descendant, brother, sister, or spouse, shall be valid;
**(4) Any attesting witness to the execution of a will, the spouse, parents, or children, or any one claiming under such witness, spouse, parents, or children;**
(5) Any physician, surgeon, nurse, health officer or druggist who took care of the testator during his last illness;
(6) Individuals, associations and corporations not permitted by law to inherit. (745, 752, 753, 754a)

**APPLICATION**
It is not A because the legacy will not be void if there are 3 more more competent witnesses therefore Art. 1027 cannot apply.

DISCUSSION:
Why not A?
R: the legacy cannot be rendered void because the law requires is if the person is a witness and a device or legacy is given to him it shall be void. UNLESS there are other competent witnesses to such will. Since there are 4 witnesses, the legacy is valid.

19. In fideicommissary substitution, the fiduciary :
    a. is one degree from the testator
    b. is within two degrees from the testator
    c. is within three degrees from the testator
    d. is within five degrees from the testator
    e. need not be related by consanguinity to the testator

**ANS: E. Need not be related by consanguinity to the testator.**

**LEGAL BASIS: Article 863.** A fideicommissary substitution by virtue of which the fiduciary or first heir instituted is entrusted with the obligation to preserve and to transmit to a second heir the whole or part of the inheritance, shall be valid and shall take effect, provided such substitution does not go beyond one degree from the heir originally instituted, and provided further, that the fiduciary or first heir and the second heir are living at the time of the death of the testator. (781a)

**APPLICATION: What is required in Art. 863 is one degree removed from each other in terms of fiduciary and fideicommisary. But in terms of heir to the fiduciary, there is no requirement that they are related.**

**DISCUSSION:**
Fiduciary should be 1 degree from the fideicommissary.

SIR: there can be how many substitutes in fideicommisary substitutions?
R: Depends on how many heirs or relative which is 1 degree removed from the heir.
SIR: Sino sila?
R: parent and children.

20. The capacity of an heir to inherit shall be determined at the (a) time of the execution of the will (b) time of the birth of the heir (c) time of the probate of the will (d) moment of the death of the decedent (e) moment of the death of the heir (f) None of the above.

**ANS: D. moment of the death of the decedent.**

**LEGAL BASIS:** Article 1034. In order to judge the capacity of the heir, devisee or legatee, his qualification **at the time of the death of the decedent** shall be the criterion.
In cases falling under Nos. 2, 3, or 5 of article 1032, it shall be necessary to wait until final judgment is rendered, and in the case falling under No. 4, the expiration of the month allowed for the report.
If the institution, devise or legacy should be conditional, the time of the compliance with the condition shall also be considered

**APPLICATION The capacity is determined at the time of the opening of the succession meaning at the time of the death of the decedent who was the succession is under consideration.**

**DISCUSSION:**
**SIr: reserva maxima →**

.
**[1] Under reserve maxima, all properties received from an ascendant can be considered reservable.**
**[2] Reserve minima holds that only half of properties received from an ascendant are reservable, as only half passed to the heir by operation of law.**
**What philosophy guided the guided the Code of Commission in the revision of the CC?**

- Socialization of ownership so lahat ng reservations ay inconsistent so if u know the history. The Commission eliminated all reversions.

***Do we still have reservations in the Civil Code?***
H: Reserva troncal
SIR: congress deemed it wise to insert reserva troncal back to the CC. ang commission tinanggal lahat ng reservations. Congress inserted it back. ***Why?***
.R: Reservation of the decedents because it would be unfair it just passes outside to the family or stranger. The entire estate.
**SIR:** Wrong because mapupunta sa compulsory heirs if hindi sya reserved.
Baka ayaw mapunta sa asawa or relatives ng asawa, minsan may illegitimate children and not necessarily the source or origin of the property.

**DISCUSSION**

**SITUATION:** A decedent is a testator. A testator is a decedent. ***Do you agree to this?***
**H:** Not necessarily to the first which is a decedent
**N:** Decedent is defined as whether he left or not left a will while a testator is someone who left a will. The other statement is correct that a testator is a decedent.
**S:** Mr. Sayno ***there is such a thing ante-mortem probate correct?*** Who is the petitioner?
**H:** Testator even if he is alive
The fact na gumawa s'ya ng will that means buhay pa s'ya. By definition, the testator is someone who made the will. Although if he left a will, testator din sya BUT Mr. Sayno

**SITUATION:** If he left a will, but the will is void should we still call him as testator, or tama na nga decedent na lang?
**H**: If void, then he is a decedent?
**N**: I do not agree, he would still be called as a testator.
**S:** Why call him a testator if he left a will, but why?
**R:** Still called a testator, even if the will is void, if may still be a valid in the case of De La Cerna.
**S:** Baka walang alam ang judge, eh walang nag-oppose.
**S:** Para alam ng tao na may will, baka may silbi.
**S:** What are other instances?

**H:** I have recognized an illegitimate child.
**S:** This is correct, if he died intestate eh malay mo may will tapos sa will nakalagay na recognized ang illegitimate child.

**SITUATION:** ***legatee is an heir or an heir is a legatee?***
H: Yes, a legatee is an heir. Heir can either be voluntarily. Hence, it can be. If an heir is a legatee,
S: I did not say can a heir be a legatee but is an heir is a legatee.
H: For the 1st, if a legatee is an heir. Heirs are not necessarily legatee and can be compulsory or voluntary and a legatee is voluntary so yes Sir.
**N:** I agree that the 1st statement is correct and the 2nd one is not necessarily.
You should be able to tell us who is an heir and who is a legatee, otherwise paano mo malaman if a legatee is an heir if di mo alam kung sino ang heir. Hindi pwede na isa lang ang alam mo dyan.
**S:** Not necessarily. Why not?
Where the provisions would say heirs, legatees, and devisees. Therefore, a legatee is an heir?
NO
Eh bakit pa i-mention if same lang sila
I retract
Therefore, why would be a legatee not be an heir.
**S:** If you consider the definition of an heir, anyone who is called to the succession, whether by law or provision of a will since a legatee is given a personal property then legatee sya but there is another kind of heir who is entitled to an aliquot portion of the estate. IOW, ½ of the land or ¼ or ⅛ in that sense, ***so is a legatee an heir?***
**S: NO.** Legatee is generic property and not an aliquot portion. In fact, ***can you give one concept which pertains to heirs in the specific sense not in the general sense? Hindi applicable sa legatees or devisees?***
H: Strict sense → **preterition**
S:***Why?***
H: Because the effect is only the annulment but the legacies and devisees are not removed as long as not inoffcious . Institution of heirs are those for SPECIFIC SENSE.
Legacies and Devisees provisions – pwede i-apply suppletorily
**Kaya alamin if what heir, is he an heir in a specific or general sense?**
Pero syempre an heir is not necessarily a legatee, malay mo instituted heir sya.

**S:** Just like anything in this world, to understand, baka maganda magclasses tayo. Heirs are classified into.
**H:** 3: compulsory, voluntary/testemantary.

1. COMPULSORY – inherit despite the will even if not mentioned in the will;
    - They may inherit. Not WILL. **What is the reason why a compulsory heir would not inherit?**
        - Disinheritance, or ayaw niya lang or **incapacity**
        - Hindi porket compulsory dapat na magmana.

**IOW, distinguish them (the 3 kinds of heir) in relation to a will**

| Legal/Testate | Voluntary/Testate | Compulsory |
|---|---|---|
| May inherit. | Inherit if there is a valid will | Inherit with or without a will |

2. **VOLUNTARY →**

When would the legal heir, inherit if :their is a legal will?
If the will does not dispose of all the properties.

**SITUATION:** ***A compulsory heir may be a voluntary heir?***
**H:** YES,
**S:** Do we have to know if the heir is a voluntary or compulsory heir?
**H:** YES, because it has different effect repudiation.

- If testamentary – both repudiated
- IF intestate – not included ang testamentary

**R:** Right of representation, because there is no right of representation if the heir who predeceased is a voluntary heir but if compulsory pwede to the extent of the legitime.

**SITUATION:** ***All compulsory heirs are legal heirs?***
**H:** YES
**N:** YES
**S:** Natural, all of them are legal heirs.

**SITUATION:** ***All legal heirs are compulsory heirs?***
**H:** NO, e.g. collateral relatives or if there is no one then the State.
**N:** YES.
**R:** No, collateral relatives up to the 5th degree.

**S:** Hindi lahat ng collateral unli, but tama sya because ang State pwedeng magmana.

**Sir: Compulsory heirs, baka maganda rin to classify them into:**

1. PRIMARY
2. SECONDARY
3. CONCURRING

**Sir:** If you read this book, the author claims that there are only primary and secondary. You do not agree to that tama?
**N**: You agree to that classification? YES, there are three.
**S:** ***Who are considered as concurring compulsory heirs*** → spouse, illegisitmate children

None marital descendants are also included in nonmarital.
***S: What is the difference of nonmarital and illegitimate children?***

- Descendants pwede
- Nonmarital – hindi kasal or pwede naman na kinasal pero void marriage. Pwede naman minsan nonmarital goes into the morals kasi ang misconception is kapag illegitimate is anak sa labas and ang lalaki is may kabit and nagka anak sa katulong. Hindi naman minsan trip lang nila, may capacity naman sila to enter into this contract pero di sila naniniwala sa kasal
- In contemplation of the law, hindi sya immoral

**SITUATION:** In a will, the testator gave 10M to a common law wife.

- If may compulsory heirs bawal
- Hindi totoo if may non impediment sila, pwede naman. Ang nakalagay sa batas sa compulsory heirs – legitimate children and descendants which also described the descendants.
- Ang illegitimate sa CHILDREN lang or sa PARENT hindi lumalabas doon ayan ang nasa 887.

This author classified into 2:

1. Primary
2. Secondary

**S:** Saan ang spouse? Secondary ***pero tama ba sya?***
**N:** NO. It should have been concurring.

**S**: Ang batas madalas di nagclassify eh pero for us to better understand the rules baka mas maganda i-classify natin.

**S**: ***Bakit di dapat secondary-compulsory heir?***
**S:** Inherit of the absence of primary compulsory heirs kaso ang spouse pwedeng magmana kahit kelan so with all due respect mali ang author. The heirs would be classified into three by SC.

**S:** How would u know that a person is a compulsory heir of the decedent?
**N:** Express provision of the law under 887.
**S:** The father of the decedent is a compulsory heir of the decedent?
**N:** Yes, provided in default of the legitimate children
**S:** If the decedent is survived by a legitimate child the father is not a compulsory heir, correct?
**H:**
S: despite the (??) of the law, compulsory heirs pa rin sila. Maski may anak yan, is it not possible for the father ot inherit despite if the decedent is survived by the legitimate child?
YES
**S:** When?
**S:** The child renounced, incapacitated, maraming dahilan but ultimately aside from the law provides as to who are there any other way of knowing if they are compulsory heirs?
**R:** Legitime
May mga provisions regarding the legitimes exc. Ang isang tao may legitime sya so compulsory heir sya. Yon lang ang pinaka important na point just because a person is a compulsory heir does not mean it will inherit. As to who may succeed what article?
**S:** 1024. Kaya sa distribution aside sa sinong namatay, tingnan rin sinong mga heirs na pwedeng magmana but not necessarily magmamana.

1. Alamin muna sino ang mga heirs tapos
2. saka na tayo pumunta sa sino ang pwedeng magmana.

**ILLEGITIMATE PARENT** compulsory heir ba sya ng anak nya?
**S: Yes**. basahin hanggang dulo ang provi
**S: May legitime rin sya which is ½ of the estate kapag kaya s'ya lang or silang 2, kalahati ang legitime nila yon lang madali silang ma-exclude kasi di sila legitimate parents.**

**ADOPTION:** ***Adoptee ba is compulsory heirs ng parents ng adopter?***
**S:** YES, domestic adoption and childwelfare code parang compulsory heirs sila which is different from the prior rules. Adoption creates a legal relation between an adoptee and adopter but I hope the SC will interpret the provision in the new law which will rule in the past laws.

- Hindi ko matanggap (Kuya EDDY) kasi di naman kinuha ang consent ng parents ng adopter so bakit ko magiging compulsory heir? Walang sense.

***Aside from those who are adopted, is there anyone who may considered as compulsory heir of the deceased aside from the spouse but not related by blood to the deceased?***
**S:** Legitimated children which is wrong. Product of artificial insemination, hindi kailangan kadugo ng husband kasi pwede ang sperm galing kay Tom Cruise so pwedeng hindi n'ya kadugo pero ang nanay kadugo kasi egg nya gagamitin.

**Next meeting:**
**Capacity to succeed until solemnities;**

- **SUNDAY:** maybe on Sunday consider your classmates together with other sections. I intend to let you watch a recorded video in a specific hour. Maybe you can tell me what is your preferred time.
- Maximum of 3 hrs. With the lecture, alam nyo na ang topic.
- Midterms: No notice if may pamasahe [A week after or 10 days after October 9]

**DO NOT WRITE ANYTHING BELOW THIS.**

# SUCCESSION [Recorded Lecture]

| SLIDE | DISCUSSION |
|---|---|
| Kinds of succession<br><br>(1) Testamentary;<br>(2) Legal or intestate; or<br>(3) Mixed. | **KINDS OF SUCCESSION**<br>1. **Testamentary** → only if may valid will<br>2. Intestate<br>a. decedent died without a will.<br>b. Even if the decedent left a will, if it is void, it will still be intestate.<br>c. Lost its validity, revoked, properties not disposed by all.<br>3. Mixed → combination of the two |
| (1) What are the characteristics of a will?<br><br>• It is an act of liberality<br>• It is a purely statutory right.<br>• It is a purely or strictly personal act.<br>• It is a free and voluntary act.<br>• It is a solemn or formal act.<br>• It is an ambulatory act.<br>• It is an act *mortis causa*.<br>• It is a unilateral act.<br>• It is an individual act. | **CHARACTERISTICS**<br>1. **Statutory right** → no constitutional right<br>2. **Ambulatory** → can revoke his will anytime before death<br>3. **Mortis causa** → take effect only upon death<br>4. **Unilateral** → only the estate will be obliged to the testament of the testator.<br>5. **Individual act** → joint wills are prohibited in this country as far as Fils are concerned. |
| Q:<br><br>John and Paula, British citizens at birth, acquired Philippine citizenship by naturalization after their marriage. During their marriage the couple acquired substantial landholdings in London and in Makati. Paula bore John three children, Peter, Paul and Mary. In one of their trips to London, the couple executed a joint will appointing each other as their heirs and providing that upon the death of survivor between them the entire estate would go to Peter and Paul only but the two could not dispose of nor divide the London estate as long as they live. John and Paula died tragically in the London Subway terrorist attack in 2005. Peter and Paul filed a petition for probate of their parent's will before a Makati Regional Trial Court.<br>a) Should the will be admitted to probate? (2%) | **PROBLEM: NATURALIZED FILIPINOS**<br>**Ans: NO**. because at the time of the death, they are already Filipinos, joint wills are not allowed in the PH. |
| **Q:**<br><br>a) Manuel, a Filipino, and his American wife Eleanor, executed a Joint Will in Boston, Massachusetts when they were residing in said city. The law of Massachusetts allows the execution of joint wills. Shortly thereafter, Eleanor died. Can the said will be probated in the Philippines for the settlement of her estate? (3%) | **PROBLEM: MIXED MARRIAGE [FILIPINO and ALIEN]**<br>**Ans: YES**. it can be probated in the PH because eleanor is not a PH citizen, as discussed, in relation to the governing law, this will be governed by the law of the country which she is a citizen. Since the law of MA allows joint wills, it is valid extrinsically. |
| **Q:**<br><br>70. Ric and Josie, Filipinos, have been sweethearts for 5 years. While working in a European country where the execution of joint wills are allowed, the two of them executed a joint holographic will where they named each other as sole heir of the other in case either of them dies. Unfortunately, Ric died a year later. Can Josie have the joint will successfully probated in the Philippines?<br><br>**ANS:**<br><br>A. Yes, in the highest interest of comity of nations and to honor the wishes of the deceased.<br>B. No, since Philippine law prohibits the execution of joint wills and such law is binding on Ric and Josie even abroad.<br>C. Yes, since they executed their joint will out of mutual love and care, values that the generally accepted principles of international law accepts.<br>D. Yes, since it is valid in the country where it was executed, applying the principle of "lex loci | **PROBLEM**<br>**Ans: NO**. Again the testators are both filipinos and thus they are prohibited from executing joint wills even if they executed it in a country that allowed it |
| **REQUIREMENTS FOR THE VALIDITY OF WILLS** | |

**TESTAMENTARY CAPACITY AND INTENT**
The law provides for the will to be valid, testator shall be 18.

**NOTE:** Even before effectivity of 6309, even minors 18, 19, 20 can validly make a will as long as they are not less than 18. Today because of 6309, those only of age can make a valid will.

Another Req, testator should be of sound mind

**INTENT**
*Animus testandi* → intend to dispose properties to take effect upon death

**SOLEMNITIES**

Busalsal executed a will in his handwriting, signed by him at the end of each page on the left marginal space of every page except the last page. The document bore no date. However, below Busalsal's every signature, were the signatures of two witnesses, who later testified that the will was executed in their presence on January 1, 1985, New Year's Day, and that Busalsal was in full possession of his faculties at that time and even explained to them the details of the will he was writing down.

Is the will formally valid? Explain.

**BAR PROBLEM:**
**Ans: NO.** There are 2 kinds of wills. As to form,

1. Notarial will or ordinary or attested will
2. Holographic or handwritten will.

While this will is in the handwriting of Busalsal, such as may be a holographic will but not valid because the law requires such will to be dated. Second, notarial will can be handwritten by testator as long as requisites are present, but not valid because 3 witnesses are required. Every will must be in writing. PH law does not recognize oral wills .

**LANGUAGE KNOWN TO TESTATOR**.
The law also requires holographic wills to be in a language known to the testator does not matter if notrial or holographic.
It does not require to be stated in the attestation clause.

- The law presumes that every person is of sound mind

**BURDEN OF PROOF**:
**GR:** oppositors

- Testator is not of sound mind

**EXC:** Execution of will is 30 days before the person becomes insane – BURDEN SHIFTS now to the person who claims otherwise.

**DISPUTABLE PRESUMPTION**
Presumption may be arise that the language is known to the testator if it is in the language used in a locality where the testator lived for a long period of time. But disputable.

**SIGNING MUST BE IN THE PRESENCE OF THE WITNESSES SPECIFIC**

Must be in the presence of the:

1. witnesses when the testator signs;
2. Witnesses must be present with the other witnesses when they sign.

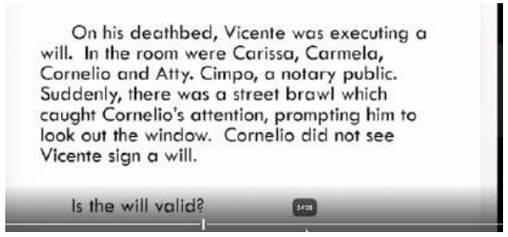
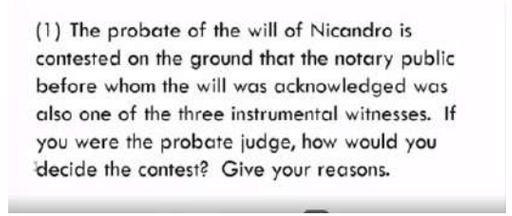
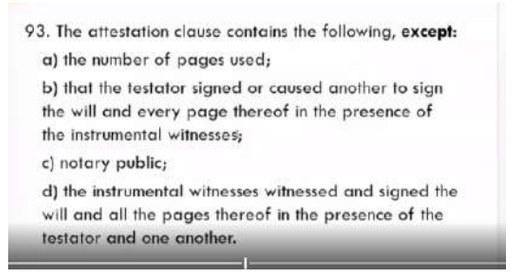
Clara, thinking of her mortality drafted a will and asked Roberta, Hannah, Luisa and Benjamin to be witnesses. During the day of the signing of her will, Clara fell down the stairs and broke both her arms. Coming from the hospital, Clara insisted on signing her will by thumb mark and said that she can sign her full name later. While the will was being signed, Roberta experienced a stomach ache and kept going to the restroom for long periods of time. Hannah while waiting for her turn to sign the will, was reading the 7th Harry Potter Book on the couch, beside the table on which everyone was signing. Benjamin, aside from witnessing the will also offered to notarize it. A week after, Clara was run over by a drunk driver while crossing the street in Greenbelt.

May the will of Clara be admitted to probate? Give your reasons briefly.

**PROBLEM**
**Ans: YES** this is an example where the examiner did not specify the issues. Like why the will is not admitted to probate. Examinee identify the issue.

**ISSUE 1: Signature**
The fact that there is a thumbmark, ***will this be a signature?*** Yes this is a sufficient signature. But the more problematic area here....

**ISSUE 2: SIGNING must be in the presence of the other witnesses**
**Take note that there are 4 witnesses:**

| | |
|---|---|
| | 1. **Luisa** – no problem<br>2. **Benjamin** → there is another issue that he might not be considered as a competent witness because he offered notarize.<br>● If he did not notarize, he will not be excluded as a competent witness.<br>● Even if he is the one to notarize, the will will be valid because there are other 3 witnesses.<br>3. **Hannah** → she was in the couch when everyone was signing.<br>○ THE SC will consistently test that it is not necessary should actually see like a witness sign it is however necessary that **they are in a position to see if she wanted to even if she would regularly go to the restrooms for a long period of time.** |
|  | **PROBLEM:**<br><br>**Ans: YES**. The will appears to be valid because in the first place there are 4 witnesses. Cimpo is a notary does not disqualify him as competent witness unless he was the one who notarized.<br>● But even if he is the one who notarized, it may still be considered as valid will, Cornelio did not see Carissa sign, the witness is still in the presence of Cornelio |
|  | **PROBLEM**<br><br>**Ans:** With all due respect to the examiner, the will is not contested. The notary public was one of the 3 witnesses does not mean it is contested but it should be the signature.<br><br>**I would disallow the rule this is the ruling in Cruz v. Villasor,** where the notary public is one of the witnesses and the one who acknowledges it, then he cannot acknowledge it before himself and thus does not mean the requirements that the law requires for a valid notarial will. |
|  | **ATTESTATION CLAUSE**<br><br>There are other<br>1. The number of pages although the SC would consistently apply the substantial compliance rule even if the number of pages not stated in the AC, if it is stated somewhere in the will like in the acknowledgement. Like in Taboada v. Rosal the SC ruled it is valid.<br><br>We are looking for what is not required. Of course the notary republic |

| | |
|---|---|
| 96. Pepito executed a will that he and 3 attesting witnesses signed following the formalities of law, except that the Notary Public failed to come. Two days later, the Notary Public notarized the will in his law office where all signatories to the will acknowledged that the testator signed the will in the presence of the witnesses and that the latter themselves signed the will in the presence of the testator and of one another. Was the will validly notarized? | **PROBLEM.**<br><br>**ANS: YES.** The law does not require the notary public is present while testator and witness sign. Testator and witness acknowledge before him that they have signed |
| A. No, since it was not notarized on the occasion when the signatories affixed their signatures on the will.<br>B. Yes, since the Notary Public has to be present only when the signatories acknowledged the acts required of them in relation to the will.<br>C. Yes, but the defect in the mere notarization of the will is not fatal to its execution.<br>D. No, since the notary public did not require the signatories to sign their respective attestations again. | **ANS:** The ruling did not require the signing in the presence of the witnesses. The SC states that even if the notary public fails to sign or did not sign what is called the acknowledgement as along as the testator and witnesses acknowledged before the notary public. What is required is the ACT of acknowledging. |
| 94. The following are the formalities required in the execution of holographic will, **except:**<br>a) Entirely written;<br>b) Dated;<br>c) Signed by testator *himself*<br>d) Notarized by a notary public. | **HOLOGRAPHIC WILLS**<br>**3 requirements:**<br>1. **Dated and signed by the hand of the testor** → Signing the same in notarial or ordinary will. Even across may be considered as sufficient as shown if it is a usual way of signing.<br>2. **Dated** → notarial will not required because witness can attest.<br>3. **Entirely written by the hand** → grand characteristic of a hologrqaphic will<br><br>**ANS: D.** |

| | |
|---|---|
| 1) Vanessa died on April 14, 1980, leaving behind a holographic will which is entirely written, dated and signed in her own handwriting. However, it contains insertions and cancellations which are not authenticated by her signature. For this reason, the probate of Vanessa's will was opposed by her relatives who stood to inherit by her intestacy.<br><br>May Vanessa's holographic will be probated? Explain. | **PROBLEM**<br>**ANS: YES**. The fact that the insertions, cancellations are not authenticated by her signature, that insertions will have no effect at all. For insertion to have an effect, it must be authenticated by the whole signature of the testator.<br>• Void → if 3rd person because it is not entirely made by the testator.<br>• Full signature not just an initial.<br>• If 1 disposition only was cancelled or changed, the will will not be void. |
| a) Natividad's holographic will, which had only one (1) substantial provision, as first written, named Rosa as her sole heir. However, when Gregorio presented it for probate, it already contained an alteration, naming Gregorio, instead of Rosa, as sole heir, but without authentication by Natividad's signature. Rosa opposes the probate alleging such lack of proper authentication. She claims that the unaltered form of the will should be given effect. Whose claim should be granted? Explain. (5%) | **PROBLEM:**<br>The examiner did not bother to change the name of the parties to the case. (relova case)<br>**ANS: NONE.** as far as gregorio is concerned, there is no authentication by Nativadad. Rosa cannot claim that the will be given effect because it was cancelled by the testator |
| Stevie was born blind. He went to school for the blind, and learned to read in Braille language. He speaks English fluently. Can he:<br><br>[a] Make a will? (1%)<br>[b] Act as a witness to a will? (1%)<br>[c] In either of the above instances, must the will be read to him? (1%) | **TESTATOR IS BLIND**<br><br>**ANS: YES.** This is expressly provided in the code. The only requirement here is that the will should be read to him 2.<br><br>***Can he act as a witness?*** NO. One of the requirements for a competent witness is that he should not be blind.<br><br>**NOTE:** It should be read to him 2 if it is a notarial will but IF HOLOGRAPHIC need not to because he is the one who wrote the will. |

| REVOCATION | |
|---|---|
| Which of the following is absolutely true?<br>a) Revocation is an act of the testator<br>b) Revocation is by operation of law<br>c) Revocation presupposes a valid act<br>d) Revocation takes place only during the lifetime of the testator<br>e) None of the above. | **ANS: C.** If any disposition is void, there is nothing to revoke.<br><br>**NOT D** → this is not true because there is revocation by implication by law such as:<br>• Unworthiness such as concealment of the testator |
| With the intention of revoking his will, X asked his son A to get the envelope containing the will from his bag. Knowing that he is heavily favored in the will, A replaced the will with a Deed of Sale and gave the envelope to his father. X immediately burned the envelope without looking at its contents. There is revocation by<br>(a) implication of law<br>(b) execution of subsequent instrument<br>(c) destruction<br>(d) There was no revocation. | **PROBLEM**<br><br>**Ans: NONE**. the will itself was not destroyed. It was replaced by another instrument<br>**B** → **wrong.** There was no subsequent instrument executed<br>**C** → must there be destruction. Not necessary total.<br>There was revocation, by implication of law such as implication of law of A because he made an act of unworthiness which is under 1036? |
| (1) By implication of law<br><br>(2) By some will, codicil, or other writing<br><br>(3) By burning, tearing, canceling, or obliterating the will | **3 modes of revocation**<br>IOW, the lesson is that there are 3, if it would not fall in 1 or 2 maybe it will fall in 3<br><br>3 → destruction<br>2 → subsequent instrument |
| A disposition in favor of an heir is revoked by implication of law if:<br>(a) he was convicted of a crime<br>(b) he is guilty of adultery or concubinage<br>(c) he accused the testator of a crime<br>(d) by fraud he prevented the decedent from revoking the will | **PROBLEM**<br>**ANS:**<br>**D.**<br><br>**A.** → Not necessarily, not every time the heir is convicted will result to revocation by implication of law, it may be adultery with the spouse of the testator or attempt against the life of the testator.<br><br>**B** → not necessarily because not every time he is guilty of that crime would make him incapacitated it must be with the spouse of the testator<br><br>**C** → not necessarily because it must be more than 6 years and acquisition turns out to be groundless.<br><br>**D** → **correct answer.** This is an act of unworthiness. Revocation by implication of law. |
| In the will of X, he gave to A a credit in the amount of P1Million. This legacy is deemed revoked:<br>(a) if X sent a demand letter to the debtor<br>(b) if X filed an action against the debtor for the collection of the said amount<br>(c) if the court ordered the debtor to pay X before the death of X<br>(d) if the debtor paid X before the death of the latter | **PROBLEM**<br>**ANS: B.**<br>Demand letter is not sufficient to revoke, what is required is the action. |

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| 6. Ramon, a Filipino, executed a will in Manila, where he left his house located in BP Homes Parañaque in favor of his Filipino son, Ramgen. Ramon's other children RJ and Ramona, both Turkish nationals, are disputing the bequest to Ramgen. They plotted to kill Ramgen. Ramon learned of the plot, so he tore his will in two pieces out of anger. Which statement is most accurate?<br><br>a) The mere act of Ramon Sr. is immaterial because the will is still readable.<br>b) The mere act of tearing the will amounts to revocation.<br>c) The tearing of the will may amount to revocation if coupled with intent of revoking it.<br>d) The act of tearing the will is material | **PROBLEM**<br><br>**ANS:** C.<br>**A** → it is readable does not mean there is revocation. Burning → discoloration even if it readable.<br><br>**B** → This is not true even if there was tearing, cancelling if there is no *animus revocandi* or intent to revoke.<br><br>**C** → **that is the correct answer.** There must be destruction + intention to revoke. |
| Mr. Reyes executed a will completely valid as to form. A week later, however, he executed another will which expressly revoked his first will, following which he tore his first will to pieces. Upon the death of Mr. Reyes, his second will was presented for probate by his heirs, but it was denied probate due to formal defects. Assuming that a copy of the first will is available, may it now be admitted to probate and given effect? Why? | **PROBLEM**<br><br>**ANS:** Here there is revocation by the execution of subsequent instrument. To be effective, the 2nd will must be probated to be valid. It is not valid due to defect. Revocatory clause cannot be given effect.<br><br>**NO.** Even if no revocation by execution of sub. instrument, there is still destruction. Consider 2 other modes if di pwede yung isa. |
| **PRESUMPTION OF REVOCATION** | |
| **GAGO v. Mamuyac:** The SC states that the presumption of revocation may arise if:<br>1. It was last seen with the testator<br>2. It cannot be found after the death despite diligent efforts | |

| | |
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| Revocation<br>**2018 Bar Exam Question No. VII[a]**<br><br>Sydney, during her lifetime, was a successful lawyer. By her own choice, she remained unmarried and devoted all her time to taking care of her nephew and two (2) nieces: Socrates, Saffinia, and Sophia. She wrote a will giving all her properties remaining upon her death to the three (3) of them. The will was admitted to probate during her lifetime. Later, she decided to make a new will giving all her remaining properties only to the two (2) girls, Saffinia and Sophia. She then tore up the previously probated will. The second will was presented for probate only after her death. However, the probate court found the second will to be void for failure to comply with formal requirements.<br>(a) Will the doctrine of dependent relative revocation apply? (2.5%)<br><br>(b) Will your answer be the same if the second will was found to be valid but both Saffinia and Sophia renounce their inheritance? (2.5%)<br><br>**Article 832.** A revocation made in a subsequent will shall take effect, even if the new will should become inoperative by reason of the incapacity of the heirs, devisees or legatees designated therein, or by their renunciation. (740a) | **PROBLEM**<br>**ANS:** It does not appear to apply ICAB. The intention, for the doctrine to apply, the intention of the testator is clear, he will not revoke if he had known that the will is a void will. ICAB, he tore up the previously probated will. It will appear that he does not want to give anything to socrates anymore.<br><br>**B.**<br>**ANS: YES**. This based on 832. Here, the doctrine of dependent relative revocation does not apply. |
| **PROBATE OR ALLOWANCE OF WILLS** | |
| **Article 838.** No will shall pass either real or personal property unless it is proved and allowed in accordance with the Rules of Court.<br><br>x x x | Authentication goes only to one aspect as probate of wills is concerned.<br><br>***Why need to probate a will?*** An heir who is a voluntary heir will not inherit if the will is not probated. It is expressly provided in 838. |

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| In probate proceedings, what may not be inquired into by the probate court?<br><br>a. authenticity of the will<br>b. *animus testandi*<br>c. testamentary capacity<br>d. validity of a testamentary disposition | **PROBLEM**<br>Ordinarily the probate courts cannot inquire into the validity of the law. The SC can only look into the extrinsic validity of the will.<br><br>But by the way of exception, when the will is void in its face. The SC will say that it is useless then it cannot be given effect because it is intrinsically void. |
| Allowance of Wills: Purpose<br><br>1. genuineness and authenticity<br>2. testamentary capacity<br>3. formalities<br>4. due execution<br>5. *animus testandi* | Matters that should be inquired by the probate court<br>• **1** → no forgery<br>• **4** → no fraud, undue influence<br>• **5** → intention to dispose properties to take upon death. |
| Allowance / Disallowance of Wills<br>1996 Bar Exam Question No. 7<br><br>Maria, to spite her husband Jorge, whom she suspected was having ah affair with another woman, executed a will, unknown to him, bequeathing all the properties she inherited from her parents, to her sister Miguela. Upon her death, the will was presented for probate. Jorge opposed probate of the will on the ground that the will was executed by his wife without his knowledge, much less consent, and that it deprived him of his legitime. After all, he had given her no cause for disinheritance, added Jorge in his opposition.<br>How will you rule on Jorge' opposition to the probate of Maria's will, if you were the judge. | **PROBLEM**<br>**ANS:** I will dismiss the opposition of Jorge to the probate of Maria's will. The The consent of the husband is not required for the wife to execute a will. His legitime is required or deprived, it is not a matter to be inquired by the probate court. He was not actively disinherited. The grounds in opposing the probate of Maria's will is not meritorious. |
| **MODES** | |

1. **Post-mortem probate** → the usual type of probation
2. **Ante-mortem probate** → during lifetime of testator, he can file probate of the will.

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| 811.<br><br>**Article 811.** In the probate of a holographic will, it shall be necessary that at least one witness who knows the handwriting and signature of the testator explicitly declare that the will and the signature are in the handwriting of the testator. If the will is contested, at least three of such witnesses shall be required.<br>In the absence of any competent witness referred to in the preceding paragraph, and if the court deem it necessary, expert testimony may be resorted to. (619a) | **CONTESTED WILL**<br>It is contested when the handwriting is being questioned that it is not the handwriting of the testators.<br><br>The law does not require that the witness to actually see the testator sign. The law only requires that he can acknowledge the signature of the testator.<br><br>**CONTESTED:** at least 3 is required.<br>***Q: Is this mandatory? Meaning if there are 3 witnesses declares that it is in the handwriting, should it be denied probate?***<br>**ANS: NO.** Permissive requirement. Considering the nature of a probate proceeding, witnesses or some are already dead. Competent witnesses, expert witness may be resulted to. If there is 1 witness but expert, the will may be probated.<br><br>Even SC states in a case [calugay], that this requirement is mandatory, with all due respect, the ruling in **ASAOLA v. SINGSON** [en banc] cannot be overturned by mere judicial decision as ASAOLA is an en banc decision aside in the case Galugay, considered one fo the witnesses as competent witness, notheless, the SC does not dismiss the petition but remanded to RTC for further proceeding. |

| | |
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| | **LOST OR DESTROYED WILL**<br><br>***May it be probated as far as ordinary wills are concerned?***<br>YES, because the execution and authentication may be proved by secondary evidences [evidence *aliunde*] |
| Allowance / Disallowance of Wills<br>1997 Bar Exam ***Question No. 10***<br><br>Johnny, with no known living relatives, executed a notarial will giving all his estate to his sweetheart. One day, he had a serious altercation with his sweetheart. A few days later, he was introduced to a charming lady who later became a dear friend. Soon after, he executed a holographic will expressly revoking the notarial will and so designating his new friend as sole heir. One day when he was clearing up his desk, Johnny mistakenly burned, along with other papers, the only copy of his holographic will. His business associate, Eduardo, knew well the contents of the will which was shown to him by Johnny the day it was executed. A few days after the burning incident, Johnny died. Both wills were sought to be probated in two separate petitions.<br><br>Will either or both petitions prosper? | **PROBLEM**<br><br>**ANS:** As far as the holographic will is concerned, the petition for probate of such will **CANNOT** prosper because that will which is the only copy is the only basis of the court to determine if indeed the will is in the handwriting of the testator (Gan v. Y. A) although SC mentioned in the footnote, photostatic copy may be allowed to be probated (Rodelas v. Aranza)<br>Since the 2nd will cannot be probated as ruled in Molo v. Molo case, revocatory clause of the 2nd will cannot be given effect. |
| 95. The following are the grounds for disallowance of wills, **except:**<br>a) The formalities required by law have not been complied with.<br>b) The testator was insane or mentally incapable of making will.<br>c) The will was executed through force or under duress, or influence of fear or threats.<br>d) The will contains an attestation clause. | **ANS:**<br>A B C → grounds for disallowance of wills in 839 |
| 839 | **Grounds for disallowance of wills**<br>But if the will was revoked and the probated, the answer is no. ***Is revocation one fo the grounds in 839?***<br>NO. it is not in this article. ***Does it mean*** |
| **Article 839.** The will shall be disallowed in any of the following cases:<br>(1) If the formalities required by law have not been complied with;<br>(2) If the testator was insane, or otherwise mentally incapable of making a will, at the time of its execution;<br>(3) If it was executed through force or under duress, or the influence of fear, or threats;<br>(4) If it was procured by undue and improper pressure and influence, on the part of the beneficiary or of some other person;<br>(5) If the signature of the testator was procured by fraud;<br>(6) If the testator acted by mistake or did not intend that the instrument he signed should be his will at the time of affixing his signature thereto.<br>(n) | ***therefore that the enumeration is not exclusive?*** Exclusive but the fact the will is revoked is not disallowance of the will but a ground for dismissal fo the petition. Requirements should be complied with, the will must not be revoked as a matter of judicial requirement.<br><br>The will have already been revoked but iba ang disallowance of will. |

**Next meeting:** While I will cover capacity pa rin, but after discussion capacity which can be less than 30 minutes (15-20), let's proceed to legitimes.

- I may have mentioned already legitime is one of the most important topic in succession. Most of the questions would pertain to intestate succession. But to be able to correctly answer question as to shares of intestate, the best way is to master legitimes. Kung magaling ka sa legitimes, shares of intestate would follow.
- Legitimes of these compulsory heirs. Spouse ang paiba iba depende sa kung sino ang kasama niya.

**DO NOT WRITE ANYTHING BELOW THIS.**

# QUIZ 7

X died on August 15, 1988 leaving an estate valued at P300, 000.00. Compute the legitimes of the following heirs who survived X. 19:24

1. A, B, C, D & E (legitimate children – LC); F (illegitimate child-IC); G (Surviving Spouse - SS) and H (Father)
   a. A,B,C,D & E – 30k@; F – 15K; G – 30K; H – 15K
   b. A,B,C,D & E – 46.15k@; F – 46.15K; G – 23.08K; H – 0
   c. A,B,C,D & E – 30k @; F – 15K; G – 30K; H – 15k
   d. A,B,C,D & E – 30k @; F – 15K; G – 30K; H – 0
   e. None of the above 19:24

**ANS:** D?
LC = ½
IC = ½ of the legitimes of the LC
SS = 1 share of the legitimate child (share is not equal to legitimes. This refers to inheritance. Legitimes is what is provided by law)
F = 0 (no shares because he is excluded by the legitimate descendant)

**LEGAL BASIS:**

IC = Art. 176, FC. Illegitimate children shall use the surname and shall be under the parental authority of their mother, and shall be entitled to support in conformity with this Code. **The legitime of each illegitimate child shall consist of one-half of the legitime of a legitimate child.**

SS = 897. When the widow or widower survives with legitimate children or descendants, and acknowledged natural children, or natural children by legal fiction, such **surviving spouse shall be entitled to a portion equal to the legitime of each of the legitimate children** which must be taken from that part of the estate which the testator can freely dispose of. (n)

**APPLICATION:**

DISCUSSION:
Y: LC will get ½ of the estate divided to the LC. since 5 LC, since ½ of the hereditary estate is 150k each will get 30k.
For IC, Each will get ½ of the share of a LC. each will get 15k.
SS gets ¼ if the spouse concurs with the LC. since there more than 1 LC, then 1 SS will get the same share of 1 IC gets.
H: Father is a secondary compulsory heir which is excluded in the presence of primary compulsory heir, he will get nothing.
SIR: IOW, out of the estate, the LC will get 30k each. Correct?
Y: Yes for 1 LC.
G: Yes.
SIR: kung itotal yung amounts na yan, magkano lahat yan?
Y: 195k.
SIR: San napunta yung difference?
Y: Free portion.
SIR: out of the estate of 300k. Each LC will get 30k? Makukuha niya from the estate 30k? Yun ang makukuha niya form the estate.
Y: No.
SIR: Di ka tinatanong how much they will get. Tinatanong kung ilan ang legitime. These people will not necessarily get. Pwede ba 0?
Y: Yes.
SIR: oo naman kasi baka magrenounce sila. Sabihin mo their legitime is.
You also mention that each IC legitime will get ½ of the legitime of the LC.
Y: I would like to correct myself. 1 LC only.
SIR: Kung magsabi ka na each legitime child…"
Y: legitime of each IC is half of the legitime of the legitimate child.
SIR: ang mali don ay ang "each IC" yayaman siya. Edi bawat isa hahati siya. Which is wrong. Isa isa lang. Hindi sa bawat isa. On its face, itong letter C and A, pwede mo nang isang tabi yan. They are not options. Why?
Y: Father is excluded by the presence of LC.
SIR: ang matitira nalang ay B and D. pag dating sa computation, ieliminate mo na ang wala. Icompute mo nalang yung sa matitira.

2. A, B & C (Illegitimate Children - IC); D (SS); E (GreatGrandfather)
   a. A,B&C – 25K@; D – 37.5K; E – 150K
   b. A,B&C – 50K@; D – 50K; E – 0
   c. A,B&C – 25K@; D – 75K; E – 150K
   d. A,B&C – 25K@; D – 37.5K; E – 0
   e. None of the above




**ANS:** A

IC = ¼ of the estate

SS = ⅛ of the Estate?

E (GreatGrandfather) = ½ of the estate in the absence of the legitimate children and descendants (he is an ascendant)

**LEGAL BASIS: Article 899**. When the widow or widower survives with legitimate parents or ascendants and with illegitimate children, such surviving spouse shall be entitled to **one-eighth of the hereditary estate of the deceased** which must be **taken from the free portion,** and the **illegitimate children shall be entitled to one-fourth of the estate** which shall be taken also from the disposable portion. The testator may freely dispose of the remaining one-eighth of the estate. (n)

**DISCUSSION:**
Y: A. ¼ of the estate is 70k. IC is 75k divided by them which is 25k for 1 IC. SS will get ⅛ that would be 37.5K. E. ½ of the estate so 150k.
SIR: Why not B?
Y: Greatgrandfather is included because his presence is not excluded by the presence of the primary compulsory heir.
SIR: IOW, there is no legitimate children or descendant. Kaya, the E which is the 2nd compulsory heir takes the place of the primary kaya 150k.

3. 1 LC; 3 IC; SS; Parents
   a. 1LC – 150K; 3IC – 25@; SS – 75k; Parents – 50k
   b. 1LC – 150K; 3IC – 25@; SS – 75k; Parents - 0
   c. 1LC – 150K; 3IC – 75@; SS – 75k; Parents - 0
   d. 1LC – 100K; 3IC – 50@; SS – 50k; Parents - 0
   e. None of the above




**ANS:** B

LC = ½ = 150k

IC = ½ of of a legitimate child = (150k/2)/3 = 25k@/each

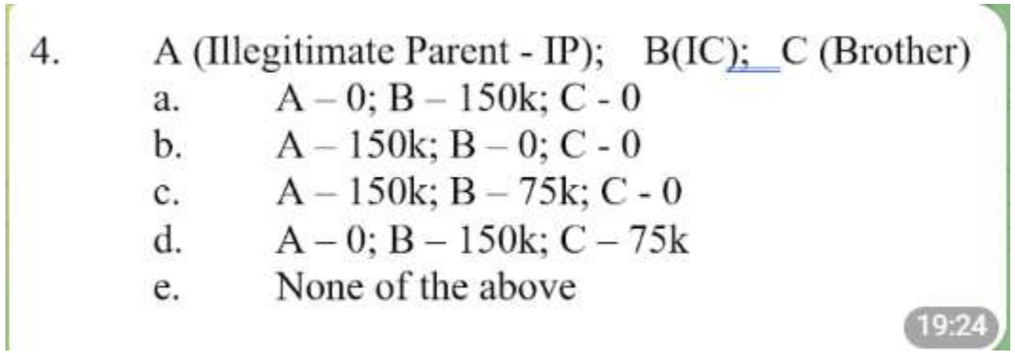
SS = ¼ = 75,000

Legitimate parent = 0

**LEGAL BASIS:**
IC = **Art. 176, FC.** Illegitimate children shall use the surname and shall be under the parental authority of their mother, and shall be entitled to support in conformity with this Code. **The legitime of each illegitimate child shall consist of one-half of the legitime of a legitimate child.**

DISCUSSION:
SIR: if I heard you right, you mentioned, that the legitime of the IC is half of the legitime of the LC which is 75k. Therefore divided by 3 = 25k so you arrived at letter B. Is he correct?
G: No. legitime of the IC is ¼ of the share 1 LC
SIR: This is wrong. Ang legitime of each IC is half of the legitme of 1 LC. ordinary, bawat isa sa kanila, kalahati dapat ng legitime ng 1 LC. each IC is 75k. Hindi silang tatlo pero bawat isa. Pero di mo pwedeng ibigay yan? Why? Because it will exceed the estate. In the first place, if there is 1 LC or 2 or more LC, the legitime will always be ½ of the estate?
Y: YEs
SIR: maski isa siya or 20 sila, laging ½ of the estate. Pero dahil 1 lang siya, yung surviving spouse, dapat the same as 1 LC. That will only be good if there are at

least 2 LC. Spouse = 1 legitime of LC. pero kung 1 lang na LC tapos same share, edi 150 din siya no disposable. Kaya if 1 LC lang, legitime ng spouse will not be the legitime of 1 LC. all other scenarios, the same as 1 LC. kaya ang batas binigyan siya ng ¼. Kung bibigyan mo ng 75 each, lalampas ang estate. ***So anong gagawin mo?*** Protect the legitime of the LC and SS kaya 25k each dahil wala na tayong magagawa. That is already 225k kaya sa natitirang 75, yun nalang didistribute mo sa IC kaya tig pipiso nalang sila.
SIR: if there is a will, can 1 or these provisions of the will be given effect? Sa will na yan nagbigay siya sa parents niya, will this be valid testamentary disposition?
Y: No. There is no free portion on his estate that he can validly dispose of in his will.
SIR: Correct. Kasi kulang pa ang kanyang estate kaya wala siyang pwede ibigay dahil wala na siyang freely disposable portion.




**ANS:** A

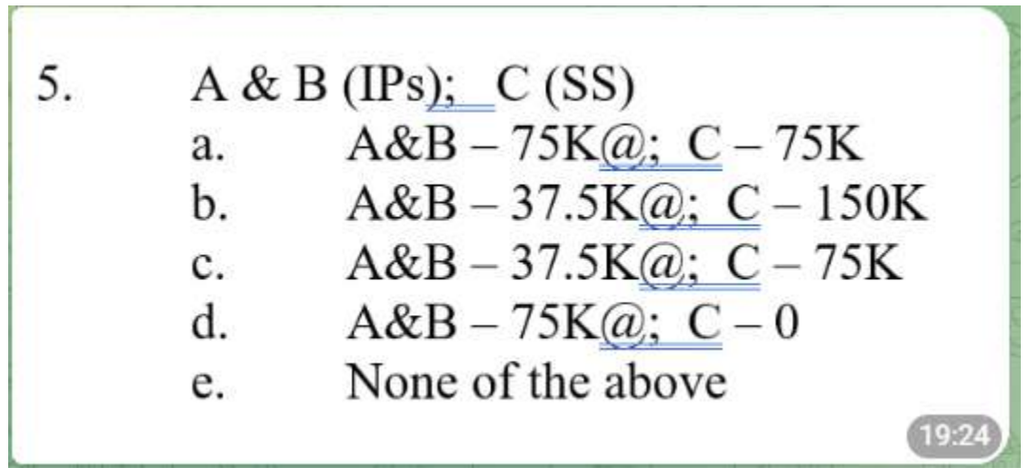
IP = ½ = 150k
IC = ¼ = 75k

Brother = 0 → a collateral heir hence no legitime.

**LEGAL BASIS: Article 903.** The legitime of the parents who have an illegitimate child, when such child leaves neither legitimate descendants, nor a surviving spouse, nor illegitimate children, is one-half of the hereditary estate of such illegitimate child. If only legitimate or illegitimate children are left, the parents are not entitled to any legitime whatsoever. If only the widow or widower survives with parents of the illegitimate child, the legitime of the parents is one-fourth of the hereditary estate of the child, and that of the surviving spouse also one-fourth of the estate. (n)

**APPLICATION:** This case paints a picture of an illegitimate child (illegitimate child ang namatay). Hindi ko makita ang legal basis

DISCUSSION:
SIR: bakit wala sa brother?
G: He is not a compulsory heir. He is not entitled to a legitime.
SIR: everytime wala kang bibigyan, iexplain niyo.
I: Disagree. If only illegitimate children are left, they have a right to ½ together with 901 we have to read 903. If only illegitimate parent, only legitimate children are entitled. Since B is present, A is no longer entitled to the legitime and will go completely to the illegitimate child.
S: If I heard you right, the implication of your answer is this. If B is a legitimate child, the answer would be different. Tama ba ang aking understanding?
I: If B is an LC, primary rules it would still be the same and B would still be entitled to ½ of the hereditary estate.
S: It does not matter if B is a legitimate or illegitimate child, if a parent is IP he will always be excluded by a child whether IC or LC.




**ANS:** C

**LEGAL BASIS:**

IPs = ¼ = 75/2 = 37.5k@

SS = ¼ of the hereditary estate = 75k

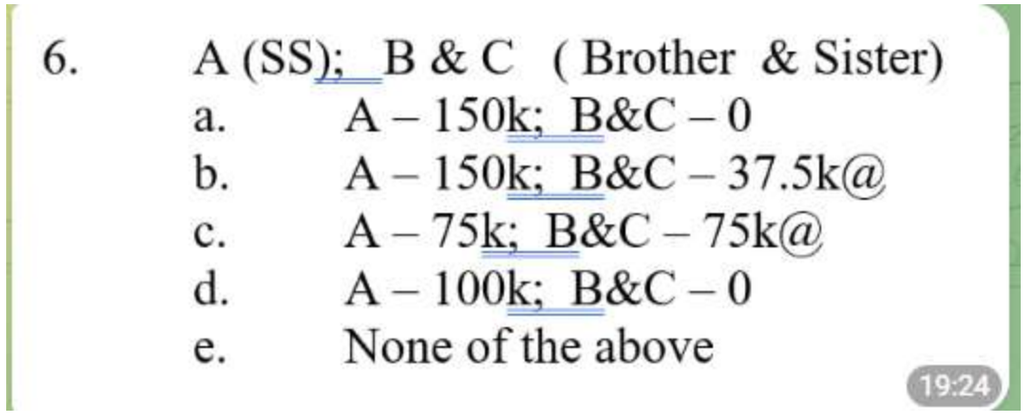
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DISCUSSION:
SIR: It is not there is. Only if the IP and SS would concur. Sila lang dalawa. Sila lang ang magsusurive na compulsory heir. Hindi there is. Kasi pwede na hindi compulsory heirs. In this scenario, 2 klase na compulsory heirs.
SIR: Dont use "GETS" pagdating sa intestate succession, ang sagot nila gets. Ang tanong ay legitime lang. Sabihin mo ang "Legitime of C is 75."

**S:** Is there is scenario where 2 different kinds of heirs will have a legitime of less than 1/4.

- No need ang article number. Ang important ang substance.

I: There is no provision under the CC which provides ⅛, ⅛ if there are only 2 CH.
S: If there are 2, CH. The smallest ¼ ¼, correct?
I: YES
S: That is correct. Namatay ang IC pero walang anak so ¼.




**ANS:** A

SS = ½ of the hereditary estate = 150k

BC = 0

900. If the only survivor is the widow or widower, **she or he shall be entitled to one-half of the hereditary estate of the deceased spous**e, and the testator may freely dispose of the other half. (837a)

Brother and sister not compulsory heir.

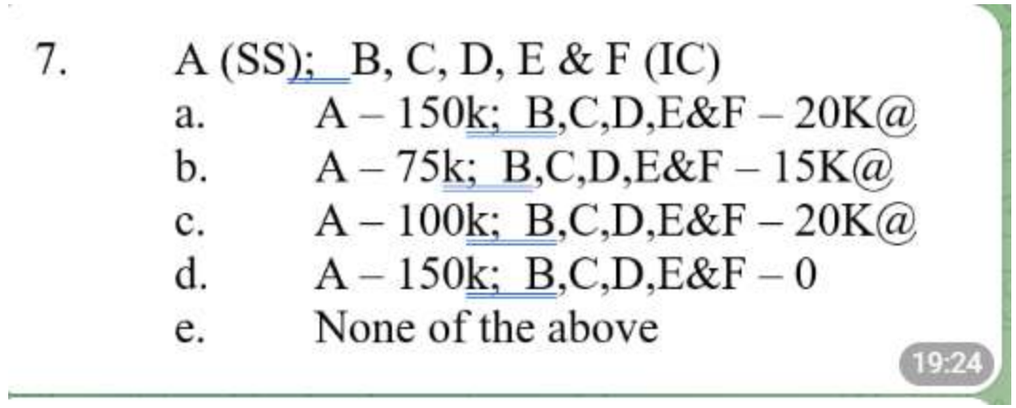
**APPLICATION:**

S: Is there a scenario where 1 CH, survives OR 2 CH survives but his legitime is not ½?
⅓ if the spouse dies 3 months after and they are married in articulo mortis
Article 900. If the only survivor is the widow or widower, she or he shall be entitled to one-half of the hereditary estate of the deceased spouse, and the testator may freely dispose of the other half. (837a)
If the marriage between the surviving spouse and the testator was solemnized in articulo mortis, and the **testator died within three months from the time of the marriage,** the legitime of the surviving spouse as the sole heir shall be one-third of the hereditary estate, except when they have been living as husband and wife for more than five years. In the latter case, the legitime of the surviving spouse shall be that specified in the preceding paragraph

S: You agree to that?
I: I disagree that it is the only instance. If the couple left no LC, and it is only a SS.
S: NO, only 1 CH survives or 2 or more but of the same kind but not of different kinds. Gets mo na?

1. Do you agree? Apparently you do
2. Are there any kind/scenario?

I: Muslim marriages
S: Wag na, di ka kukuha ng Shari'a
Y: LA as an example. A LA would be entitled to different shares of legitimes e.g. if 1 LA belongs to a fraternal and the other maternal but others fraternal line have 2 each degree, each line would be entitled to 2 LC.
S: I said ONLY 1 CH or 2 SAME katulad ng sagot ni Gonzales. Ang ascendants na yan hindi ba ½?
Y: Yes
S: ½ rin kaya di responsive. So do you agree?
Y: There is an exception that when the spouses has been living together for 5 years then we go back to ½
S: IOW, you agree that 1 one of the spouses dies within 3 months.
Y: No 3 months from the marriage.
S: So that is correct?
Y: Testator
S: Ang point ko is did Gonzales died, specified who was at the point of death and who died?
Y: No
S: IOW, for the ⅓ to apply sino dapat mamatay?
Y: Testator
S: Who cares if may will?Mag iiba? WALA, who cares kasi legitime ang pinag uusapan natin. For ⅓ to apply, the one who was at the point of death should be the one to die within 3 months from the time of marriage and include the qualifications. For ⅓ to apply, they must not be living together for 5 years as husband and wife kasi if they do babalik sa ½.



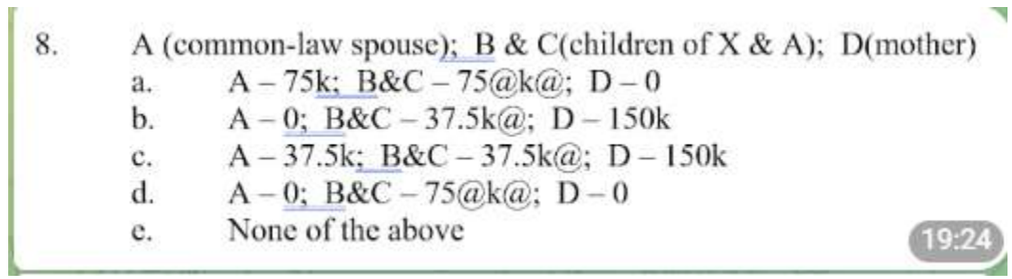

**ANS:** C

**LEGAL BASIS:** 894 guys pwede ko kapa butang provision
ART. 894. If the testator leaves illegitimate children, the surviving spouse shall be entitled to **one-third of the hereditary estate of the deceased and the illegitimate children to another third**. The remaining third shall be at the free disposal of the testator. (n)

SS = ⅓ = 100

IC = ⅓ = 100/5 = 20k@each

**APPLICATION:**




**ANS:** B.

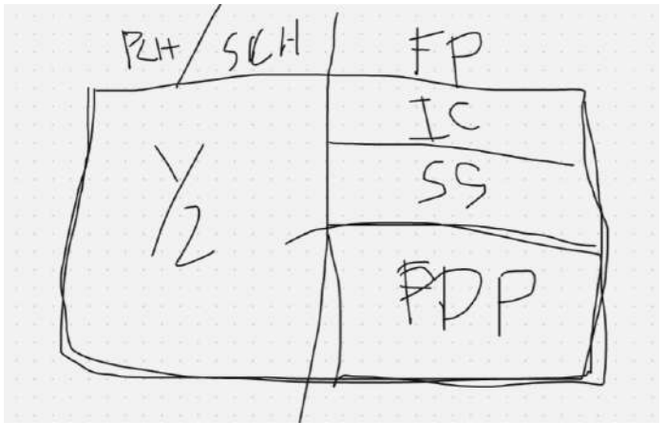
**LEGAL BASIS:**

A = 0 dapat kasal common law. Not a CH

B&C (IC di kasal ang parents so IC ang children) = ¼ = 75k/2 = 37.5k@each

D = ½ of the hereditary estate = 150k

**APPLICATION:**




SIR: to compute their legitimes, out of these estate. Yung ½ na yan will go to the primary compulsory heirs. Kung wala, secondary. Kaya baka mas maganda, you start with them kasi kalahat sila palagi. Kasi whether LC, kung wala LP or Ascendants, this is ½. Titingnan mo nalang yung kalahati. Ang tawag sa kabila ay Free portion but not freely disposable why? Because dito kukunin legitime ng IC and SS. kung may matira, this one, ang tawag dito ay freely disposable portion. After hatiin sa IC and SS. ito lang ang pwedeng idispose ng testator to other persons. Pag nasatisfy na ito, pwede na ito ipamigay. But sometimes, walang freely disposable portion (FDP) . **When?** yan ay kung maraming IC kesa LC. pag dumoble ang IC kesa LC, beware. Baka maimpair ang LC if 2:2 is to 1:2 ka.

9. A & B(Full Blood Brother); C (Half Blood Sister)
   a. A&B – 75k@; C – 37.5k
   b. A&B – 75k@; C – 75k
   c. A&B – 75k@; C - 0
   d. A&B – 0; C - 0
   e. None of the above

19:24

**ANS:** D

**LEGAL BASIS:**
AB = 0

C = 0
Not Compulsory Heirs.

**DISCUSSION:** Not compulsory heirs both so no legitime.

10. A(PaternalGrandMother); B (PaternalGF); C (MaternalGF)
    a. A – 75k; B – 75K; C – 75k
    b. A – 50k; B – 50K; C – 50k
    c. A – 0; B – 0; C – 0
    d. A – 37.5k; B – 37.5K; C – 75k
    e. None of the above

19:24

**ANS:** D.

**LEGAL BASIS:**
35.5k - 35.5k - 75k
A & B = ½ from parents of X = ¼ = 75k/2 = 37.5k@each
C = ½ from parents of X ½ = 75k

**DISCUSSION:**
S: IOW, baka mas maganda may sagot ka na tapos tsaka mo i-explain. Of course you might have arrived to that answer saka ka mag explain.
Eto pare-pareho lang sila. CH of the same kind kaya ang legitime nila ay ½ so doon ka magsisimula so that means 150k. Kaya lang i-divide mo ba into 3, No. Why? In ascending line you divide it into 2, yong legitime i-divide mo 2 and then ¼ to the paternal and maternal. Yong maternal mag isa edi ¼ and yong paternal 2 sila kaya divided by 2 pa sya kaya letter D.

## Quiz 8

1. The creditors of the reservista may be able to claim the property subject of reservation upon the death of the reservista.

**ANS:**

**LEGAL BASIS:**

**DISCUSSION:**
G: True, when? When there is no *reservatoria*.
S: What if there are reseravatario?
S: You agree with whom I?
I: I did not review in this topic.
S: Ang question is may lang? Yes, if there are no reservatarios but even if buhay pa sila if nagrenounce sila lahat then ang creditors pwede magclaim kasi mapupunta sa estate ng reservatario ang property na yon.

2. Preterition is the omission of a compulsory heir in the direct line in the will.

**ANS:**

**LEGAL BASIS:**

**DISCUSSION:**
G: Omission of CH in the
S: IOW, if this CH is not mentioned in the will. Is it possible that he was not preterited?
G: Yes, if there are other
S: IOW, if there are other properties are not disposed of? If all are disposed of, the heir who was not mentioned in the will should be considered as preterited?
G: He would not be considered as preterited if before the death, he was already given a part.
S: IOW, preterition is not just the omission in the will but in the INHERITANCE. Aside from walang binigay sa kanya sa will, dapat LAHAT ng properties disposed of sa iba and wala syang natanggap from the testator kaya preterited.

3. There may be a *reserva troncal* even if property went to an heir who is from the same line of the praepositus and from where the property came from.

**ANS:**

**LEGAL BASIS:**
Why the need to reserve if the property went to this person who went from the same line? EX: From X napunta sa apo nya tapos from apo napunta sa anak nya. From GC to C, why would there be a need for reservation?
**S:** The child of the testator has a spouse, kung hindi to reservable property mapupunta sa spouse so mapupunta sa isang tao na hindi from not the line so true.

4. The disinheritance is without effect if the will failed to comply with the solemnities prescribed by law.

Y: False, there may be imperfect disinheritance when there is an attempt from the testator of the legitime without the formalities.
I: If the will is invalid, the disinheritance is void.

S: IOW, if there is failure to comply with the solemnities then the will is void then walang effect ang disinheritance. Ang IDH presupposes that the will is valid and merong nagclaim of course tama naman na di valid na disinheritance but it does not mean na void ang will. When would there be disinheritance?
Article 918. Disinheritance without a specification of the cause, or for a cause the truth of which, if contradicted, is not proved, or which is not one of those set forth in this Code, shall annul the institution of heirs insofar as it may prejudice the person disinherited; but the devises and legacies and other testamentary dispositions shall be valid to such extent as will not impair the legitime. (851a)
I: If it not within the grounds provided by the law.
S: It is not one of the grounds. May ground but it is not the one provided by law.
One ground provided by law but not proven to be true if the disinheritance is questioned.
Sa 3, this is imperfect disinheritance because not valid but there is no disinheritance nonetheless, hindi deprived but di rin nya makukuha lahat kaya TRUE.

5. If the ascendant acquired the property through a will, there is no reservation.

ANS: False.

S: On its face, there will be reservation because the law requires that ascendants should acquire property by operation of law. If through will, not operation of law. May reservation as to the legitime of the ascendant kasi kahit walang will, entitled siya sa elgitime. otherwise, masucircumvent yung law through reserva troncal. Edi bigyan mo ng will para di ma circumvent.

6. Preterition shall annul the institution of heirs insofar as it may prejudice the person preterited; but the devises and legacies and other testamentary dispositions shall be valid to such extent as will not impair the legitime.

**ANS:**

**Legal Basis:**
I: Preterition is not correctly described, this is for disinheritance.
S: Which is wrong ang mali is ang "insofar as it may prejudice the person preterited" the annulment is always total walang qualification. Somehow, I has a point – disinherited for the IDH. Here, preterition but the legacies and devisees bla bla bla.
Is it possible for the PH to be entitled to a share which is more than his legitime? YES, ex. ¼ but the institution pertains to ½ of the estate so ang ¼ ibibigay but the remaining ¼ will be distributed to the CH and 1 man sya sa CH then makarecieve sya. But ex. Institution nya is ⅛ and ¼ sya, ang mangyayari legacies and devisees is babawasan lang to complete the legitime of the PH.

**Discussion:**

7. Upon the death of the reservista all the reservatarios who survived shall inherit.

**ANS:** FALSE

**Legal Basis:**

**Discussion:**
If all the reservatarios who survive or inherit, ang tawag ay resreva integral. We dont follow this concept. SC would tell us that should be apply intestate succession. Pwede yung proximity, iron curtain rule etc.

8. The children and descendants of the person disinherited shall take his or her place and shall preserve the rights of compulsory heirs with respect to the legitime.

**ANS:** TRUE

**Legal Basis: Article 923.** The children and descendants of the person disinherited shall take his or her place and shall preserve the rights of compulsory heirs with respect to the legitime; but the disinherited parent shall not have the usufruct or administration of the property which constitutes the legitime. (857)

**Discussion:**
If you remember 1035, if the heir is incapacitated,
Article 1035. If the person excluded from the inheritance by reason of incapacity should be a child or descendant of the decedent and should have children or descendants, the latter shall acquire his right to the legitime.
The person so excluded shall not enjoy the usufruct and administration of the property thus inherited by his children

Is the rule here the same if the heir is incapacitated? YES. the rule is the same. Ang descendants will only be entitled with respect to the legitime

9. The grandchild of the brother of the praepositus may inherit by right of representation.

**ANS:** FALSE

**Legal Basis: under the PH law. pwede lang magmana hanggang children of the brothers and sister.**

**Discussion:**
SIR: yung grandchild pwede from the same line. Grandchild siya ng brother ng preapositus. Yung prepositus pwede galing sa isang line.
Cannot inherit, by express provision of the law sicne we follow intestate succession, the right of the representation of the collateral line extends only to the children of brothers and sisters. Kaya

The grandchild can inherit in his own right? Yes. Maski mag-isa nalang siya na heir upon the death of X magmamana ba siya? YES. pag siya pinaka proximate. Kasi legal heir pa siya within the 5th civil degree. Eh 4th lang siya. Di siya sa right of representation but pwede in his own right.

10. The disinheritance is without effect if the testator did not specify the cause.

**ANS:** FALSE

**Legal Basis: Effect is imperfect disinheitance.** It would result to the annulment of the institution of

**Discussion:**

11. There may be preterition even if:
    a. the deceased died intestate
    b. not all the properties were disposed of in the will
    c. the heir is not legitimately related to the testator
    d. the heir was disinherited
    e. none of the above

**ANS:** C. as long as the heir is a compulsory heir in the direct line, he may be preterited. And the law does not qualify. Di nirerequire the legitimate and relations.
**Legal Basis:**
Jurisprudence yan
**Discussion:**

12. The following heirs cannot be preterited, except:
a. instituted heir b. legatee c. devisee d. great grandfather e. none of the above

**ANS:** di ko alam to D yung sagot ko
Tama yung D.
**Legal Basis:**

**Discussion:**
does not matter if ascending or descending as long as in the direct line, then they can be preterited.
S: Bakit hindi ang legatee
T: Not B and C: since they are given a particular property; therefore not omitted
SIR: kung merong legatee, ang legatee di pwede mapreterited kasi binigyan siya. Preterition is the total omission from the inheritance.

13. A, B, C and D survived X. A is the surviving spouse. B is the child of the brother of X. C is the child of X with his paramour. D was given a car in the will of X. Who can validly claim preterition?
a. A b. B c. C d. D e. None of the above

**ANS:** C

**Legal Basis:**
Not A - Surviving spouse is not in the direct line or the compulsory heir in the indirect line. , therefore cannot be preterited.
Not B - child of the brother of X is not in the direct line therefore cannot be preterited.
Not D- because he is a legatee, something was given to him
**Discussion:**

14. For a property to be a reservable property, it must come from:
a. ascendant of the praepositus
b. descendant of the praepositus
c. brother of the reservista
d. sister of the reservatarios
e. none of the above

**ANS:** E. because it must come from ascendant or brother or sister.
E → kasi pwede sa brother or sister.
**Legal Basis:**

**Discussion:**

15. For a property to be a reservable property, it must be transmitted from an ascendant to a descendant by:
a. dation in payment
b. onerous title
c. operation of law
d. the death of the ascendant
e. none of the above

**ANS:** E. from ascendant to descendant and must come from gratuitous title.

***Why not dation in payment?*** The alienation or acquisition must be gratuitious title.
SIR: IOW, in that scenario, anong tawag sa ascendant? Origin.
SIR: ang origin in order to have a reservation has to die. NO. kasi pwede gratuitious from brother or sister ang kailangan lang ay via gratuitous title. Ang kailangang mamatay ay descendant of brother or sister kasi ang property ay galing sa kanya kaya dapat mapunta sa ascendant by operation of law.

**Legal Basis:**

**Discussion:**

16. In reserva troncal, the praepositus:
    a. acquires the rights of a usufructuary
    b. becomes an administrator of the property
    c. acquires absolute ownership over the property
    d. acquires a conditional ownership over the property subject to a resolutory condition
    e. none of the above

**ANS:** C.
SIR: ***IOW, when a property is acquired by ascendant, descendant, brother or sister,will reservation start?***
V: NO. upon the death of the prepositus and the property is inherited by operation of law by the said reservista.
SIR: IOW, if the descendant or brother or sister, died with the will, and the property is given to his ascendant, there will be no reservation?
V: Depends. There may still be reservation despite there being a will. If the will is void therefore the property can still be inherited by intestate or operation of law. If valid, there may still be reservation.
SIR: So it does not matter. ***Bakit ka pa nagkaqualify?*** IOW, dun sa scenario, kung may will and the property is given to the ascendant, will there be a reservation?
V: YES
SIR: There is a reservation, on its face parang wala kasi parang di siya operation of law kasi may will. Nonetheless, kung binigay yun pero may legitime siya, to the extent of the legitime, reservable siya.

**Legal Basis:**

17. For a reservation to arise, the property must be:
    a. a limited generic property
    b. an indeterminate property
    c. a fungible property
    d. a non-consumable property
    e. none of the above

**ANS:** E.?

**Legal Basis: Determinate property dapat.**
**Article 891. The ascendant who inherits from his descendant any property which the latter may have acquired by gratuitous title from another ascendant, or a brother or sister, is obliged to reserve such property as he may have acquired by operation of law for the benefit of relatives who are within the third degree and who belong to the line from which said property came. (871)**

**Discussion:**

18. There will be an imperfect disinheritance if:
    a. The will is void.
    b. The disinherited heir is not in the direct line.
    c. The deceased died intestate.
    d. The disinheritance was for a cause which is not provided by law.
    e. None of the above.

**ANS:** D

**Legal Basis:D**

19. The following shall be sufficient causes for the disinheritance of children, except:
a. Conviction of a crime involving moral turpitude
b. When a child leads a disgraceful life
c. Refusal without justifiable cause to support the parent
d. When a child by fraud causes the testator to make a will
e. None of the above

**ANS:** A. this is not required, the requirement is that the crime must carry within the penalty of civil interdiction

**Legal Basis: Article 919. The following shall be sufficient causes for the disinheritance of children and descendants, legitimate as well as illegitimate:**
**(1) When a child or descendant has been found guilty of an attempt against the life of the testator, his or her spouse, descendants, or ascendants;**
**(2) When a child or descendant has accused the testator of a crime for which the law prescribes imprisonment for six years or more, if the accusation has been found groundless;**
**(3) When a child or descendant has been convicted of adultery or concubinage with the spouse of the testator;**
**(4) When a child or descendant by fraud, violence, intimidation, or undue influence causes the testator to make a will or to change one already made;**
**(5) A refusal without justifiable cause to support the parent or ascendant who disinherits such child or descendant;**
**(6) Maltreatment of the testator by word or deed, by the child or descendant;**
**(7) When a child or descendant leads a dishonorable or disgraceful life;**
**(8) Conviction of a crime which carries with it the penalty of civil interdiction.**

20. This is a sufficient cause for the disinheritance of parents:
a. When the parent has been convicted of adultery;
b. The loss of parental authority;
c. The refusal to support the children;
d. All of the above
e. None of the above.

**ANS:**

**Legal Basis:**

**Article 920. The following shall be sufficient causes for the disinheritance of parents or ascendants, whether legitimate or illegitimate:**
**(1) When the parents have abandoned their children or induced their daughters to live a corrupt or immoral life, or attempted against their virtue;**
**(2) When the parent or ascendant has been convicted of an attempt against the life of the testator, his or her spouse, descendants, or ascendants;**
**(3) When the parent or ascendant has accused the testator of a crime for which the law prescribes imprisonment for six years or more, if the accusation has been found to be false;**
**(4) When the parent or ascendant has been convicted of adultery or concubinage with the spouse of the testator;**
**(5) When the parent or ascendant by fraud, violence, intimidation, or undue influence causes the testator to make a will or to change one already made;**
**(6) The loss of parental authority for causes specified in this Code;**
**(7) The refusal to support the children or descendants without justifiable cause;**
**(8) An attempt by one of the parents against the life of the other, unless there has been a reconciliation between them**

**Discussion:**
**A – spouse of the testator**
**B – As long as it is provided for the parent, then that can be a sufficient cause NOT necessarily. Pwede naman ang anak is naging 18 na.**
**C – refusal to support must be without justificable cause**

**Next meeting:** Few minutes on Legitimes including collation. principles of freely disposable portion but focus on the shares on intestate succession.

- Watch the recorded lecture for about an hour but it will be provided so you can watch at your convenience kahit anong oras and ilang beses but you cannot reproduce (dl) so hopefully Ms. Hidrosillo, coordinate with Ms. Juan.

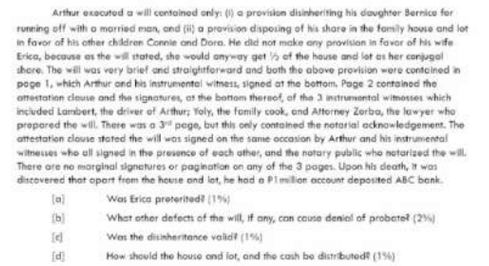
**DEADLINE OF PAPER:** At least a week after last day of exams

**DO NOT WRITE ANYTHING BELOW THIS.**

# PRINCIPLES AFFECTING LEGITIMES [Recorded Video]

| SLIDES | DISCUSSION |
|---|---|
| Principles Affecting Legitimes<br><br>Computation of Legitimes : Collation | **COLLATION**<br>**2 types:**<br>1. **Mathematical operation** - adding to the estate the value of the property donated at the time of donation.<br><br>2. **Actual return of sum of money to the estate otherwise, there would be impairment the legitime of the compulsory heir.**<br><br>In other words, collation is meant to protect the legitimes of compulsory heirs. So if the decedent died without compulsory heirs, then there is no need for collation even if there were donations made during the lifetime of the testator.<br>Or maybe, even if there are compulsory heirs, if the compulsory heirs may be the donees and the donee is the compulsory heir himself, so there will be no need for collation because his legitime would not be impaired. |
| 96. It is the omission in the testator's will of one, some or all of the compulsory heirs in direct line, whether living at the time of execution of the will or born after the death of the testator. What principle is being referred to?<br>a) reserva troncal<br>b) preterition<br>c) fideicommissary<br>d) disposicion captatoria | **B. Preterition**<br>but with all due respect to the tetstor, preterition is not the omission in the testator's will.<br>Because even if the heir was omitted in the will, there may not be preterition like if not all the properties were disposed of or maybe he received something from the testator during his lifetime.<br><br>In other words, preterition is the total omission of a compulsory heir in the direct line in the estate. Omission from the estate. |
| a) What is preterition? What are its requisites? What is its effect?<br><br>Requisites of Preterition<br>1. there must be a valid will<br>2. the will must have disposed all the properties of the testator<br>3. the heir is a compulsory heir in the direct line who must survive the testator<br>4. the heir did not receive any donation from the testator during his lifetime<br>5. the heir was not disinherited | **There must be a valid will,** because if there is no will then the heirs will inherit by intestate succession or maybe because there is a void will then, by legal succession.<br><br>**The will must have disposed of all properties of the testator.** Otherwise, he was not omitted if not all the properties were not disposed of.<br><br>**The heirs of the compulsory heir in the direct lien must survive**. Therefore, the spouse cannot be preterited because the spouse is not in the direct line.<br><br>***Q: Can an illegitimate child be preterited?***<br>**A:** Yes. as ruled by the SC in Escuin v Escuin, precisely because the law did not qualify. It only says compulsory heir in the direct line and a legitime child is a compulsory heir in the direct line<br>That the heir did not receive any |

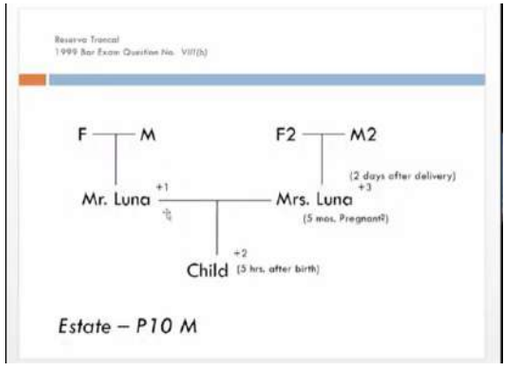
| | |
|---|---|
| | donation from the testator during his lifetime. If the heir received a donation during his lifetime, the heir was not preterited. In other words, preterition and disinheritance are 2 different concepts.Preterition is by omission. Nakalimutan lang siya.<br>Disinheritance is intentional. On purpose. Kaya magkaiba ang effects. |
| Because her eldest son Juan had been pestering her for capital to start a business, Josefa gave him P100,000.00. Five years later, Josefa died, leaving a last will and testament in which she instituted only her four younger children as her sole heirs. At the time of her death, her only property left was P900,000.00 in a bank. Juan opposed the will on the ground of preterition. How should Josefa's estate be divided among her heirs? State briefly the reason(s) for your answer. (5%) | **A: The claim of Juan should first be addressed.**<br>Juan was not preterited because he received something from her mother during the latter's lifetime, which is 100,000. Therefore, since he was not preterited, even if he was not given something in the will, his only right is to demand for completion of his legitimate in case the 100,000 is less than his legitime.<br><br>To compute the legitime, the gross estate left by Josefa which is 900,000:<br>● Add the 100,000 given to Jose, by way of collation, to contribute the distributable estate = 1,000,000<br>● Compute the legitime based on the distributable estate of 1,000,000.<br>● Legitime of the legitimate children is half of 1,000,000 = 500,000, then divide 100,000 to the 5 children<br>● Jose - 100,000 as legitime<br>● Child 2 - 100,000 as legitime<br>● Child 3 - 100,000 as legitime<br>● Child 4 - 100,000 as legitime |

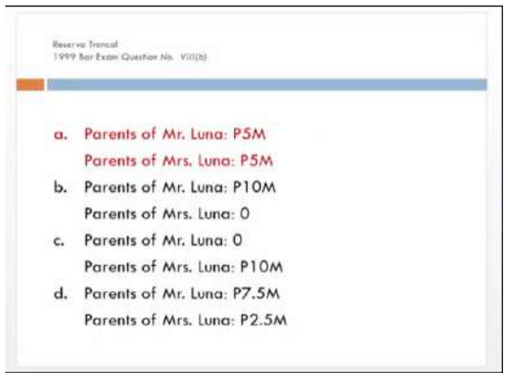
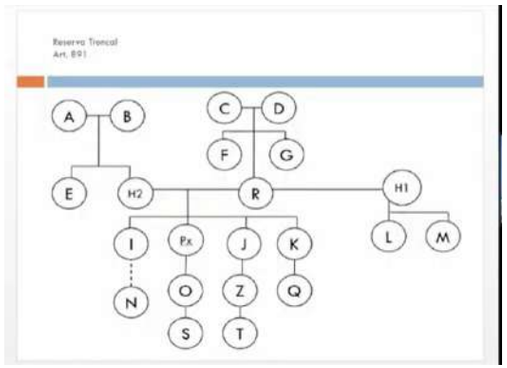
| | |
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| | ● Child 5 - 100,000 as legitime<br><br>Juan cannot demand for completion of his legitime because there was no impairment in the first place. Therefore, the disposition in the will of Josefa of her 4 younger children is a valid disposition and thus the 900,000 has to be divided equally among the 4 younger children. |
|  <br>Arthur executed a will contained only: (i) a provision disinheriting his daughter Bernice for running off with a married man, and (ii) a provision disposing of his share in the family house and lot in favor of his other children Connie and Dora. He did not make any provision in favor of his wife Erica, because as the will stated, she would anyway get ½ of the house and lot as her conjugal share. The will was very brief and straightforward and both the above provision were contained in page 1, which Arthur and his instrumental witness, signed at the bottom. Page 2 contained the attestation clause and the signatures, at the bottom thereof, of the 3 instrumental witnesses which included Lambert, the driver of Arthur; Yoly, the family cook, and Attorney Zorba, the lawyer who prepared the will. There was a 3rd page, but this only contained the notarial acknowledgement. The attestation clause stated the will was signed on the same occasion by Arthur and his instrumental witnesses who all signed in the presence of each other, and the notary public who notarized the will. There are no marginal signatures or pagination on any of the 3 pages. Upon his death, it was discovered that apart from the house and lot, he had a P1million account deposited ABC bank.<br>[a] Was Erica preterited? (1%)<br>[b] What other defects of the will, if any, can cause denial of probate? (2%)<br>[c] Was the disinheritance valid? (1%)<br>[d] How should the house and lot, and the cash be distributed? (1%)<br><br>Arthur executed a will which contained only: xxx (ii) a provision disposing of his share in the family house and lot in favor of his other children Connie and Dora. He did not make any provision in favor of his wife Erica, because as the will stated, she would anyway get ½ of the house and lot as her conjugal share. xxx Upon his death, it was discovered that apart from the house and lot, he had a P1million account deposited with ABC bank.<br>[a] Was Erica preterited? (1%) | (a) No. not only because she is not a compulsory heir in the direct line and only compulsory heirs in the direct line can be preterited. But also because not all the properties were disposed of in the will kasi it was discovered that apart from the house and lot, he had P1M deposited with ABC Bank. |

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| What is the effect of *preterition* ? (1%)<br><br>(A) It annuls the devise and legacy<br>(B) It annuls the institution of heir XXXXX Art. 854<br>(C) It reduces the devise and legacy<br>(D) It partially annuls the institution of heir | **B.**<br>It annuls the institution of an heir, but respecting the legacies and devises as long as they are not inofficious. If an heir is preterited, the instituted heir will get nothing from the institution. The annulment is total. |
| Reserva Troncal | If preterition protects the legitime of compulsory heirs, reserva troncal qualifies or limits the compulsory heirs' rights to legitime. Ordinarily, if a person is the owner of certain property, upon his death it will go to his children, but not if the property is a reservable property in reserva troncal. |
| A) What is the reason or rationale for *reserva troncal*? | Reserva troncal retains the property to the family. |
| B) May the reservor (reservista) dispose of the reservable property-<br><br>(1) By acts inter vivos?<br>(2) By acts mortis causa? Reasons. | 1. Yes. The reservista acquires ownership over the property, therefore he or she can validly dispose of such property by acts inter vivos, subject to the rights of the reservatorios.<br>2. No. Ordinarily cannot dispose this property to take effect upon his death, because upon his death, the property will not form part of his estate because it will go to the reservatorios, unless at the time of his death there are no reservatorios who survived, or if they are all incapacitated, or they have all renounced. In those instances, the disposition of the property to take effect upon the death of the reservor may be given effect.<br><br>In trying to understand reserva troncal, I would encourage you to seriously consider these 4 parties |
| Reserva Troncal : Parties<br><br>1. origin<br>2. *praepositus*<br>3. *reservista* or reservor<br>4. *reservatarios* or reservees | **Origin** - the person from whom the property came from. Siya yung pinaggalingan ng property.<br><br>**Praepositus** - the person who acquires the property which is a determinate property like a specific parcel of land, who acquires the property by gratuitous title.<br><br>By gratuitous title, not that the praepositus may be a descendant or a brother or sister of the origin. By gratuitous title, need not therefore be inherited. Pwede hin donated to the praepositus. Pero when the brother or sister acquires the property by gratuitous title, there is no reservation yet.<br><br>At that point in time, he acquires absolute ownership over the property so he can dispose his property as he wishes. Pero the moment that the property is acquired by an ascendant, the reservation starts. Because the law requires that the property be acquired by an ascendant of this descendant or brother or sister, what is required by law is that the descendant or brother |

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| | or sister must die.<br><br>Therefore, because the reservation already started, you can call the descendant or brother or sister as praepositus and the ascendant who acquired the property by operation of law is the reservista or the reservor.<br><br>**The reservista** will validly acquire ownership. This ownership is not absolute and is subject to a double resolutory condition, that upon his death, and there are at least 1 reservatario that survived, the proeprty may not form part of the property of the reservista because it will be inherited by the reservatarios.<br><br>**To be a reservatario**, he must be from the lien of the origin. So kadugo siya ng origin and at the same time, he must be within 3 degrees from the praepositus.<br><br>In other words, ang pinagmanahan talaga ay ang praepositus at hindi yung reservista kasi yung praepositus yung may absolute ownership. Kaya within 3 degrees from the praepositues, but he must survive the reservista. He must be living at the time of the death of the reservista. |

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| **TRUE or FALSE.** Answer TRUE if the statement is true, or FALSE if the statement is false. Explain your answer in not more than two (2) sentences. (1% each)<br><br>[b] In *reserva troncal*, all *reservatarios* (reservees) inherit as a class and in equal shares regardless of their proximity in degree to the *prepositus*. | **False.** This is known as reserva integral, but the Philippine law does not follow this concept because the Supreme Court would consistently rule that in reserva troncal, the rules on intestate succession shall apply. In other words, even if there are 15 reservatarios because all of them are from the line of the origin and within three (3) degrees from the prepositus, some rules in intestate succession may exclude some reservatorios, such as the rule on proximity or the iron curtain rule.<br><br>Kaya, reserva integral has not been adopted in this jurisdiction, we follow the rules on intestate succession |
| (b) Mr. Luna died, leaving an estate of Ten Million (P10, 000,000.00) Pesos. His widow gave birth to a child four months after Mr. Luna's death, but the child died five hours after birth. Two days after the child's death, the widow of Mr. Luna also died because she had suffered from difficult childbirth. The estate of Mr. Luna is now being claimed by his parents, and the parents of his widow. Who is entitled to Mr. Luna's estate and why? | **NOTE:** A common mistake is to give us an answer that the widow is entitled or the child is entitled because they are already dead. They are already dead, so as to who is entitled, it is only as to the parents of Mr. Luna and the parents of Mrs. Luna. sino sa kanila ang entitled and how much.<br><br>Take note the question of the examiner is entitled not inherit. Of course the parents of the widow will not inherit from Mr. Luna because they are not heirs of Mr. Luna and there appears no will in the problem. However, the parents of Mrs. Luna maybe entitled of the portion of the estate of Mr. Luna, not because they are directly related but they may have inherited what their daughter inherited from her husband. Kasi when Mr. Luna died, buhay pa ang |

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| | asawa niya. Kaya baka nagamana ang widow.<br><br>**But as to who inherited from Mr. Luna** → A common mistake is to claim that the child did not inherit because he dies within 5 hours after birth, therefore did not acquire juridical personality, claiming that his intra uterine life was only 4 months. That is not necessarily true because the widow gave birth 4 months after Mr. Luna's death it is possible that the child had an intra uterine life of at least 7 months. For all you know, the widow was already 5 months pregnant at the time of the death of her husband. Kaya 4 months after full term na ang baby, kaya ipinanganak and therefore if the child was born with an intra uterine life of 6 months, the child acquired juridical personality even if the child died hours or minutes after birth. IOW, who is entitled here the answer is, ito ang scenario (see next slide) |
|  | First, Mr. Luna died, siya ang unang namatay, survived by his parents and Mrs. Luna. 4 months later gave birth to the child who died 5 hours after death. But after the death of the child , 2 days after Mrs. Luna also died. Kaya ang natitira na lang ay the parents of Mr. Luna and the parents of Mrs. Luna.<br><br>Now as to who is entitled, in fact each of them 2.5 M (the parents of both side). But there are 2 scenarios here:<br>1. If the child had an intra uterine life of less than 7 months, baka at the time fo the death ofMr. Luna, baka 2 months pregnant lang si Mrs. Luna, so 2 plus 4 edi 6 lang. Then the child did not inherit, ang magmamana ay ang parents ni Mr. Luna and si Mrs. Luna, 50-50. But what Mrs. Luna inherited will go to her own parents kaya, 5 M parents ni Mr. Luna, 5M parents ni Mrs. Luna<br>2. But if the child had an intrauterine life of at least 7 months, the child inherited from Mr. Luna, so this would be 5 M sa child, 5 M kay Mrs. Luna. Pero the child died after a few minutes, a few hours. And therefore what the child inherited, will be inherited by Mrs. Luna, not by the grandparents because of the proximity rule. IOW, the entire estate nasa kay Mrs. Luna na. But so when Mrs. Luna, ***does it mean that the entire estate of Mr. Luna will be inherited by the parents of Mrs. Luna?*** The answer is NO, as far as half the estate which MRs. Luna directly inherited from Mr. Luna, such would go to her parents, so 5M. But as far as the 5M which Mrs. Luna inherited from her child, those are reservable properties. Because the property was acquired by gratuitous title by a descendant and it was thereafter |

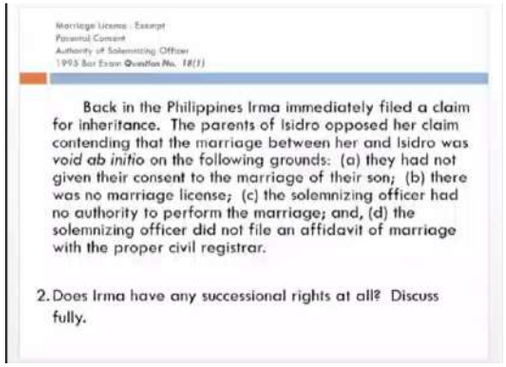
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| | acquired by an ascendant by operation of law and therefore when Mrs. Luna died, that would go to the reservatarios and in this case there is no other reservatarios except the parents of Mr. Luna. So the parents of Mr. Luna will be also be entitled to 5M because of the reservation even if the child inherited half of the estate of his father. |
|  | So the answer is parents of Mr. Luna 5M, parents of Mrs. Luna 5M but different explanation |
|  | This one, if the property came from H2, the origin and it went to descendant Px and it went to an ascendant, maybe the mother of Px (R ), so ang prepositus si Px. ***Si N can he inherit as a reservatario?*** He is from the line of H2, he is within 3 degrees from the prepositus but he cannot inherit, ***Why?*** Because the iron curtain rule applies. Here only legitimate relatives may inherit the property as a reservatario.<br><br>***Si L, reservatario ba siya?*** The answer is NO, although he is within 3 degrees |

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| | from the prepositus, but he is not from the line of H2.<br><br>Now kung ang nag survive lang is si E at tsaka si Z, dalawa lang. Pareho sila 3 degrees, uncle ito or auntie ni Px. Si Z pamangkin ni Px, parehong 3 degrees from Px, parehong from the line of H2. But only Z would inherit because we follow the rules on intestate succession and Art. 1009, in the collateral line, the relatives in the collateral line will only inherit if there are no brothers, sisters, nephews and nieces. So between nephews and nieces and uncles and aunties, and preferred ng batas ay nephews and nieces, kaya si Z ang magmamana.<br><br>Last, kung ang nag survive ay si Q at si T, dalawa lang sila, upon the death of the reservista, silang dalawa lang. ***Who may inherit?*** Si Q lang. ***Why?*** In the first place, T is already 4 degrees, hindi na siya within 3 degrees. He cannot also claim right of representation, to represent his father or grandfather because ang right of representation in the collateral line, extends only to the children of brothers and sisters, hanggang kay Q lang and Z. Kaya si T can no longer invoke right of representation. |



Marriage License : Exempt
Parental Consent
Authority of Solemnizing Officer
1995 Bar Exam Question No. 18(1)

Isidro and Irma, Filipinos, both 18 years of age, were passengers of Flight No. 317 or Oriental Airlines. The plane they boarded was of the Philippine registry. While en route from Manila to Greece some passengers hijacked the plane, held the chief pilot hostage at the cockpit and ordered him to fly instead to Libya. During the hijacking Isidro suffered a heart attack and was on the verge of death. Since Irma was already eight months pregnant by Isidro, she pleaded to the hijackers to allow the assistant pilot to solemnize her marriage with Isidro. Soon after the marriage, Isidro expired. As the plane landed in Libya Irma gave birth. However, the baby died a few minutes after complete delivery.



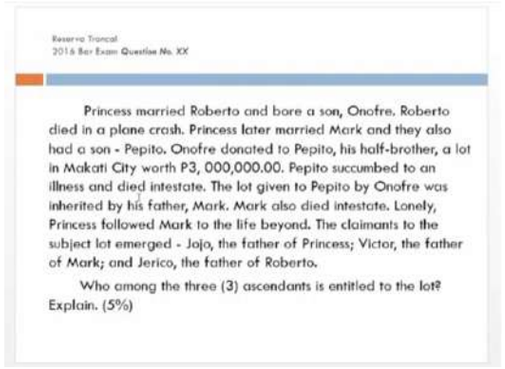
Marriage License : Exempt
Parental Consent
Authority of Solemnizing Officer
1995 Bar Exam Question No. 18(1)

Back in the Philippines Irma immediately filed a claim for inheritance. The parents of Isidro opposed her claim contending that the marriage between her and Isidro was *void ab initio* on the following grounds: (a) they had not given their consent to the marriage of their son; (b) there was no marriage license; (c) the solemnizing officer had no authority to perform the marriage; and, (d) the solemnizing officer did not file an affidavit of marriage with the proper civil registrar.

2. Does Irma have any successional rights at all? Discuss fully.

This one, (read the situation in the slides).

***Does Irma have successional rights at all?*** The answer is YES. As we discussed this already that the marriage is valid, and therefore as the surviving spouse, meron siyang successional rights. But also the child, also inherited because although the child died a few minutes after complete delivery, the child was already 8 months old when the child was delivered, and therefore, at least 7 months, and therefore acquired juridical personality and will be able to inherit. So what the child inherited, upon the child's death, will be inherited also by Irma, although that would be subject to reserva troncal, to a reservation because again the child acquired it by gratuitous title and then it was acquired by Irma by operation of law.



Reserva Troncal
2016 Bar Exam Question No. XX

Princess married Roberto and bore a son, Onofre. Roberto died in a plane crash. Princess later married Mark and they also had a son - Pepito. Onofre donated to Pepito, his half-brother, a lot in Makati City worth P3, 000,000.00. Pepito succumbed to an illness and died intestate. The lot given to Pepito by Onofre was inherited by his father, Mark. Mark also died intestate. Lonely, Princess followed Mark to the life beyond. The claimants to the subject lot emerged - Jojo, the father of Princess; Victor, the father of Mark; and Jerico, the father of Roberto.

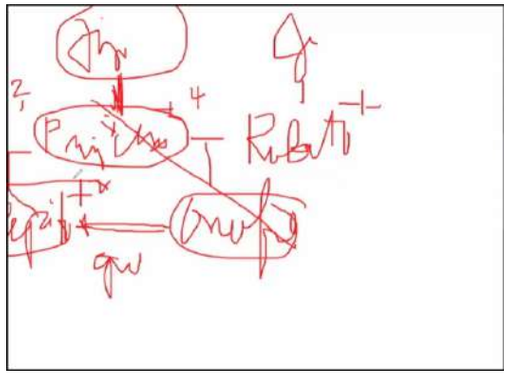
Who among the three (3) ascendants is entitled to the lot? Explain. (5%)

This is I think the last bar exam problem involving reserva troncal.

(Read the situation in the slide)

***Who among the 3 ascendants is entitled to the lot?*** Again it would be, I would always encourage everyone to have a visual representation or mag drawing, example here (See second slide for the drawing).

Drawing Slide: Ang scenario dito here ay



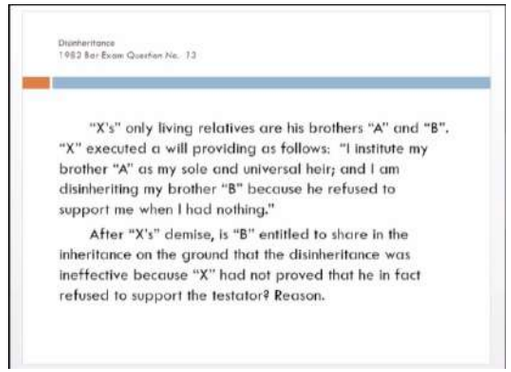
Note: utod pag show ya sa screen fjskajfk wala ya gid gin move hahaha mark na da ang tupad ni princess

si princess married roberto, pero si roberto ang unang namatay, but they had a child first na si onofre. Pero nung namatay si roberto, princess married mark ,and they had a child si pepito. So itong si onofre and pepito ay half blood brothers, same mother. And itong si onofre ang nag donate ng lupa kay pepito. Kaya lang si pepito died and the property was inherited by mark, and then si mark died, si princess died, nauna muna si mark. IOW, when this property was donated, this is from onofre to a half brother, this is by gratuitous title, and then this was inherited by Mark by operation of law. So si mark reservista na. Nung namatay, na napunta ito kay princess kasi princess is from the line of the origin (onofre), and within 3 degrees from the prepositus, si pepito. So napunta kay princess, so siya na may ari, absolute owner na siya, si mark reservista.

***And therefore nung namatay si princess, sino ang entitled, yung tatay ni mark na si victor, ang tatay ni princess na si jojo or ang tatay na si roberto na si jericho?*** Ang sagot si JOJO, because si princess an ang may ari ng lot , kaya sa kay jojo na mapunta. Take note, hindi tinanong si onofre apparently hindi siya nag-ceclaim, yung tatlo lang (the fathers). Therefore when princess died, his only heir from the facts, si jojo, hindi si victor, hindi si jericho.

Again ang reservation started when

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| | mark acquired the property by succession from pepito, reservista siya, kaya nung namatay siya, napunta sa reservatario, si princess, near in degree kay pepito, nanay niya eh. |
| | **CAUSES OF EXTINGUISHMENT OF RESERVATION:**<br><br>1. When reservista dies<br>2. If the property which is a determinate thing is lost or destroyed due to a fortuitous event, of course there would be extinguishment<br><br>With all due respect, renunciation of heirs, will not extinguish the reservation. Because if the heirs, the reservatarios, renounce after the death of the reservista, there's nothing more to extinguish because patay na ang reservista. But if the reservatarios renounce before the death of the reservista, the reservation is not extinguished because there may be other heirs who may be born before the death of the reservista, they would not be bound by such reservation and the renunciation has no effect because the reservista is still alive. They don't have a vested right which they can renounce before the death of the reservista. |

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|  | **DISINHERITANCE**<br><br>Let's start with this bar exam problem.<br><br>(Read the situation in the slide)<br><br>**Take note** the examiner is not even arguing or saying that the a brother cannot be validly disinherited.<br><br>Ang ground that the inheritance was ineffective was because X had not proved that he in fact refused to support. It was a question of fact but really the brother who are not compulsory heirs or heirs who are not compulsory heirs, can they be validly disinherited?<br>**ANS:** I fully agree with Tolentino that they can be validly disinherited because of the reason is if a compulsory heir who is validly protected by law can be disinherited why not heirs who are not compulsory heirs. |
| **Article 915.** A compulsory heir may, in consequence of disinheritance, be deprived of his legitime, for causes expressly stated by law. (848a) | This did not in any way tell us that only compulsory heirs may be disinherited but only compulsory heirs maybe deprived a legitime.<br>● **REASON:** The other heirs do not have legitimes.<br><br>Again, CH can be deprived of legitimes more so other heirs maybe deprived of other shares in the inheritance.<br><br>BUT, ang argument that like brothers and sisters cannot be disinherited because the law does not provide for |

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| | grounds, the argument is untenable because precisely that CH, there is no need for a ground for the disinheritance so even if there is no ground for these heirs to not have a share in the inheritance that would be a valid disinheritance.<br><br>IOW, the grounds are actually meant to protect the CH, meaning that there can be no other ground to disinherit them as particular to the CH. It is an **EXCLUSIVE** enumeration of the grounds. |
| **Q:**<br><br>Arthur executed a will contained only: (i) a provision disinheriting his daughter Bernice for running off with a married man, and xxx<br><br>[c] Was the disinheritance valid? (1%) | Concretely this one [see slide] IOW, is there a ground to disinherit a daughter for running off with a married man?<br><br>**ANS:** I think so because this will fall on the ground that the child had been living a disgraceful or dishonorable life. |
| **Article 919.** The following shall be sufficient causes for the disinheritance of children and descendants, legitimate as well as illegitimate:<br>(1) When a child or descendant has been found guilty of an attempt against the life of the testator, his or her spouse, descendants, or ascendants;<br>(2) When a child or descendant has accused the testator of a crime for which the law prescribes imprisonment for six years or more, if the accusation has been found groundless;<br>(3) When a child or descendant has been convicted of adultery or concubinage with the spouse of the testator;<br>(4) When a child or descendant by fraud, violence, intimidation, or undue influence causes the testator to make a will or to change one already made;<br>(5) A refusal without justifiable cause to support the parent or ascendant who disinherits such child or descendant;<br>(6) Maltreatment of the testator by word or deed, by the child or descendant;<br>(7) When a child or descendant leads a dishonorable or disgraceful life;<br>(8) Conviction of a crime which carries with it the penalty of civil interdiction. (756, 853, 674a) | One of the grounds for sufficient causes of disinheriting a children and descendants [see (7)]<br><br>**NOTE:** Some of the causes for disinheritance are also acts of unworthiness such as (1), (2), (3), (4),<br><br>In fact incapacity is also known as legal disinheritance but ***why would the law include the grounds to disinherit if the heir anyway will be incapacitated to inherit because of such grounds?***<br>**ANS:** A good reason is because if it is in the will, it will not be forgotten. Makikita talaga and maalala and maprove rin that this heir should not have a share in |

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| | the inheritance because he was validly disinherited validly specified in the will. Whereas, kung walang will kung madisinherit, maybe no one would remember the act committed that would incapacitate the heir. |
| **Article 920.** The following shall be sufficient causes for the disinheritance of parents or ascendants, whether legitimate or illegitimate:<br>(1) When the parents have abandoned their children or induced their daughters to live a corrupt or immoral life, or attempted against their virtue;<br>(2) When the parent or ascendant has been convicted of an attempt against the life of the testator, his or her spouse, descendants, or ascendants;<br>(3) When the parent or ascendant has accused the testator of a crime for which the law prescribes imprisonment for six years or more, if the accusation has been found to be false;<br>(4) When the parent or ascendant has been convicted of adultery or concubinage with the spouse of the testator;<br>(5) When the parent or ascendant by fraud, violence, intimidation, or undue influence causes the testator to make a will or to change one already made;<br>(6) The loss of parental authority for causes specified in this Code;<br>(7) The refusal to support the children or descendants without justifiable cause;<br>(8) An attempt by one of the parents against the life of the other, unless there has been a reconciliation between them. (756, 854, 674a) | **AS TO PARENTS** [see slide]<br>(2, 3, 4, 5) an act of unworthiness<br><br>**But NO 6:** should not be read literally because if the parents loss parental authority because of the emancipation of the child as he reached the age of majority, that would not be a sufficient ground to disinherit the parents or maybe because the child was adopted by another person or a couple, that should not be a valid ground to disinherit the parents. |
| **Q:**<br><br>(2) Jose and Ana are husband and wife. On January 10, 1980, Jose learned that Ana was having illicit relations with Juan. In fact, Jose personally saw his wife and Juan leaving a motel on one occasion. Despite all the evidence he had at hand, Jose did not bring any action for legal separation against Ana. Instead, Jose simply prepared a will wherein he disinherited Ana for her acts of infidelity. The validity of the disinheritance was question by Ana upon Jose's death. If you were the judge, how would you resolve this question? Give your reasons. | **AS TO SPOUSE**<br>If Jose filed a petition for legal separation and there was such a degree, the effect of revoking of the dispositions of the will in favor of his wife and also under the law with the decree of legal separation, the guilty spouse cannot inherit from the innocent spouse by intestate succession.<br><br>HOWEVER, he did not file a legal separation but he disinherited Ana. Is this a valid disinheritance?<br>**ANS: YES.** There is a ground to |

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| **Article 921.** The following shall be sufficient causes for disinheriting a spouse:<br>(1) When the spouse has been convicted of an attempt against the life of the testator, his or her descendants, or ascendants;<br>(2) When the spouse has accused the testator of a crime for which the law prescribes imprisonment of six years or more, and the accusation has been found to be false;<br>(3) When the spouse by fraud, violence, intimidation, or undue influence cause the testator to make a will or to change one already made;<br>(4) When the spouse has given cause for legal separation;<br>(5) When the spouse has given grounds for the loss of parental authority;<br>(6) Unjustifiable refusal to support the children or the other spouse.<br>(756, 855, 674a) | disinherit because the wife gave cause for the disinheritance which is par. 4 as far as the spouse is concerned. When the spouse has given a cause for legal separation. So, hindi kailangan magfile ng legal separation to be able to disinherit the guilty spouse.<br><br>(1, 2, 3, and 4) Act of Unworthiness |
| **IMPERFECT DISINHERITANCE** | |
| Imperfect Disinheritance | This is a favorite in the bar exam. If there is a valid disinheritance, the heir cannot inherit 0 even to his legitime will be deprived kaya walang partial disinheritance IF it is a valid disinheritance.<br><br>BUT, if it is an imperfect disinheritance (ID) the heir may still inherit as to his or her legitime kung IMPERFECT and disinheritance. |
| **Q:**<br>(a) Mr. Palma, widower, has three daughters D, D-1 and D-2. He executes a Will disinheriting D because she married a man he did not like, and instituting daughters D-1 and D-2 as his heirs to his entire estate of P1,000,00.00. Upon Mr. Palma's death, how should his estate be divided? Explain. (5%) | **ANS:** D was disinherited by her father but the disinheritance was not a valid disinheritance because the ground is not one of the grounds provided by law. Then since the ground is not one of the grounds ang tawag dito ay "IMPERFECT" or ineffective disinheritance.<br>● If there is an ID, it will result to the annulment of the institution of the heir to the extent that the disinherited heir was prejudiced.<br>● But again as respect to the legacies and devisees so long as they are not inofficious. |
| a. D: 0; D-1 & D-2 : P500,000.00@<br>b. D, D-1 & D-2 : P333,333.33@<br>c. D: P166,667; D-1 & D-2 : P416,667@<br>d. D, D-1 & D-2 : P166,667@ | IOW, si D will still be entitled to her legitime although the rest of the estate will go to D1 and D2 so there is a computation of the legitime.<br><br>**COMPUTATION**<br>1. 1M / 2 = legitime of the three (3) daughters = 500k<br>2. 500k/3 = 166,667 each<br>IOW, D would be entitled to 166,667. The balance of 1M around 800+ will be divided equally by D1 and D2 around 416,667 |
| 1. without a specification of the cause,<br>2. the cause specified in the will is not one of those set forth in the Code,<br>3. for a cause the truth of which, if contradicted, is not proven. | These are the scenarios where there will be an imperfect disinheritance<br>1. No specific cause,<br>2. The cause specified in the will is not one of those provided in the Code as in the problem a while ago<br>3. When there is a cause specified in the will, and the cause is one of those provided in the code BUT, if the cause of the truth if contradicted and is not proven |
| **Q:**<br>Disinheritance<br>2019 Bar Exam Question No. 8.14<br>Prior to his death, H, married to W, with children X, Y, and Z, executed a holographic will entirely written, dated, and signed by him. In his will, H instituted W, X, and Y as his heirs, and consequently, made testamentary dispositions in their favor. H, however, expressly disinherited Z on the ground that the latter once filed a civil case against him in order to collect a particular sum of money he previously owed Z.<br>(a) Was the disinheritance of Z proper? Explain. (3%)<br>(b) Assuming that the disinheritance of Z was improper, how will it affect the institution of heirs and testamentary dispositions made in H's will? Explain. (3%) | **EX of 3:**<br>Be careful of the facts.<br>● H executed a holographic will.<br><br>a. **NO** because it is not one of the grounds provided by law for a valid disinheriance of a child or descendant.<br>b. What would happen is that, Z will still be entitled to his legitime and the rest of the estate will be divided between X and Y |

| | |
|---|---|
| | pursuant to the institution or testamentary dispositions. |

**Next meeting:**

**DO NOT WRITE ANYTHING BELOW THIS.**
**A legatee is an heir, or an heir is a legatee.**

# Collation

**SITUATION:** X was survived by A legitimate child, B – legitimate daughter, W – the widow of the son of X. ***What is the legitime of the widow?***
**ANS:** None prof because not a compulsory heir
S: Why not a compulsory heir?
G: Because he is excluded by the son
S: Wrong, Ms. Marapao.
M: I agree gets nothing but I do not agree with his…
D: What is wrong with the answer of Marapao?
M: The use of the word get because it does not necessarily mean that when there is an heir, that the heir not get something so we uses the term legitime of person X or Y.
**S: IOW,** disregard this scenario

**S:**Is it possible for widow of C to have a share in the inheritance of X?
**D**: Yes,

**S:** Ang mamanahin ni C, mamanahin ni X. Nagkataon lang na naunang mamatay si C. C predecease X. It is not that she would not get nothing but that she would not get a legitime of the CH. If you listen to the facts, ***Who si widow?*** Ang tawag sa kanya daughter-in-law.

- **NOTE:** Always ang reference ay doon sa namatay para alam niyo kung compulsory heir or hindi. It is always about the person whose succession is under consideration. Ang usapan natin dito ay si X kasi di siya compulsory heir, wala siyang legitime. You have to know who are the compulsory heirs.

**S:** ***Is it possible that the legitime of a CH would involve a specific thing?***
**G**: YES Sir , the testator could give a specific thing because it is him. . .
S: Do you agree?
M: I do not agree because the law states legitime is an aliquot.
S: That is correct, pwede naman sya bigyan ng specific thing pero hindi nya yon legitime kasi legitime is always an aliquot portion baka ½, ¼, or ⅛.

**S:** You read the case of Santiago v. Santiago?
This case was exactly asked in the 2014 Bar EXAM.

- Walang nakalagay na 20-years ang prohibition ang nakalagay but ang gusto nya is walang magmamana sa specific na property na ito kasi ang gusto nya ang mga apo nya is may place to stay when studying sa Manila.
- Otherwise, ***if 20 years, void kaya yon?***

**M:** VALID, because it complies
**S:** that the testator can prohibit the partition for a period of 20 years. But ICAB, forever kasi walang sinabi na period.

**SITUATION**: If the estate of X is 600,000. And was survived by 2 LC, A and B and in the will he instituted A and B to the entire estate as his sole heirs. However, he required B to give to Y 15,000 a month for a period of 1 year. How much would Y be entitled. How much should B give to Y?
**G:** Since A and B are legitime children, B is entitled to 150k and Y is entitled for a year, to 180k.
Do you agree?
**M:** 180k for Y ***so you do not agree?*** No. it would prejudice the legitime of B.
**SIR:** Pano mo nalaman?
**M:** The legitime of B is 150k and the FDP is 150k the entire estate ang legitime of legitime children is ½ which is 300k.
**SIR:** Huwag ka talon ng talon. Dapat tama ang operations mo. ang legitime ni A and B is half of the estate, they will have to divide. IOW, what B will receive from FDP will only be 150k. The legacy in favor of Y cannot impair the legitime of B. There can be no burden on the legitime of compulsory heirs.

**SIR:** Now, Mr. Gaurana. ***What is the purpose of collation?***
**M:** protect the legitimes of the compulsory heirs.
**SIR:** ***If the testator, made an alienation during his lifetime, will it be subject to collation?***
**M**: No it depends as to whom it is donated. If it is given to CH, it would be subject to collation.
**S**: If it is given to someone who is not a CH, there will be no collation?
SIR: it was dependent on to whom it was given?
D: Yes.
**SIR:** Wrong. First or foremost, whether alienation be subject to collation.
**S**: It depends whether it is gratuitous or onerous.

S: Apparently, you do not know the gratuitous or onerous. ***In succession, is there a distinction whether the donation is gratuitous or onerous? What is an example of onerous donation?***
M: If the donation is subject to a burden or condition. This is an onerous donation.
**SIR:** but donation pa rin siya. Whether or not an alienation be subject to collation, it will depend on whether gratuitous or onerous so if sale ito ng property is it subject to collation?
**M:** No Prof

**EX:** If the parents of one of the children, spent for the renovation of the house of that child. ***Is it subject to collation?***
**SIR:** YES, if sila ang gumastos sa pabahay, baka it is a collation kasi baka maimpair ang legitime ng ibang anak.

**SIR:** ***Can X validly dispose in a will his entire estate to a friend?***
**M:** He can if he has no compulsory heirs
**SIR:** Or maybe, if his compulsory heirs are incapacitated or disinherited, di porket walang CH ay hindi na pwede.

**SIR:** If the donation is in favor of 3 compulsory heirs, ***will it be subject to collation?***
**H:** YES, because
**SIR:** di mo malaman na may impairment hanggang di ka nagcocollate. Si X donated a specific property to his 3 compulsory heirs, ***will there be a need for collation?***
**SIR:** No need kung sila lang ang compulsory heirs and if pare-pareha silang legitimate children and ang donation equal naman. BUT if all of them are legitimate children but iba iba ang shares sa donation like ⅛ yung isa tapos ¾ yung isa, dapat kang magcollate because there may be impairment of legitimes of 2 children na ⅛ lang ang share.

**SIR:** It was mentioned kanina that there may be a need for collation if it was a donation to CH. if you read the letter of the law, opposite ang sinasabi. Pag to CH, not subject to collation. But that is wrong. What is meant by the law is that.:

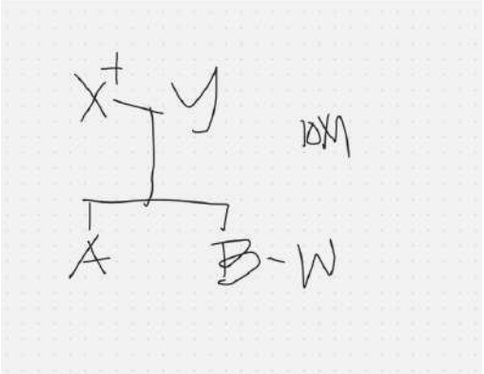
- **EX:** A property was donated to one of the CH and the testator specifically instructed that this donation should not be a subject of collation, thus with this intention of the testator, it will not be the subject to collation, ***correct?***

***Do you agree?***
**M**: Subject to collation but not subjected to the legitime.

**S:** It will not be charged to the legitime but to the FDP even if the law apparently tells us that it is not subject to collation. There is but charged to the FDP. Otherwise, it would effectively circumvent in the law of legitime kasi pwede na pala maimpair.

**SIR:** ***In the 1st place, in collation, the property donated will have to be returned to the mass of the estate?***
**D:** No. it will be the value of the property that has to be collated.
**SIR:** ***even if there is an impairment to the legitime of CH?*** IOW, it will have to be returned.
***It can be the property donated?*** IOW, there are 2 kinds of collation.
**S:** 1st type is just a mathematical donation, at which point? At the point of the donation. From the time of the donation, if there are fruits, who is entitled to the fruits?
**D:** It depends if the testator, states in the will. . .
**23:** No, it must be the donee because the donation was already valid.
S: Donee ang entitled the premise of collation is valid ang donation kasi if void then no need to collate kasi part pa sya ng estate.
**S:** IF the donation is in favor of the father of the deceased, and the deceased was survived by his own children, ***subject to collation?***
**D:** No.
**SIR:** Subject to collation yan kasi baka maimpair ang legitimes ng mga anak niya. Ang tatay na yan would be ordinarily be excluded by LC. Assuming that at least 1 of the children will inherit, ***that donation will be chargeable to?***
**S:** Free disposable portion (FDP)
**SIR:** Correct. Parang stranger ang tatay diyan kasi di naman siya magmamana eh. Ichacharge mo lang sa legitime ng 1 heir kung magmamana siya. Otherwise, ichacharge mo sa free portion.

**SITUATION:** X and Y, may dalawang anak, Si A and B. B was about to be married to W. X and Y donated a condo unit na may value na P10M. donation was in favor of B and W. X died thereafter. ***Subject to collation? If yes, how much? And where chargeable?***




**D:** Yes, B is the CH only ½ of the 10M donated shall be collated.
**SIR**: because only B is the CH? Ano ang tawag mo kay A?
**D**: A is also a CH, in a context that B and W being donees. It is B who is the CH. therefore, because of that only 5M shall be subject to collation and chargeable to the B's legitimes.
Do you agree?
**S:** She forgot to mention.
**SIR**: it is not about that.
**L**: I do not agree. D only said that 5M is to be collated because B is the CH while X is not. According to the CC if the donation is made by both parents, ½ from the father and ½ from the mother.
**SIR:** Correct. Ang premise doon ay conjugal property nila ito or community property. Ang portion lang ng share ni X (ang namatay) ang subject to collation.
**S**: FDP because under the law it is chargeable to the FDP.
**L:** No, chargeable of the half of legitime of B and half to the FDP. so 2.5 from B and 2.5M to FDP.
**SIR:** 5M ang subject to collation kasi share ni X yun. Pag mamatay si Y edi collate ulit. Sa 5M kasi 2 ang donees on the premise na walang designation na ginawa, meaning equal sila. B CH is subject to legitime unless sabihin ni testator na huwag icharge. W is a stranger kasi daughter in law kaya chargeable to FDP.

**SITUATION**: X donated to his son, Bentley na may payong around 5M. And it was donated to A but because of the car, A died in an accident and the car was a total wreck but A was survived by his own son baka si G. ***This donation is it subject to collation and chargeable to what portion of the estate?***
**D: YES,** and chargeable if X out of his own money then chargeable to X.
**S:** NO, chargeable to the donee. X ang namatay eh.

**SIR:** Subject to collation kasi may ibang anak si X. A is only one of the children. But chargeable to which portion?
**S:** FDP if the value exceed the legitime of A.
**SIR:** Wrong! Di mo chinacharge sa legitime ng patay na. Chinacharge mo sa legitime ng tao kasi buhay siya kasi magmamana siya. If he is predecceased, di siya magmana.
**L:** Chargeable against the rights of G or the grandchild of X.
**S:** Grandchild may inherit by the right of representation. The car was donated to the father of his grandchild and the car was a total wreck. IOW, si Grandchild na anak ni A si G, baka di nga nya nahawakan ang kotse eh. Would you still maintain that the donation be chargeable to the legitime of G?
**SIR:** By express provision of the law (1064?), yes. Chargeable to legitime by right of representation. Is there wisdom to this rule?
**L:** Yes. he is inheriting by the right of representation not by his own right.
**SIR:** Correct kasi if ever excluded siya by proximity rule. So kung di siya magmamana by right of representation di sya magmamana talaga.

**SITUATION:** X died leaving an estate 50M. Survived by A as LC and B IC (nonmarital child). X donated during his lifetime (inter vivos) to B a property value of 50M. ***Will there be a need to reduce this donation in favor of B?***
**D:** Yes, the net estate is only 50M and the legitime of A is 25M and supposedly of B would only be 12.5M but ICAB, it is an indirect circumvention of the law because the 50M was donated to B the nonmarital child.
**S:** So far you agree?
**S:** I do not agree. Unless this could be repudiated by…
**Sir**: No sayno, malayo
**L:** I agree that it may be reduced since the net estate..
**SIR:** ang legitime ni A ay hindi 25M ang legitime niya ay 50M. Because si D di nagcollate. Icocollate mo muna ang donation. 50 + 50 = 100M ang estate from net estate, kalahati ang legitime ng LC. Do you still agree that need pa magreduce?
L: NO Prof because the legitime of A is no longer impaired because it is only 50M. .
S: Did you read the second par. Of 910?

- ***Article 910.*** *Donations which an illegitimate child may have received during the lifetime of his father or mother, shall be charged to his legitime.*

  *Should they exceed the portion that can be freely disposed of, they shall be reduced in the manner prescribed by this Code.*

**L:** The IC is also entitled to ½ of the legitime of 1 LC so in equal it would be equal.
**SIR:** ***The value of the property donated did it exceed the FDP?***
Magkano lang ang FDP?
**L:** 25M.
**SIR**: 50 sa LC and then 25 sa IC edi 25M sa FDP so it exceeded the FDP, would you maintain your answer?
**L:** 50M of the IC Legitime. Total net estate is 100M. 25M IC can get from 50M from Car but the donation is inofficious if collated, IC gets the complete legitime. The donation is not deemed inofficious then IC can still keep the 50M.
SIR: is there a need to reduce the donation?
SIR: Should they exceed the portion that can be freely disposed of, they shall be reduced in the manner prescribed by this Code.

- It need not be reduced because in the problem, may legitime is IC which is 25M. FDP is also 25. Ang donation is 50M. It will not impair the legitime of LC. out of the net estate of 50M mapupunta kay A, wala na kay IC pero no need to reduce the donation despite the letter of the law in Art. 910.

**SITUATION:** X died intestate in 1989 leaving 2 LC A and B and 3 IC C, D and E.

1. He donated 40k to F a friend in 1970.
2. A : another donation 40K in 1975.
3. D : another donation 40k in 1980.

He left an estate amounting to 100k with debts amounting to 20k. ***Who will inherit from the estate and give their respective shares.***
**L:** Gross is 100k. Less the debts that must be paid = 80k. Plus collation at the time of the time of donation no change in terms of collation. Donation to F: Only P20,000 is allowed (free portion); the excess P20,000 must be returned to the estate.

HULA DAW:
A's share: P40,000 (legitime)
Already received P40,000 (collated), so gets nothing more.

B's share: P40,000 (legitime)
Receives P40,000 from the estate.

C's share: P20,000 (legitime)
Receives P20,000 from the estate.

D's share: P20,000 (legitime)
Already received P40,000 (collated), but only entitled to P20,000. The excess P20,000 is subject to reduction (must be returned to the estate).

E's share: P20,000 (legitime)
Receives P20,000 from the estate.

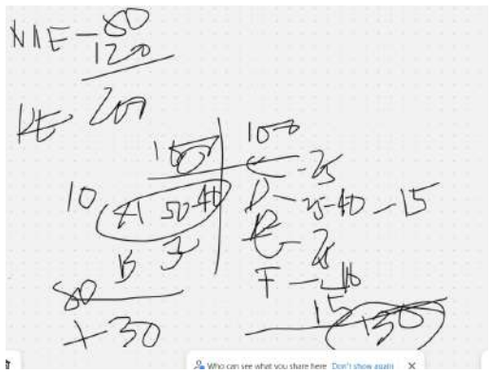
Donation to F: Only P20,000 is allowed (free portion); the excess P20,000 must be returned to the estate.

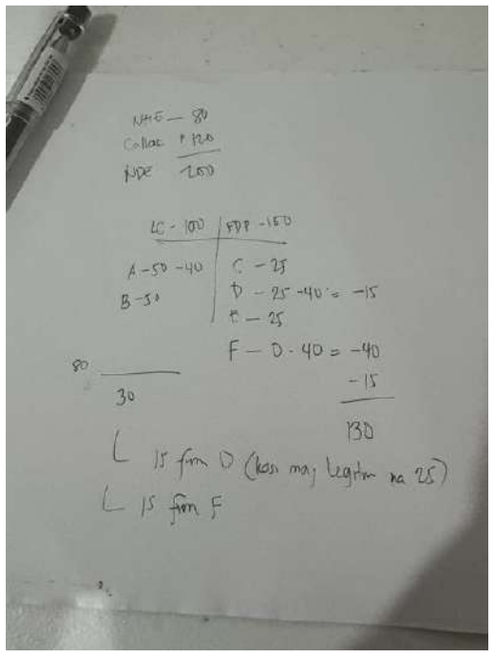
Collatable donations: P40,000 (A) + P40,000 (D) = P80,000

Total: P160,000
plus estate nato na 80k

**SIR:** ***Yung 80k na yun, ano ang relevance nito? Anong tawag don?***
**L**: Net hereditary estate.
**SIR:** ano ang relevance?
**L:** this sum will total to the net hereditary estate. This amount will be the one added to the value of property of donations subject to collation.
**SIR:** 80k is important because ordinarily that this will be the only amount distributed to the heirs unless there is inofficious donation so may collation of the 2nd type na madadagdagan ito.
Pag magcompute kayo, sana may operations. ***Yung 200k anong tawag diyan?***
L: Net total estate needed to compute the legitimes and etc.
SIR: this is the basis for the distribution of the legitime. 25k each, 175 na yun, 80k lang ang net hereditary estate mo so mag aabono ka pa.
Sir: If you consider the facts carefully, ***may nareceive na ba si A from X?***
D: Wala pa.
SIR: in this problem, magkano ang legitime of B?
L: 50k because the legitime of LC is ½ of the total estate so since they are 2 it has to be divided by 2 so 100k divided by 2 = 50k.
SIR: 50k kay A 50 kay b?
L: 40k already donated to A was forgotten. So dapat 10k lang kay A. kasi may donation na sa kanya eh.
SIR: sa IC 25k each. Magkano ang makuha nila from the estate?
L: and E will get 25k kasi legitime pa nila yun eh. And D will no longer receive an additional kasi he received 40k.

SIR: so magkano ang estate para macomplete ang legitime ng CH na ito?
L: 110k.
SIR: Therefore, the net hereditary estate is 80k and 110k ang dapat bigyan, may naimpair na legitime na 30K. So need magcollate ng 2nd type which is return of 30k.
L: D and F should return. If there is inofficious donation and no indication who should be reduced,
SIR: priority in time, priority in time. The fact na binigyan kita ng dates, may relevance yun. [FIFO]






SIR: if you listen to the discussion, the net hereditary estate is 80k nalang. Plus 120k na mga donation = 200k na distributable estate. 100k sa LC and 100k to FDP A and B 50k and 50k. CDE = 25K each. Kaso may donation na kay A na 40k kaya 10k nalang ang ibibigay sa kanya na minimum kung wala nang FDP.
C 25k pa D = 0 kasi 25k minus 40k may 15k na sobra.
Ang donation to a friend icharge sa FDP. so may 40k dito. Ang 50k na sobra legitime ni A icharge sa FDP kasi baka inofficious yan.

25 + 25 + 40 + 15 = 130k ang sa legitime kulang ay 130. Ang kulang dito LC yun din dapat ang sobra sa kabila. Para macomplete ang di pa naibibigayn,.
SIR: ***Sino ang magrereturn?*** Si D ang last na donee, dapat siya ba ang magrereturn?

**L:** NO. When there are 2 or more donation, and FDP is not sufficient to cover all, the recent date should be the one reduced. But D's legitime could not be prejudiced. So magsasauli siya ng 15k and somebody else will return 15k. F should return another 15k kasi si A ang priority kasi first donee.

**COMPUTATION**
SIR: unlike sa real life kayo ang mag-iinventory.

1. Deduct the debts para makuha yung net hereditary estate
2. Collate kung may donations to get distributable estate
3. Legitmes compute
4. Charge donations after legitimes
5. If there is impairment, return the money. But who? Priority in time, priority in right. Last donation will suffer but not to impair the legitime.

In the 1st place the legacies, are they subject to collation?
L: No.
SIR: Kasi legacies lang sila kasi sa will naman siya. Walang irereturn kung wala pang naibigay.

- **PROBLEM:** Ang problem lang if the legacy exceed the FDP. Kaninong legacy ang irereduce?

L: There is a hierarchy.

- If the estate is not sufficient to cover legacies:
  - 950remunatory legacies and devices.

SIR: so 950, but did you not consider 911?
L: 911 would only be applicable if there is prejudice in legitime.
SIR: 911 if there is possibility of impairment. In 911, pano ang distrubition if it is not sufficient to cover the legacies?
SIR:

1. Preferred
2. Other legacies will have to share proportionately the FDP hati2 na lang sila. But when to apply 911 and when to apply 950?

| 911 | 950 |
|---|---|
| if there is donation and FDP will be in conflict with this donation. Ang premise is legitimes is protected. | no donation and wala namang problema sa CH legitimes, and the conflict is wholely between the legatees, you apply 950. |

**Next meeting:**

- Quiz, and after the quiz, we will discuss the principles (institution, substitution, etc.). And one last quiz which is the legitimes in the intestate
- Right of representation is important and the rest are taken for granted but pag-aralan natin.
- Accretion is asked rarely.
- **MT:** 9-12 on the OCTOBER 31, 2025.

**DO NOT WRITE ANYTHING BELOW THIS.**

# Quiz 9

1. If the testator should institute his brothers and sisters, and he has some of full blood and others of half blood, the former shall get double the share of the latter.

**ANS: FALSE**
**LEGAL BASIS: Article 848.** If the testator should institute his brothers and sisters, and he has some of full blood and others of half blood, the inheritance shall be distributed equally unless a different intention appears. (770a)

Article 1006. Should brother and sisters of the full blood survive together with brothers and sisters of the half blood, the former shall be entitled to a share double that of the latter. → applies only in intestate

**APPLICATION:** This applies in a situation wherein the testator institutes his/her brothers and sisters, without indicating whether they are full-or half blood, and it is later found out that the testator has full and half-blood siblings.
The rule in this scenario is that THE INHERITANCE SHALL BE DISTRIBUTED EQUALLY TO ALL HIS/HER SIBLINGS (REGARDLESS OF WHETHER FULL OR HALF-BLOOD) UNLESS A DIFFERENT INTENTION APPEARS

**DISCUSSION:**
**14:** FALSE because if the inheritance distributed equally unless a different intention appears.
**Sir:** ***Why?*** Because this is testamentary succession and not intestate succession kasi if intestate baka tama eto. Complete the explanation.

2. When the testator calls to the succession a person and his children they are all deemed to have been instituted successively.

**ANS: FALSE**

**LEGAL BASIS: Article 849.** When the testator calls to the succession a person and his children they are all deemed to have been instituted simultaneously and not successively. (771)

**APPLICATION:** those who have been individually and collectively designated are deemed to have been instituted simultaneously and not successively.

**DISCUSSION:**
**14:** FALSE because according to the Civil Code they have to be instituted simultaneously and not successively.
**S:**
**C:** They have to be instituted simultaneously but the code provides that they are deemed to be instituted simultaneously.
**S**: It is not that they should but they ARE unless the contrary intention appears. Otherwise, if this is intestate. Who would inherit?
**14:** Parent first before the children because of the rule on proximity.

3. A will shall be valid even though it should not contain an institution of an heir.

**ANS: TRUE**

**LEGAL BASIS: Article 841.** A will shall be valid even though it should not contain an institution of an heir, or such institution should not comprise the entire estate, and even though the person so instituted should not accept the inheritance or should be incapacitated to succeed.

In such cases the testamentary dispositions made in accordance with law shall be complied with and the remainder of the estate shall pass to the legal heirs. (764)

**APPLICATION:** This scenario contemplates wherein the will does not contain any testamentary disposition. It will still be valid following that intestate succession will be applied provided it complies with all the formal requisites.

**DISCUSSION:**
14: TRUE in the provision
**S:** ***For an instrument to be considered as a will, what is required?***
**14:** It should be in writing. Wala sa form ang statement.

For an instrument to be considered to be a will.
The law requires?
It follows the formal requisites.
Intention of the testator to dispose the property.
**S:** IOW, by definition should contain a disposition of property. THAT IS THE DEFINITION. Thus if there is no institution of an heir, ***how can a will be considered valid if there is no institution of an heir if the law requires that there be disposition of property?***
**14:** As long as it shows testamentary intent
If there is a recognition of a LC
**S:** ***What if wala?***
**11:** Even if there is no recognition because legal succession will take effect
S: ***Ano ang silbi ng will if legal na?***
S: With respect to the legacies and devisees, hindi lang naman institution ang testamentary disposition.

4. No one can validly dispose by will of all his estate.

**ANS: FALSE**

**LEGAL BASIS: Article 842.** One who has no compulsory heirs may dispose by will of all his estate or any part of it in favor of any person having capacity to succeed.

One who has compulsory heirs may dispose of his estate provided he does not contravene the provisions of this Code with regard to the legitime of said heirs. (763a)

**APPLICATION:**

**DISCUSSION:**
14: FALSE because according to the CC, if one has no CH may dispose his will in favor of a person with a capacity to succeed.
**11:** Lacking it is not only that there is no CH that a testator can validly dispose.
S: IOW, the implication is if CH survive, then he cannot validly dispose his estate. That is why 11 is correct even if there are CH, he may validly dispose if the heir. No legitime will be impaired. ***HOWEVER, If example there are 3 CH who survive and the testator instituted the 3 CH to the entire estate. Would it be a valid will?***
**14:** Yes, it would still be
**S:** ***Not necessarily when?***
11: If they are not of the same kind, iba iba ang legitime. Kaya ang spouse and LC and LP edi iba2 ang legitime. In institution, unless otherwise designated the IH will be shared equally so ma impair ang legitime ng other CH.

5. When the testator institutes some heirs individually and others collectively, those collectively designated shall be considered as individually instituted.

**ANS: TRUE**

**LEGAL BASIS: Article 847.** When the testator institutes some heirs individually and others collectively as when he says, "I designate as my heirs A and B, and the children of C," those collectively designated shall be considered as individually instituted, unless it clearly appears that the intention of the testator was otherwise. (769a)

**APPLICATION:** The rule here is those collectively designated shall be considered as individually instituted unless it clearly appears that the intention of the testator was otherwise.

**DISCUSSION:**
**14**: FALSE, because there is an exception that unless there is an intention that the testator intent otherwise. Meaning if they wanted them to be instituted collectively, he may do so.
Whether they will be collectively or as one.

6. Any disposition made upon the condition that the heir shall make some provision in his will in favor of the testator or of any other person shall be void.

**ANS: TRUE**

**LEGAL BASIS: Article 875.** Any disposition made upon the condition that the heir

shall make some provision in his will in favor of the testator or of any other person shall be void. (794a)

**APPLICATION:** Word for word application of Art. 875. This pertains to legacy hunting disposition that is made upon the condition that the heir shall make some provision in his will in favor of the testator or of any other person. It converts testamentary grants into contractual transactions because the consideration becomes onerous rather than gratuitous. Also lack of free will of the testator.

**DISCUSSION:**
**14:** TRUE in Art.
**S:** This is known as disposition captatoria.

7. A disposition with a suspensive condition does not prevent the instituted heir from acquiring his rights and transmitting them to his heirs even before the happening of the condition.

**ANS: FALSE**

**LEGAL BASIS: Article 878.** A disposition with a suspensive term does not prevent the instituted heir from acquiring his rights and transmitting them to his heirs even before the arrival of the term. (799a)

Article 1084. Voluntary heirs upon whom some condition has been imposed cannot demand a partition until the condition has been fulfilled; but the other co-heirs may demand it by giving sufficient security for the rights which the former may have in case the condition should be complied with, and until it is known that the condition has not been fulfilled or can never be complied with, the partition shall be understood to be provisional. (1054a)

**Article 880.** If the heir be instituted under a suspensive condition or term, the estate shall be placed under administration:

1. until the condition is fulfilled, or
2. until it becomes certain that it cannot be fulfilled, or
3. until the arrival of the term.

**APPLICATION:** Voluntary heirs only ang pwede magkaron ng suspensive condition.

**Administration under Suspensive Condition** → When the institution is under a suspensive condition, **the right of the heir is not definitely transmitted to him until the condition is fulfilled**.
Between the time of the testator's death and the time of the fulfillment of the suspensive condition or of the certainty of its non-occurrence, the property should be placed under administration.
If the condition will not happen, the property will be turned over to a secondary heir if there is one or to the intestate heirs as the case may be.

**DISCUSSION:**
**11: FALSE** a disposition with a suspensive condition will prevent the IH from acquiring the rights and transmitting them until that condition is fulfilled so the right to inherit.
**S**: Example, X gave A 5M if B will pass the Bar exam within 5 yrs from X's death. 2 years after the death of X – A died. ***On the 4th year, B passed, will the heirs of A be entitled to the inheritance of B?***
**14:** It is a transmissible right.
**S:** In testamentary dispositions, with a suspensive he must be still living at the fulfillment of the condition. Naunang namatay si heir before nafulfill ang condition so ang heirs nya wala na. This would be different if condition → term. Even before the arrival of the period, the fact that the heir predeceases the testator vested na ang rights nya. His heirs will be able to succeed. This is similar to obligations ang difference nasa suspensive condition.

**SITUATION:** The testator gave a specific car to A upon A's reaching the age of 21. X died when A was only 18 years old but A died when he was just 20 yrs old. Will the heirs of A be entitled to the car?
**NO** because it is a condition not a term.
**S:** The problem does not involve a condition but a term kasi 21 so ibig sabihin unless if from the tenor from the disposition that he should still be alive when he aged the age of 21 so apply usufruct which is applicable in this disposition.

8. The heir who is bound to deliver the legacy or devise shall be liable in case of eviction, if the thing is indeterminate and is indicated only by its kind.

**ANS: TRUE**

**LEGAL BASIS:** ARTICLE 928. The heir who is bound to deliver the legacy or devise shall be liable in case of eviction, if the thing is indeterminate and is indicated only by its kind.

**APPLICATION:** Codal provision

**DISCUSSION:**
**S:** ***If this is a determinate thing, then he is not liable?***
**11**: No but the estate will be liable
**19:** I do not agree to the reasoning which means I agree that the heir will not be liable if it would be a determinate not because
I agree the heir will not be liable if the thing is determinate not because
**S:** Ang mali is ang claim of Ms. Dunalag which is the estate ang liable. If hindi liable ang heir, hindi rin liable ang estate.
**S:** ***Why is there a difference in the rule if the thing is generic or determinate?*** Liable if generic and not if determinate?
**21: In determinate** → the acquisition or choice depends upon the heir. If ang testator ang pumili, bakit liable ang heir? If ang testator ang pumili and may defect, baka di sya fave ni Papa (testator) nya eme.

9. The legacy of a credit against a third person or of the remission or release of a debt of the legatee shall be effective only as regards that part of the credit or debt existing at the time of the death of the testator.

**ANS: TRUE**

**LEGAL BASIS:** ARTICLE 935.
1. The legacy of a credit against a third person or
2. of the remission or release of a debt of the legatee

**shall be effective only as regards that part of the credit or debt existing at the time of the death of the testator**.

In the first case, the estate shall comply with the legacy by assigning to the legatee all rights of action it may have against the debtor. In the second case, by giving the legatee an acquittance, should he request one.

In both cases, the legacy shall comprise all interests on the credit or debt which may be due the testator at the time of his death. (870a)

**APPLICATION:**
A legacy of a credit is a testamentary disposition of debt in

**DISCUSSION:**
11: True an express provision What is the distinction
S: ***Sino ang creditor?*** The testator
Then waiver of credit then it is the heir who is the debtor.

10. A legacy or devise made to a creditor shall not be applied to his credit.

**ANS: FALSE**

**LEGAL BASIS: Article 938.** A legacy or devise made to a creditor shall not be applied to his credit, unless the testator so expressly declares.

In the latter case, the creditor shall have the right to collect the excess, if any, of the credit or of the legacy or devise. (837a)

**APPLICATION:** The statement only stated the general rule that a legacy or devise to a creditor will be treated like any other legacy or devise and therefore will not be imputed to the debt. However, there is an exception. It will be imputed to debt if the testator so provides and if the debt exceeds the legacy/devise. The excess may be demanded as an obligation of the estate.

**DISCUSSION:**
**11:** FALSE because the rule provides if the testator expressly provides.

11. In the will of X the following disposition appears: "I hereby give ¼ of the freely disposable portion of my estate to the following: A, B, grandparents of C and D and his children." A is the full blood brother of X. B is the half blood sister of X. E, F and G are the grandparents of C who survived X. H and I are the children of D. If the value of the freely disposable portion of the estate of X is P160 Million, how much will C be entitled to receive?
a. P20M b. P10M c. P5M d. P 2.5M e. Nothing

**ANS: E. Nothing (C is not entitled to any part since he is neither expressly instituted as a legatee nor qualified to inherit by representation from his grandparents)**

**LEGAL BASIS: Article 972.** The right of representation takes place in the direct descending line, but never in the ascending.

**APPLICATION:** C himself is not named in the will. Only his grandparents are. He has no right of representation with respect to his grandparents E, F and G because representation takes place only in the direct descending line of relatives and never in the ascending line. Here, C is the grandchild of E, F and G who are still alive. He cannot represent them assuming they are. C is also not related to X in a way that gives him intestate or testamentary rights.

**DISCUSSION:**
**C will** not be entitled to receive anything being that C is not an IH. Despite the fact that the
**S:** ***If the question is I , how much is I entitled to receive?***
Not entitled to inherit because D is still alive so
**S:** Eto number 2, what is your answer? False sir.
**S:** They are simultaneously instituted they are not like C. Under the proximity rule, ordinarily the parent will exclude his children under the Proximity Rule.
**19**: 20M = In here the dispose is FDP which is 160M and we have heir A who are entitled
***How much will these heirs be entitled?***
**19:** 40M
Kasi kanina sabi mo 160 ang sagot
**S:** Anyway, ¼ lang ng FDP so 160/4 = 40 ***so how much is I entitled to answer?***
**21:** 5M = 40M / 8 because
S: Ang question is paano mo na-arrive?
**S:** 5M is because 4 principles

1. Full blood and half blood as discussed a while ago, in testamentary succession if they are instituted they share equally unless otherwise
2. Instituted our grandparents BUT under the law if some heirs are individually and collectively, those collectively are considered individually instituted
3. If a parent is instituted together with their children, they are deemed instituted simultaneously. The principle of simultaneity unless otherwise
4. Instituted here are A B C F G and D and his children so 8
5. If there is no designation, they will share equally so 40/8 = 5M

12. This is a kind of substitution where the second heir may inherit even if the heir originally instituted is not in default.
a. Simple
b. Brief
c. Reciprocal
d. Fideicommissary
e. None of the above

**ANS: D**

**LEGAL BASIS: Article 863.** A fideicommissary substitution by virtue of which the fiduciary or first heir instituted is entrusted with the obligation to preserve and to transmit to a second heir the whole or part of the inheritance, shall be valid and shall take effect,

**APPLICATION:**
NOT A → the substitute inherits only if the first heir cannot inherit (by predecease, incapacity, repudiation)
NOT B → Two or more substitutes for one original heir

- If there are 2 heirs in brief substitution, both must default in order for substitution to take place.

NOT C → the heirs are substitutes for each other based on either simple or fideicommissary substitution.

D because in fideicomissary, the second heir may inherit even if the heir originally instituted is not in default since the reason for the institution of the first heir is to

preserve and transmit the inheritance to the second heir.

**DISCUSSION:**
**S:** ***IOW, the 1st heir will inherit correct?*** **Yes,** ***will he acquire ownership?***
**21:** NO, usufruct only but he will acquire the rights of usufructuary. Not ownership because he is mandated to transfer the property to the second heir.

13. The following are grounds for substitution, except:
    a. disinheritance
    b. incapacity
    c. renunciation
    d. predecease
    e. none of the above

**ANS: A**

**LEGAL BASIS:** ARTICLE 859. The testator may designate one or more persons to substitute the heir or heirs instituted in case such heir or heirs should die before him, or should not wish, or should be incapacitated to accept the inheritance.

**APPLICATION:**
NOT B, C, or D. B C and D are all grounds for substitution provided for in Art. 859 such as that the testator may designate one or more persons to substitute the heir or heirs instituted in case such heir or heirs should die before him (**predecease**), or should not wish (to accept – **renunciation**), or should be incapacitated (**incapacity**) to accept the inheritance.

**E → Not all of the above because.** In a disinheritance, the person disinherited can still have capacity, still be alive, or even did not renounce but was disinherited by the testator due to the sufficient reasons provided for in the Code.

**DISCUSSION:**
**S:** If A is the 1st heir and B is substitute and A predecease, so B will inherit as a substitute.
**19:** No, I do not agree then B will be not anymore substitute.

**19:** The substitute will not inherit because the substitute steps into the original instituted heir predecease, then the substitute would not be able to substitute.

**18:** Not necessarily because it is not automatic that B will inherit, because it would depend on the will if it states that predeceased is a ground for substitution.
S:1st in your answer, A predeceased whom the testator. In your answer, not necessarily because if in the will the testator should have provide the grounds of substitution. You should check the will first.
**18:** If the testator in that scenario, when would B not inherit even if A predeceased the testator. If the will provides that B would substitute A would repudiate the inheritance.
**S:** IOW, pwede magspecificy ang testator e.g. if A renounces and then B would inherit edi wala kasi nagpredecease naman si A.

14. If the testator did not specify the ground for substitution, substitution may take place:
    a. only if the first heir predeceased the testator
    b. only if the first heir renounced
    c. only if the first heir is incapacitated
    d. if the first heir either predeceased or renounced
    e. if the first heir either predeceased, renounced or is incapacitated.

**ANS: E.**

**LEGAL BASIS:** ARTICLE 859. The testator may designate one or more persons to substitute the heir or heirs instituted in case such heir or heirs **should die before him (predecease)**, or **should not wish (renounce)**, or should be **incapacitated** to accept the inheritance.

**APPLICATION:**
E → because it took into consideration all scenarios where a substitution may take place if the testator did not specify the ground for substitution.

- It is not A to C because of the word "ONLY" it presupposes that this are the only ways substitution may take place if the testator did not specify the

grounds which is incorrect.
- Not D → due to lack of incapacitated.

**DISCUSSION:**
**S:** Under the law, if the testator did not specify the ground any of these grounds can be used for substitution.

15. In the will of X, U, V & W were instituted to the entire freely disposable portion of his estate with the following shares: U: 2/3, V: 2/9 & W: 1/9. They were also named as substitutes of each other. U predeceased X. If the value of the freely disposable portion of the estate of X is P300Million, how much will V be entitled to receive?
a. P66.66M b. P33.33M c. P166.66M d. P200M e. P100M

**ANS: D. 200 M**

**LEGAL BASIS: Article 861.** If heirs instituted in unequal shares should be reciprocally substituted, the substitute shall acquire the share of the heir who dies, renounces, or is incapacitated, unless it clearly appears that the intention of the testator was otherwise. **If there are more than one substitute, they shall have the same share in the substitution as in the institution**.

**APPLICATION:** This is a scenario of reciprocal substitution. Under reciprocal substitution, if one of the instituted heirs (U) predeceased the testator (X), his share is not extinguished but passed to the surviving instituted heirs (V and W) in proportion to their respective original shares unless the testator specifies otherwise. So U predeceased X, his share in the 200 million will pass to his co-heirs V and W, in proportion to their respective shares because that's the default when substitution is reciprocal.

ORIGINAL SHARES:
U: ⅔ = 200M
V: 2/9 = 66.67 M
W: 1/9 = P33.33 M

DETERMINE PROPORTION
U's share will be divided 2:1 between V and W.
Prorata to 2/9 and 1/9:

V = 200M/3 (times ⅔ to) = 66.67 *2 = 133.333 + original share of V so 200M
BONUS: W: 200M/3 (times ⅓ to) = P66.67M = P100M.

**DISCUSSION:**
P: Reciprocal substitution, V and W will get a new proportion then 2 is to 1 then the share of U then the 200M will be apportioned to V and W into 2:1 so we will have 133M and B's share which is 66.67M.
S: 2/9 and 1/9 is 2:1 so idivide mo lang ang estate into 3 edi 2:1, 200 and 100. Otherwise, magfraction ka pa.

16. In fideicommissary substitution, the fiduciary:
a. is one degree from the testator
b. is within two degrees from the testator
c. is within three degrees from the testator
d. is within five degrees from the testator
e. need not be related by consanguinity to the testator

**ANS: E. in the quiz before**

**LEGAL BASIS: Article 863.** A fideicommissary substitution by virtue of which the fiduciary or first heir instituted is entrusted with the obligation to preserve and to transmit to a second heir the whole or part of the inheritance, shall be valid and shall take effect, provided such substitution does not go beyond one degree from the heir originally instituted, and provided further, that the fiduciary or first heir and the second heir are living at the time of the death of the testator. (781a)

**APPLICATION:** In a fideicommissary substitution, the degrees is only important if it pertains to the 1st heir or the fiduciary to the 2nd heir or the fideicommisary. However, A to B states only that it is from the testator which does not provided in the Code.
E → a fideicommissary need not be related by consanguinity to the testator provided that it is within one degree from the fiduciary (1st heir) and does not predeceased the testator.

**DISCUSSION:**
**S:** ***There can be how many fideicommisary substitute in this?***

**18:**
**S:** Pwede ba 80 ang substitutes? YES, IOW may ibang tao na 85 so long as 1 degree from the fiduciary.

17. The following are requisites for fideicommissary substitution to take effect, except:
    a. the fiduciary must survive the testator
    b. the fideicommissary must survive the testator
    c. the fideicommissary must survive the fiduciary
    d. the fiduciary must have the capacity to succeed the testator
    e. the fideicommissary must have the capacity to succeed the testator

**ANS: C.**

**LEGAL BASIS: Article 863.** A fideicommissary substitution by virtue of which the fiduciary or first heir instituted is entrusted with the obligation to preserve and to transmit to a second heir the whole or part of the inheritance, shall be valid and shall take effect,

**CONDITION:** provided
1. such substitution does not go beyond one degree from the heir originally instituted, and
2. provided further, that the fiduciary or first heir and the second heir are living at the time of the death of the testator. (781a)

Elements of fideicommissary substitution:
1. First heir (fiduciary) who takes the property upon the testator's death
2. Second heir (fideicommissary) who takes the property subsequently from the fiduciary
3. The second heir must be one degree from the first heir
4. The dual obligation imposed upon the fiduciary to preserve the property and to transmit it after the lapse of the period to the fideicommissary heir
5. Both heirs must be living and qualified to succeed at the time of the testator's death.

**APPLICATION:**
C → because upon the testator's death, the second heir already acquires vested right. Thus the second heir need not survive the first heir; if the second heir dies before the first heir, the second heir's own heirs merely takes place.
NOT A, B, D, and E→ because it is essential for the validity of a fideicommissary that both heirs are living and qualified to succeed at the time of death by the testator

**DISCUSSION:**
**19:** Since the CC provides that both the fi
**S:** IOW, if both of the fiduciary and fidei survived the testator, but the fidei thereafter, predeceased the fiduciary, will the heirs of the fidei inherit?
P: YES.
**S: IOW,** the fact that fidei and fiduciary survived the testator, vested na ang rights ng fidei basta they are capacitated din.

18. This legacy lasts during the lifetime of the legatee, if the testator has not otherwise provided:
(a) education (b) preferred (c) legacy of credit (d) support (e) None of the above.

**ANS: D. Support**

**LEGAL BASIS: ARTICLE 944. Par. 2.** A legacy for support lasts during the lifetime of the legatee, if the testator has not otherwise provided.

**APPLICATION:** This is a codal provision from Art. 944, par. 2. *A legacy for support lasts during the lifetime of the legatee, if the testator has not otherwise provided.*
- NOT A → A legacy for education lasts until the legatee is of age, or beyond the age of majority in order that the legatee may finish some professional, vocational or general course, provided he pursues his course diligently.
- NOT B → preferred is only regarding the order of legacies or devises in case the estate is not sufficient to cover all of them.
- NOT C → In a legacy of credit, there is a right to collect the debt from another person which is to be bequeathed to the legatee.

19. This legacy shall be valid even if there be no things of the same kind in the estate.
(a) legacy of generic personal property
(b legacy of generic real property
(c) alternative legacy
(d) remuneratory legacy
(e) preferred legacy

**ANS:A – codal provision.**

**LEGAL BASIS:** **ARTICLE 941, par. 1.** A legacy of **generic personal property** shall be valid even if there be no things of the same kind in the estate.

**APPLICATION:**

- **NOT B** → There is no legacy of a generic real property since real property are subject to devise and not a legacy under Art. 941 par. 2 *A devise of indeterminate real property shall be valid only if there be immovable property of its kind in the estate.*
- **Not C** → Alternative legacy means that if there are two (2) options and the other option was not available without the fault of the heir, then the alternative option can be given to the heir.
- **Not D** → A gift in a will made to reward or compensate someone for past services or benefits rendered to the testator, when such services were not legally demandable.
- **Not E** → Preferred legacy pertains to the order of payment when the estate is not sufficient, It means that the phrase "no things of the same kind in the estate."

20. A provision in a will which reads: "I hereby give to A P20,000.00 a month until he becomes a lawyer" is an example of a:
a. testamentary disposition which is subject to a suspensive condition.
b. testamentary disposition which is subject to a resolutory condition.
c. testamentary disposition which is subject to a suspensive term.
d. testamentary disposition which is subject to a resolutory term.
e. modal testamentary disposition.

**ANS: B because the right is extinguished upon the happening of the condition which is when A becomes a lawyer.**

**LEGAL BASIS:** ARTICLE 871. The institution of an heir **may be made**:

1. conditionally, or
2. for a certain purpose or cause. (790a)

**APPLICATION:** The 20,000 a month will be given "until" A becomes a laywer. The word "**until**" presupposes that upon the time he become a lawyer the 20,000 will not be given anymore.
A → not because a suspensive condition means right arises only when the condition happens. This means that the heir will be able to receive the 10k upon the happening of the condition stated in the will;
C and D → not C and D because a term means that the condition is certain to happen but only the time is uncertain. This is not the answer because the event is still uncertain. (di pa sure kung magiging abogado ba siya)
E → not E because a modal disposition imposes a charge or obligation on the heir, not a condition. So for this to be a modal disposition, it should be worded as "I give P20,000 to A so that he may finish law school."

**DISCUSSION:**
**Sir:** Giving is not a condition. It is an obligation
**N:** Resolutory condition
**SIR**: ang tanong ko lang is what is the condition.
N: **A becomes a lawyer.**
**SIR:** Consistent ka on the resolutory condition. Ang condition lang is A will become a lawyer. This is the condition. ***Bakit resolutory?***
**N:** This is a resolutory because the happening…
**SIR:** ***pano nagging resolutory?***
**N:** because of the word "until"
**SIR:** Bakit condition yun?
**18:** the happening of the condition will extinguish the obligation
**19:** A becoming a lawyer is still uncertain.
**SIR:** IOW, di sure na magiging abogado siya. So ano dapat gawin?

# Quiz 10

X died intestate on August 15, 1988 leaving an estate valued at P400, 000.00. Distribute the estate to the following heirs who survived X.

1. A, B, C & D (legitimate children – LC); E (Surviving Spouse - SS) and F&G (Parents)
   a. A,B,C&D – 80k@; E – 80K; F&G - 0
   b. A,B,C&D – 40k@; E – 40K; F&G - 0
   c. A,B,C&D – 50k; E – 50K; F&G – 50@
   d. A,B,C&D – 50k; E – 50K; F&G - 0
   e. None of the above

**ANS: A**

**LEGAL BASIS:** Article 996. If a widow or widower and legitimate children or descendants are left, the surviving spouse has in the succession the same share as that of each of the children.

Equal shares

**APPLICATION:**
A,B,C, D are LC so they get 1 share
E as the surviving spouse gets a share equal to that of a LC

So 400,000/5 = 80K each

**DISCUSSION:**
**SIR:** There being 2 or more LC surviving with the spouse, the spouse share will be the same as the share of 1 LC. Legitime dito is?
P: The legitime of the LC for the 5 is 50k each.
N: The legitime of each is 50k.
SIR: Pano mo nacompute? ½ of the estate which is 200k so 200k divided by 4 = 50 each. The legitime of the spouse is equal to legitime of 1 LC.

2. A, B, C and D (Illegitimate Children - IC); E (SS); F (Grandfather)
   a. A,B,C&D – 12.5K@; E – 50K; F – 100K
   b. A,B,C&D – 50K@; E – 0K; F – 0
   c. A,B,C&D – 25K@; E – 25K; F – 25K
   d. A,B,C&D – 25K@; E – 100K; F – 200K
   e. None of the above

**ANS: E none of the above.**

**LEGAL BASIS: Excluded grandfather**
Article 998. If a widow or widower survives with illegitimate children, such widow or widower shall be entitled to one-half of the inheritance, and the illegitimate children or their descendants, whether legitimate or illegitimate, to the other half.

**APPLICATION:**
**SS + IC =**
- **SS = ½**
- **IC = ½**

**IC = 400,000x0.5 = 200,000/4 = 50k each**
**E (SS) = 200,000**

**DISCUSSION:**
**N: Legitimes of this heirs:** 200k, since there are 4 IC - they shall have a legitime of 25k each
**SIR:** Legitime of IC = ¼ regardless kung ilan sila kahit 25 pa sila, ¼ of the estate, divide amongst themselves kung sa bawat isa.
**I:** ⅛ will receive..
**SIR:** hindi nga receive. The legitime is... dapat.
**I**: Legitime of the spouse is ⅛ which is 12.
**SIR:** ***In this scenario, who will be entitled to FDP if this is testate?***
**I:** Surviving Spouse.
**SIR:** IOW, CH will the smallest legitime, he will be entitled to legitime. May scenario ba na hindi ganito na spouse will have the smallest legitime, if in case of intestacy?
**I:** presence of IC and LC. Each of them will acquire ⅓ it will consume the entirety of the estate.
**SIR:** scenario niya IC with SS. So ano ang mali sa sagot? Walang mas maliit ng

legitime sa kanila kasi ⅓ ⅓ sila. ***Is there a scenario?***
**N:** None
**SIR:** If there are 2 or more CH of different kinds, kung sino ang mas maliit ang legitime, siya ang entitled to FDP in case of intestacy. Parang ganito na SS = ⅛ FDP so entitled si SS. Grandfather, di lalampas sa 1/2 ang LC na ¼ di madadagdagan yan. Yung pinakamaliit siya ang makakakuha. ***In your scenario I, IC and SS is ⅓ ⅓? Ang legitime nila ⅓ ⅓ correct?***
**N:** YES.
**SIR:** magkano ang FDP?
**N:** ⅓ din
**SIR:** In total intestacy, sino ang makakakuha doon sa ⅓?
**N:** both are entitled to FDP.
**SIR:** Paano ang sharing? Both will be entitled and they will share equally. Total intestacy is ½ so pareho silang makikinabang.

**SIR**: ***If there is a will, and testator gave a car to a friend of the testator, who among the heirs will suffer the reduction? Spouse or IC?***
**SIR:** Both of them. ½ ½. if there is asuch a will, silang dalawa rin magsusuffer ng reduction equally but as to not impair their legitime which is ⅓.

3. 1 LC; 2 IC; SS
   a. 1 LC- 200k; 2 IC- 100k@; SS- 100k
   b. 1 LC- 200k; 2 IC- 50k@; SS- 100k
   c. 1 LC- 100k; 2 IC- 12.5k@; SS- 50k
   d. 1 LC- 100k; 2 IC- 25k@; SS- 50k
   e. None of the above

**ANS: E. None of the above**

**LEGAL BASIS:** Art. 999. When the widow or widower survives with legitimate children or their descendants and illegitimate children or their descendants, whether legitimate or illegitimate, such widow or widower shall be entitled to the same share as that of a legitimate child.

Art. 176 FAMILY CODE. Illegitimate children shall use the surname and shall be under the parental authority of their mother, and shall be entitled to support in conformity with this Code. The legitime of each illegitimate child shall consist of one-half of the legitime of a legitimate child. Except for this modification, all other provisions in the Civil Code governing successional rights shall remain in force.

**APPLICATION:**
LC = 1 share = 2
SS = equal shares with LC = 2
IC = ½ of LC = 1+1
=6

LC = 133.33
SS = 133.33
IC = 66.67@

**DISCUSSION:**
**N:** The answer is B.
**SIR:** Did you consider the legitimes of the heirs. Pero intestate ito. Tama ba ang sagot mo?
**SIR:** each IC will be ½ of the LC. but Letter A will exceed the estate. Magiging 500k na yan. So di pwede. If the legitimes of the CH cannot be covered by estate, lalo na sa intestate.
**SIR:** In this scenario, if there is a will, the testator gives something to the parents, will that be a valid will?
**N:** No. this will cause to impair the legitimes of the CH.
SIR: yung will na yun, walang silbi.

4. A (Illegitimate Parent - IP); B & C(IC)
   a. A- 100k; B&C – 50k@
   b. A- 200; B&C – 100k@
   c. A- 0; B&C – 100@
   d. A- 0; B&C – 200@
   e. None of the above

**ANS: D.**

**LEGAL BASIS:** di ako sure anong legal basis dito

IC - 400,000/2 = 200k@

**APPLICATION:** IC excludes IP

**DISCUSSION:**
LEgitimes here is:
N: B and C are entitled to legitimes being IC. So the legitime is ½ of 400k.
SIR: basic legitime ½ of the estate. 2 CH but of the same kind. Excluded ang IP by IC.

5. A & B (IP); C (SS)
   a. A&B – 50k@; C- 100k
   b. A&B – 200k@; C- 0
   c. A&B – 0; C- 200k
   d. A&B – 100k@; C- 100k
   e. None of the above

**ANS: E**

**LEGAL BASIS:** No provision, but by analogy to Art 997.
Art. 997. When the widow or widower survives with legitimate parents or ascendants, the surviving spouse shall be entitled to one-half of the estate, and the legitimate parents or ascendants to the other half.

IP = ½ = 400/2 = 200k divided 2 coz two IP = 100k@
SS = ½ = 200k

**APPLICATION:** by analogy

**DISCUSSION:**
**SIR:** ***The legitimes?***
**N:** The SS is ⅓ and ⅓ to the IP.
**S:** ***Is this correct?***
**I:** under the law there is no mention…
**Y:** No. because it should be ¼ for SS and ¼ for the IP.
**S:** ito ang pinakamaliit na fractional shares. Ang namatay ay IC pero may asawa siya pero wala siyang anak. Pero may parent siya. Yung ⅓ ⅓ legitimes yan nino?
**I:** IC and SS.
**SIR:** dahil ¼ ang kanilang legitimes, so pareho silang magbebenefit. In impartial intestacy, kung may will pero may binigay sa iba, silang dalawa will suffer a

reduction, sa ½ ½ will be reduced equally but not to impair their legitimes na 1/4 .

6. A (SS); B, C, D & E ( Brothers)
   a. A-400k; B,C,D&E – 0
   b. A-100k; B,C,D&E – 25K@
   c. A-80k; B,C,D&E – 80K@
   d. A-200k; B,C,D&E – 0
   e. None of the above

**ANS: E. None of the above**
**LEGAL BASIS:** Article 1001. Should brothers and sisters or their children survive with the widow or widower, the latter shall be entitled to one-half of the inheritance and the brothers and sisters or their children to the other half.

**APPLICATION:**
BSNN + SS =
- BSNN = ½

SS = ½

**A(SS) =** 400,000 x .05 = 200,000
BCDE (Bros) 200,000/4 = 50,00

**DISCUSSION:**
**SIR:** ***Is there a compulsory heir other than spouse who will not exclude heirs in the collateral line in intestate succession?***
N: Wala.
SIR: IOW, isipin niyo, surviving spouse lang ang di nageexclude ng BSNN, dahil asawa lang siya. Even an IC would exclude BSNN. lahat ng nasa direct line can exclude collateral. Spouse is not in the direct line.

7. A (SS); B, C & D (IC)
   a. A- 200k; B,C&D – 0
   b. A- 50k; B,C&D – 50K@
   c. A- 100k; B,C&D – 100K@
   d. A- 100k; B,C&D – 33.3K@
   e. None of the above

**ANS: E. None of the above**

**LEGAL BASIS:** Article 998. If a widow or widower survives with illegitimate children, such widow or widower shall be entitled to one-half of the inheritance, and the illegitimate children or their descendants, whether legitimate or illegitimate, to the other half.

**APPLICATION:**
SS + IC =
- SS = ½
- IC = ½

A (SS) = 200,000
BCD (IC) = 200,000/3 = 66,666 each

**DISCUSSION:**
**Sir:** ***Legitimes?***
**I:** ⅓ ⅓
**SIR:** yes. Walang mas maliit na legitimes so pareho sila. ⅓ ⅓ becomes ½ ½

8. A (Acknowledged Natural Child); B(Adulterous Child); C( Spurious Child)
   a. A – 400K; B – 0; C – 0
   b. A – 133.33K; B – 133.33K; C – 133.33K
   c. A – 50K; B – 25K; C – 25K
   d. A – 66.67K; B – 66.67K; C – 66.67K
   e. None of the above

**ANS: B**

**LEGAL BASIS:** Under FC since X died intestate on Aug 15, 1988. Therefore, all of these are treated as IC.
400/3 = 133k each

**DISCUSSION:**
**I:** B.
**SIR:** some of your classmates D ang sagot. Bakit mali ito?
**I:** total of that amount because it will constitute half of the estate so di madispose ang lahat ng estate.
SIR: Letter D legitime lang yan. Eh intestate succession lang ito. Dapat ipamigay mo lahat.

9. A & B(Full Blood Brothers); C (Half Blood Sister)
   a. A&B – 0; C – 0
   b. A&B – 120K@; C – 80K
   c. A&B – 66.67K@; C – 66.67K
   d. A&B – 80K@; C – 40K
   e. None of the above

**ANS: E. None of the above**

**LEGAL BASIS:** Article 1006. Should brother and sisters of the full blood survive together with brothers and sisters of the half blood, the former shall be entitled to a share double that of the latter.
**APPLICATION:**
BS Full + BS Half =
- BS Full = 2

BS Half = 1

AB = 400/5 = 80k*2 (double the share of HB) = 160k@
C = 400/5 = 80k

**DISCUSSION:**
**SIR:** IOW, ang quotient, yun na yung share ng halfblood. Times 2, yun ang share ng full blood. IOW, ang share is 2:2:1.

10. A (PaternalGrandMother); B (PGF); C (MaternalGF)
   a. A – 50k B – 50K C – 100k
   b. A – 66.67k B – 66.67K C – 66.67k
   c. A – 133.33k B – 133.33K C – 133.33k
   d. A – 100k B – 100K C – 200k
   e. None of the above

**ANS: D**

**LEGAL BASIS:** Article 987. In default of the father and mother, the ascendants nearest in degree shall inherit.
1. Should there be more than one of equal degree belonging to the same line they shall divide the inheritance per capita;
2. should they be of different lines but of equal degree, one-half shall go to the paternal and the other half to the maternal ascendants.

In each line the division shall be made per capita.

**APPLICATION:**
A = 400/2 = 200k@ for paternal and maternal
A and B → Paternal = 200k/2 =100k@
C = 200k

## Principles affecting the Legitimes

**DISCUSSION**

As far as the 3 major concepts affecting FDP,

1. institution,
2. substitution,
3. legacies and devises,

Again, consider the rules in institution as superlatorily applicable to legacies and devises.
2 or more legatees, no designation of share = equal.

**EX:** If the testator intended to give the FDP to 3 heirs but the total fo the shares would not cover the entire estate, kay A ½ kay B ¼ kay C ⅛ ang gagawin mo?

- **ANS:** It is increase the shares proportionately by considering the least common denominator which is 8. Yung ⅛ magiging 1/7 yung ½ magiging 4/7. Yung ¼ maging 2/7. Then pero, ganon din yung sobra, reduce proportionately.

We discussed full blood half blood, we discussed the doctrine of simultaneity etc.

**INSTITUTION OF HEIRS:**
Sa institution, we discussed, if simple lang, there is no obligation, no period. But unlike obligation, dito may modal. Wala sa quiz ang modal.
**MODAL:** In modal institution, there is a burden, charge to this particular disposition. IOW, yung heir, in modal, may pinapagawa sa kanya. Maybe in a bar exam problem, bibigyan siya ng 10M but he has to buy ambulance for each barangay in their town.
Kung mayrong doubt kung mode or suspensive condition, treat it merely as a mode. Di siya suspensive. IOW, pag suspensive condition, it suspends the rights but it does not obligate. Di ka naman required. Pero di mo ma fulfill, di ka magmamana. Sa mode, it obligates but did not suspend. Sa heir sa substitute may mana siya, pero may gagawin lang siya.

- ***Pano if di niya gawin?*** Before he can get, he have to put a bond. Kung di niya magawa, bond ang sasagot.

**BAR EXAM:** May parcel of land but required siya magbigay na certain cavans of palay to certain heirs every year.

**CONDITIONAL OR WITH A PERIOD.**
**CONDITIONAL**→ condition not to marry and condition not to remarry.

- Not to marry → first marriage. Kung absolute, no condition, based sa provision, deemed not written ang condition kaya parang simple ang testamentary disposition kasi ang condition na yun not to marry and first marriage is contrary is public policy. Ang public policy nagbabayo (WHAT?!)
- You are not required to inherit, so mag-asawa ka kung ayaw mo.
- Pero kung first marriage pero may “not to marry juan” → effective ang condition na yun, pero kung pinakasalan mo, edi mawawala ang inaquire. Pero kung not to remarry can only be imposed effectively by the deceased or the heir of widower or decendant ng namatay. Otherwise parang walang inimpose.

**SUBSTITUTION**

- Simple → walang problema. A ang original instituted B ang substitute
- Brief → pwede isa lang instituted pero 2 or more heirs ang substitute or pwede baliktad. Ang issue is what if 2 or more ang originally instituted, ang substitute magmamana na ba? Depende sa testator. But ang tinatanong sa bar ang fideicomm. We have somehow considered a valid fidei. Ang first heir must be mandated to transfer this portion of this estate to the substitute or to the fidei. But this is testatementary, it does not matter if the fideicomm is legitimately related to testator.
- IOW, hindi nag-aapply ang iron curtain rule yan dahil testamentary succession ito. Ang fidei and fiduciary need not be related. Dapat first and second heir ang dapat related.
    - If 2 removed = as if not substitute. Kasi void ang substitute.

**BAR EXAM:** Ang first heir ng kapatid, nag predecease sa testator, pero ang testator may nanay pa. Ang substitute ng fidei ay IC ng fiduciary. ***Will the substitute inherit***

***from testator?***
**ANS: No.** substitution will have no effect because fiduciary predeceased the testator.

1. Another reason is because of the iron curtain rule. Dahil pamangkin siya ng namatay na testator, 3 degrees removed siya. Kung legal heir, covered siya. Even with Aquino v. Aquino, hindi siya magmamana.
2. Kahit di ka tinanong kung will he inherit, cover it. Ineexpect yun ng examiner even if he did not specify the specific grounds.

## LEGACIES AND DEVISEES

While the testator can impose a burden on the CH, the burden cannot impair the legitimes. Pwede na testator will require the CH to give 20k a month to a friend for a year. If this will impair the legitime, di pwede. Hanggang FDP na nareceive ng CH ang pwede ipamigay sa iba.

**NOT IN THE QUIZ:** Wala sa quiz, pag generic "I hereby give a rice land to A", ***is this a valid devise?***
ANS: Depends if there is such kind of thing in the estate. Kung wala, edi void.

- **BUT if** "I hereby give 10m to A"
  - **ANS:** kung walang pera sa estate, kalabaw lang. Valid pa din edi benta mo kalabaw.

**LEGACY OF CREDIT AND REMISSION**
Legacy involving a sum of money, and heir turns out to be creditor. Heir is entitled to both. He is given 3M pero ang legatee creditor din pala, testator has 2M, edi 3M need ibigay sa heir. Unless sa 3M covered na ang 2M.

**ENCUMBRANCE**
Binigay kay A ang lupa tapos nakamortgage pala. Sino magbabayad?
Security → estate. Unless ang devisee or heir ang pinapabayad.

**WAIVER OF CREDIT OR CREDIT**
If at the time legacy of waiver, ang utang dito ay heir mismo. Parang condonation ito. It will take effect upon death. Pwede magbago isip ang testator.

**SITUATION:** Pano if 3 lang ang utang ng heir upon the will. ***Pano if 10 na ang utang upon death? Can heir be compelled to pay?***

**ANS:** YES. waiver of credit effective lang for the debts existing at the time of the death of the testator but not those that are after the will.

**SITUATION:** What if the testator gave a thing (specific) to an heir but he does not own the thing at the time of the execution. Can the disposition be given effect?
ANS:

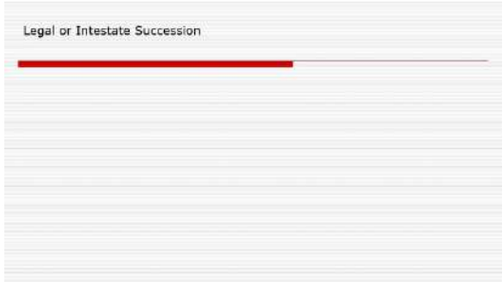
1. Determine if the testator knew na di kanya. Or di niya alam.
2. If he knew, if he ordered the executor to acquire, edi valid yan. If he knew but he did not order, valid pa din kasi alam pa rin niya. Sinasabi niya na acquired ito pero impliedly lang.
3. **PROBLEM:** ***What if di niya alam?*** It depends. If at the time of his death, nasa estate na, edi valid. If third person pa rin may-ari upon death, invalid kasi iba pa may ari.
4. ***What if legatee na may ari? Can disposiiton be given effect?*** Depends. Depends on the manner of acquisition.
   a. If **gratuitous** title, wala na siyang makukuha.
   b. But if he acquire the thing by **onerous** title, he is entitled to the reimbursement to the amount he used to purchase the thing.

**Next meeting:**

- Earlier than 6 to discuss the remaining topics sa succession. Legal or intestate like proximity rule, right of representation…
- 2 and a half, property. May quiz sa property sa whole field.
- Use the result to cancel the lowest grade.
- Discuss bar exam problems.
- 11, 12, 13 → possible f2f.

**DO NOT WRITE ANYTHING BELOW THIS.**

# Lecture: Principales Affecting the Intestate Succession

| SLIDE | DISCUSSION |
|---|---|
|  | **RULES:** Mostly in legal or intestate succession starting with the proximity rule.<br><br>**PROXIMITY RULE** → heirs who are nearer in degree should exclude those in the remote. IOW, those who survived the deceased are brother and first cousin.<br>● Obiously, first cousin excluded by the brother.<br>● 4 degrees → first cousin; brother → 2 degrees.<br>Grandchild will be excluded by the child of X. this is because child is 1 degree, grandchild is 2 degrees.<br><br>**EXC:**<br>1. **Iron curtain rule** → one of the exceptions because if X was survived by a nephew and a 1st cousin. 1st cousin is 4 degrees but nephew is 3. But if the N is an IC of the legitimate brother?, then he barred even he is the nearer degree.<br>2. **Right of representation** → if X was survived by or had 3 LC like ABC pero si B predeceased with a child D, ***may D inherit despite the fact he is 2 degrees and uncles and aunties is 1 degree removed?*** **YES**. D may inherit by right of representation. With this |
| | right, he will be placed in the degree nearer.<br>3. **Preference between the lines** → 2 aspects<br>a. If X was survived by his father and a great grandchild, the GG, by legitimate relations is 3 degrees father is 1 degree but father is excluded by GG because the legitimate descending line is preferred than ascending.<br>b. The one the heirs who survived, Grandfather who is 3 degrees brother is 2 degrees, Grandfather will exclude brother because direct line is preferred than collateral line.<br>4. **Implication** → if the 3 heirs is of the same degree. Both of them will inherit. But not so, if uncle of X and nephew of X if there is no direct line. The nephew will inherit excluding the uncle because of the article 1009 which provides that heirs in the collateral line will only inherit (intestate) in absence of brothers, sister, nephews, nieces. |
| | **EQUAL DIVISION RULE**<br>**GEN. RULE:** If 2 or more heirs are of the same degree from the decedent, they |

will share equally. If lahat sila first cousin, edi equal. Lahat sila LC then edi equal.

EXC:

1. **Right of representation** → X has LC ABC and BC predeceased X but B has 1 child D but C has 5 children. Then the child of B and child of C is all 2 degrees of X. ***Will they inherit equally?***
   **ANS:** NO.They will not inherit equally from X. representatives will inherit by stirpes.
2. **Division between the 2 lines in the ascending line** → in the intestate, kung nagsurvive ay mga grandparents, you divide first the estate equally into 2 lines. Paternal and maternal.
   - If there is only 1 grandparent in one of the 2 lines, then, the maternal line will get ½ but yung dalawa na paternal, divide into 2 yung 1/2 . same degree but not equal shares.
3. **FULL BLOOD and HALFBLOOD:** Brothers and siblings Half and full blood. Full blood twice the share of half blood.
4. **LC and IC (Children)** → parehong 1 degree but will not share equally. LC has at least twice ng share of the IC. Pwede pang mas maliit ng LC less than ½ if marami sila. They have to divide amongst themselves what is left in the estate after giving the share of IC and SS.

**RIGHT OF REPRESENTATION**

***When there would be a right of representation?***
There may be this right:

1. If an heir predeceased → legal not testamentary
2. Heir was incapacitated
3. Heir was disinherited → pwede magmana ang heir niya.

**NOTE: (incapacitated and disinherited)** What the heir will inherit will be the extent of the legitime that the incapacitated and disherited are entitled to receive. Unlike predeceased, he will inherit what would be inherited.

***Was there right of representation in the collateral line?*** YES. but unlike the ascending and descending, in the collateral line, it extends only to the children of bros and sis. Hanggang pamangkin lang. BUT ang batang ito, IOW, yung grandchild ng bros and sis can no longer inherit by the right of representation, but in his own right siya nalang natira, ***pwede ba silang magmana sa lolo nila?***
**ANS: YES.** This is because 4 degrees removed palang sila. They are legal heirs of the deceased. Pero not by right of representation but their own right.

- **NOTE:** But in the ascending line, walang right of representation.

| | |
|---|---|
| | IOW, parents ng tatay and nanay, nanay will exclude the parents of the tatay kasi walang right of representation in the ascending line.<br><br>***Is there right of representation in testamentary succession? EX binigyan ng house and lot pero namatay? Will the heirs inherit?***<br>**YES** to the extent of the legitime who predeceased if CH sya. Ang testator nhg isang heir ay h&l pero malinaw sa will na kasama na dito ang legitime. Mamanahin nya by right of representation, the premise is there is another heir to inherit. This is a fiction of law because he will be placed in the degree nearer because he will represent an heir who is nearer to X. IOW, GC can inherit from lolo kung merong magmamana sa anak.<br><br>BUT, if lahat sila apo – then they will inherit in their own right. Per capita na and not per stirpes. |
| | **REPRESENTATIVE**<br>Itong representative → heir who may inherit by right of representation, ***kanino nagmamana?*** Hindi dun sa rinerepresent niya. Tinatapakan niya lang. Dun siya talaga nagmamana sa lolo niya di sa tatay niya.<br><br>***Does the law require that the heir who inherit by right of representation should have the capacity to succeed sa nirerepresent niya?*** |

| | |
|---|---|
| | **ANS: NO**, as long as the capacity to the succeed sa decedent, pwede siyang maginheirt<br>***Isang pamangkin, killed his father, pwede pa siyang magmana sa kapatid ng father niya?*** **YES.** It is not an acts of unworthiness sa party ng kapatid ng father niya. Should be on the life of the testator, ascendant, descendant.<br><br>In other jurisdiction, for one to inherit by right of representation , he should have the capacity to succeed he has the the capacity to succeed in both descendant and to the person he is representing. |
| | **IRON CURTAIN RULE**<br>**NOTE:** Aquino v. Aquino → effective ba ba ang iron curtain rule? YES, the only person not barred is the IC of the LC. However, in the collateral line, yes.<br>If ang ang anak ng brother ay IC but the brother is LC, the anak will not inherit from the brother due to the iron curtain rule. |
| | **SITUATION:** If X, A anak niya B si B anak niya si C. C is the grandchild of A tapos si B predeceased A. If C repudiates his share in the inheritance on the share of his father B tapos namatay si A, ***can C represent his father to inherit from his lolo?*** YES take note nauna mamatay si father niya tapos si apo ang nag repudiate.<br><br>HOWEVER, it is different is naunang mamatay si lolo then nagrepudiate si C. |

| | |
|---|---|
| | No right of representation for repudiation if siya ang nagrepudiate. |
| | If you consider the facts in the case. In intestate succession T, (succession under consideration) survived by M (mother) W (wife). May legitimate children na 4 na napredecease na isa. In intestate succession who will inherit how much if net hereditary estate is 120k.<br><br>**SIR: Advice**: Unahin tanggalin ang di magmamana.<br>• **M** → no share because he will be excluded by the LC<br>• **E** will not exclude M kasi patay na siya<br>• **G** di din kasi nag repudiate siya<br>• **C** excluded by B under the proximity rule<br>• **E** will not inherit because he is predeceased upon the time of opening of succession<br>• **D** by right of representation<br>• **F** no inherit because no right of representation by repudiation<br>• Si A B D W n alang natira. 2 LC, W will have a share equal to 1 LC. D will take the place of his father which be equal to ABDW. 120K divided by 4 = 30k. |

# QUIZ 11: PROPERTY [

1. Implements intended for an industry or works which may be carried on in a building or on a piece of land, and which tend directly to meet the needs of the said industry or works are immovable property.

**ANS: FALSE**

**LEGAL BASIS: Article 415.** The following are immovable property:
(5) Machinery, receptacles, instruments or implements **intended by the owner of the tenement for an industry or works** which may be carried on in a building or on a piece of land, and which tend directly to meet the needs of the said industry or works;

**APPLICATION:**
H: FALSE, because it must be the owner.
Anong owner who what?
Intended by the owner
Not intended but placed by the owner. Again complete. It should be placed by the owner pero ang intended for industry.

2. A property owned by the state is a property of public dominion.

**ANS: FALSE**

**LEGAL BASIS:Article 421. All other property of the State, which is not of the character stated in the preceding article, is patrimonial property. (340a)**

**APPLICATION:** A property of the state can be a patrimonial property.

**DISCUSSION:**
H: FALSE, patrimonial property is of a public.
S: Why do we need to know if it is public or patrimonial?
To know if it is disposable or subject to alienation
S: IOW, because not all properties are not public dominion because properties of public dominion cannot be acquired by prescription or subject of application for registration.
S: THIS YEAR, this BAR questions is about the nature of the forest land?

NO, because it is a forest land. The problem is the basis.
S: What is the basis that a forest land is a public dominion which cannot be acquired by prescription?
H: Constitution but also in the Civil Code.

3. The owner of the land on which anything has been built, sown or planted, shall have the right to appropriate as his own the works, sowing or planting, after payment of the indemnity.

**ANS: FALSE**

**LEGAL BASIS:** Article 448. The owner of the land on which anything has been built, sown or planted in good faith, shall have the right to appropriate as his own the works, sowing or planting, after payment of the indemnity provided for in articles 546 and 548, or to oblige the one who built or planted to pay the price of the land, and the one who sowed, the proper rent. However, the builder or planter cannot be obliged to buy the land if its value is considerably more than that of the building or trees. In such case, he shall pay reasonable rent, if the owner of the land does not choose to appropriate the building or trees after proper indemnity. The parties shall agree upon the terms of the lease and in case of disagreement, the court shall fix the terms thereof. (361a)

**APPLICATION:** The builder, sower or planter (?) must be in good faith. And it does not only limit it to indemnity but the owner can also oblige the one who built or planted to pay the price of the land and the one who sowed, the proper rent.

**DISCUSSION:**

FALSE because the builder must be in good faith if the owner is in bad faith, then the owner will not be entitled.
S: ***When would the owner be considered in bad faith?***
H: If the owner knew or allowed to build.
**S:** ***Knew about what?***
**H:** If he knew that he is not the owner or defective.,
**S:** MALI, owner nga sya ng lupa.
**R:** If he has knowledge and consent of the building, sowing,
**S:** IOW, pag may knowledge sya pero di sya nagsabi na okay lang?
Kaya di knowledge and consent, if knowledge pero di sya nag object – bad faith pa rin. If he consented, paano nya masasabi na bawal ang pagbuild eh pumayag nga sya eh

4. By treasure is understood, for legal purposes, any hidden and unknown deposit of money, jewelry, or other precious objects.

**ANS: FALSE**

**LEGAL BASIS: Article 439.** By treasure is understood, for legal purposes, any hidden and unknown deposit of money, jewelry, or other precious objects, the lawful ownership of which does not appear. (352)

**APPLICATION:** For it to be a hidden treasure, ownership must be unknown which is from the phrase “lawful ownership does not appear.”

**DISCUSSION:**
**H:** FALSE because it lacks the wording “lawful ownership which does not appear.

5. Any one of the co-owners may bring an action in ejectment.

**ANS: TRUE**

**LEGAL BASIS: Article 487.** Any one of the co-owners may bring an action in ejectment. (n)

**APPLICATION:** word for word

**DISCUSSION:**

TRUE because word for word.

6. The builder, planter or sower in bad faith is entitled to reimbursement for the necessary expenses of preservation of the land.

**ANS: TRUE**

**LEGAL BASIS: Article 452.** The builder, planter or sower in bad faith is entitled to reimbursement for the necessary expenses of preservation of the land. (n)

**APPLICATION:** Word for word

**DISCUSSION:**
TRUE because an express provision o the law

7. The plaintiff must have legal or equitable title to, or interest in the real property which is the subject matter of the action for quieting of title.

**ANS: TRUE**

**LEGAL BASIS: Article 477.** The plaintiff must have legal or equitable title to, or interest in the real property which is the subject matter of the action. He need not be in possession of said property.

**APPLICATION:** Elements of quitting of title:

1. Plaintiff or complainant has a legal or an equitable title or interest in the real property subject of the action
2. The deed, claim, encumbrance or proceeding claimed to be casting cloud on his title must be shown to be in fact invalid or inoperative despite its prima facie appearance of validity or legal efficiacy

**DISCUSSION:**
**H:** TRUE Prof.
**S:** In order for the action to prosper, is it required that the property must be registered in the name of the plaintiff?
**H:** NO
**S:** Is it required that he be in possession of he property?
**H:** NO
**S:** If he was in possession or he was at the time of the filing, what is the difference compared to if he has possession?
**R:** Imprescribtible if he possessed the property. In possession s'ya, kaya walang prescription2 so pwede sya magfile ng quieting of title anytime .

8. An easement of right of way may be acquired by prescription.

**ANS: FALSE**

**LEGAL BASIS: Article 622.** Continuous nonapparent easements, and discontinuous ones, whether apparent or not, may be acquired only by virtue of a title. (539)

**APPLICATION:** A right of way (or easement of passage) is a discontinuous easement, because its use is not continuous — it depends on the acts of man (e.g., the owner's decision to pass or not pass).
Under Article 622, discontinuous easements cannot be acquired by prescription, even if their use has been long and uninterrupted. They may only be established by law, contract, will, or other title, not by prescription.

**DISCUSSION:**
**H:** An easement of a right of way is a discontinuous apparent and is only used when someone passes the property.
**S:** Do you agree?
**R:** Continuous and apparent are the only one that can be acquired by prescription
**P:** I do not agree with the explanation of Hidrosollo
**S:** It is correct that it is false but mali in what sense?
The acquisition of easement of right of way is not by passing the property to someone, it is acquired by title.
**S:** IOW, this right cannot be acquired by prescription why not?
It is discontinuous and only apparent and continuous may be acquired by prescription.
Accdg. To Hidsrollos, this is apparent and discontinuous easement. Do you agree?
**S:** Hindi lahat ng easement of right of way is apparent pwede naman na non apparent if taga bundok kayo or isla kasi if they are not being used macocover sila ng damo but if ginagamit sila para magharvest sa lo9ob then makikita mo sya. Hindi parehas sa sociedad na apparent.
**S:** IOW, ***what is an example of easement na apparent and continuous?***
H: Aqueduct
R: Light and view

S: Kaya alamin nyo ang characteristics ng mga easement na iyan.

9. A usufruct granted for the time that may elapse before a third person attains a certain age, shall subsist for the number of years specified, even if the third person should die before the period expires.

**ANS: FALSE**

**LEGAL BASIS: Article 606.** A usufruct granted for the time that may elapse before a third person attains a certain age, shall subsist for the number of years specified, even if the third person should die before the period expires, unless such usufruct has been expressly granted only in consideration of the existence of such person. (516)

**APPLICATION:** There is an exception which is when the usufruct terminates early if the deed expressly states that it is granted only for as long as that third person lives — meaning it was constituted in consideration of that person's existence.

**DISCUSSION:**
FALSE because there is an exception unless such usufruct has been granted for consideration of such person.

10. If the usufruct is constituted on immovable property of which a building forms part, and the latter should be destroyed in any manner whatsoever, the usufruct will not be totally extinguished.

**ANS:TRUE**

**LEGAL BASIS: Article 607.** If the usufruct is constituted on immovable property of which a building forms part, and the latter should be destroyed in any manner whatsoever, the usufructuary shall have a **right to make use of the land and the materials.**

The same rule shall be applied if the usufruct is constituted on a building only and the same should be destroyed. But in such a case, if the owner should wish to construct another building, he shall have a right to occupy the land and to make use of the materials, being obliged to pay to the usufructuary, during the continuance of the usufruct, the interest upon the sum equivalent to the value of the land and of the materials. (517)

**APPLICATION:** There is still land so the usufructuary can still use that. Even if the object of the usufruct is a building, the usufructuary may make use of the land and the materials.

**DISCUSSION:**

**H:** FALSE because the destruction of the building will terminate the usufruct on the building but not to the land. So the usufruct is entitled to the usufutct of the building but not to the land.
**R:** She leans in true but false ang explanation.
S: Usufruct will continue to the land? Sa lupa lang?
R: NO it may still be constituted to the materials on the building.
IOW, kahit wala na ang building nandyan pa ang materials. In fact maraming ang contractor na yumayaman dyan, they will demolish for free and ang mga materials eh kanila na pero i-inspect pa nila kasi minsan may mga kahoy like narra and yakal so malaki ang kita nila.

11. Repairs for the preservation of a co-owned property:
    a. may be made at the will of one of the co-owners
    b. shall be decided upon by a majority of the co-owners
    c. shall be decided upon by a majority of the co-owners having controlling interest
    d. shall be decided upon by all the co-owners
    e. none of the above

**ANS: A.**

**LEGAL BASIS: Article 489.** Repairs for preservation may be made at the will of one of the co-owners, but he must, if practicable, first notify his co-owners of the necessity for such repairs. Expenses to improve or embellish the thing shall be decided upon by a majority as determined in article 492. (n)

**APPLICATION:** If he owns the majority of the interest in the co ownership, it may be made at his will
NOT B → majority is for administration and improvement
NOT C – ??
NOT D – only for alterations and lease of more than 1 year.

**DISCUSSION:**
**R:** A – if he owns the major interest of the partnership then he may be made at his will.
**P:** I agree that A is the correct answer but I do not agree that it should be majority of the interest.
**S:** Basta co-owner sya kahit 5% lang ang interest nya, pwede nya tong gawin ang preservation basta may notice nya ang co-owners.

12. Which of the following may NOT be the object of possession?
    a. things
    b. rights
    c. industry
    d. shares of stock
    e. none of the above

**ANS: C.**

**LEGAL BASIS:** ARTICLE 427. Ownership may be exercised over things or rights. (n)

**APPLICATION:** One cannot possess industry or services because it is not an object of ownership.

13. Industrial fruits are deemed to accrue:
    a. daily
    b. from the time they are gathered or severed
    c. from the time demand was made
    d. from the time the seeds were sown
    e. monthly

**ANS: B**

**LEGAL BASIS: Article 544.** A possessor in good faith is entitled to the fruits received before the possession is legally interrupted.

Natural and industrial fruits are considered received from the time they are gathered or severed.

Civil fruits are deemed to accrue daily and belong to the possessor in good faith in that proportion. (451)

**APPLICATION:** word for word

**DISCUSSION:**
**S:** Macite mo ba ang number? Do not try to, who cares with the numbers SUBSTANCE DAPAT.

14. Usufruct may NOT be constituted by:

a. law
b. contract
c. prescription
d. quasi-contract
e. none of the above

**ANS: D. quasi-contract**

**LEGAL BASIS:** Article 563. Usufruct is constituted by law, by the will of private persons expressed in acts inter vivos or in a last will and testament, and by prescription.

**APPLICATION:**
Usufruct may only be constituted by:

1. Law → Legal
2. Contract → Voluntary
3. Will and testament → Voluntary
4. Prescription → where one believing himself the owner of the property of an absentee, gave in his will the usufruct of the property to his wife and the naked ownership to his brother, and the wife possessed in good faith the property as usufructuary for the requisite prescriptive period. (Mixed)
5. Donation → Voluntary

**DISCUSSION:**
**S:** IOW if I demand for you to give the legal basis na may totoong provision na may codal provision kasi baka namimiss lang ng iba.

15. Natural or industrial fruits growing at the time the usufruct begins, belong to:

a. the owner
b. the usufructuary
c. both the owner and the usufructuary equally
d. both the owner and the usufructuary in proportion to the time they were in possession
e. none of the above

**ANS: B.**

**LEGAL BASIS: Article 567.** Natural or industrial fruits growing at the time the usufruct begins, belong to the usufructuary.

Those growing at the time the usufruct terminates, belong to the owner.

In the preceding cases, the usufructuary, at the beginning of the usufruct, has no obligation to refund to the owner any expenses incurred; but the owner shall be obliged to reimburse at the termination of the usufruct, from the proceeds of the growing fruits, the ordinary expenses of cultivation, for seed, and other similar expenses incurred by the usufructuary.

The provisions of this article shall not prejudice the rights of third persons, acquired either at the beginning or at the termination of the usufruct. (472)

**APPLICATION:**

**DISCUSSION:**
S: Usufruct vs. usufructuary – usufruct is the right and the usufructuary – person who has the right.

16. The following may be considered as an immovable property, except:

a. pigeons
b. paintings
c. fertilizers
d. machineries
e. none of the above

**ANS: E. None of the above**

**LEGAL BASIS: Article 415.** The following are immovable property:

(1) Land, buildings, roads and constructions of all kinds adhered to the soil;

(2) Trees, plants, and growing fruits, while they are attached to the land or form an integral part of an immovable;

(3) Everything attached to an immovable in a fixed manner, in such a way that it cannot be separated therefrom without breaking the material or deterioration of the object;

(4) Statues, reliefs, paintings or other objects for use or ornamentation, placed in buildings or on lands by the owner of the immovable in such a manner that it reveals the intention to attach them permanently to the tenements;

(5) Machinery, receptacles, instruments or implements intended by the owner of the tenement for an industry or works which may be carried on in a building or on a piece of land, and which tend directly to meet the needs of the said industry or works;

(6) Animal houses, pigeon-houses, beehives, fish ponds or breeding places of similar nature, in case their owner has placed them or preserves them with the intention to have them permanently attached to the land, and forming a permanent part of it; the animals in these places are included;

(7) Fertilizer actually used on a piece of land;

(8) Mines, quarries, and slag dumps, while the matter thereof forms part of the bed, and waters either running or stagnant;

(9) Docks and structures which, though floating, are intended by their nature and object to remain at a fixed place on a river, lake, or coast;

(10) Contracts for public works, and servitudes and other real rights over immovable property. (334a

**APPLICATION:** These items has the requirement to be attached to the immovable property.

**DISCUSSION:**
**S:** Because these items can be attached, pigeons may be attached to. They are immovable property?

**S:** Not necessarily when are they movable?
**R:** If there is a pigeon house and the intention of the…
**S:** IOW if nandyan pa sa kanila sa pigoen house then immovable
**R:** PAINTINGS – placed by the owner and attached them permanently is the intention
**R:** MACHINERIES – if it was intended of the owner for the industry or work

- NOT only intention but also MUST be placed by the owner but with the intention to use it in an industry. IT MUST HAVE BEEN PLACED

17. Property of public dominion:
    a. is within the commerce of men
    b. can be acquired by prescription
    c. can be real or personal property
    d. can be registered
    e. none of the above

**ANS: C.**

**LEGAL BASIS:** ARTICLE 420. The following things are property of public dominion:

(1) Those intended for public use, such as roads, canals, rivers, torrents, ports and bridges constructed by the State, banks, shores, roadsteads, and others of similar character;

(2) Those which belong to the State, without being for public use, and are intended for some public service or for the development of the national wealth. (339a)

**APPLICATION:**

**DISCUSSION:**
C – ***example of public dominion which is a personal property?***

- Treasures in the national museum or artifacts, they can be acquired but for

historical. ***Why is it a property of public dominion?*** IOW, ***di pwedeng ibenta ang mga yon?***

- Not necessarily kasi di naman yan ang purpose.
- An example would be machineries of the DPWH for public service.

18. This attribute or incident of ownership, gives to the owner the right to everything which is produced thereby:
    a. Possession
    b. Accession
    c. Usufruct
    d. Easement
    e. None of the above

**ANS: B.**

**LEGAL BASIS: Article 440.** The ownership of property gives the right by accession to everything which is produced thereby, or which is incorporated or attached thereto, either naturally or artificially. (353)

**APPLICATION:** Accession is an attribute of ownership because the fruits of the property owned belongs to the owner.

**DISCUSSION:**
B – accession

19. With respect to hidden treasure which may be found on a parcel of land, he shall be considered a stranger:
    a. Owner
    b. Trespasser
    c. Employee
    d. Usufructuary
    e. None of the above

**ANS: D. Usufructuary**

**LEGAL BASIS: Article 566.** The usufructuary shall be entitled to all the natural, industrial and civil fruits of the property in usufruct. With respect to hidden treasure which may be found on the land or tenement, he shall be considered a stranger. (471)

D → an usufructuary only enjoys the property in the concept of a holder but not an owner, thus he does not have the right to the hidden treasures found in the land
NOT A – because the owner is entitled to a share
NOT B – he is not entitled to any share
NOT C – he will get his salary from the owner.

**APPLICATION:**

**DISCUSSION:**

20. The share of the co-owners in the benefits, in the absence of proof as to the interest of each co-owner, shall be:
    a. as stipulated
    b. in proportion to their respective interests
    c. equal
    d. in proportion to their share in the charges
    e. none of the above

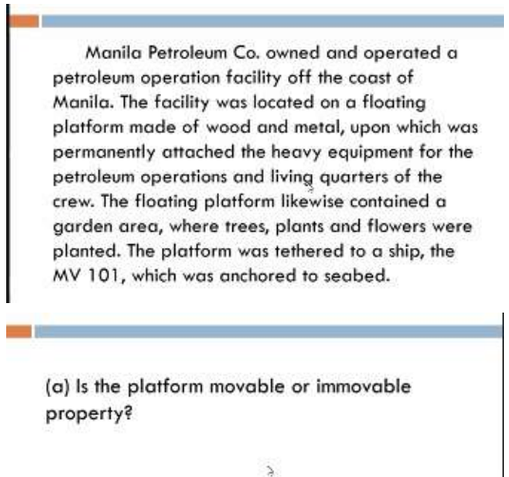
**ANS: C. Equal**

**LEGAL BASIS: Art. 485**. The share of the co-owners, in the benefits as well as in the charges, shall be proportional to their respective interests. Any stipulation in a contract to the contrary shall be void. The portions belonging to the co-owners in the co-ownership shall be presumed equal, unless the contrary is proved. (393a)

**APPLICATION:** Equal because the share in benefits is in proportion to the share in interest and in the absence of proof as to the interest, the law provides that if they have equal interests, then they shall have equal share in the benefits.

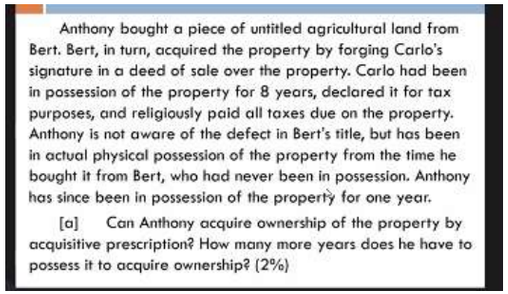
**DISCUSSION:**
**R:** Equal
**S:** Do you agree?
**P:** YES
**S:** Hindi ba in proportion to the respective interest?
**R:** NO Sir because of the absence of proof, if they have
Absence of proof as to the interest, the law presumes that it is equal then they are equal in benefits kasi maraming sagot ay in proportion.

# PROPERTY [Bar Q&A]

| QUESTIONS | ANSWERS |
|---|---|
| Why do we have to know if the property is an immovable or movable property?<br>  | It is necessary to know because the rules depends on what is the nature of the property.<br>What rules? For example, prescription, donation, and acquisition<br>What acquisition?<br>Marami pang iba such as double sales, maceda and recto law, and so on marami pa ang rules and concepts which requires you to know if movable or immovable |
| | Any other classification? Private or public dominion<br><br>Consumable or nonconsumable<br>1. CONSUMABLE – if they manner appropriate to their nature which canot be used without being used<br>2. NONCONUSMABLE – not being consumed |
| What rule would require the thing to be consumable? Or non-consumable | Non- consumable → Contracts which will require you to return because if it is used in its nature (consumable) wala ka na marrereturn.<br><br>***Even if the thing is consumable, may it be a subject of an obligation to return it?***<br>**YES**, baka gagawin lang background or exhibit lang but not used in accordance to its nature. |
|  | a. The platform which was floating is a movable property because there is an absence the intention to remain permanently because it was tethered to a ship. So the intention is not to make it immovable.<br>**D:** The platform is immovable property because it is a petroleum facility so it is intended to be permanent because it is not a voyaging ship.<br>**N:** Movable because it was attached through a ship because it is a movable property. Art. 415 (9), if it is fixed to a ship.<br>Have you heard of this ship near the kalayaan? You would consider it as a movable property?<br>YES, it is a movable property<br>Sa ship na yon dyan nakatira ang mga sundalo pero nagfloat pa rin.<br><br>When this question was asked in 2007, I was asked by the law deans to prepare the suggested answers.<br>**SIR:** Immovable → the SC promulgated its decision in the case of ***Fels Energy v. Province of Batangas*** with the similar set of facts. This platform is an immovable property. BUT a member of the panel, they should have an **alternative answer** that this platform is a movable property. Sir agreed. ***WHY?*** ***F***rom the facts, it would appear that there is basis that there is no intention to place that platform permanently because it is tethered to a ship, it would |

| | |
|---|---|
| | appear that it is not intended to be placed. Kasi ang ship naglalayag siya. Kaya hindi siya apparently intended to be placed permanently. Hindi porke this is related to a petroleum operation, it is intended to be placed permanently kasi if maubos ang mga oil or kinukuha, lilipan na sila sa iba. Di na intended to be placed permanently.<br><br>IOW, as far as immovables are concerned there is this classification that immovable are classified into:<br>1. By nature<br>2. By incorporation<br>3. By destination<br>4. By analogy<br><br>ICAB, this is an immovable by destination because placed there intently.<br>Another example for immovable because it was intended to be placed by intention or immovable by destination:<br><br>MACHINERIES → may be considered immovable by destination if it was placed by the owner. |
| (a) Is the platform movable or immovable property?<br>(b) Are the equipment and living quarters movable or immovable property? | If immovable then immovable by incorporation kasi permanently attached and masisira ang platform if tatanggalin. |

| | |
|---|---|
| (a) Is the platform movable or immovable property?<br>(b) Are the equipment and living quarters movable or immovable property?<br>(c) Are the trees, plants and flowers immovable or movable property? | IMMOVABLE by incorporation |
| Salvador, a timber concessionaire, built on his lot a warehouse where he process and stores his timber for shipment. Adjoining the warehouse is a furniture factory owned by NARRAMIX of which Salvador is a majority stockholder. NARRAMIX leased space in the warehouse where it placed its furniture-making machinery.<br><br>1. How would you classify the furniture-making machinery as property under the Civil Code? Explain. | Movable because it was not the owner who placed it.<br><br>**S:** ***Have you not considered the fact that NARAMIXX is majority owned by Salvador?***<br>-Despite the fact that Salvador is the owner, the separate juridical personality applies which is separate from that of the NARAMIXX.<br><br>IOW, consider mo na yon kasi ang NARAMIXX majority stockholder si Salvador eh. |
| 2. Suppose the lease contract between Salvador and NARRAMIX stipulates that at the end of the lease the machinery shall become the property of the lessor, will your answer be the same? Explain. | It will not be the same if there is a stipulation that the machinery will become part of the property of the lessor, then it will be IMMOVABLE because this will be considered that the lessee acted as an agent of the lessor so my answer will not be the same.<br><br>In the case of Davao Sawmill, which is favorite question in the bar. |



Anthony bought a piece of untitled agricultural land from Bert. Bert, in turn, acquired the property by forging Carlo's signature in a deed of sale over the property. Carlo had been in possession of the property for 8 years, declared it for tax purposes, and religiously paid all taxes due on the property. Anthony is not aware of the defect in Bert's title, but has been in actual physical possession of the property from the time he bought it from Bert, who had never been in possession. Anthony has since been in possession of the property for one year.

[a] Can Anthony acquire ownership of the property by acquisitive prescription? How many more years does he have to possess it to acquire ownership? (2%)

Yes. He is a buyer in good faith and was not aware of the defect of the title

SIR: IOW, if he knew of the defect, he will not acquire it through acquisitive prescription.?
D: No.
SIR: Correct.
N: Anthony can acquire it through acquisitive prescription.
A: He can acquire the property his continuous possession of the property for 10 years. Because the land is unregistered property.
SIR: Di totoo yan. For a property
***What is the requirement for prescription?*** They are alienable unless they are declared by the government as alienable.
Agricultural land eto lahat baka naman forest land ang hinahanap mo.

- Good faith will matter in other things kahit di in good faith pwede pa rin ma acquire through.

1. ADVERSE POSSESSION – if lessee lang sya di nya pwedeng i-acquire yan. ***When is it adverse?***
   - He bought the land.

***Considering letter A, is it possible that the answer is no?***
ANS: YES. kasi may how many more years does he have to possess. Kasi bat pa siya nagtanong ng 2nd question.
SIR: Ang premise ng kanyang sagot ay 10 years applicable not 30 years.

***Because?***
**N:** Because this is an ordinary acquisitive prescription. It requires that there be in possession in good faith.
**SIR:** NO.
**Y:** kasi with just title.
**SIR:** kung walang just title edi 30 years lang. Dito, may kineclaim siyang title kaya 10 years.
***Ang claim ni A ay 1 year nalang. Do you agree? Why not 9 years?***
Si anthony binili niya kay Carlo na binili niya kay Bert and si Carlo ang may possession ng 8 years. Malinaw sa facts that Anthony bought this land from Bert. and in possession is Carlo and Bert had never been in possession. So 1 year nalang?
**Y:** NO. he only has 1 year and for ordinary prescription to set in, there must be additional 9 more years.
Why would you add the possession of Carlo na hindi nya naman binili kay Carlo?
**Y:** The land is not titled.
SIR: NO.
**N:** This is the premise of the acquisitive portion. **Anthony was in good faith.**

- Kaya pwede nya idagdag ang possession kasi he is a buyer in good faith. KAYA 1 YEAR NA LANG.

The government owned a 12-hectare land in Cavite classified as forest land. Informal settlers built shanty houses on the land since it was flat and there were no trees planted thereon. In 2023, the government decided to plant Narra trees on the land and demanded that the informal settlers vacate the same. A, owner of one of the shanty houses, refused, claiming that he already owned the portion of the property he was occupying by virtue of acquisitive prescription. **Is the claim of A meritorious? Decide with reason(s).**

Marcelino, a treasure hunter as just a hobby, has found a map which appears to indicate the location of hidden treasure. He has an idea of the land where the treasure might possibly be found. Upon inquiry, Marcelino learns that the owner of the land, Leopoldo, is a permanent resident of Canada. Nobody, however, could give him Leopoldo's exact address. Ultimately, anyway, he enters the land and conducts a search. He succeeds.

Leopoldo, learning of Marcelino's "find", seeks to recover the treasure from Marcelino but the latter is not willing to part with it. Failing to reach an agreement, Leopoldo sues Marcelino for the recovery of the property. Marcelino contests the action.

How would you decide the case?

**A:** I would decide in favor of Marcelino since he is considered a finder by chance of the hidden treasure, hence, he is entitled to one-half (1/2) of the hidden treasure. While Marcelino may have had the intention to look for the hidden treasure, still he is a finder by chance since it is enough that he tried to look for it. By chance in the law does not mean sheer luck such that the finder should have no intention at all to look for the treasure. By chance means good luck, implying that one who intentionally looks for the treasure is embraced in the provision. The reason is that it is extremely difficult to find hidden treasure without looking for it deliberately.

Marcelino is not a trespasser since there is no prohibition for him to enter the premises, hence, he is entitled to one-half (1/2) of the treasure.

***Why is he a finder?*** Because the treasure under the circumstances were found by chance despite the maps. ***Why?*** Because there are many treasure hunters na may map pero walang nahahanap. Kaya by chance. The provision will be futile if the interpretation is just pure luck. The provision states "GOOD LUCK" otherwise, anong silbi ng ½ ½.

**SIR:** Marcelino is not a trespasser kasi kung taga probinsiya kayo at dumadaan kayo sa lupa ng iba, di ka tresspasser dahil di ka nagpaalam kasi maaaring tolerated ng may-ari ang pagdaan sa kanyang lupa kasi wala namang sign at wala namang fence.

Adam, a building contractor, was engaged by Blas to construct a house on a lot which he (Blas) owns. While digging on the lot in order to lay down the foundation of the house, Adam hit a very hard object. It turned out to be the vault of the Banco de las Islas Filipinas. Using a detonation device, Adam was able to open the vault containing old notes and coins which were in circulation during the Spanish era. While the notes and coins are no longer legal tender, they were valued at 100 million because of their historical value and the coins' silver and nickel content. The following filed legal claims over the notes and coins:

***Which option is the worst?***
It is the PH government. Why? Because the state may only acquire if for science or arts reasons.

Why not BPI?
It would seem that BPI would not be the owner because there was an abandonment on their part or the predecessor abandoned it before it was found.

Aside from the UP Law Center, the PALS meron silang suggested answer published by Rex Bookstore because successor-in-interest but malinaw na ang predecessor ang may-ari.
**SIR:** I agree with the UP Law Center. Treasure na kasi 1 century mahigit na and di na hinahanap ng BPI so res nullius na ang property so malinaw na pwede na sya as treasure.

| Finder | Share in the Treasure |
|---|---|
| 1. Owner of the property where the treasure was found | 100 % Owner |
| 2. Not the owner<br>But if the discovery is made on the property of another, or of the State, or any of its subdivisions AND by chance | ½ Owner; ½ finder |
| Unless found by<br>a. employee | No share unless there was an agreement to the contrary, but he should be paid his wages. |
| b. trespasser | 100 % owner; trespasser no share |

The premise here is the hidden treasure.
If the founder is the owner, then sa kanya lahat.
If the founder is not the owner, and he found it in the property of another by chance, then ½ ½
If trespasser then wala siyang share
If he is an employee then sweldo lang niya makukuha niya.

A congregation for religious women, by way of *commodatum*, is using the real property owned and registered in the name of *Spouses Manuel* as a retreat house.

*Maria*, a helper of the congregation discovered a chest in the backyard. When she opened the chest, it contained several pieces of jewelry and money. (4%)

**(A)** Can the chest containing the pieces of jewelry and money be considered as hidden treasure?

**Article 439.** By treasure is understood, for legal purposes, any hidden and unknown deposit of money, jewelry, or other precious objects, the lawful ownership of which does not appear. (352)

A → No. under the article 439, the hidden treasure is money jewelry or other precious objects, the lawful ownership of which does not appear. The chest was found in the backyard and can be presumed to be left there by the owner. Hence, cannot be classified as hidden treasure.

***Hindi ba pwede na Maria, is a helper, is naghuhukat sa lupa kaya nakita nya eto?***
SIR: YES, pwede naman discovered a chess does not mean na it is in plain view so baka naghuhukay sya kasi may gusto syang itapon na basura.

If that is the scenario, yes.

Ang tinatanong is ang chest and hindi ang laman, ang treasure is not the chest but the money and jewelry. Chests are made of steel or wood kaya di siya treasure. Ang tanong ay chest at hindi the money which is inside the chest.

Iba ang requirement that lawful ownership does not appear kasi applicable yun kay Adam.

Demetrio knew that a piece of land bordering the beach belonged to Ernesto. However, since the latter was studying in Europe and no one was taking care of the land, Demetrio occupied the same and constructed thereon nipa sheds with tables and benches which he rented out to people who want to have a picnic by the beach. When Ernesto returned, he demanded the return of the land. Demetrio agreed to do so after he has removed the nipa sheds. Ernesto refused to let Demetrio remove the nipa sheds on the ground that these already belonged to him by right of accession. Who is correct? (3%)

Ang builder of good faith does not have the right to remove what he built. Kung gusto ng owner to appropriate what he built, builder cannot remove it because he is in bad faith.

In order for the rule to apply that the builder will have no right to remove, Ernesto must also be in good faith, kasi if the owner is also in bad faith, then it

as though, both acted in good faith.

**Article 449.** He who builds, plants or sows in bad faith on the land of another, loses what is built, planted or sown without right to indemnity. (362)

b) In good faith, Pedro constructed a five-door commercial building on the land of Pablo who was also in good faith. When Pablo discovered the construction, he opted to appropriate the building by paying Pedro the cost thereof. However, Pedro insists that he should be paid the current market value of the building, which was much higher because of inflation.

Who is correct, Pedro or Pablo? (1%)

In the mean time that Pedro is not yet paid, who is entitled to the rentals of the building. Pedro or Pablo? (1%)

**QUAMTO:**

**A:** Pablo is entitled to the rentals of the building. As the owner of the land, Pablo is also the owner of the building being an accession thereto. However, Pedro who is entitled to retain the building is also entitled to retain the rentals. He, however, shall apply the rentals to the indemnity payable to him after deducting reasonable cost of repair and maintenance.

Does the law provide na only the cost?
V: the necessary expenses that were spent in construction.

**Pecson v. CA** → He was the owner of the land at the time the building is constructed so it is not covered by 448 because the premise of 448 is that he is not the owner and he is only builder claiming ownership at the time it was built.
The SC concluded not only the cost but that it should be based on the FMV.

**2nd QUESTION**:
A: Given that it was Pablo who owned the land wherein Pedro constructed the building, both of them are entitled to the rentals of the building, in proportion to the value.
**SIR:** ***Is it possible that the lupa is not the owned by the owner of the building?*** YES.

***Pero in the problem. Sino ang may ari?*** Pablo. Kasi inappropriate na niya ang building therefore, ***what is the answer as to who is entitled to the rentals?*** Si PAblo kasi siya ang may-ari ng building kaya ang fruits sa kanya din. ang complication dito ay dito sa fact na

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| | Pedro is a builder in good faith. As a builder in good faith, he has the right to be reimbursed eh di pa siya nababayaran. ***So ordinarily, kanino magbabayad si lessee?*** Kay Pedro. ***Who is entitled to the rentals?*** Ang may-ari ng building is Pablo kasi civil fruits ito. BUT although babayaran ng lessee is si Pedro, ibabawas yun sa indemnity sa babayaran kay Pablo by way of compensation kung di niya ibibigay ang rentals na ito kay Pedro. Subject to compensation. |
| Anselmo is the registered owner of a land and a house that his friend Boboy occupied for a nominal rental and on the condition that Boboy would vacate the property on demand. With Anselmo's knowledge, Boboy introduced renovations consisting of an additional bedroom, a covered veranda, and a concrete block fence, at his own expense.<br><br>Subsequently, Anselmo needed the property as his residence and thus asked Boboy to vacate and turn it over to him. Boboy, despite an extension, failed to vacate the property, forcing Anselmo to send him a written demand to vacate.<br><br>Ownership : Builder in good faith<br>2013 Bar Exam Question No. IV(A) (4%)<br><br>In his own written reply, Boboy signified that he was ready to leave but Anselmo must first reimburse him the value of the improvements he introduced on the property as he is a builder in good faith. Anselmo refused, insisting that Boboy cannot ask for reimbursement as he is a mere lessee. Boboy responded by removing the improvements and leaving the building in its original state.<br><br>**(A)Resolve Boboy's claim that as a builder in good faith, he should be reimbursed the value of the improvements he introduced. (4%)** | **SIR:** The question is not about Boboy being good faith or bad faith but him being a builder in good or bad faith.<br><br>***Ang lessee pwede ba magbuild in bad faith?*** Yes. pero iba ang rights ng lessee na in good faith sa bad faith.<br><br>He is not a builder in good faith. ***Is he entitled to the reimbursement for the value of the improvements?*** YES. HIndi ito ang tanong sa reimbursement. But is he a builder in good faith THUS entitled to reimbursement.<br>He is not a builder in good faith kasi he is not claiming ownership over the lot. Kasi lessee lang siya. Eh estopped ang lessee on getting ownership. |

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| G.R. Nos. 154391-92 September 30, 2004<br>Spouses ISMAEL and TERESITA MACASAET, petitioners, vs.<br>Spouses VICENTE and ROSARIO MACASAET, respondents.<br><br>Issue : Who is entitled to the physical or material possession of the premises? | Art. 448 ay applied in exceptional circumstances even if ang builder is not caimed ownership at the time of construction at the time of the improvements were made.<br><br>THIS IS ONE OF THE EXCEPTIONAL CIRCUMSTANCES.<br><br>READ MACASAET case.<br>They are not builder in good faith kasi they are not claiming ownership. But when they built this, it is not by mere tolerance but with permission of the parents. Apply Art. 448 by analogy. Remand to the trial court for the parents to choose kung ano ang option nila under Art. 448.<br><br>SEE: apply Art. 448 if the builder is not claiming ownership at the time the improvement was made. |
| | Tingnan ang other circumstances where Art. 448 will be applied by analogy. |

**Next meeting:**

- Rights of owner such as accretion.
- Finish property

**DO NOT WRITE ANYTHING BELOW THIS.**